

CITATION: *Brantford (City) v. Doolittle*, 2024 ONCJ 498

DATE: September 30, 2024

**IN THE MATTER OF
The Highway Traffic Act, R.S.O. 1990, c. H.8**

Between

The Corporation of the City of Brantford

prosecutor (respondent)

and

Benjamin Doolittle

and

Tammy Duboy

defendants (applicants)

**Ontario Court of Justice
Brantford, Ontario**

Quon J.P.

Reasons for ruling on jurisdiction and 17 other pre-trial motions

Pre-trial Motions argued on:

July 5, 2024 and August 9, 2024.

Rulings on pre-trial motions:

September 30, 2024.

**Charges: for the defendant Benjamin Doolittle - ss. 32(1) and 130(1) of H.T.A. –
“drive motor vehicle – no licence” and “careless driving”**

**for the defendant Tammy Duboy- s. 32(10) of H.T.A. – “permit
unlicensed person to drive motor vehicle”**

Counsel:

Walsh, A., municipal prosecutor

Benjamin Doolittle and Tammy Duboy, defendants (self-represented)

Cases Considered or Referred To:

Haldimand Proclamation of 1784 cases

9646035 Canada Ltd. v. Hill, [2017] O.J. No. 4894, 2017 ONSC 5453 (Ont. S.C.J.), Harper J.

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John Voortman & Associates Ltd. v. Haudenosaunee Confederacy Chiefs Council, [2009] 3 C.N.L.R. 117 (Ont. S.C.J.), Henderson J.

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R. v. Gibson, [2007] O.J. No. 3948 (Ont. S.C.J.), Whitten J.

R. v. Jamieson, [2013] O.J. No. 5473 (Ont. C.J.), Harris J.

Six Nations of the Grand River Band of Indians v. The Attorney General of Canada and His Majesty the King in Right of Ontario, 2023 ONSC 3604, (Ont. S.C.J.), Akbarali J.

Six Nations of the Grand River Bands of Indians and The Attorney General of Canada and His Majesty the King in the Right of Ontario (defendants) and Mississauga's of the Credit First Nation, Court File Number: cv-18-00594281-0000 and Toronto Court File No. cv-18-594281-0000 (Originally Brantford Court File No. 406/95).

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Cambie Surgeries Corporation v. British Columbia (Attorney General), 2017 BCSC 860 (CanLII) (B.C. S.C.).

Cardinal v. Director of Kent Institution, [1985] 2 S.C.R. 643 (S.C.C.).

Dick v. The Queen, [1985] 2 S.C.R. 309 (S.C.C.).

Ermineskin Indian Band and Nation v. Canada, [2009] S.C.J. No. 9 (S.C.C.).

Ewert v. Canada, [2018] 2 S.C.R. 165, 2018 SCC 30 (S.C.C.).

Haida Nation v. British Columbia (Minister of Forests), [2004] 3 S.C.R. 511, 2004 SCC 73 (S.C.C.).

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Wewaykum Indian Band v. Canada, [2002] 4 S.C.R. 245, 2002 SCC 79 (S.C.C.).

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1. INTRODUCTION

- [1] When you drive from the City of Toronto to the Provincial Offences courthouse located in the City of Brantford, which are two cities located geographically in the Province of Ontario, you may choose to travel first on the Queen Elizabeth Way until you reach the Town of Oakville and Highway 403 West. You then continue on Highway 403 West, which is a highway that goes towards the City of Hamilton. After travelling on Highway 403 West for about 36 minutes you would then drive pass the City of Hamilton. After travelling for another 14 minutes on Highway 403 West you would then have to take Exit 38 at the Wayne Gretzky Parkway to get to downtown

Brantford and the Provincial Offences courthouse in Brantford. And, if your GPS in your car or cellphone is working properly you will be given directions on which turns to take in Brantford and which streets to travel on so that you can arrive at the courthouse located at 102 Wellington Street. During this trip from the City of Toronto to the City of Brantford, which takes about one hour and 36 minutes, you do not have to travel outside the Province of Ontario, nor do you have to enter into another Canadian province or another country to complete the trip. You also do not have to travel through any border crossings or ports of entry nor do you have to show any passports or visas to any officials at any customs or immigration checkpoints because you have not left Canada nor the Province of Ontario.

- [2] The reason for having to travel from the City of Toronto to the City of Brantford on July 5, 2024 and August 9, 2024, had been to attend and sit in the Provincial Offences Court to hear and consider the myriad of pre-trial applications brought by Benjamin Doolittle, UE and Tammy Duboy (“the defendants”), who have both been charged with committing provincial offences under Ontario’s *Highway Traffic Act*. The prosecution alleges that these provincial or regulatory offences had been committed at 3:42 p.m. on December 22, 2022, at the location of Ellis Road and Highway 24 South in the County of Brant, in the Province of Ontario, which is just outside the City of Brantford. Both defendants had been charged by OPP Officer Fitzpatrick with committing these provincial offences and were issued Part I Certificates of Offence which contained set fines. Benjamin Doolittle, UE, was charged with “careless driving” under s. 130(1) and “driving without a driver’s licence” under s. 32(1); while Tammy Duboy was charged with “permit unlicensed driver to drive motor” under s. 32(10).
- [3] However, because the primary issue in these pre-trial motions in respect to the defendants’ Highway Traffic Act charges are related to a disputed sovereignty and land title claim over specific territory within the Province of Ontario, that has been brought by the Mohawk Nation of the Grand River against both the Government of Canada and the Government of Ontario, it is important to first acknowledge that the City of Brantford, with a population estimated at 108,544, and which is located in the Grand River valley, has been for a millennia the home of the Anishinaabe, Haudenosaunee, Huron-Wendat, and Neutral nations, who had shared these lands under the *Dish with One Spoon wampum agreement*. Today, their descendants - the Haudenosaunee and Mississauga nations – continue to reside in the Grand River region which is the traditional land of the Huron-Wendat, the Haudenosaunee, and the Mississauga of the Credit First Nations and this land is governed by the Dish with One Spoon covenant between the Haudenosaunee Confederacy (Six Nations Confederacy) and the Confederacy of Ojibway and Allied Nations. The City of Brantford is also located approximately 27 to 32 kilometers from the present Six Nations of the Grand River reserve, depending on which route is taken for travel. The Six Nations of the Grand River reserve presently encompasses approximately 46,500 acres.

- [4] The defendants are both members of the Mohawk Nation of the Grand River and contest the jurisdiction of the Provincial Offences Court in the City of Brantford to hear their respective cases. They contend in their "lack of jurisdiction" application that the alleged offences did not occur in the Province of Ontario but had occurred instead on the sovereign territory of the Mohawk Nation, which is based on territory in Ontario that had been set aside for the Mohawk Nation in a colonial government decree issued on October 25, 1784, by Sir Frederick Haldimand, who was the governor of the Province of Quebec (the British Colonial Government at that time in pre-Confederation Canada), known as the "Haldimand Proclamation of 1784". The "Haldimand Proclamation of 1784" had designated a tract of land to be set aside in perpetuity for the exclusive use by the Haudenosaunee, also known as the Six Nations Confederacy, in compensation for their alliance with British forces during the American Revolution (1775–83) and as a result of the Haudenosaunee losing their land that had been located in the present New York state area. This tract of land, known as the "Haldimand Tract", had been described and designated in Governor Haldimand's decree to cover an area that was to be bounded by 6 miles on both sides of the Grand River (located in present-day southwestern Ontario), from the source of the Grand River to Lake Erie. This area bordering on both sides of the Grand River, as described by the Haldimand decree, had covered about 950,000 acres. To obtain legal title to this tract of land, the British colonial government had entered into an agreement to purchase that tract of land from the Mississauga Nation in May of 1784. However, throughout the late 1700s and 1800s, the Crown and the Haudenosaunee (Six Nations Confederacy) have disputed the rights to the land title over the Haldimand Tract and of that 950,000 acres that had been designated for the people of the Six Nations Confederacy in the "Haldimand Proclamation of 1784". Presently only about 46,500 acres of the original Haldimand Tract remain under the control of the Six Nations of the Grand River. Moreover, negotiations about legal title to the Haldimand Tract still continue today between the Canadian government, the Ontario government and the Six Nations of the Grand River. Ergo, the observation of not passing through any immigration checkpoints when entering the City of Brantford would be a facile answer in respect to a complex issue on this First Nations' claims of sovereignty over lands that had not been ceded or conquered by colonial powers and to which the British Crown had claimed or asserted sovereignty over most of North America that had been occupied by Aboriginal Peoples.
- [5] Of important note in the defendants' pre-trial motions is that the defendants have submitted that they are not making any aboriginal rights arguments and have narrowed the grounds of their "lack of jurisdiction" argument to be based on the location where the alleged Highway Traffic Act offences had occurred, contending that the alleged offences had occurred within the territory, which is land that had been originally described as the "Haldimand Tract" and which they contend is the rightful sovereign territory of the sovereign Mohawk Nation. And, as the alleged offences occurred on the supposedly sovereign territory of the Mohawk Nation then the Provincial Offences Court would not have the jurisdiction to try the defendants' Highway Traffic Act offences. Moreover, the defendants also submit that the Indian

Act, R.S.C., 1985, c. I-5, is not applicable to these proceedings or to them as members of the sovereign Mohawk Nation. But more significantly, there is presently ongoing litigation between the Six Nations Indian Band of the Grand River and the Canadian and Ontario governments for compensation and declaratory relief in respect to the disputed land described in the “Haldimand Proclamation of 1784” in an action being heard in the Superior Court of Justice in the City of Toronto.

- [6] Alas, on this court’s journey through reading the myriad of journal articles, caselaw, as well as historical, political, and legal perspectives on the “Haldimand Proclamation of 1784”, and reconciling the issues raised in these pre-trial motions, it has come to have a greater appreciation of the sovereignty issue maintained by indigenous people over their lands that had not been ceded or conquered with the Crown’s assertion of sovereignty. And, even though this court is bound by the principle of *stare decisis* in regards to higher courts’ judgments and interpretation of the “Haldimand Proclamation of 1784” and what had been legally granted to the Six Nations’ Confederacy, it should be acknowledged that there has been a change in judicial attitude towards indigenous peoples’ claims of sovereignty and the principle of federalism in which there may eventually be a recognition of a new form of federalism where Indigenous nations would form a third order of government, alongside federal and provincial governments, that would require a genuine consent-based partnership and shared governance.
- [7] In addition, besides the “lack of jurisdiction” pre-trial motion, the defendants have also brought in total 18 pre-trial motions that seek the following orders or remedies which are described succinctly by the following:
- (1) Motion for Change of venue to the Federal Court or to an alternative court location outside the disputed territory to ensure impartiality and fairness (relying on R. v. Tran, [1994] 2 S.C.R. 951 (S.C.C.)).
 - (2) Motion for Recusal of Officials and Court members who possess or occupy lands within the Grand River Mohawk lands to avoid conflict of interest (relying on Wewaykum Indian Band v. Canada, [2002] 4 S.C.R. 245, 2002 SCC 79 (S.C.C.)).
 - (3) Constitutional Challenge of the assertion by the court and prosecutors that they are not obligated to observe the “Haldimand Proclamation of 1784” and to ensure the officials’ actions comply with their constitutional obligations (relying on Reference re Secession of Quebec, [1998] 2 S.C.R. 217 (S.C.C.)).
 - (4) Motion for Investigation of Unjust Enrichment (relying on Pettkus v. Becker, [1980] 2 S.C.R. 834 (S.C.C.)).
 - (5) Motion for Enforcement of Legal Duties and to mandate the enforcement of the “Haldimand Proclamation of 1784” as a duty imposed by law and to ensure that officials adhere to their oaths of office and constitutional obligations (relying on

- Blencoe v. British Columbia (Human Rights Commission), [2000] 2 S.C.R. 307 (S.C.C.)).
- (6) Motion for Review of Prosecutorial Conduct to determine negligence and potential harms committed against the defendants (relying on R. v. O'Connor, [1995] 4 S.C.R. 411 (S.C.C.) and R. v. Crown Zellerbach Canada Ltd., [1988] 1 S.C.R. 401 (S.C.C.)).
 - (7) Motion for Verification of Oaths of Office taken by all judges, prosecutors, peace officers and other officials involved in the defendants' case (relying on McAteer v. Canada (Attorney General), [2014] 121 O.R. (3d) 1, 2014 ONCA 57 (Ont. C.A.), Weiler, Lauwers and Pardu JJ.A.)).
 - (8) Motion for Dismissal of Charges based on the court's lack of jurisdiction over the Grand River Mohawk lands (relying on R. v. Jordan, [2016] 1 S.C.R. 631, 2016 SCC 27 (S.C.C.) and R. v. Askov, [1990] 2 S.C.R. 1199 (S.C.C.)).
 - (9) Motion for Discovery of documents and evidence related to the defendants' case (relying on R. v. Stinchcombe, [1991] 3 S.C.R. 326 (S.C.C.)).
 - (10) Motion for Injunctive relief to prevent encroachment or actions by officials on the Grand River Mohawk lands to ensure exclusive use and enjoyment of rights (relying RJR – MacDonald Inc. v. Canada (Attorney General), [1994] 1 S.C.R. 311 (S.C.C.)).
 - (11) Motion to Quash Indictment on the grounds that it is based on a misapplication of law or lacks sufficient evidence (relying on R. v. Clark, [2005] 1 S.C.R. 6 (S.C.C.)).
 - (12) Motion for an Order of Specific Performance of the treaty obligations under the "Haldimand Proclamation" (relying on Beswick v Beswick, [1966] 1 Ch. 538, [1966] 3 All E.R. 1 (C.A.)).
 - (13) Motion for Protection Order to safeguard the defendants' and other Mohawk residents from further legal or administrative actions by provincial authorities (relying on R. v. Mentuck, [2001] 3 S.C.R. 442, 2001 SCC 76 (S.C.C.)).
 - (14) Motion for Exclusion of Evidence obtained in violation of the defendants' rights or through the misapplication of law (relying on R. v. Oakes, [1986] 1 S.C.R. 103 (S.C.C.) and R. v. Grant, [2009] 2 S.C.R. 353, 2009 SCC 32 (S.C.C.)).
 - (15) Motion for Sanctions against the prosecution or officials for misconduct or violation of legal procedure (R. v. Felderhof, [2003] O.J. No 4819 (Ont. C.A.), Carthy, Doherty and Rosenberg, JJ.A.).

- (16) Motion for Judicial Notice of historical and legal facts supporting the defendants' claims (R. v. Find, [2001] 1 S.C.R. 863 (S.C.C.)).
- (17) Motion for Relief from Judgment in regards to prior judgments made without considering the specific legal and treaty rights of the Mohawk nation (R. v. G.D.B., [2000] 1 S.C.R. 520 (S.C.C.)).
- (18) Motion to Provide any other relief deemed just and proper by the court.

(A) Additional Background (from The Canadian Encyclopedia)

- [8] The County of Brant is where the defendants had allegedly committed their Highway Traffic Act offences on December 22, 2022. The county is named after Joseph Brant (Thayendanegea), who was a Mohawk leader, and was established in 1851. The City of Brantford separated from the County of Brant when it was incorporated as a city in 1877. On January 1, 1999, the Town of Paris and the townships of Brantford, Burford, Oakland, Onondaga, and South Dumfries amalgamated to form a new city with the official legal name of the "County of Brant". The County of Brant is situated on part of the original Haldimand Tract, which had been part of the traditional territory of the Neutral, Mississauga, and Haudenosaunee peoples.
- [9] In July of 1852, the Six Nations sold to the provisional County of Brant the land upon which the Brant County Court House now stands at 80 Wellington Square in the City of Brantford.
- [10] The Six Nations (Haudenosaunee) have a unique relationship with the Crowns of Canada and Ontario based upon the original Two Row Wampum agreement of 1613.
- [11] In 1664, the British had sought and secured to have the same agreement for Peace, Friendship and Respect as the Dutch had secured in 1613 with the Haudenosaunee. The 1613 treaty, which had been the first treaty between Indigenous peoples and Europeans, had been recorded by the Haudenosaunee in a wampum belt known as the Two Row Wampum. The pattern of the belt consists of two rows of purple wampum beads against a background of white beads. The purple beads signify the courses of two vessels -- an Indigenous canoe and a European ship -- traveling down the river of life together, parallel but never touching. The three white stripes denote peace, friendship, and respect. Hence, this wampum records the meaning of the agreement, which had declared peaceful coexistence between the Haudenosaunee and Europeans (Dutch settlers in the area).
- [12] The Six Nations (Haudenosaunee) people had allied with the British during the American Revolutionary War (1775-83), particularly warriors from the Mohawk, Cayuga, Onondaga and Seneca nations. Some warriors of the Oneida and Tuscarora nations also allied with them. These indigenous nations had

longstanding trade relations with the British and had hoped that the British might stop European-American encroachment on their territories.

- [13] After the Americans were victorious in their conflict with the British, the British Crown ceded all of its territory in the American colonies to their new government under a peace treaty, including that belonging to the Six Nations without consulting the Six Nations or making them a party to treaty negotiations. The British Crown had also endeavoured to resettle native Loyalists in Canada and provide some compensation for lands lost in the new United States. The British Crown had also hoped to use these new settlers, both Native Americans and European Americans, to develop agriculture and towns in areas west of Quebec, in the territory later known as Upper Canada.
- [14] After the American Revolutionary war, Mohawk leaders John Deseronto and Joseph Brant met with British commander Frederick Haldimand to discuss the loss of their lands in what is now New York state. Haldimand had promised to resettle the Mohawk people near the Bay of Quinte, on the northeast shore of Lake Ontario, in present-day Ontario, Canada. Haldimand had also arranged for the purchase of land from other First Nations on the Bay of Quinte, which he then granted to the Mohawk people. However, there have also been questions and issues about the First Nations' understanding of what such purchase entailed legally under British colonial law. About 200 of the Mohawk nation settled with Deseronto at what is now called the Tyendinaga Mohawk Territory in Ontario. This group of Mohawk originally led by John Deseronto settled on the Bay of Quinte known as Tyendinaga. On the other hand, Joseph Brant decided that he preferred to settle on the Grand River north of Lake Erie. Mohawks and other Six Nations members joined him in settling on the Grand River. By the Haldimand Proclamation of October 25, 1784, the British colonial government had granted a tract of land to the Mohawk Nation and the other Six Nations' bands in appreciation of their support for the British Crown during the American Revolution. The British Crown had purchased the lands known as the "Haldimand Tract" from the Mississauga Nation on May 22, 1784, as part of the "Between the Lakes Treaty". Joseph Brant then led a large group of the Native Loyalists to settle in the "Haldimand Tract".

(i) The Haldimand Proclamation of 1784 (from The Canadian Encyclopedia)

- [15] The disputed land that the defendants refer to is known as the "Haldimand Tract". It was land referred to in a decree signed on October 25, 1784, by Sir Frederick Haldimand, the governor of Québec, which granted a tract of land to the Haudenosaunee, also known as the Six Nations (Onoñda'gega' (Onondaga), Onyota'a:ka (Oneida), Onödowága:' (Seneca), Gayogohó:no' (Cayuga),

Kanien'kehá:ka (Mohawk) and Skarù·rę? (Tuscarora)), for their alliance and loyalty with British forces during the American Revolutionary war.

- [16] After the American Revolutionary war, the Haudenosaunee lost much of their ancestral homeland in what is now upper New York state, an area now formally recognized as American territory. Mohawk leader Joseph Brant and some representatives of the Six Nations Confederacy, reminded the British government of the Haudenosaunee's loyalty during the American Revolution, and pressured the British Crown to provide them with a land grant in pre-Confederation Canada to replace the territory that they had lost as a result of the war. Joseph Brant selected the valley of the Grand River in present-day southwestern Ontario as a place of settlement and in 1784, the governor of the province of Quebec, Frederick Haldimand, agreed to Joseph Brant's request and made arrangements for the land grant.
- [17] On May 22, 1784, Haldimand had signed an accord with Mississauga chiefs to cede approximately 950,000 acres of land to the British Crown for £1,180. The largest portion of this tract went to the Haudenosaunee, who received a tract of land measuring 6 miles deep on either side of the Grand River, beginning at its source and ending at Lake Erie.

(ii) Early Land Title Disputes (from The Canadian Encyclopedia)

- [18] From the start, the Haudenosaunee and the British Crown had disagreed over the meaning of the "Haldimand Proclamation of 1784" and who actually held title to the Haldimand Tract. The British Crown had understood that the Haldimand Proclamation of 1784 had prohibited the Six Nations from leasing or selling the land to anyone but the Crown. However, Joseph Brant had argued that Haldimand had promised the Six Nations freehold land tenure. Moreover, Joseph Brant had maintained that selling and leasing the land to white settlers was important to the economy of the Six Nations, which had been hampered by non-sustainable hunting in the Grand River area. Joseph Brant also argued that limited white settlement in the area would promote the establishment of model farms and foster modernized economic development.
- [19] These disputes over land title can be seen as part of a larger debate about Six Nations sovereignty. Joseph Brant had wanted the Six Nations to be recognized as autonomous Crown allies rather than as British subjects and as an independent nation, so that Six Nations would be able to sell their land to whomever they wanted. The British Crown, however, did not see the Six Nations as political entities, but rather as a group that was to receive special consideration, but still under Crown control.
- [20] In 1791, the dispute surrounding the Haldimand Tract was further complicated. In that year, the British colonial government created the province of Upper Canada,

adding another bureaucratic layer of government with which the Six Nations would have to negotiate in order to gain the land title that they had sought.

(iii) Land Survey, 1791 (from The Canadian Encyclopedia)

- [21] Upon review of the Haldimand Proclamation of 1784, politician and Indian Department official Sir John Johnson noted an error involving the location of the northern boundary of the tract. Haldimand had mistakenly assumed that the headwaters of the Grand River resided within the territory ceded by the Mississauga Nation in 1784. However, this was inaccurate, as it in fact laid outside of the land that the British Crown had purchased from the Mississauga Nation.
- [22] In order to clarify the boundaries of the tract, the British Crown appointed surveyor Augustus Jones to complete a survey of the Haldimand Tract in 1791. In so doing, Jones redefined the borders of the Six Nations' land parcel, limiting the Haldimand Tract along its northern borders by what is known today as the Jones' Base Line. In addition, Jones established straight-lined boundaries, rather than sinuous boundaries following every curve in the river, which can still be seen in today's municipal boundaries.
- [23] Joseph Brant (Thayendanegea) and others expected that once the Crown purchased the remaining territory from the Mississauga Nation — which they did in December 1792 — the remaining section to the headwaters of the Grand River would be given to the Six Nations. However, the Crown maintained that the Haldimand Proclamation could only include what could be legally transferred at the time, not what was intended to be transferred. Consequently, the Crown did not transfer these lands purchased in 1792 to the Six Nations as Haldimand originally intended.

(iv) The Haldimand Tract (from The Canadian Encyclopedia)

- [24] Both defendants, Benjamin Doolittle, UE and Tammy Duboy, have been charged with committing offences under Ontario's Highway Traffic Act, R.S.O. 1990, c. H.8, on December 22, 2022, in the County of Brant. The County of Brant is within the original Haldimand Tract that was comprised of 950,000 acres (385,000 hectares). Moreover, the Ontario cities and towns of Brantford, Cambridge, Cayuga, Fergus, Kitchener, Paris, and Waterloo, are now located in that original Haldimand Tract of 950,000 acres. Originally, the land forming the Haldimand Tract that had been set aside for the exclusive use of the Six Nations had covered 950,000 acres, but today only approximately 46,500 acres of that original tract remain for the exclusive use of the Six Nations, which is where the Six Nations of the Grand River reserve is situated.

(v) Two Row Wampum belt was used by indigenous people to reflect their understanding of the "Treaty of Niagara of 1764" (from The Canadian Encyclopedia)

- [25] With the conquest of New France in 1760, Britain needed to create a policy that would ensure peaceful settlement and relations with First Nations' people. In 1763, some First Nations had continued the conflict with the British by taking multiple forts throughout the interior as well as besieging Fort Detroit and Fort Pitt. At the same time, the British government outlined its "Indian" policies in the Royal Proclamation of 1763. Sir William Johnson, the superintendent of Indian affairs for the northern colonies, had been instructed to establish peace with the interior or western First Nations' people. Johnson began in late 1763, circulating copies of the Royal Proclamation accompanied by strings of wampum to the First Nations from Nova Scotia to Hudson Bay to the Gulf of Mexico and the Mississippi River using messengers from the Algonquin and Nipissing First Nations. Additionally, Johnson presented the Royal Proclamation and explained its clauses to the Six Nations Confederacy in December 1763. Johnson also called for a congress to be held at Niagara in the summer of 1764.
- [26] By July 1764, approximately 2,000 people from roughly 24 First Nations had gathered in Niagara to meet with Johnson. These included representatives from the Haudenosaunee, Detroit Wyandot, Anishinaabeg, Menominee, as well as those from the Seven Nations of Canada and the Western Confederacy. The Detroit Odawa, Sandusky Wyandot, and Ohio Shawnee refused to attend the conference. Worried about British dishonesty, Pontiac, Odawa First Nations' leader, who had been a leader of the renewed warfare also did not attend the discussions in 1764. However, Pontiac did sign a preliminary peace treaty in 1765 and a final treaty the year after.
- [27] The Niagara agreement of 1764 was entered into the wampum. Approximately 84 wampum belts were exchanged during the treaty council representing negotiations between various First Nations. At the conclusion of the council, Johnson presented a Covenant Chain wampum belt to the Western Confederacy. The two figures holding hands on the belt symbolized friendship and alliance that would bind Indigenous nations and the Crown, while the hexagons represented council fires. Johnson presented the Twenty-Four Nations Wampum to the First Nations. It symbolically showed they were all in a relationship. A Two-Row Wampum belt was given to Johnson by the First Nations. It indicated Indigenous understandings of the treaty and the Royal Proclamation of 1763. Johnson also presented 24 medals dated 1764 to the First Nations present, which contained an image of an Indigenous person and a settler peacefully smoking under a tree. Together, the wampum belts and medals, as well as the accompanying presents, established a peace and alliance between all the parties at the council and the British Crown.
- [28] The First Nations who had agreed to the Niagara Treaty of 1764 had fought as allies with the British in the American Revolution and the War of 1812. Indigenous involvement in both of these conflicts had ensured British North America's survival.

- [29] While Canada does not officially recognize the Treaty of Niagara of 1764, First Nations see it as foundational to their understanding of the Royal Proclamation of 1763, as well as establishing a nation-to-nation relationship with the British Crown. According to John Borrows, an Anishinaabe legal scholar and theorist, the Royal Proclamation of 1763 cannot be understood without the presence of the Treaty of Niagara of 1764. Simply, the Royal Proclamation by itself only represents the Crown's understanding of the relationship. However, together both the Royal Proclamation of 1763 and the Treaty of Niagara of 1764 represent a more rounded understanding of the Indigenous-Crown relationship. In fact, Borrows notes that, taken together, the two documents mandate non-interference of the Crown in Indigenous governance and lands as well as recognizing Indigenous sovereignty. The Crown, however, disagrees with this view.

(vi) The Haldimand Pledge of 1779 (from The Canadian Encyclopedia)

- [30] In 1779, with the American Revolutionary War still raging, the Six Nations sought confirmation from the new Governor General, Sir Fredrick Haldimand, that the Promise of 1775 made by Sir Guy Carleton would be honoured. Haldimand then issued the Haldimand Pledge on April 7, 1779 — naming three Mohawk villages that had been destroyed: Canojaharie, Ticonderago, and Aughugo (also known as the Canajoharie, Fort Hunter and Oquaga). The people from these villages had been left homeless and the Six Nations wanted to know that they would have somewhere to go after the war. Haldimand had ratified Carleton's earlier promise and said that all villages destroyed by the rebels during the war would be restored at the expense of the British colonial government once the fighting was over.

(vii) The Dorchester Proclamation of 1789 (from The Canadian Encyclopedia)

- [31] Realizing the importance of having some type of recognition for loyalists who fought on the side of the British against the Americans, Lord Dorchester, the governor of Quebec and Governor General of British North America, declared on November 9, 1789, "that it was his Wish to put the mark of Honour upon the Families who had adhered to the Unity of the Empire". As a result of Dorchester's statement, the printed militia rolls carried the notation:

Those Loyalists who have adhered to the Unity of the Empire, and joined the Royal Standard before the Treaty of Separation in the year 1783, and all their Children and their Descendants by either sex, are to be distinguished by the following Capitals, affixed to their names: UE or U.E. Alluding to their great principle The Unity of the Empire.

- [32] Therefore, Loyalists of the British Empire are entitled to place the mark of honour of "UE" or "U.E" after their name. In the case at bar, defendant Benjamin Doolittle uses this mark of honour after his name.

(viii) The Simcoe Patent of 1793 (from The Canadian Encyclopedia)

- [33] Frustrated by the reduction in territory of the Haldimand Tract, Joseph Brant petitioned John Graves Simcoe, the first lieutenant governor of Upper Canada, in 1792 for control over the Haldimand Tract. Once Simcoe understood the confusion surrounding the errors and the vagueness of the Haldimand Proclamation of 1784, Simcoe decided to clarify the situation and achieve some form of compromise between the British Crown and Six Nations.
- [34] Simcoe issued in 1793 a limited deed, what is referred to as the “Simcoe Patent”, which has been contested on whether any of the land in the Haldimand Tract had been conveyed as a title in fee simple to Six Nations. The Simcoe Patent had confirmed the new boundaries as marked by the surveyor Augustus Jones; it had limited the Haldimand Tract to 274,287 acres (111,000 hectares) for the exclusive use of the Six Nations. This left the rest of the land available to be leased, surrendered or sold by the Six Nations to the Crown. The Simcoe patent also stipulated that all land transactions of the Six Nations had to be approved by the Crown. However, a clause in the document ensured that the Six Nations could sell portions of the territory to the British colonial government whenever it became absolutely necessary.
- [35] Much to the dismay of the Six Nations, the Simcoe Patent did not address the issue of land title to the territories by the headwaters of the Grand River. This remains a source of dispute between the Six Nations of the Grand River and the Ontario government.
- [36] To Joseph Brant, this patent only reinforced the Crown’s trusteeship interpretation of the title. Brant and the Six Nations of the Grand River chiefs rejected Simcoe’s Patent and claimed that it was not binding on them.

(ix) Land Leases and Sales of the Haldimand Tract (from The Canadian Encyclopedia)

- [37] By 1796, the Six Nations began selling and leasing land of the Haldimand Tract to settlers, despite the Crown’s initial objections. Joseph Brant had reached a compromise agreement with Simcoe’s successor, Peter Russell, whereby Six Nations could sell and lease the land, so long as they offered it to the Crown first. Joseph Brant had sold approximately 350,000 acres of land to the Crown, who then distributed it to private owners, according to arrangements made by Brant with these private owners. On February 5, 1798, this land was parcelled out in six large blocks to specific purchasers. These later developed into towns that still exist today:

Block No 1 – Township of Dumfries

Block No 2 – Township, Waterloo County

Block No 3 – Pilkington Township in Wellington County, and Woolwich
Township in Waterloo County

Block No 4 – Nichol Township in Wellington County

Block No 5 – Moulton Township in Haldimand County
Block No 6 – Canborough Township in Haldimand County

- [38] As settlers began to settle further up the Grand River, in an area known as “Brant’s Ford,” they named their village Brantford, after Joseph Brant.

(x) **The City of Brantford Was Incorporated 1877 And The County of Brant Was Established 1851 (from The Canadian Encyclopedia)**

- [39] European settlers had begun arriving in 1805 to the Haldimand Tract area, and as the number of colonists grew, the Six Nations eventually surrendered the townsite for the future City of Brantford in 1830, which had been located on the Grand River. In 1825, the centre of the Haldimand Tract had been named Brant’s Ford after Mohawk leader Joseph Brant. The City of Brantford, Ontario, was incorporated as a city in 1877. Brantford is also the site of the oldest Protestant church in Ontario, known as Her Majesty’s Chapel of the Mohawks, built in 1785 with a grant from King George III. Joseph Brant and his son John Brant (Ahyonwaeghs) are buried in the churchyard. In addition, the County of Brant which was established in 1851 and is named after Joseph Brant. The County of Brant originally consisted of Brantford Township (Brantford, Paris, Mount Pleasant, Cainsville), Buford Township (Burford, Scotland), Oakland Township (Scotland, Oakland), Onondaga Township (Onondaga, Middleport), South Dumfries Township (Paris, St. George, Glen Morris) and Tuscarora Township (Six Nations Reserve, New Credit Reserve). On January 1, 1999, the Town of Paris and the townships of Brantford, Burford, Oakland, Onondaga, and South Dumfries amalgamated to form a new municipality with the official legal name of County of Brant. The Brant County Courthouse was built on land purchased from the Six Nations in July of 1852.

(xi) **Six Nations of the Grand River Reserve, 1847 (from The Canadian Encyclopedia)**

- [40] By the mid-1800s, squatters had moved into the Grand River Valley and threatened the Six Nations’ control of their land. The Province of Canada, as it was known then, suggested that the Six Nations sell their remaining acres to the Crown, as a means of protection. In return, Six Nations would receive money from the land sales, and a reserve of approximately 47,000 acres (19,000 hectares). According to the Crown, the Six Nations agreed to these terms in 1841. However, the validity of this agreement has been disputed by Six Nations, who claim that the Six Nations never agreed to sell the land, only to lease it.
- [41] By 1847, the Six Nations had occupied the land that is home to the current Grand River reserve. The Six Nations of the Grand River reserve accounts for approximately 4.8 per cent of the original Haldimand Tract. Six Nations of the Grand River reserve (Six Nations Indian Reserve No. 40) is the largest reserve in Canada

by population, with almost 13,000 residents and 27,559 registered band members as of 2019. It is also the second largest reserve by area in Canada.

(xii) **Modern Land Claims by Six Nations (from The Canadian Encyclopedia)**

- [42] Disputes over the rights to the Haldimand Tract continued into the 20th and 21st centuries. In 1974, the Six Nations created the Six Nations Land Claims Research Office to pursue the terms laid out in the “Haldimand Proclamation of 1784”. Since then, the Six Nations Land Claims Research Office has submitted 29 separate claims to the Specific Claims Branch of the federal government.

2. ARGUMENT ON PRE-TRIAL MOTIONS

(A) THE DEFENDANTS’ SUBMISSIONS

- [43] The defendants’ arguments for the pre-trial motions are summarized and outlined with the following submissions:

1. Establishment of Standing

The defendant, Benjamin Doolittle, submits that as the Secretary-General for the Mohawk Nation of Grand River and as a direct descendant of Colonel Joseph Brant, he and the defendant Tammy Duboy represent the interests of the entire Mohawk Nation. He also submits that the defendants’ standing is firmly established through historical treaties and legal documents, affirming their roles as representatives of the Mohawk Nation. This position he submits grants the defendants the authority to bring forth this case and address the pressing issues at hand.

2. Jurisdictional Competency of the Court

The defendants submits that the jurisdiction of this court over matters related to the Haldimand Proclamation is under scrutiny. The Proclamation is an imperial instrument, establishing a sovereign agreement between the Crown and the Mohawk Nation of Grand River. As a third party, Canada cannot alter or disregard this agreement. Consequently, the court's authority to adjudicate issues related to the Proclamation may be questioned.

3. Revocation of Consent

The defendants also formally revoke any implied or explicit consent that this court may believe it has to adjudicate matters related to the Haldimand Proclamation. Our position is that the court, under its current jurisdiction, lacks the authority to make determinations regarding the Proclamation, which is an

imperial instrument and sovereign agreement. This revocation underscores our contention that the court is not authorized to handle issues governed by the Haldimand Proclamation.

4. The Haldimand Proclamation as a Sovereign Agreement

The defendants submit that the Haldimand Proclamation and associated treaties are binding sovereign agreements between the Crown and the Mohawk Nation. These documents are independent of Canadian legislative frameworks and judicial review. This distinct status necessitates a careful review of the court's authority to adjudicate these matters.

5. Failure to Observe Legal Duties

The defendants also contest the argument that the Haldimand Proclamation falls outside the duties of the Justice of the Peace. Citing *McAteer v. Canada*, we assert that failing to observe legally imposed duties, particularly those impacting safety, constitutes a criminal breach. The court's neglect to uphold the Proclamation not only breaches legal duties but also undermines the judicial process.

6. Conflict of Interest

The defendants further submit that the court's location and the presence of Crown agents on lands acquired by treaty with the Mohawk Nation raise substantial concerns about impartiality. This situation presents a conflict of interest that impacts the court's ability to render a fair and unbiased judgment.

7. Distinct Status of the Mohawk Nation of Grand River

The defendants also submit that the Mohawk Nation of Grand River holds a unique legal status. Although recognized by Canada, we are not classified under the Indian Act or the Constitution Act. Our distinct relationship with the Crown must be recognized and respected in all legal proceedings.

8. Irrelevance of Aboriginal Tests

In addition, the defendants submit that the application of aboriginal tests is inappropriate and irrelevant to this case. The Mohawk Nation of Grand River predates the *Indian Act* and the *Constitution Act*. Our rights and status are secured by the Haldimand Proclamation and the Haldimand Treaty of 1779, which are independent of these frameworks. The case of *Wilkes v. Jackson* establishes that the Haldimand Proclamation is not a collective interest subject to aboriginal tests. The noted fatal flaw in these tests was rectified by subsequent proclamations, including the Dorchester Proclamation, which

instituted the mark of honor, and the Simcoe Proclamation, which created a heritage registry.

9. Guarantee of Status Quo Ante Bellum

The defendants also submit that the Haldimand Proclamation and Treaty of 1779 guarantee our status as a continuous society from a pre-Columbian era. This guarantee affirms our sovereignty and legal continuity, and it is imperative that this recognition is upheld by the court and the Crown.

10. Distinct Legal Obligations and Frameworks

The defendants also submit that the Mohawk Nation is not subject to the *Indian Act* or recognized under the *Constitution Act* as First Nations, Inuit, or Métis. The Haldimand Proclamation imposes specific duties on the Crown that are distinct from other legal frameworks. The court must honor these obligations and avoid conflating them with other categories.

11. Challenge to the Oath of Allegiance

The defendants also assert that the Haldimand Proclamation should be incorporated into the oath of allegiance as a standalone duty of the Crown. The failure to recognize and uphold this obligation has resulted in significant harm and undermined the constitutional integrity of our relationship with the Crown.

12. Constitutional Integrity and Legal Precedents

The defendants submit that their case raises concerns about constitutional integrity. According to *McAteer v. Canada*, one cannot use part of the Constitution to undermine another. The court's failure to uphold the Haldimand Proclamation constitutes an attack on constitutional integrity, placing the Mohawk Nation in harm's way and undermining our rights.

13. Jurisdictional Determination of Court Location

The defendants also submit that they filed evidence showing that the court located at 102 William Street falls within the 6-mile boundary established by the Haldimand Proclamation. Our measurements indicate that the court is 0.522 miles from the Grand River, placing it within the jurisdiction of the Mohawk Nation of Grand River. This determination supports our claim that the court's jurisdiction over this matter is questionable, given the historical and legal context of the Proclamation.

14. Additional Submissions by the defendants

Moreover, there is no Mutual Legal Assistance Agreement (MLA) between the Mohawk Nation of Grand River and Canada. The prosecution's reliance on offices or authorities located outside the Mohawk Nation's boundaries demonstrates a profound misunderstanding of both the law and the geography of the Haldimand Tract. These boundaries, as established by the Haldimand Proclamation, clearly delineate that our land is for the exclusive use of the Mohawk people. The presence of Canadian government offices or the assertion of provincial or federal jurisdiction within these boundaries, constitutes encroachment and violates our rights to sovereignty. Canadian law, without a mutual agreement in place, cannot be arbitrarily extended over Mohawk lands.

(B) THE PROSECUTION'S SUBMISSIONS

- [44] The prosecution submits that the defendants' are seeking relief that a Justice of the Peace does not have the authority to grant. In particular, the prosecution submits that the defendants are seeking a writ of mandamus to bar Canadian or Ontario jurisdiction over the Grand River Mohawk lands and acquired territory based on treaties and proclamations. The prosecution also submits that a writ of mandamus is an order from a court to an inferior government official ordering the government official to properly fulfill their official duties or correct an abuse of discretion. However, the prosecution submits that a mandamus order is a prerogative remedy that falls within the jurisdiction of the Superior Court of Ontario. Furthermore, the prosecution submits that s. 140(1) of the Provincial Offences Act, R.S.O. 1990, c. P.33, governs which level of court can grant prerogative remedies:

Mandamus, prohibition, certiorari

140(1) On application, the Superior Court of Justice may by order grant any relief in respect of matters arising under this Act that the applicant would be entitled to in an application for an order in the nature of mandamus, prohibition or certiorari

- [45] Furthermore, the prosecution contends that the defendants are essentially seeking a remedy that would effectively declare that the Highway Traffic Act does not apply to the Mohawk Nation of the Grand River community. The prosecution submits that the defendants are relying upon the Haldimand Proclamation of 1784, the Treaty of 1779, and the Two Row Wampum agreement. Moreover, the prosecution contends that the defendants have indicated in their applications that they are questioning the jurisdiction of the court and objecting to the "presence and operation of this office on our lands until such time as the foundational legal question of jurisdiction, as informed by the Haldimand Proclamation and its role in Canadian Law, is satisfactorily resolved."
- [46] The Prosecution further relies on s. 88 of the Indian Act, R.S.C., 1985, c. I-5, which provides that subject to the terms of any treaty and any other Act of Parliament, all

laws of general application from time to time in force in any province are applicable to and in respect of Indians in the province:

88. *Subject to the terms of any treaty and any other Act of Parliament, all laws of general application from time to time in force in any province are applicable to and in respect of Indians in the province, except to the extent that those laws are inconsistent with this Act or the First Nations Fiscal Management Act, or with any order, rule, regulation or law of a band made under those Acts, and except to the extent that those provincial laws make provision for any matter for which provision is made by or under those Acts.*

- [47] Therefore, the prosecution submits that the Highway Traffic Act, which is a provincial law of general application, falls under s. 88 of the Indian Act, and as such, the defendants are required to abide by the rules of the road.
- [48] The prosecution further submits that the Provincial Offences Court in the City of Brantford court does have jurisdiction to proceed forward with the prosecution of the defendants' alleged charges and the following cases support the prosecution's position.
- [49] In the case of R. v. Sparrow, 1990 CanLII 104, [1990] 1 S.C.R. 1075 (S.C.C.), the prosecution submits that the Supreme Court of Canada had set out the test for justification, which requires that a legislative objective must be attained in such a way as to uphold the honour of the Crown and be in keeping with the unique contemporary relationship, that is grounded in history and policy, between the Crown and Aboriginal peoples. Moreover, the prosecution submits that s. 35(1) of the Constitution Act, 1982 does not promise immunity from government regulation in contemporary society, but it does on the other hand hold the Crown to a substantive promise. Specifically, the prosecution submits that the government is required to bear the burden of justifying any legislation that has some negative effect on any aboriginal right protected under s. 35(1).
- [50] Furthermore, in the unreported case of Brantford (City) v. Michael Monture (August 28, 2003), Brantford 999-66297951 (Ont. C.J.), the prosecution submits that the accused Monture had been convicted at trial of speeding 117 km/h in a posted 80 km/h zone. After the conviction submits the prosecution, Monture filed an appeal and at the appeal Monture admitted that the facts in the case constituted a contravention of s. 128 of the Highway Traffic Act, but Monture had argued that he had been exercising an existing aboriginal right to mobility under s. 35(1) of the Constitution Act, 1982, and therefore, s. 128 of the Highway Traffic Act was an interference of this right and should be invalid under s. 52(1) of the Constitution Act, 1982.
- [51] The prosecution submits that Justice Edward in Brantford (City) v. Michael Monture had applied the test set out by the Supreme Court of Canada in R. v. Sparrow, [1990] 1 S.C.R. 1075, to determine whether s. 128 of the Highway Traffic Act is inconsistent with s. 35(1) of the Constitution Act, 1982. Furthermore, the prosecution submits

that Justice Edward found that the Aboriginal right of mobility was not infringed on, as no one was going to interfere with the appellant's desire to travel on the highway in question as long as he was not going in excess of the posted speed limit.

- [52] Moreover, the prosecution submits that Justice Edward then proceeded onto the second test in the Sparrow case, namely if there was an interference with an aboriginal right, was there a valid legislative objective in interfering with that right? For that issue, the prosecution submits that Monture had conceded that there are laws that have been established to ensure the safety of public, who are both aboriginal and non- aboriginal, on our roads and highways.
- [53] In applying the test set out in Sparrow to the case at bar, the prosecution submits that with respect to the defendant Doolittle, the defendant's mobility rights as an aboriginal person have not been infringed upon. The defendant Dolittle, submits the prosecution, was free to lawfully travel on the roadway, but it was the collision that had brought Doolittle's actions to the police officer's attention. In addition, the prosecution submits that part of the allegations before the court is that the defendant Doolittle does not hold a valid driver's licence, and as such, the prosecution takes the position that the defendant Doolittle was not lawfully travelling in a motor vehicle on the roadway. Moreover, the prosecution submits that the second test as outlined in Sparrow must fail as well, since the Highway Traffic Act does not have any negative effect on aboriginal rights, as it is a public welfare statute that regulates the rules of the road to keep motorists and other persons using the road safe.
- [54] The prosecution also disputes the defendants' comments that the prosecution is unilaterally imposing provincial jurisdiction over the Mohawk people without the benefit of a mutual legal assistant agreement or extradition treaty. In addition, the prosecution submits that there is a legal foundation to proceed forward with the prosecution of the charges against the defendants, as the defendants are before the court as a result of allegations under the Highway Traffic Act, which is public safety legislation that applies to all public roads within the Province of Ontario.
- [55] And, with respect to the defendants' comments that prosecution has failed to prove jurisdiction, the prosecution respectfully submits that the onus is on the defendants to show that the defence motion should be granted. Furthermore, the prosecution submits that the Province of Ontario was formed on July 1, 1867, and the land that is referenced in the defence materials has been recognized as being part of the Province of Ontario since July 1, 1867. Moreover, the prosecution submits that the area in which the alleged incident took place falls within Brant County which was established as a County in 1851.
- [56] Furthermore, in response to the defendants' pre-trial motions, the prosecution submits that because there is an ongoing and active case in the Superior Court of Justice of Ontario in Toronto dealing with many of the issues brought by the defendants in their pre-trial motions, the prosecution urges the court to proceed with

caution when making any determinations with respect to the Haldimand Proclamation of 1784.

- [57] That Superior Court of Justice case submits the prosecution is styled, “Six Nations of the Grand River Bands of Indians (Plaintiff) and The Attorney General of Canada and His Majesty the King in the Right of Ontario (defendants) and Mississauga's of the Credit First Nation (intervenor)”, Court File Number: cv-18-00594281-0000 and Toronto Court File No. cv-18-594281-0000 (Originally Brantford Court File No. 406/95). This particular case, submits the prosecution, is relevant to this proceeding as one of the topics to be decided upon is the “Haldimand Proclamation of 1784”. Moreover, from the link to the pleadings: <https://snqrlitigation.com/pleadings/As>, it can be seen that the Plaintiff's amended statement of claim is looking for a declaration that the Haldimand Proclamation of 1784 had set apart or set aside lands in which legal title had been vested in the Crown extending for six miles from each side of the Grand River for the use and benefit of the Six Nations of the Grand River.
- [58] Finally, the prosecution submits that in the Province of Ontario, driving is a privilege and not a right, and that the Highway Traffic Act applies to all roads within the Province of Ontario, including roads that fall within a reserve as noted in the Supreme Court of Canada case of R. v. Francis, 1988 CanLII 31, [1988] 1 S.C.R. 1025 (S.C.C.). Moreover, the prosecution submits that the location of the alleged offence does not fall within a reserve, however based on the arguments made by the defendant, should the court decide that the land where this alleged offence had taken place falls within the territory of a reserve, the Highway Traffic Act would still apply.
- [59] Therefore, the prosecution submits that the defendants’ motions should be dismissed and the matters that are before the court should proceed to trial.

3. ANALYSIS AND RULINGS ON THE PRE-TRIAL MOTIONS

- [60] The defendants have submitted 18 pre-trial motions for the court to consider in relation to their to their provincial offences charges laid under Ontario’s Highway Traffic Act. The 18 motions will be individually considered and determined as practically as possible in the order that they were brought by the defendants in their written arguments set out in their documents submitted as Exhibit #1.
- [61] However, some of the pre-trial motions will have to be considered out of order from those outlined by the defendants, which will be based on their priority of importance to the logical furtherance of these proceedings. Ergo, the Motion for Review of Prosecutorial Conduct and for the Removal of the Prosecutor will need to be addressed first in Part 1 of these written reasons. Then, the Motion for “Lack of Jurisdiction” of the Provincial Offences Court of the Ontario Court of Justice will be considered next in Part 2 of these written reasons. Part 2 will also include decisions from higher courts on their interpretation of the legal nature and purpose of the

“Haldimand Proclamation of 1784”, as well as commentary on the historical, legal and political consequences of the “Haldimand Proclamation of 1784”, and a review of academic commentary on the legitimacy of the Crown’s assertion of sovereignty over the lands that sovereign Aboriginal societies had traditionally occupied. And finally in Part 3 of these written reasons, the remaining pre-trial motions will be considered in the order that they were outlined by the defendants. The motions that will be considered in Part 3 for the most part deal with prerogative writs and equitable remedies that are being sought by the defendants.

PART 1

(A) Motion For Review Of Prosecutorial Conduct To Determine Negligence And Potential Harms Committed Against The Defendants And For The Removal Of The Prosecutor

- [62] In this motion, the defendants request a review of the conduct by the prosecution and for the removal of Prosecutor Walsh due to her improper conduct towards the defendants. The defendants contend that the prosecutorial conduct in question is that despite the waiver by the defendants in receiving disclosure of the prosecution’s evidence and their desire not to receive any disclosure from the prosecution, Prosecutor Walsh’s action in intentionally emailing disclosure to the defendants was negligent and egregious, and as such, the defendants rely on R. v. O’Connor, [1995] 4 S.C.R. 411 (S.C.C.) and R. v. Crown Zellerbach Canada Ltd., [1988] 1 S.C.R. 401 (S.C.C.), to support their motion to remove Prosecutor Walsh.
- [63] The defendants also submit that even though R. v. Stinchcombe, [1991] 3 S.C.R. 326 (S.C.C.) mandates disclosure be made by the prosecution, their express waiver alters this duty and that Prosecutor Walsh in providing disclosure against their expressed waiver contradicts the fairness intended by the Stinchcombe ruling.
- [64] Furthermore, the defendants submit that the R. v. O’Connor case highlights the abuse of process doctrine, which protects against actions that undermine judicial integrity, so that the prosecutor’s error in providing disclosure after the defendants’ waiver can be seen as such an abuse. In addition, the defendants submit that the R. v. Crown Zellerbach Canada Ltd. case recognizes that the principles of federalism and jurisdiction must be respected, and without established jurisdiction, the prosecutor’s actions are questionable. The defendants also rely on R. v. McNeil, 2009 SCC 3, [2009] 1 S.C.R. 66 (S.C.C.), which had emphasized the Crown’s duty to act with fairness and integrity and that the unwanted disclosure being forwarded to the defendants violates this duty. As well, the defendants submit that the legal principle of “estoppel” prevents the prosecutor from benefiting from their own error after acknowledging it, and that estoppel prevents someone from arguing something or asserting a right that contradicts what they had previously agreed to or said.
- [65] In response to the defendants’ motion to review the prosecutorial conduct and their request to remove the prosecutor, Prosecutor Walsh submits that she had not been

the original prosecutor and had not been aware that the defendants had informed the original prosecutor that the defendants had waived their right to receive disclosure, and because of this unawareness she had mistakenly emailed disclosure to the defendants under her legal obligation to provide disclosure of the prosecution's case of the Highway Traffic Act charges to the defendants. However, once she had realized her mistake about the defendant's desire not to receive disclosure of the prosecution's case, Prosecutor Walsh said that she had apologized to the defendants and admitted she had erred in providing disclosure to the defendants.

(1) Has there been prosecutorial misconduct which would require removal of the prosecutor?

- [66] The defendants contend that Prosecutor Walsh had committed prosecutorial misconduct by sending the defendants their disclosure even though the defendants had notified the prosecution office that they had waived their right to receive that disclosure. For that misdiscretion by Prosecutor Walsh, the defendants ask for an order that she be removed as the prosecutor on their case.
- [67] In R. v. O'Connor, [1995] 4 S.C.R. 411 (S.C.C.), at paras. 73 and 74, L'Heureux-Dubé J., held that a challenge based on non-disclosure will generally require a showing of actual prejudice to the accused's ability to make full answer and defence. L'Heureux-Dubé J. also adopted the reasoning that while the Crown has an obligation to disclose, and the accused has a right to all that which the Crown is obligated to disclose, a simple breach of the accused's right to such disclosure does not, in and of itself, constitute a violation of the Charter so as to entitle a remedy under s. 24(1) [*emphasis is mine below*]:

As I have already noted, the common law doctrine of abuse of process has found application in a variety of different circumstances involving state conduct touching upon the integrity of the judicial system and the fairness of the individual accused's trial. For this reason, I do not think that it is helpful to speak of there being any one particular "right against abuse of process" within the Charter. Depending on the circumstances, different Charter guarantees may be engaged. For instance, where the accused claims that the Crown's conduct has prejudiced his ability to have a trial within a reasonable time, abuses may be best addressed by reference to s. 11(b) of the Charter, to which the jurisprudence of this Court has now established fairly clear guidelines (Morin, supra). Alternatively, the circumstances may indicate an infringement of the accused's right to a fair trial, embodied in ss. 7 and 11(d) of the Charter. In both of these situations, concern for the individual rights of the accused may be accompanied by concerns about the integrity of the judicial system. In addition, there is a residual category of conduct caught by s. 7 of the Charter. This residual category does not relate to conduct affecting the fairness of the trial or impairing other procedural rights enumerated in the Charter, but instead addresses the panoply of diverse and sometimes unforeseeable circumstances in which a prosecution is conducted in such a manner as to connote unfairness or vexatiousness of such a degree that it contravenes fundamental notions of justice and thus undermines the integrity of the judicial process.

Non-disclosure by the Crown normally falls within the second category described above. Consequently, a challenge based on non-disclosure will generally require a showing of actual prejudice to the accused's ability to make full answer and defence. In this connection, I am in full agreement with the Court of Appeal that there is no autonomous "right" to disclosure in the Charter (at pp. 148-49 C.C.C.):

...the right of an accused to full disclosure by the Crown is an adjunct of the right to make full answer and defence. It is not itself a constitutionally protected right. What this means is that while the Crown has an obligation to disclose, and the accused has a right to all that which the Crown is obligated to disclose, a simple breach of the accused's right to such disclosure does not, in and of itself, constitute a violation of the Charter such as to entitle a remedy under s. 24(1). This flows from the fact that the non-disclosure of information which ought to have been disclosed because it was relevant, in the sense there was a reasonable possibility it could assist the accused in making full answer and defence, will not amount to a violation of the accused's s. 7 right not to be deprived of liberty except in accordance with the principles of fundamental justice unless the accused establishes that the non-disclosure has probably prejudiced or had an adverse effect on his or her ability to make full answer and defence.

It is the distinction between the "reasonable possibility" of impairment of the right to make full answer and defence and the "probable" impairment of that right which marks the difference between a mere breach of the right to relevant disclosure on the one hand and a constitutionally material non-disclosure on the other. [Italics in original; underlining added.]

Where the accused seeks to establish that the non-disclosure by the Crown violates s. 7 of the Charter, he or she must establish that the impugned non-disclosure has, on the balance of probabilities, prejudiced or had an adverse effect on his or her ability to make full answer and defence. It goes without saying that such a determination requires reasonable inquiry into the materiality of the non-disclosed information. Where the information is found to be immaterial to the accused's ability to make full answer and defence, there cannot possibly be a violation of the Charter in this respect. I would note, moreover, that inferences or conclusions about the propriety of the Crown's conduct or intention are not necessarily relevant to whether or not the accused's right to a fair trial is infringed. The focus must be primarily on the effect of the impugned actions on the fairness of the accused's trial. Once a violation is made out, a just and appropriate remedy must be found.

- [68] Moreover, in *R. v. O'Connor*, [1995] 4 S.C.R. 411 (S.C.C.), at para. 241, Major J., in dissent, found that the Crown had breached its duty under *Stinchcombe* and the undertaking to disclose files to the defence, and as such, impaired the accused's right to make full answer and defence, as well as violating the fundamental principles of justice underlying the community's sense of fair play and decency:

*The same breaches of the disclosure order, the duty under *Stinchcombe*, and the undertaking to disclose files to the defence which impaired the accused's right to make full answer and defence also violated fundamental principles of justice*

underlying the community's sense of fair play and decency. The community would see proceedings as being unfair where the Crown continually failed in its obligations and finally was unable to assure the court that it could ever meet them.

- [69] Furthermore, in R. v. Crown Zellerbach Canada Ltd., [1988] 1 S.C.R. 401, LeDain J. for the Supreme Court of Canada, at para.71, commented that to allocate jurisdiction in respect to environmental pollution exclusively to the federal Parliament would involve sacrificing the principles of federalism enshrined in the Constitution, because provincial power and autonomy would be on the way out over the whole range of local business, industry, and commerce, as established to date under the existing heads of provincial powers [*emphasis is mine below*]:

To allocate environmental pollution exclusively to the federal Parliament would, it seems to me, involve sacrificing the principles of federalism enshrined in the Constitution. As Professor William R. Lederman has indicated in his article, "Unity and Diversity in Canadian Federalism: Ideals and Methods of Moderation" (1975), 53 Can. Bar Rev. 597, at p. 610, environmental pollution "is no limited subject or theme, [it] is a sweeping subject or theme virtually all pervasive in its legislative implications". If, he adds, it "were to be enfranchised as a new subject of federal power by virtue of the federal general power, then provincial power and autonomy would be on the way out over the whole range of local business, industry and commerce as established to date under the existing heads of provincial powers". And I would add to the legislative subjects that would be substantially eviscerated the control of the public domain and municipal government. Indeed as Beetz J. in Re: Anti Inflation Act, supra, at p. 458, stated of the proposed power over inflation, there would not be much left of the distribution of power if Parliament had exclusive jurisdiction over this subject. For similar views that the protection of environmental pollution cannot be attributed to a single head of legislative power, see P. W. Hogg, Constitutional Law of Canada (2nd ed. 1985), at pp. 392 and 598; Gérald A. Beaudoin, "La protection de l'environnement et ses implications en droit constitutionnel" (1977), 23 McGill L.J. 207.

- [70] In addition, "estoppel" is a judicial device in common law legal systems in which a court may prevent or "estop" a person from making assertions or from going back on their word. Furthermore, the doctrine of estoppel (which may prevent a party from asserting a right) is in contrast to the doctrine of waiver (which relates to relinquishing a right once it has arisen). For reliance-based estoppel, which involves one party relying on something the other party has done or said, then the party who performed or spoke is the one who is estopped.
- [71] Moreover, in R. v. McNeil, [2009] 1 S.C.R. 66, the Supreme Court of Canada expanded the scope of disclosure in criminal cases by imposing obligations on both the police and Crown prosecutors that would bridge the gap between first party disclosure under R. v. Stinchcombe, [1991] 3 S.C.R. 326 (S.C.C.) and third party production under R. v. O'Connor, [1995] 4 S.C.R. 411 (S.C.C.). Furthermore, the Supreme Court of Canada held in R. v. McNeil that the police and other investigating

agencies must disclose to the prosecuting Crown, as first party disclosure material, findings of serious misconduct by police officers involved in the investigation of the accused, since this information may be relevant to their credibility and reliability. However, the Supreme Court ruled that not all such information will necessarily be given to the defence and that Crown counsel must perform a gatekeeper role in reviewing this material and withholding or redacting information that is irrelevant or privileged. Furthermore, the Supreme Court indicated that the gatekeeper function requires that the Crown conduct a studied analysis to determine relevance and if the material has no realistic bearing on the credibility or reliability of the person involved in the investigation, it should not be disclosed to the defence. Furthermore, the Supreme Court also noted that where a prosecutor is put on notice or informed of the existence of information potentially relevant to an accused's case that is held by a Crown entity (or other third party), the prosecutor has a duty to inquire and obtain the information if it is reasonably feasible to do so. On the other hand, the Supreme Court also recognized that the Crown is not obliged to make such inquiries if the notice appears unfounded and that the defence in any event would still retain the ability to seek the information through a R. v. O'Connor application for third-party information or documents.

- [72] Also, in R. v. Regan, [2002] 1 S.C.R. 297, Lebel J. writing for the majority of the Supreme Court of Canada, at paras. 50 to 57, held that the abuse of process doctrine provides courts with the authority to order that a proceeding be stayed on the basis that they are unfair or otherwise sufficiently undermine the integrity of the judicial system [*emphasis is mine below*]:

L'Heureux-Dubé J. thus held that now, when the courts are asked to consider whether the judicial process has been abused, the analysis under the common law and the Charter will dovetail (see O'Connor, at para. 71). In this manner, while it acknowledged that the focus of the Charter had traditionally been the protection of individual right, the O'Connor decision reflected and accommodated the earlier concepts of abuse of process, described at common law as proceedings "unfair to the point that they are contrary to the interest of justice" (R. v. Power, 1994 CanLII 126 (SCC), [1994] 1 S.C.R. 601, at p. 616), and as "oppressive treatment" (R. v. Conway, 1989 CanLII 66 (SCC), [1989] 1 S.C.R. 1659, at p. 1667). In an earlier judgment, McLachlin J. (as she then was) expressed it this way:

. . . abuse of process may be established where: (1) the proceedings are oppressive or vexatious; and, (2) violate the fundamental principles of justice underlying the community's sense of fair play and decency. The concepts of oppressiveness and vexatiousness underline the interest of the accused in a fair trial. But the doctrine evokes as well the public interest in a fair and just trial process and the proper administration of justice. I add that I would read these criteria cumulatively.

(R. v. Scott, 1990 CanLII 27 (SCC), [1990] 3 S.C.R. 979, at p. 1007)

Under the Charter, the violation of specific fair trial rights may also constitute an abuse of process, as will a breach of the more general right to fundamental justice (see O'Connor, at para. 73).

Finally, this Court's most recent consideration of the concept of abuse of process arose in the administrative context. In *Blencoe v. British Columbia (Human Rights Commission)*, [2000] 2 S.C.R. 307, [2000 SCC 44](#), it was held that a 30-month delay in processing a sexual harassment complaint through the British Columbia human rights system was not an abuse of process causing unfairness to the alleged harasser. For the majority, Bastarache J. came to this decision on the basis that abuse of process has a necessary causal element: the abuse "must have caused actual prejudice of such magnitude that the public's sense of decency and fairness is affected" (para. 133). In *Blencoe's* case, it was held that the humiliation, job loss and clinical depression which he suffered did not flow primarily from the delay, but from the complaint itself, and the publicity surrounding it (*Blencoe*, at para. [133](#); see also *United States of America v. Cobb*, [2001] 1 S.C.R. 587, [2001 SCC 19](#)).

B. Stay of Proceedings

A stay of proceedings is only one remedy to an abuse of process, but the most drastic one: "that ultimate remedy", as this Court in *Tobiass*, supra, at para. [86](#), called it. It is ultimate in the sense that it is final. Charges that are stayed may never be prosecuted; an alleged victim will never get his or her day in court; society will never have the matter resolved by a trier of fact. For these reasons, a stay is reserved for only those cases of abuse where a very high threshold is met: "the threshold for obtaining a stay of proceedings remains, under the [Charter](#) as under the common law doctrine of abuse of process, the 'clearest of cases'" (*O'Connor*, supra, at para. 68).

Regardless of whether the abuse causes prejudice to the accused, because of an unfair trial, or to the integrity of the justice system, a stay of proceedings will only be appropriate when two criteria are met:

- (1) the prejudice caused by the abuse in question will be manifested, perpetuated or aggravated through the conduct of the trial, or by its outcome; and
- (2) no other remedy is reasonably capable of removing that prejudice. [*O'Connor*, at para. 75]

The Court's judgment in *Tobiass*, at para. [91](#), emphasized that the first criterion is critically important. It reflects the fact that a stay of proceedings is a prospective rather than a retroactive remedy. A stay of proceedings does not merely redress a past wrong. It aims to prevent the perpetuation of a wrong that, if left alone, will continue to trouble the parties and the community as a whole, in the future.

As discussed above, most cases of abuse of process will cause prejudice by rendering the trial unfair. Under s. 7 of the [Charter](#), however, a small residual category of abusive action exists which does not affect trial fairness, but still undermines the fundamental justice of the system (*O'Connor*, at para. 73). Yet even in these cases, the important prospective nature of the stay as a remedy must still be satisfied: "[t]he mere fact that the state has treated an individual shabbily in the past is not enough to warrant a stay of proceedings" (*Tobiass*, at

para. 91). When dealing with an abuse which falls into the residual category, generally speaking, a stay of proceedings is only appropriate when the abuse is likely to continue or be carried forward. Only in “exceptional”, “relatively very rare” cases will the past misconduct be “so egregious that the mere fact of going forward in the light of it will be offensive” (Tobiass, at para. 91).

Any likelihood of abuse which will continue to manifest itself if the proceedings continue then must be considered in relation to possible remedies less drastic than a stay. Once it is determined that the abuse will continue to plague the judicial process, and that no remedy other than a stay can rectify the problem, a judge may exercise her or his discretion to grant a stay.

Finally, however, this Court in Tobiass instructed that there may still be cases where uncertainty persists about whether the abuse is sufficient to warrant the drastic remedy of a stay. In such cases, a third criterion is considered. This is the stage where a traditional balancing of interests is done: “it will be appropriate to balance the interests that would be served by the granting of a stay of proceedings against the interest that society has in having a final decision on the merits”. In these cases, “an egregious act of misconduct could [never] be overtaken by some passing public concern [although] . . . a compelling societal interest in having a full hearing could tip the scales in favour of proceeding” (Tobiass, at para. 92).

- [73] For the alleged prosecutorial misconduct, Prosecutor Walsh was not the first prosecutor dealing with the file and she had admittedly not been aware that the defendants had waived their right to receive disclosure from the prosecution when she had actually fulfilled her legal obligation to provide disclosure to the defendants. Providing disclosure to defendants or persons charged with committing criminal or quasi-criminal offences so that accused persons would be able to make full answer and defence is a legal duty and obligation on the prosecution as required by R. v. Stinchcombe, [1991] 3 S.C.R. 326 (S.C.C.). Sopinka J. held in R. v. Stinchcombe that it is difficult to justify the position which clings to the notion that the Crown has no legal duty to disclose all relevant information. Moreover, Sopinka J. reasoned that the arguments against the existence of such a duty are groundless while those in favour, are, in his view, overwhelming. Furthermore, Sopinka J. held that the “fruits of the investigation” which are in the possession of counsel for the Crown are not the property of the Crown for use in securing a conviction, but the property of the public to be used to ensure that justice is done [*emphasis is mine below*]:

Production and discovery were foreign to the adversary process of adjudication in its earlier history when the element of surprise was one of the accepted weapons in the arsenal of the adversaries. This applied to both criminal and civil proceedings. Significantly, in civil proceedings this aspect of the adversary process has long since disappeared, and full discovery of documents and oral examination of parties and even witnesses are familiar features of the practice. This change resulted from acceptance of the principle that justice was better served when the element of surprise was eliminated from the trial and the parties were prepared to address issues on the basis of complete information of the case to be met. Surprisingly, in criminal cases in which the liberty of the subject is usually at stake, this aspect of the adversary system has lingered on. While the

prosecution bar has generally co-operated in making disclosure on a voluntary basis, there has been considerable resistance to the enactment of comprehensive rules which would make the practice mandatory. This may be attributed to the fact that proposals for reform in this regard do not provide for reciprocal disclosure by the defence (see 1974 Working Paper at pp. 29-31; 1984 Report at pp. 13-15; Marshall Commission Report, *infra*, Vol. 1, at pp. 242-44).

It is difficult to justify the position which clings to the notion that the Crown has no legal duty to disclose all relevant information. The arguments against the existence of such a duty are groundless while those in favour, are, in my view, overwhelming. The suggestion that the duty should be reciprocal may deserve consideration by this Court in the future but is not a valid reason for absolving the Crown of its duty. The contrary contention fails to take account of the fundamental difference in the respective roles of the prosecution and the defence. In *Boucher v. The Queen*, [1955] S.C.R. 16, Rand J. states, at pp. 23-24:

It cannot be over-emphasized that the purpose of a criminal prosecution is not to obtain a conviction, it is to lay before a jury what the Crown considers to be credible evidence relevant to what is alleged to be a crime. Counsel have a duty to see that all available legal proof of the facts is presented: it should be done firmly and pressed to its legitimate strength but it must also be done fairly. The role of prosecutor excludes any notion of winning or losing; his function is a matter of public duty than which in civil life there can be none charged with greater personal responsibility. It is to be efficiently performed with an ingrained sense of the dignity, the seriousness and the justness of judicial proceedings.

I would add that the fruits of the investigation which are in the possession of counsel for the Crown are not the property of the Crown for use in securing a conviction but the property of the public to be used to ensure that justice is done. In contrast, the defence has no obligation to assist the prosecution and is entitled to assume a purely adversarial role toward the prosecution. The absence of a duty to disclose can, therefore, be justified as being consistent with this role.

Other grounds advanced by advocates of the absence of a general duty to disclose all relevant information are that it would impose onerous new obligations on the Crown prosecutors resulting in increased delays in bringing accused persons to trial. This ground is not supported by the material in the record. As I have already observed, disclosure is presently being made on a voluntary basis. The extent of disclosure varies from province to province, from jurisdiction to jurisdiction and from prosecutor to prosecutor. The adoption of uniform, comprehensive rules for disclosure by the Crown would add to the work-load of some Crown counsel but this would be offset by the time saved which is now spent resolving disputes such as this one surrounding the extent of the Crown's obligation and dealing with matters that take the defence by surprise. In the latter case an adjournment is frequently the result of non-disclosure or more time is taken by a defence counsel who is not prepared. There is also compelling evidence that much time would be saved and therefore delays reduced by reason of the increase in guilty pleas, withdrawal of charges and shortening or waiver of preliminary hearings. The 1984 Report (at pp. 6-9) refers to several experimental projects which were established after the publication of the 1974 Working Paper in order to test the viability of pre-trial disclosure. The result of these experiments,

and in particular the Montreal experiment, which was the most exhaustively evaluated, was that there was a significant increase in the number of cases settled and pleas of guilty entered or charges withdrawn.

- [74] Additionally, in *Krieger v Law Society (Alberta)*, [2002 SCC 65 \(CanLII\)](#), [2002] 3 S.C.R. 372, Iacobucci and Major JJ., at para. 45, 54 and 55, noted that in our theory of government, it is the sovereign who holds the power to prosecute his or her subjects and that a decision of the Attorney General, or of his or her agents, within the authority delegated to him or her by the sovereign is not subject to interference by other arms of government. In addition, Iacobucci and Major JJ. emphasized that while the Crown Attorney retains the discretion not to disclose irrelevant information, disclosure of relevant evidence is not, therefore, a matter of prosecutorial discretion but, rather, it is a prosecutorial duty [*emphasis is mine below*]:

As discussed above, these powers emanate from the office holder's role as legal advisor of and officer to the Crown. In our theory of government, it is the sovereign who holds the power to prosecute his or her subjects. A decision of the Attorney General, or of his or her agents, within the authority delegated to him or her by the sovereign is not subject to interference by other arms of government. An exercise of prosecutorial discretion will, therefore, be treated with deference by the courts and by other members of the executive, as well as statutory bodies like provincial law societies.

...

In Stinchcombe, supra, the Court held that the Crown has an obligation to disclose all relevant information to the defence. While the Crown Attorney retains the discretion not to disclose irrelevant information, disclosure of relevant evidence is not, therefore, a matter of prosecutorial discretion but, rather, is a prosecutorial duty. Absent an explanation demonstrating that the Crown Attorney did not act dishonestly or in bad faith, it is settled law, per Sopinka J. for the Court in Stinchcombe, supra, at p. 339, that "[t]ransgressions with respect to this duty constitute a very serious breach of legal ethics". This is reflected in para. (d) of the Rule which applies only to breaches of the duty to disclose which involve dishonesty or bad faith.

In this case, it would appear that the respondent Krieger failed to disclose all relevant information to the defence, but later offered an explanation. If true, the failure to disclose would constitute a violation of the duty expressed in Stinchcombe. The explanation would help to determine if the respondent Krieger had acted dishonestly or in bad faith. If so, this would be an ethical breach and would fall within the jurisdiction of the Law Society. The Law Society in the fulfillment of their duties will determine whether the respondent acted in conformity with the professional ethics of the Law Society of Alberta.

- [75] In sum, the conduct of Prosecutor Walsh emailing or forwarding disclosure of the prosecution's case to the defendants, if it had not been waived by the defendants, would have been a legal duty, obligation, and requirement for Prosecutor Walsh to fulfill as required under *R. v. Stinchcombe*, [1991] 3 S.C.R. 326 (S.C.C.), so that the

defendants would be able to make full answer and defence. Prosecutor Walsh's act in fulfilling her obligation to provide disclosure, even though the defendant's had waived their right to be provided disclosure of the prosecution's evidence, had been made honestly and in good faith; however, it is not conduct that is oppressive, vexatious, or unfair to the defendants, nor does it violate the community's sense of fair play and decency. Moreover, Prosecutor Walsh's act in providing disclosure to the defendants, albeit unwanted by the defendants, would be more of an inadvertent act than one that would be classified as a clear case of prosecutorial misconduct that would cause an unfair trial and which would warrant the removal of Prosecutor Walsh.

- [76] Ergo, Prosecutor Walsh's action in fulfilling her legal duty and obligation to provide disclosure to the defendants, even though the defendants had waived receiving such disclosure, is not conduct that causes unfairness to the defendants' fair trial interests. As such, this motion to have Prosecutor Walsh removed is not warranted, and as such, the motion for removal of the prosecutor is dismissed.

(B) Motion For Sanctions Against The Prosecution Or Officials For Misconduct Or Violation Of Legal Procedure

- [77] In this pre-trial motion, the defendants ask this court for sanctions against the prosecution or officials for misconduct or violation of legal procedure and rely on the R. v. Felderhof, [2003] O.J. No 4819 (Ont. C.A.) case to support this motion. However, it was not the prosecutor's conduct that was egregious or uncivil in R. v. Felderhof that had been in question, but that of defence counsel Groia who had been the cause of the complaint for misconduct that had been filed with the Law Society of Upper Canada and which the prosecutors contend had caused an unfair trial for the prosecution.
- [78] Furthermore, in R. v. Felderhof, [2002] O.J. No. 4103, Campbell J. of the Superior Court of Justice of Ontario, at paras. 20 to 24, had specified what the proper role and purpose of a prosecutor in the Canadian system of justice would entail. Campbell J. notes, in particular, that the prosecutor has a dual role in the justice process: on the one hand, Crown counsel must seek to act fairly to achieve a just result in the furtherance of the public interest; on the other hand, the prosecutor can legitimately act as an advocate in striving to obtain a just conviction. Moreover, Campbell J. remarks that it is improper for Crown counsel to seek a conviction in the sense of seeking a conviction at all costs, or breaching the quasi-judicial duty of fairness and evenhandedness. On the other hand, Campbell J. indicated that it would be proper for a prosecutor to seek a conviction as an aspect of seeking justice in the public interest as long as the prosecutor acts fairly and dispassionately and endeavours to ensure that justice is done through a fair trial upon the merits [emphasis is mine below]:

Some of the trouble in this case flows from Mr. Groia's failure to understand the proper role of a prosecutor. Mr. Groia, in his unrestrained attacks on Mr. Naster's

professional integrity said over and over again that it is improper for the prosecutor to seek a conviction. That statement, standing alone, is inaccurate.

The classic words of Mr. Justice Rand, that "the purpose of a criminal prosecution is not to obtain a conviction" must be read in the context of the passage in which they appear. The context makes it clear that the mischief is not to seek a conviction but to do so unfairly.

It is improper for Crown counsel to seek a conviction in the sense of seeking a conviction at all costs, or breaching the quasi-judicial duty of fairness and evenhandedness. This principle is sometimes expressed by saying that it is not the function of the prosecutor "simply" to seek a conviction, because his or her quasi-judicial duties involve much more than simply seeking a conviction. In this expression of the principle, everything turns on the qualification "simply", because it is appropriate for a Crown prosecutor to seek a conviction so long as he or she does not seek it unfairly or at all costs.

Far from it being improper to Crown counsel to seek a conviction, it is appropriate for a prosecutor to seek a conviction as an aspect of seeking justice in the public interest. As the Honourable Michel Proulx J.A. and David Layton say in *Ethics and Canadian L* aw:

A prosecutor can seek a conviction but must all the while strive to ensure that the defendant has a fair trial.

.....

In acting as an advocate, the prosecutor is not to seek to convict but rather must see that justice is done through a fair trial upon the merits, and must act fairly and dispassionately.

.....

The duty of the Crown to act fairly does not preclude the use of a trial strategy aimed at securing a conviction, so long as the strategy does not result in unfairness to the accused. As Binnie J. stated in *R. v. Jolivet*, [2000] 1 S.C.R. 751, "it is not the duty of the Crown to bend its efforts to provide the defence with the opportunity to develop and exploit potential conflicts in the prosecution's testimony. This is the stuff of everyday trial tactics and hardly rises to the level of an oblique motive".

....

Moreover, it has long been established that the Crown has no obligation to call a witness considered unnecessary to the prosecution case.

.....

The prosecutor has a dual role in the justice process. On the one hand, Crown counsel must seek to act fairly to achieve a just result in the furtherance of the public interest. On the other hand, the prosecutor can legitimately act as an advocate in striving to obtain a just conviction. Probably the greatest challenge for a prosecutor is reconciling the frequent tension involving these duties.

Those passages make it clear that although the prosecutor may not act unfairly, it is appropriate for the prosecutor to seek a conviction. As one Crown counsel noted:

... counsel for the Crown are expected to be strong and persuasive public advocates who fully and effectively represent the interests of the Attorney General in an adversarial process ... Crown counsel must be skilled and diligent advocates, and must be permitted to vigorously pursue a legitimate result to the best of their abilities.

- [79] The alleged prosecutorial misconduct being claimed by the defendants is that Prosecutor Walsh had forwarded disclosure of the prosecution's evidence to the defendants even though they had waived the right to receive it, which the defendants had given to the prosecutor who had the original carriage of the defendants' case. Once Prosecutor Walsh had realized her error in providing the defendants' disclosure to them in email form, she apologized to the defendants. As indicated earlier, all that Prosecutor Walsh had done when taken at its worse, is that Prosecutor Walsh had been only fulfilling her legal duty and obligation as a prosecutor to provide full disclosure to the defendants as mandated by R. v. Stinchcombe, [1991] 3 S.C.R. 326 (S.C.C.), and her conduct of providing disclosure in order to fulfill her prosecutorial obligation had been so that the defendant would be able to make full answer and defence and to have a fair trial. Moreover, the disclosure provided by Prosecutor Walsh to the defendants did not cause unfairness or prejudice to the defendants or prevent them from having a fair trial. The conduct by Prosecutor Walsh is far from approaching a point where the court would feel it would be necessary to impose a sanction.
- [80] Ergo, the defendants' motion for sanctions against the prosecution or officials for misconduct or violation of legal procedure is dismissed.

PART 2

(A) Motion for Dismissal of Charges based on the court's "lack of jurisdiction" over the Grand River Mohawk lands

- [81] The defendants' principal pre-trial motion seeks a dismissal of their provincial offences charges laid under the Highway Traffic Act and is based on the contention that the Provincial Offences Court in the City of Brantford "lacks jurisdiction" over the defendants because the alleged offences, which are alleged to have occurred at Ellis Avenue and Highway 24 South in the County of Brant, is on land which the sovereign Mohawk Nation claim is their sovereign territory that had been granted to them under the "Haldimand Proclamation of 1784". And, the defendants further submit that the alleged offences had occurred on the sovereign territory of the Mohawk Grand River Nation, where there had been no consultation between the Ontario government and the Mohawk Grand River Nation that the Highway Traffic Act would apply on their sovereign territory and when there also had been no request for extradition of the defendants from one sovereign nation to another sovereign nation. In addition, the defendants contend that because they are

sovereign persons from the sovereign Mohawk nation then the Highway Traffic Act would also not lawfully apply to them.

- [82] The defendants also rely on the two unreasonable delay cases of R. v. Jordan, [2016] 1 S.C.R. 631, 2016 SCC 27 (S.C.C.) and R. v. Askov, [2016] 1 S.C.R. 631, 2016 SCC 27 (S.C.C.) to support their motion for dismissal of the charges against the defendants. The defendants submit that the R. v. Jordan case addresses the issue of timely justice and unreasonable delays, so that if the improper disclosure by Prosecutor Walsh of the waived disclosure causes delays, it might violate the principles established in this case. In addition, the defendants submit that the R. v. Askov case focuses on the right to be tried within a reasonable time, so that if the disclosure issue causes undue delay, it can be seen as prejudicial under the principles of this case.
- [83] In R. v. Askov, [1990] 2 S.C.R. 1199, Cory J. of the Supreme Court of Canada, had commented that both the interest of the individual accused and the inferential societal interest would be served by a change of venue if it resulted in a trial taking place within a reasonable time and that the section which provides for a change of venue guarantees that any changes of venue will not prejudice the accused and ensures that appropriate arrangements will be made in order to secure the fair transfer of persons and resources from one jurisdiction to another [*emphasis is mine below*]:

Both the interest of the individual accused and the inferential societal interest would be served by a change of venue if it resulted in a trial taking place within a reasonable time. If such were the result, then the change of venue would certainly be "expedient to the ends of justice" and fall within the category of changes envisioned by the section. The section itself provides the guarantees that any changes of venue will not prejudice the accused and ensures that appropriate arrangements will be made in order to secure the fair transfer of persons and resources from one jurisdiction to another. In those situations where a change of venue could be fairly and effectively completed, and yet is rejected by an accused, such a refusal would weigh against the accused in determining whether there had been an unreasonable delay.

- [84] Notably, both Supreme Court cases that had been relied on by the defendants to support their contention, that the Provincial Offences Court in the City of Brantford lacks jurisdiction over the defendants Highway Traffic Act charges, are "unreasonable delay" Charter cases. The analysis for determining unreasonable delay in R. v. Askov [1990] 2 S.C.R. 1199 (S.C.C.) was supplanted by R. v. Jordan, [2016] 1 S.C.R. 631, 2016 SCC 27, where a presumptive unreasonable delay ceiling of 18 months was established by the Supreme Court of Canada for matters in the Provincial Courts and 30 months in the Superior Courts. At the time these 18 pre-trial motions had been argued, the presumptive ceiling of 18 months for provincial courts had been exceeded, but a period of this delay is attributable to exceptional circumstances that is based on the complexity and volume of pre-trial motions and submissions made by the defendants. The complexity and the

volume of pre-trial motions justify the time that the defendants' case has taken and rebuts the presumption that the delay was unreasonable.

(1) The Defendants Contend That Treaties Between The British Colonial Government With Aboriginal Peoples Before 1867 Are Governed By International Rather Than Municipal Law

- [85] The defendants also rely on a comment made by the Solicitor General for Canada, J.J. Curran, Q.C. on January 12, 1897, that stated, "WE CONTEND THAT THESE TREATIES ARE GOVERNED BY INTERNATIONAL, RATHER THAN MUNICIPAL LAW" [emphasis is mine below]:

FROM THE RECORDS OF THE FEDERAL – PROVINCIAL ARBITRATIONS (UNSETTLED ACCOUNTS ARBITRATION), INDIAN CLAIMS, ROBINSON TREATIES, VOL. 5, ENTERED IN THE DEPARTMENT OF INDIAN AFFAIRS, JANUARY 12, 1897:

*THE HON. J. J. CURRAN, Q.C. , SOLICITOR GENERAL FOR CANADA:
WE CONTEND THAT THESE TREATIES ARE GOVERNED BY
INTERNATIONAL, RATHER THAN MUNICIPAL LAW. THEY WERE MADE WITH
THE TRIBES UNDER THE AUTHORITY OF THE SOVEREIGN, AND THE FAITH
OF THE NATION WAS PLEDGED IN DEALING WITH THOSE ANNUITIES.*

*THE CROWN IS A TRUSTEE IN THOSE MATTERS, AND OCCUPIES A
SPECIAL RELATIONSHIP TOWARDS THOSE INDIANS, AND IS BOUND TO
WATCH OVER THEIR INTERESTS AND ENFORCE THEIR RIGHTS, AND WILL
NOT BE ALLOWED TO SET UP ITS OWN LACHES AS A DEFENCE AGAINST
THESE CLAIMS. ALL THESE CLAIMS ARE SAFEGUARDED IN A MANNER
THAT IS QUITE A DIFFERENT MANNER FROM ANY CLAIM THAT WOULD
ARISE BETWEEN TWO SUBJECTS OF HER MAJESTY WHO MIGHT COME
BEFORE ANY COURT TO HAVE THEIR MATTERS ADJUDICATED UPON*

(ARBITRATION TRANSCRIPT, P. 63)

*NOTE (made in handwriting): LACHES - IN LAW, FAILURE TO DO A THING AT
THE RIGHT TIME, IS INEXCUSABLE NEGLIGENCE.- SLACKNESS,
NEGLIGENCE OR REMISSNESS*

- [86] The term "municipal law" that is used in the Solicitor General's comments on January 12, 1897, had referred to the area of law that addresses internal matters of a state, including criminal justice, civil disputes, and regulatory issues; while international law deals with issues such as diplomatic relations, trade agreements, and global security. The statement by the Solicitor General for Canada, J.J. Curran, Q.C., on January 12, 1897, had been in reference to the Robinson Treaties and had involved land cession agreements with the First Nations people of Lake Huron and Lake Superior and the British Crown. The two agreements of the Robinson Treaties were signed in September of 1850 at Sault Ste. Marie, which had secured virtually for the British Crown the whole of the northwest area of Upper Canada for government use. Generally referred to as the Robinson-Huron Treaty, the

agreement of September 9th, 1850 had called for the cession to the British Crown of the Lake Huron shoreline, including the islands, from Matchedash Bay to Batchewans Bay, and inland as far as the height of land. The agreement of September 7th, 1850, known as the Robinson-Superior Treaty, gave the British Crown the shoreline of Lake Superior, including islands, from Batchewana Bay to the Pigeon River, inland as far as the height of land. The first cession of First Nations' territory contained 35,700 square miles of land, had been sold by a total Indian population of 1240; the latter cession of First Nations' territory had been occupied by 1422 people and contained 16,700 square miles of territory.

- [87] When the Solicitor General for Canada, J.J. Curran, Q.C., had made that comment on January 12, 1897, that the Robinson Treaties of 1850 were governed by international law, it had been the prevailing political view about the nature of these treaties when they were entered into between the British Crown and the various First Nations in pre-Confederation Canada. Furthermore, the British Crown had acquired or asserted sovereignty over French Canada by cession of Acadia (French possessions in what became the Maritime Provinces) by the Treaty of Utrecht in 1713 and by conquest of New France in 1759-60 and cession by the Treaty of Paris in 1763.

- [88] The British Crown had also entered into treaties with different Indigenous groups in the British colonies of North America starting in 1701, which would later become parts of Canada. The treaties had supported peaceful, economic, and military relations. The Crown is the legal name for the British and later Canadian federal, provincial and territorial governments. Over the next 200 years, the Crown signed treaties that defined the respective rights of Indigenous peoples and European newcomers to use the North American lands that Indigenous peoples traditionally occupied. The historic treaties signed after 1763 provided large areas of land that were occupied by various First Nations, to the Crown, transferring their aboriginal title to their tradition land to the Crown in exchange for reserve lands and other benefits. The treaty-making process was formally established by the Royal Proclamation of 1763.

- [89] However, before Canada repatriated its Constitution from the United Kingdom on April 17, 1982, some First Nations in Canada had challenged the legality of patriation and argued that Canada had lacked the authority to sever the relationship between their nations and the imperial Crown without their consent. First Nations from Alberta, New Brunswick, and Nova Scotia then sought judicial review from the U.K. Court of Appeal on whether the British Crown was still responsible for Indian peoples of Canada and their rights by virtue of centuries-old treaties. This question of whether the Crown in right of the United Kingdom or the Crown in right of Canada is responsible for the treaty and other responsibilities to Indians in Canada had been considered by the U.K. Court of Appeal in The Queen and The Secretary of State for Foreign and Commonwealth Affairs, Ex Parte: the Indian Association of Alberta, Union of New Brunswick Indians, Union of Nova Scotian Indians, [1982] 2 All E.R. 118 (C.A.).

- [90] Lord Justice Denning, M.R. at pp. 123 and 127-129, in The Queen and The Secretary of State for Foreign and Commonwealth Affairs, Ex Parte: the Indian Association of Alberta, et al noted that the First Nations from Alberta, New Brunswick, and Nova Scotia were seeking a declaration that treaty or other obligations entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of Her Government in the United Kingdom. Denning, M.R. held that as a result of the important constitutional change, that those treaty obligations with Indians of Canada, which were previously binding on the Crown simpliciter are now to be treated as divided and that they are to be applied to the dominion or province or territory to which they relate and that none of them is any longer binding on the Crown in respect of the United Kingdom. Denning, M.R. further explained that at the time when the Crown entered into the obligations under the 1763 proclamation or the treaties of the 1870s, the Crown was in constitutional law one and indivisible and its obligations were obligations in respect of the government of the United Kingdom as well as in respect of Canada. However, Denning, M.R. held that because the Crown is now separate and divisible, the obligations under the royal proclamation and the treaties are obligations of the Crown in respect of Canada and not obligations of the Crown in respect of the United Kingdom. As such, Denning M.R. indicated that it is not permissible for the Indian peoples to bring an action in this country to enforce those treaty obligations and that their only recourse is in the courts of Canada [emphasis is mine below]:

... They ask this court to make a declaration 'that treaty or other obligations entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of Her Government in the United Kingdom'.

This is disputed by the Department of State in the United Kingdom. When the matter was under consideration by the Foreign Affairs Committee of the House of Commons, the question was put to the Foreign and Commonwealth Office (Foreign Affairs Committee minutes of evidence (HC Papers (1979—80) no 362—xxi) p 63): 'Has the UK any treaty or other responsibilities to Indians in Canada?' The answer given by that office on November 1980 was: 'No. All relevant treaty obligations insofar as they still subsisted became the responsibility of the Government of Canada with the attainment of independence, at the latest with the Statute of Westminster 1931.'

The Indian peoples dispute that answer. In order to challenge it, they have brought these proceedings for judicial review. They seek declarations (i) that the answer is wrong in law, (ii) 'that treaties or other obligations entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of Her Government in the United Kingdom'.

...

In 1930, by the British North America Act 1930, the United Kingdom Parliament gave the force of law to those agreements. It recognised that Canada was bound 'to fulfil its obligations under the treaties with the Indians of the Province' and that—

'the said Indians shall have the right, which the Province hereby assures to them, of hunting, trapping and fishing game and fish for food at all seasons of the

year on all unoccupied Crown lands and on any other lands to which the said Indians may have a right of access.'

This 1930 Act seems to me to recognise that the Crown had subsisting obligations to the Indians under the treaties. That is why it was necessary to have the agreements confirmed by the Parliament of the United Kingdom with the assent of the Queen.

The division of the Crown

Hitherto I have said that in constitutional law the Crown was single and indivisible. But that law was changed in the first half of this century, not by statute, but by constitutional usage and practice. The Crown became separate and divisible, according to the particular territory in which it was sovereign. This was recognised by the Imperial Conference of 1926 (Cmd 2768). It framed the historic definition of the status of Great Britain and the dominions as—

'autonomous Communities within the British Empire, equal in status, in no way subordinate one to another in any aspect of their domestic or external affairs, though united by a common allegiance to the Crown, and freely associated as members of the British Commonwealth of Nations.'

It was also agreed that—

'the Governor-General in a Dominion is the representative of the Crown holding in all essential respects the same position in relation to the administration of public affairs in a Dominion as is held by His Majesty the King in Great Britain and that he is not the representative or agent of His Majesty's Government in Great Britain or of any Department of that Government.'

(See Cmd 2768, pp 14, 16.)

Thenceforward the Crown was no longer single and indivisible. It was separate and divisible for each self-governing dominion or province or territory. ...

As a result of this important constitutional change, I am of opinion that those obligations which were previously binding on the Crown simpliciter are now to be treated as divided. They are to be applied to the dominion or province or territory to which they relate: and confined to it. Thus the obligations to which the Crown bound itself in the royal proclamation of 1763 are now to be confined to the territories to which they related and binding only on the Crown in respect of those territories; and the treaties by which the Crown bound itself in 1875 are to be confined to those territories and binding on the Crown only in respect of those territories. None of them is any longer binding on the Crown in respect of the United Kingdom.

...

But the Crown, as I have said already, was separate and divisible.

9. The Statute of Westminster 1931

The Statute of Westminster 1931 gave considerable independence to the dominions. By s 4 it was enacted that no Act of Parliament of the United Kingdom was to extend to a dominion as part of the law of the dominion unless 'it is expressly declared in that Act that that Dominion has requested, and consented to, the enactment thereof'.

...

10. The Crown Proceedings Act 1947

In order that proceedings should be brought against the Crown in this country, it is necessary that the liability of the Crown should be a liability 'in respect of Her Majesty's a Government In the United Kingdom': see s 40(2)(c) of the Crown Proceedings Act 1947.

Now, at the time when the Crown entered into the obligations under the 1763 proclamation or the treaties of the 1870s, the Crown was in constitutional law one and indivisible. Its obligations were obligations in respect of the government of the United Kingdom as well as in respect of Canada: see *Williants v Howarth* [1905] AC 551. But, now that the Crown is separate and divisible, I think that the obligations under the proclamation and the treaties are obligations of the Crown in respect of Canada. They are not obligations of the Crown in respect of the United Kingdom. It is, therefore, not permissible for the Indian peoples to bring an action in this country to enforce these obligations. Their only recourse is in the courts of Canada.

- [91] Furthermore, Lord Denning, M.R. at pp. 130-131, concluded there is nothing so far as he could see to warrant any distrust by the Indians of the government of Canada, as they will be able to say that their rights and freedoms have been guaranteed to them by the Crown, originally by the Crown in respect of the United Kingdom, now by the Crown in respect of Canada, but, in any case, by the Crown, and that their rights and freedoms should be honoured by the Crown in respect of Canada, 'so long as the sun rises and river flows', and that promise must never be broken [*emphasis is mine below*]:

It seems to me that the Canada Bill itself does all that can be done to protect the rights and freedoms of the aboriginal peoples of Canada. It entrenches them as part of the constitution, so that they cannot be diminished or reduced except by the prescribed procedure and by the prescribed majorities. In addition, it provides for a conference at the highest level to be held so as to settle exactly what their rights are. That is most j important, for they are very ill-defined at the moment.

There is nothing, so far as I can see, to warrant any distrust by the Indians of the government of Canada. But, in case there should be, the discussion in this case will strengthen their hand so as to enable them to withstand any onslaught. They will be able to say that their rights and freedoms have been guaranteed to them by the Crown, originally by the Crown in respect of the United Kingdom, now by the Crown in respect of Canada, but, in any case, by the Crown. No parliament should do anything to lessen the worth of these guarantees. They should be honoured by the Crown in respect of Canada 'so long as the sun rises and river flows'. That promise must never be broken.

- [92] In addition, Lord Justice Kerr, at pp. 130-137, in *The Queen and The Secretary of State for Foreign and Commonwealth Affairs, Ex Parte: the Indian Association of Alberta et al*, held that although the relevant agreements with the Indian peoples are known as 'treaties', they are not treaties in the sense of public international law. They were not treaties between sovereign states, so that no question of state succession arises. In addition, on the issue of whether treaty and other obligations

entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of Her Government in the United Kingdom, Kerr L.J. confirmed that the situs of obligations on the part of the Crown is to be found only in that territory within the realm of the Crown where such obligations can be enforced against a local administration. Moreover, Kerr L.J., reasoned that so far as rights and obligations in relation to the Indian peoples of Canada are concerned, the entire devolution of these from the Crown in right of what is now the United Kingdom to the Crown in right of the Dominion or provinces of Canada, is further confirmed by numerous Canadian enactments, both federal and provincial, culminating in the consolidated Indian Act 1970, which had derived its constitutional authority from s. 91(24) of the 1867 Act, which deals comprehensively with all matters concerning the Indian peoples. Accordingly, Kerr L.J. held that the devolution to Canada of all legislative and executive powers in this regard is therefore complete [*emphasis is mine below*]:

In connection with the 'repatriation' of the Canadian constitution, a number of statements have been made on behalf of Her Majesty's government in Parliament to the effect that all treaty obligations entered into by the Crown with the Indian peoples of Canada became the responsibility of the government of Canada with the attainment of independence, at latest with the Statute of Westminster 1931. The repatriation of the Canadian constitution is now proposed by means of the Canada Bill which is awaiting its second reading in the House of Commons. By ss 25 and 35 of the annexed Constitution Act 1982 the rights of the aboriginal peoples of Canada, including in particular of the Indian peoples, are expressly preserved. However, various Canadian Indian organisations, and perhaps all of them, are dissatisfied with the present situation. They contend that the government's conclusion as to the legal position is wrong. The applicants accordingly seek a declaration by way of judicial review to the effect that this conclusion is wrong in law and that all 'treaty and other obligations entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of Her Government in the United Kingdom'.

We are here only directly concerned with the Indian organisations in the provinces of Alberta, New Brunswick and Nova Scotia. But on the voluminous material placed before us it is clear that the same considerations apply throughout Canada. Thus, the applicants rely on the royal proclamation of 1763 which purported to extend to the Indian peoples beyond those parts of eastern Canada, the Maritime Provinces and parts of Quebec, which had by then been opened up for settlement. They also rely on the pattern of the so-called 'treaties' concluded between the Crown and many Indian 'bands', which ultimately covered most of the territory of Canada, and to which most or all of the remaining Indians subsequently adhered. They contend that under all of these, whether made before or after the British North America Act 1867 which set up the Dominion of Canada, as well as under the royal proclamation, the Crown assumed obligations to the Indians in return for formal concessions of territory by the Indians, and that these obligations still subsist and have never been transferred to Canada.

As to the subsistence of these rights, we have been referred to many legislative enactments and decisions of the courts in Canada in which the continuing binding effect of the proclamation and treaties has been recognised. Their binding effect has also been accepted before us by counsel on behalf of the Secretary of State

and of the government of Canada as interveners in the proceedings, as well as in the Canada Bill mentioned above. However, the Indian peoples wish to achieve certain political objectives, viz a greater degree of recognition, and the right of consultation on those aspects of the constitution of Canada resulting from its 'repatriation' which may affect them. This is the object of these proceedings and of the declarations which they seek.

However great may be one's sympathy with the grievances and aspirations of the Indian peoples of Canada, this court can only concern itself with the decision of justiciable issues on the basis of law. The issue raised in the declarations which are sought, quite apart from any question whether this should be dealt with by any formal declaration, is in my view only justiciable as a matter of concession by the court, faced with the wish of the applicants to have it decided and of the respondents' non-objection to its decision. The reason is that the applicants are not asserting any breach of any of the obligations on the part of the Crown, and are a fortiori not asking for any relief or remedy in respect of such obligations. Indeed, it has been virtually conceded by counsel on behalf of the applicants, rightly in my view, that no such relief or remedy could be obtained in our courts; and for the reasons explained hereafter this factor is in itself a crucial pointer to the decision. In effect, however, the parties are agreed that this court should determine the abstract and bare issue as to the situs of obligations which are ultimately owed by the Crown, whether in right or respect of the United Kingdom on the one hand or of the Dominion or provinces of Canada on the other. Since we have heard full argument on this issue over several days, whereas the position in this respect was different before Woolf J who dismissed the application for other reasons, I think that we should express our views on this issue.

It is settled law that, although Her Majesty is the personal Sovereign of the peoples inhabiting many of the territories within the Commonwealth, all rights and obligations of the Crown, other than those concerning the Queen in her personal capacity, can only arise in relation to a particular government within those territories. The reason is that such rights and obligations can only be exercised and enforced, if at all, through some governmental emanation or representation of the Crown. Thus, the Crown Proceedings Act 1947 distinguishes between liabilities in respect of, and proceedings in right of, Her Majesty in the United Kingdom on the one hand and outside the United Kingdom on the other. In relation to the latter class, it is open to the Secretary of State under s 40(3) to issue a certificate which is conclusive for the purposes of that Act. This has not been done in the present case, though without prejudice to the Secretary of State's contention that the legal position of the Indian peoples of Canada has no connection with the Crown in right of the United Kingdom. It is accordingly necessary to examine the constitutional principles which determine the situs of the Crown's rights and obligations in this regard, but bearing in mind that, although the relevant agreements with the Indian peoples are known as 'treaties', they are not treaties in the sense of public international law. They were not treaties between sovereign states, so that no question of state succession arises.

The principles which govern the situs of rights and obligations of the Crown are conveniently summarised in 6 Halsbury's Laws (4th edn) para 820, under the heading 'Unity and Divisibility of the Crown'. For present purposes it is sufficient to refer to two passages and to a number of authorities cited in support of these.

First, as there stated, it is clear that—

'on the grant of a representative legislature, and perhaps even as from the setting up of courts, legislative council and other such structures of government, Her Majesty's government in a colony is to be regarded as distinct from Her Majesty's government in the United Kingdom.'

Thus, in *R v Secretary of State for the Home Dept, ex p Bhurosah* [1967] 3 All ER 831, (1968] QB 266 an issue arose as to passports issued in Mauritius, which was then a dependent British colony, on behalf of the Governor. The passports were issued 'in the name of Her Majesty' to persons who were British subjects and citizens of the United Kingdom and Colonies under s 1 of the British Nationality Act 1948. The issue was whether they were 'United Kingdom passports' within the Commonwealth Immigrants Act 1962. It was held that they were not, because, in effect, they had been issued in the name of Her Majesty in right of the government of Mauritius and not of the United Kingdom.

This being the position in relation to a dependent colony, the government of a dominion is clearly in an a fortiori position, and neither of these forms of established government within the Commonwealth presents any constitutional problem for present purposes. In times long past there was such a problem, when many of the territories which are now within the Commonwealth had not yet been opened up for settlement, or even fully discovered, and there was no established government on behalf of the Crown. Thus, the royal charter of 1670, granting Rupert's Land to the Hudson's Bay Company, described the territory as 'one of our Plantacions or Colonyes in America' and conveyed it 'as of our Mannor of East Greenwich in our County of Kent in free and common Soccage'. This was clearly a Crown grant in right of the government here. Subsequently, as the overseas territories gradually came to be settled and colonised, there may have been an indeterminate and intermediate stage of constitutional development in many cases, when it was uncertain whether rights and obligations concerning the overseas territory arose in right or respect of the Crown here or of the emerging forms of local administration overseas. This may still have been the position at the time of the eighteenth century 'Maritime Treaties' and of the royal proclamation of 1763, although all these contain references to the then emerging colonial governments of what later became the eastern provinces of Canada and the eastern states of America. However, for the reasons explained hereafter, it is unnecessary to determine what was the resulting situs of the rights and obligations of the Crown in these territories at that time, since the subsequent constitutional development of Canada in my view puts the present issue a beyond doubt.

The second relevant principle stated in the same passage in Halsbury's Laws is that—

'the liabilities of the Crown in right of, or under the laws of, one of the Crown's territories can be satisfied only out of the revenues, and by the authority of the legislature, of that territory.'

In effect, the situs of obligations on the part of the Crown is to be found only in that territory within the realm of the Crown where such obligations can be enforced against a local administration. A nineteenth century illustration of this principle in relation to Canada, which is interesting because the case was decided before the British North America Act 1867, was *Re Holmes* (1861) 2 John & H 527, 70 ER 1167. This concerned disputes arising out of certain lands vested in the Crown, in the then Province of Upper Canada, in relation to which a petition of right was

brought in the Court of Chancery here. It was held by Page Wood V-C that, whether or not the Crown was a trustee of the land, the situs of any resulting rights and obligations lay in Canada and that these were only enforceable there. He said (2 John & H 527 at 543, 70 ER 1167 at 1174): ... 'as the holder of Canadian land for the public purposes of Canada, the Queen should be considered as present in Canada, and out of the jurisdiction of this Court.' In other words, any resulting rights and obligations existed only in right or respect of the Crown in what was then Upper Canada, and not in right or respect of what was then Great Britain.

...

... This decision was followed in many subsequent cases to which we were referred. It is unnecessary to discuss these further, other than to mention that I cannot accept that it follows from one sentence in the judgment of Lord Watson in the St Catherine's case 14 App Cas 46 at 60 that any right or obligation in relation to the Indian peoples remained vested in the Crown in respect of what was then Great Britain. On the contrary, subsequent decisions of the Privy Council have authoritatively established that the effect of the 1867 Act and of its successors was to transfer to Canada, as between the governments of the Dominion and of the provinces, every aspect of legislative and executive power in relation to Canada's internal affairs. Thus in AG for Ontario v AG for Canada [1912] AC 571 at 581, 584, Earl Loreburn LC said:

'It would be subversive of the entire scheme and policy of the Act to assume that any point of internal self-government was withheld from Canada ... For whatever belongs to self-government in Canada belongs either to the Dominion or to the provinces, within the limits of the British North America Act.'

...

We are here not concerned with the many difficult and complex problems concerning the distribution of power and responsibility as between the Dominion and the provinces, which have given rise to so much litigation. We are only concerned with the question whether any of these still remain vested in the Crown in right or respect of the United a Kingdom. On the basis of the principles discussed earlier in this judgment, and of the British North America Act 1867 and its successors, there can in my view be no doubt that the answer to this is in the negative. So far as rights and obligations in relation to the Indian peoples of Canada are concerned, the entire devolution of these from the Crown in right of what is now the United Kingdom to the Crown in right of the Dominion or provinces of Canada, is further confirmed by numerous Canadian enactments, both federal and provincial, culminating in the consolidated Indian Act 1970. This derives its ultimate constitutional authority under the Crown from s 91(24) of the 1867 Act, as mentioned above, and deals comprehensively with all matters concerning the Indian peoples. The devolution to Canada of all legislative and executive powers in this regard is therefore complete.

...

It follows in my judgment that the declarations sought by the applicants have no foundation in law, and that this appeal must be dismissed.

[93] Furthermore, May, L.J., at pp. 136, 140, and 143, in The Queen and The Secretary of State for Foreign and Commonwealth Affairs, Ex Parte: the Indian Association of Alberta et al, held that this divisibility of the Crown had been recognised by the courts in this country at a relatively early stage in the evolution from Empire to

Commonwealth, and as a result of this process, any treaty or other obligations to which the Crown had entered into with the Indian peoples of Canada in right of the United Kingdom had become the responsibility of the government of Canada with the attainment of independence, at the latest with the Statute of Westminster 1931, and therefore this application must fail. In addition, May L.J. held that any treaty or other obligations still owed by the Crown to the Indian peoples of Canada are owed by the Crown in right of the Dominion of Canada and not in the right of the United Kingdom, and where such obligations still exist, it is not a matter for this court, but a matter for the courts of Canada [*emphasis is mine below*]:

The application in this case is for two declarations: first, that the decision of the Secretary of State for Foreign and Commonwealth Affairs that all treaty obligations entered into by the Crown with the Indian peoples of Canada became the responsibility of the government of Canada with the attainment of independence, at the latest with the Statute of Westminster 1931, is wrong in law; and, second, that treaty and other obligations entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of her government in the United Kingdom.

...

Although at one time it was correct to describe the Crown as one and indivisible, with the development of the Commonwealth this is no longer so. Although there is only one person who is the Sovereign within the British Commonwealth, it is now a truism that in matters of law and government the Queen of the United Kingdom, for example, is entirely independent and distinct from the Queen of Canada. Further, the Crown is a constitutional monarchy and thus when one speaks today, and as was frequently done in the course of the argument on this application, of the Crown 'in right of Canada', or of some other territory within the Commonwealth, this is only a short way of referring to the Crown acting through and on the advice of her ministers in Canada or in that other territory within the Commonwealth.

Another consequence of this process of evolution from a single undivided imperial Crown, to which counsel for the applicants frequently but as I think erroneously referred in the course of his submissions, to the multi-limbed Crown of the British Commonwealth is that as different territories within the Commonwealth attained self-government to a greater or less extent, acquired the right to legislate on some and ultimately all matters within and affecting that territory, and thus to raise the finance to enable them to manage their own affairs, so pro tanto did any rights or obligations of what had been the Imperial Crown, that is to say the Crown in right of the United Kingdom, devolve on the Crown in right of the particular territory concerned.

This divisibility of the Crown was recognised by the courts in this country at a relatively early stage in the evolution from Empire to Commonwealth. ...

...

As a result of this process and on the authorities to which I have referred, I have no doubt that any treaty or other obligations which the Crown had entered into with the Indian peoples of Canada in right of the United Kingdom had become the responsibility of the government of Canada with the attainment of independence, at the latest with the Statute of Westminster 1931. I therefore think that this application must fail.

...

In the end, however, I am quite satisfied both, on general constitutional grounds as well as on the construction of the relevant instruments and the history of the relevant provinces themselves, that any treaty or other obligations still owed by the Crown to the Indian peoples of Canada are owed by the Crown in right of the Dominion of Canada and not in the right of the United Kingdom. If such obligations still exist, and, if they do, their extent, is, in my opinion, not a matter for this court: it is a matter for the courts of Canada.

I, too, would therefore refuse this application.

- [94] However, even if the “Haldimand Proclamation of 1784” had been a treaty, despite it being decided by the Ontario High Court of Justice in Logan v. Styres that it was not, Lord Justice Kerr of the U.K. Court of Appeal in The Queen and The Secretary of State for Foreign and Commonwealth Affairs, Ex Parte: the Indian Association of Alberta et al, [1982] 2 All E.R. 118 (C.A.), at p. 133, held that although the relevant agreements with the Indian peoples are known as ‘treaties’, they are not treaties in the sense of public international law, as they were not treaties between sovereign states, so that no question of state succession arises.
- [95] In addition, Professor Hogg, Canada’s eminent constitutional law scholar, in his textbook, *Constitutional Law of Canada*, 5th Edition. Scarborough, ON: Thomson Carswell, 2007, at p. 28-35, describes the nature of Indian treaties as something between a contract law concept and international law, as well as describing them as being “unique” or “sui generis”. However, Professor Hogg also emphasized that an Indian treaty is not a treaty in international law nor is it subject to the rules of international law; and an Indian treaty is also not a contract nor subject to the rules of contract law [*emphasis is mine below*]:

An Indian treaty has been described as “unique” or “sui generis”. It is not a treaty in international law, and is not subject to the rules of international law. It is not a contract, and is not subject to the rules of contract law. It is an agreement between the Crown and an aboriginal nation with the following characteristics:

- [96] But more importantly in respect to the defendants’ contentions, as will be expanded on below, Arnup J.A. for the Court of Appeal for Ontario in Isaac et al. v. Davey et al (1975), 5 O.R. (2d) 610, had noted that it has long ago been authoritatively decided by the Courts that the “Haldimand Proclamation of 1784”, did not give fee simple ownership or absolute title in fee simple of the Haldimand Tract to the Six Nations Confederacy. Furthermore, Arnup J.A. in his judgment had also referred to Logan v. Styres, [1959] O.J. No. 329 (Ont. Supreme Ct. – H.C.J.), in which King J. had found that the “Haldimand Proclamation of 1784” was contextually a deed and had not been in any sense a treaty.

(2) Everyone, Including Non-Citizens And Self-Declared Sovereign Citizens Who Are Present In Canada Have To Comply With Canadian Laws

- [97] Laws apply to everyone equally. And, like all “sovereign citizen” defences that have been raised by self-declared sovereign citizens, this defence that Canadian law does not apply to them is not a valid or recognized legal defence and has not been accepted as a legal defence by the courts in Canada.
- [98] More importantly, as part of the Canadian system of justice, there is the principle of the “rule of law” which means that the same laws apply to everyone regardless of their occupation, level of wealth, race, colour, sexual orientation, gender or other personal characteristics. It means that all people are treated equally by the same standards. It also means that political influences or popularity polls have no part in a court of law. Furthermore, it means that no person is above the law and the requirement that our courts follow the “rule of law” is a fundamental principle of Canada’s democracy. Furthermore, the principle of the rule of law means that everyone, even the Parliament that makes the laws, the executive that enacts laws, and the judiciary that enforce laws, are subject to the law.
- [99] In the Canadian *Charter of Rights and Freedoms* the following statement is contained in its preamble that recognizes the rule of law: “Whereas Canada is founded upon principles that recognize the supremacy of God and the rule of law.”

(3) The Sovereign Citizen Defence

- [100] And, like all “sovereign citizen” defences that have been raised by self-declared sovereign citizens, this defence is not a valid or recognized legal defence and has not been accepted as a legal defence by the courts in Canada (see Meads v. Meads, 2012 ABQB 571 (Alta. Q.B.)).

(a) The Rule Of Law

- [101] Canadian democracy is founded upon the “rule of law.” In addition, the expression “law” means a set of rules that governs relationships between people, regulates commerce and our lives within the community, and protects people from the unlawful acts of individuals or the state. Moreover, the “rule of law” describes an all-encompassing rule that expresses an agreement, both as individuals and as a collective, to be bound by and subject to the law. This commitment to the rule of law carries an explicit understanding that such adherence applies to everyone, no matter what their lineage, heritage or station in life. More, importantly, it also means that no one is above the law, so kings and queens, prime ministers, army generals, presidents, business titans, and judges will all face the same laws as the poorest and least advantaged person in society. It also means that the law will be applied fairly and evenly to all persons, taking no account of hierarchies, privilege, power or wealth.
- [102] Thus, the belief in and an adherence to the “rule of law” is a cornerstone of Canada’s constitutional democracy. It is also the means by which a truly impartial and independent judiciary carries out its work and it is the tenet that each member of the

judiciary in Canada have sworn to uphold. The rule of law further distinguishes Canada from other countries where no such protections exist, especially where tyrants and their armies and their secret police hold citizens in terror and where wrongdoers are unaccountable; where complicity goes unpunished; where democracy is illusory; and where the rights of the few can be trampled by the power of the mob or the majority.

- [103] In British Columbia v. Imperial Tobacco Ltd., [2005] 2 S.C.R. 473, the Supreme Court of Canada had recognized that it had described the rule of law “as embracing three principles”: (1) the supremacy of law over government officials as well as private individuals, (2) the maintenance of an order of positive laws, and (3) the legal regulation of the relationship between the state and the individual.

(4) Self-Declared Sovereign Citizens Are Subject To The Jurisdiction Of The Ontario Courts

- [104] Canadian courts, like courts of the United States, have not accepted the contention by self-declared sovereign citizens that they are immune from the jurisdiction of the courts just because they claim they are sovereign individuals. In Paul v. New York, No. 13-CV-5047 SJF AKT, 2013 WL 5973138 (E.D.N.Y. Nov. 5, 2013), the New York District Court had to consider the plaintiff’s complaint that as a sovereign citizen, he is not subject to the jurisdiction of the New York state criminal courts and, by extension, the “New York Department of Rehabilitation and Correction” and “New York Adult Parole Authority.” In dismissing the plaintiff’s argument as frivolous, the New York District Court held that “sovereign citizens, like all citizens of the United States, are subject to the laws of the jurisdiction in which they reside and that the Plaintiff’s purported status as a “sovereign citizen” does not enable him to violate state and federal laws without consequence. Moreover, the New York District Court also noted that the plaintiff’s factual allegations in the complaint are clearly baseless, and the conspiracy and legal revisionist theories of “sovereign citizen” are not established law in this court or anywhere in this country’s valid legal system [*emphasis is mine below*]:

...The gravamen of plaintiff’s amended complaint is that as a sovereign citizen, he is not subject to the jurisdiction of the New York state criminal courts and, by extension, the “New York Department of Rehabilitation and Correction” and “New York Adult Parole Authority.”

As noted by one court, those who subscribe to the “sovereign citizens” movement “believe that the 1933 House Joint Resolution 192 provides the legal basis for ‘sovereign citizens’ to collect money held by the Government in the trust when they file one or more [UCC] financing statements, naming themselves as both the secured party and the debtor.” Rivera v. United States, 105 Fed. Cl. 644, 646 (Fed. Cl. 2012) (citing Bryant v. Washington Mut. Bank, 524 F. Supp. 2d 753, 758 (W.D. Va. 2007), aff’d, 282 Fed. Appx. 260 (4th Cir. June 23, 2008) (citing H.R.J. Res. 192, 73d Cong. (1933))); see also Gravatt v. United States, 100 Fed. Cl. 279, 283 (Fed. Cl. 2011).

Contrary to plaintiff's contentions, "sovereign citizens," "like all citizens of the United States, are subject to the laws of the jurisdiction in which they reside." Bey v. Bailey, No. 09 Civ. 8416, 2010 WL 1531172, at * 2 (S.D.N.Y. Apr. 15, 2010) (citing cases); see also Atum v. Ricigliano, No. 12-cv-2447, 2012 WL 3230529, at * 2 (E.D.N.Y. July 31, 2012) (finding similar claims by Moorish Nationals, i.e., that they are not subject to New York State laws, to be "meritless"). Plaintiff's purported status as a "sovereign citizen" "does not enable him to violate state and federal laws without consequence." Allah El v. District Attorney for Bronx County, No. 09-cv-8746, 2009 WL 3756331, at * 1 (S.D.N.Y. Nov. 4, 2009): see also Bey v. American Tax Funding, No. 11-cv-6458, 2012 WL 1495368, at * 6 (W.D.N.Y. Apr. 27, 2012). Since, inter alia, plaintiff's factual allegations in the amended complaint are clearly baseless, and "[t]he conspiracy and legal revisionist theories of 'sovereign citizens' are not established law in this court or anywhere in this country's valid legal system." Santiago, 2013 WL 1281776, at * 5, plaintiff's amended complaint is both factually and legally frivolous. Accordingly, the amended complaint is sua sponte dismissed as frivolous.

- [105] Consequently, everyone in the Province of Ontario is subject to the laws of Canada and Ontario, even self-declared sovereign citizens.

(5) Six Nations Of The Grand River Proceeding Before The Superior Court of Justice in Toronto

- [106] The prosecution is correct that many of the defendants' pre-trial motions that are seeking remedies such as compensation and declaratory relief that is related to the Haldimand Tract is presently being litigated in an action brought by the Mohawk Nation of the Grand River against the federal and provincial governments. That action is styled Six Nations of the Grand River Band of Indians v. The Attorney General of Canada and His Majesty The King in Right of Ontario (Toronto Court File No. CV-18-00594281-0000 (Formerly Brantford Court File No. 406/95)).
- [107] The Six Nations of the Grand River, as represented by the Six Nations Elected Council, had filed a Statement of Claim on March 7, 1995, against Canada and Ontario (Court File 406/95) regarding the Crowns' handling of Six Nations' property before and after Confederation. Six Nations had been seeking from the Crown a comprehensive general accounting for all money, all property under the Haldimand Proclamation of 1784, and for other assets belonging to the Six Nations, as well as the manner in which the Crown had managed or disposed of such assets. In addition Six Nations had been also seeking an order that the Crown must replace all assets or value thereof, which ought to have been received or held by the Crown, plus compound interest on all sums, which the Crown should have received but had failed to receive or hold for the benefit of the Six Nations and the return of lands where it would be appropriate.
- [108] Moreover, many of the defendants' pre-trial motions in the case at bar require remedies in the form of declarations or orders from the Provincial Offences Court, which are remedies that have not been provided to that specific court, since the Provincial Offences Court is a statutory court create by legislation and the Provincial

Offences Court can only exercise powers which have been granted to it by legislation. Furthermore, litigation of First Nations' land claims are complex, lengthy, and time-consuming endeavours that require the calling of many expert witnesses and academics, the receipt of testimony from First Nations elders in the form of oral history about treaties and dealings with representatives of colonial governments in pre-Confederation Canada, and which also likely involve tens of thousands of pages of historical government documents and records, correspondence between the British government and the colonial governments in North America, correspondence between Joseph Brant and the colonial governors, and authenticated copies of letters patents and leases of parcels of land in the Haldimand Tract.

- [109] Nevertheless, a summary analysis will still be undertaken for each pre-trial motion brought by the defendants that seek a prerogative or equitable remedy and an explanation will be given about the issue raised for the specific motion and the reasons for why the Provincial Offences lacks the requisite jurisdiction to consider most of the pre-trial motions brought by the defendants.

(6) Jurisdiction over an offence is based on the “territoriality principle”

- [110] Jurisdiction over an offence under the common law is generally based on the location of where an alleged offence occurs. This is known as the “territoriality principle”.
- [111] In R. v. Chowdrury, 2014 ONSC 2635 (Ont. S.C.J.), Nordheimer J. noted at paras. 9 to 16, that for the jurisdiction exercised by states over offences with transnational or international aspects, there are three general forms of jurisdiction known as “prescriptive”, “enforcement”, and “adjudicative” jurisdiction. Moreover, Nordheimer J. further explained that there are also different bases for jurisdiction, whatever its form, with “territoriality” being the primary basis for criminal jurisdiction. However, Nordheimer J. commented that in recent decades, bright territorial lines have blurred as economies globalize and because the advent of modern developments in travel and information technology has led to more transnational and international criminal activity. Nordheimer J. also indicated that where a crime takes place in two states, states may have concurrent claims to jurisdiction over the offence. In this specific situation, Nordheimer J. remarked that an extended notion of the territoriality principle or “qualified territoriality” could ground Canada’s jurisdiction over an offence where a “real and substantial link” exists between the offence and Canada, and that the assertion of jurisdiction would not offend the principle of international comity. However, Nordheimer J. did emphasize that where adjudicative jurisdiction is asserted over an alleged offence, a court must have jurisdiction over both the offence and the person accused of the offence [*emphasis is mine below*]:

Before beginning the analysis it is helpful to outline some basic concepts about the different forms of, and bases for, the jurisdiction exercised by states over offences with transnational or international aspects. The three general forms of jurisdiction are known as prescriptive, enforcement, and adjudicative jurisdiction. They were

described by LeBel J. in *R. v. Hape*, 2007 SCC 26 (CanLII), [2007] 2 S.C.R. 292, at para. 58:

Prescriptive jurisdiction (also called legislative or substantive jurisdiction) is the power to make rules, issue commands or grant authorizations that are binding upon persons and entities. The legislature exercises prescriptive jurisdiction in enacting legislation. Enforcement jurisdiction is the power to use coercive means to ensure that rules are followed, commands are executed or entitlements are upheld. ... Adjudicative jurisdiction is the power of a state's courts to resolve disputes or interpret the law through decisions that carry binding force. [citations omitted]

The different forms of jurisdiction often overlap in real world legal problems. In this case the interplay is between prescriptive jurisdiction and adjudicative jurisdiction. Specifically, whether Parliament's legislation concerning the bribery of foreign officials brings a foreign national, whose acts in respect of the alleged offence were undertaken wholly outside of Canada, within the jurisdiction of this court.

There are also different bases for jurisdiction, whatever its form. Territoriality is the primary basis for criminal jurisdiction: *R. v. Libman*, 1985 CanLII 51 (SCC), [1985] 2 S.C.R. 178, at para. 11. In recent decades however, bright territorial lines have blurred as economies globalize and modern developments in travel and information technology lead to more transnational and international criminal activity. Where a crime takes place in two states, states may have concurrent claims to jurisdiction over the offence. In these situations "qualified territoriality" (in effect, an extended notion of the territoriality principle) can ground Canada's jurisdiction over an offence where a real and substantial link exists between the offence and Canada and the assertion of jurisdiction would not offend the principle of international comity: *Libman* at paras. 71 & 74.

Alternative bases for jurisdiction exist. These include jurisdiction based on nationality (jurisdiction exercised by a state over its own nationals for acts committed abroad) and universal jurisdiction (jurisdiction by a state over acts committed, in other countries, by foreigners against other foreigners based on the seriousness of the crime): *Hape*, at paras. 60-61.

Where adjudicative jurisdiction is asserted over an alleged offence, a court must have jurisdiction over both the offence and the person accused of the offence. The two are separate and discrete issues. As Doherty J.A. succinctly said in *United States of America v. Kavaratzis* (2006), 2006 CanLII 13237 (ON CA), 208 C.C.C. (3d) 139 (Ont. C.A.), at para. 18:

Jurisdiction over an accused is distinct from jurisdiction over an offence.

This dimension of jurisdiction is less commented upon but it is crucial to the resolution of this application.

With the foregoing in mind, the analysis in this case properly starts with s. 6(2) of the Criminal Code which reads:

Subject to this Act or any other Act of Parliament, no person shall be convicted or discharged under section 730 of an offence committed outside Canada.

This section provides a general prohibition against the extraterritorial jurisdiction of Canadian courts.

There are statutory exceptions to this general prohibition which draw variously from the different bases for jurisdiction described above. For example, s. 7 of the Criminal Code extends the criminal law jurisdiction of Canadian courts to offences that occur on planes while in flight, to a Canadian crew member during a space flight, to offences against diplomats, to offences involving nuclear material and to terrorism offences, among others. By way of further example, the Crimes Against Humanity and War Crimes Act, S.C. 2000, c. 24 provides for universal jurisdiction of Canadian courts over genocide, a crime against humanity, or a war crime committed outside Canada if certain stipulated requirements are met.

In addition to those specific provisions, s. 470 of the Criminal Code adds a further general jurisdiction provision. It provides that every superior court of criminal jurisdiction and every court of criminal jurisdiction that has power to try an indictable offence is competent to try an accused if the accused person “is found, is arrested or is in custody within the territorial jurisdiction of the court”. This is an uncontroversial assertion of jurisdiction over the person on the basis of territoriality.

(7) Jurisdiction of a court to decide an issue

- [112] In *R. v. Gray*, [1991] O.J. No. 2013, 6 O.R. (3d) 73 (Ont. Crt (Gen. Div.)), Watt J. (as he was then) held that jurisdiction means the authority to decide a case and to determine an issue. Moreover, Watt J. indicated that its essence is the authority to determine the issue and not the nature or correctness, actual or perceived, of the determination made. But more importantly, Watt J. noted that a court of limited jurisdiction has either jurisdiction over a particular subject-matter or it lacks it [*emphasis is mine below*]:

*Jurisdictional error is not to be equated with error of law. By jurisdiction is meant the authority to decide a case, to determine an issue. Its essence is the authority to determine the issue, not the nature or correctness, actual or perceived, of the determination made. See, for example, *Belgo Canadian Pulp & Paper Co. v. Court of Sessions of Peace of Three Rivers* (1919), 1919 CanLII 517 (QC CA), 33 C.C.C. 310, 56 Que. S.C. 164 (C.A.). A court of limited jurisdiction either has jurisdiction over a particular subject-matter or it lacks it. Jurisdiction is not only held or retained when the court is right in its determination, only to be lost when it is wrong. It has often and rightly been said that, in a matter within its jurisdiction, a court of limited jurisdiction may misconstrue a statute (other than an enabling statute) or otherwise misdecide the law as freely and with as high an immunity from correction, except on appeal, as any other judge or court. See, for example, *Long Point Co. v. Anderson* (1891), 18 O.A.R. 401 (C.A.).*

- [113] Furthermore, in *Reference re Judicature Act*, (1988), 46 C.C.C. (3d), [1988 CanLII 5677 \(NB CA\)](#), the New Brunswick Court of Appeal, at para. 32, noted that jurisdiction is the legal authority of a court to entertain an action, petition or other proceeding [*emphasis is mine below*]:

Jurisdiction, on the other hand, is the legal authority of a court to entertain an action, petition or other proceeding. The distinction between "procedure" and "jurisdiction" was made by Duff J. in the Supreme Court of Canada in *Livesley v. Horst Co.*, 1924 CanLII 18 (SCC), [1925] 1 D.L.R. 159, [1924] S.C.R. 605. He said at p. 161:

... the policy of the English law recognizes no vested rights in procedure, and a party invoking the jurisdiction of the Courts must take procedure as he finds it. The concept of procedure, too, is, in this connection, a comprehensive one, including process and evidence, methods of execution, rules of limitation affecting the remedy and the course of the Court with regard to the kind of relief that can be granted to a suitor.

(8) Territorial Jurisdiction Over An Offence Is Established Under The Provincial Offences Act, R.S.O. 1990, c. P.33

[114] Under s. 29 of the Provincial Offences Act, R.S.O. 1990, c. P.33, a proceeding in respect of an provincial offence shall be heard and determined by the Ontario Court of Justice sitting in the county or district in which the offence occurred or in the area specified in the transfer agreement made under Part X, or the proceeding may be heard and determined in a county or district that adjoins that in which the offence occurred, if (a) the court holds sittings in a place reasonably proximate to the place where the offence occurred and (b) the reasonably proximate place of sitting is named in the summons or offence notice [*emphasis is mine below*]:

Territorial jurisdiction

29(1) Subject to subsection (2), a proceeding in respect of an offence shall be heard and determined by the Ontario Court of Justice sitting in the county or district in which the offence occurred or in the area specified in the transfer agreement made under Part X.

Idem

(2) A proceeding in respect of an offence may be heard and determined in a county or district that adjoins that in which the offence occurred if,

(a) the court holds sittings in a place reasonably proximate to the place where the offence occurred; and

(b) the place of sitting referred to in clause (a) is named in the summons or offence notice.

Transfer to proper county

(3) *Where a proceeding is taken in a county or district other than one referred to in subsection (1) or (2), the court shall order that the proceeding be transferred to the proper county or district and may where the defendant appears award costs under section 60.*

Change of venue

- (4) Where, on the motion of a defendant or prosecutor made to the court at the location named in the information or certificate, it appears to the court that,
- (a) it would be appropriate in the interests of justice to do so; or
- (b) both the defendant and prosecutor consent thereto,

the court may order that the proceeding be heard and determined at another location in Ontario.

Conditions

- (5) The court may, in an order made on a motion by the prosecutor under subsection (3) or (4), prescribe conditions that it thinks proper with respect to the payment of additional expenses caused to the defendant as a result of the change of venue.

Time of order for change of venue

- (6) An order under subsection (3) or (4) may be made even if a motion preliminary to trial has been disposed of or the plea has been taken and it may be made at any time before evidence has been heard.

Preliminary motions

- (7) The court at a location to which a proceeding is transferred under this section may receive and determine any motion preliminary to trial although the same matter was determined by the court at the location from which the proceeding was transferred.

Delivery of papers

- (8) Where an order is made under subsection (3) or (4), the clerk of the court at the location where the trial was to be held before the order was made shall deliver any material in his or her possession in connection with the proceeding forthwith to the clerk of the court at the location where the trial is ordered to be held.

(9) Jurisdiction Over Provincial Offences Have Been Provided To The Ontario Court Of Justice Under The Courts Of Justice Act, R.S.O. 1990, c. C.43

[115] The jurisdiction over “provincial offences”, such as the offences for which the defendants in the case at bar have been charged with under the Highway Traffic Act, is provided for under s. 38(2) of the Courts of Justice Act, R.S.O. 1990, c. C.43, which designates that adjudicative jurisdiction over provincial offences has been given to the “Ontario Court of Justice”. The Provincial Offences Court is a

specialized court in the Ontario Court of Justice that is presided over by a justice of the peace. In addition, s. 39(2) of the Courts of Justice Act bestows on a justice of the peace jurisdiction to preside over a proceeding governed by the Provincial Offences Act in the Ontario Court of Justice [*emphasis is mine below*]:

***Jurisdiction of Ontario Court of Justice
Criminal matters***

38(1) *A provincial judge has the power and authority of two or more justices of the peace when sitting in the Ontario Court of Justice and shall exercise the powers and perform the duties that any Act of the Parliament of Canada confers on a provincial court judge when sitting in the Ontario Court of Justice.*

Provincial offences and family matters

(2) *The Ontario Court of Justice shall perform any function assigned to it by or under the Provincial Offences Act, the Family Law Act, the Children's Law Reform Act, the Child, Youth and Family Services Act, 2017 or any other Act.*

Youth court and youth justice court

(3) *The Ontario Court of Justice is a youth court for the purposes of the Young Offenders Act (Canada) and a youth justice court for the purposes of the Youth Criminal Justice Act (Canada).*

Judge to preside

39(1) *A proceeding in the Ontario Court of Justice shall be heard and determined by one judge of the Ontario Court of Justice.*

Justice of the peace may preside

(2) *A justice of the peace may preside over the Ontario Court of Justice in a proceeding under the Provincial Offences Act.*

[116] Furthermore, jurisdiction over controversies between Canada and Ontario and in controversies between Ontario and any other province has been provided to the Federal Court of Canada under s. 148 of the Courts of Justice Act, R.S.O. 1990, c. C.43:

Jurisdiction of Federal Court

148. *The Federal Court of Canada has jurisdiction,*

(a) *in controversies between Canada and Ontario;*

(b) *in controversies between Ontario and any other province in which an*

*enactment similar to this section is in force,
in accordance with section 19 of the Federal Courts Act (Canada).*

- [117] In addition, the procedure that governs the prosecution of provincial offences or regulatory offences in Ontario is contained in the Provincial Offences Act, R.S.O. 1990, c. P.33. Subsection 2(1) of that Act states that the purpose of the Provincial Offences Act is to replace the summary conviction procedure for the prosecution of provincial offences, including the provisions adopted by reference to the *Criminal Code* (Canada), with a procedure that reflects the distinction between provincial offences and criminal offences:

Purpose of Act

- 2(1)** *The purpose of this Act is to replace the summary conviction procedure for the prosecution of provincial offences, including the provisions adopted by reference to the Criminal Code (Canada), with a procedure that reflects the distinction between provincial offences and criminal offences.*

(10) Do provincial traffic laws apply to First Nations' people?

- [118] The prosecution submitted the Brantford (City) v. Michael Monture (August 28, 2003), Brantford 999-66297951 (Ont. C.J.) and the R. v. Francis, [1988] 1 S.C.R. 1025 (S.C.C.) cases to support their argument that the Provincial Offences Court has jurisdiction over the defendants' Highway Traffic Act charges.
- [119] On the other hand, the defendants in respect to their Highway Traffic Act charges contend that the Indian Act, R.S.C. 1985, c. I-5, does not apply to the defendants because the alleged offences had allegedly occurred on the sovereign territory of the Mohawk Nation. The defendants also contend that the Highway Traffic Act charges do not apply to them as members of the sovereign Mohawk Nation.
- [120] In the unreported decision of Brantford (City) v. Michael Monture (August 28, 2003), Brantford 999-66297951 (Ont. C.J.), Edward J. on appeal considered the defendant Michael Monture's claim of exercising an existing aboriginal right to mobility under s. 35(1) of the Constitution Act, 1982 and that s. 128 of the Highway Traffic Act had interfered with this right and should be invalid under s. 52(1) of the Constitution Act, 1982. Monture at trial had been convicted of speeding 117 Km/h on a posted 80 km/h highway in the County of Brant, contrary to s. 128 of the Highway Traffic Act. At paras. 3 to 5 and 7 to 22, Edward J. considered the validity of the Monture's defence and held that Monture was an aboriginal person within the meaning of s. 35(1) of the Constitution Act, 1982 and that Monture had been travelling on land over which aboriginal rights could be asserted based on the successive agreements between the Crown and Six Nations, be it the Treaty of 1701, the Royal Proclamation of 1763, or the Haldimand Deed that made it clear that the specific

location of the offence (County of Brant) was part of a much larger assemblage of lands set aside for the perpetual use and enjoyment of members of the Six Nations. Edward J. after considering the tests developed by the Supreme Court in R. v. Sparrow, concluded that no aboriginal right to mobility that Monture had on the date of the offence had been infringed. Moreover, Edward J. found that even if Monture's aboriginal right to mobility had been infringed by s. 128 of the Highway Traffic Act, there had been a justifiable legislative infringement of that right; while the need for consultation with the aboriginal population about speed limits had not been evident like the complex situation in R. v. Sparrow [emphasis is mine below]:

In assessing the validity of this defence a number of questions must be answered in favour of the Appellant.

Is the Appellant an aboriginal person within the meaning of Section 35(1) of The Constitution Act, 1982? This was not raised as an issue in the appeal itself and I am satisfied that at the May 8, 2002 Trial the Appellant filed his Indian Status card with the Court confirming he is a status Indian being a member of the Upper Mohawk of the Six Nations and thus belonging to the class of people covered by Section 35(1).

Was the Appellant travelling on land over which aboriginal rights could be asserted? I am satisfied that the successive agreements between the Crown and Six Nations be it the Treaty of 1701, the Proclamation of 1763 or the Haldimand Deed make it clear that the specific location of the offence was part of a much larger assemblage of lands set aside for the perpetual use and enjoyment of members of the Six Nations.

...

At paragraph 10 of its Factum the Crown appears to concede that mobility is an aboriginal right enjoyed by the Appellant. It could be argued the Crown was too quick to make that concession in light of the tests set out by former Chief Justice Lamer in R. v. VanderPeet [1996] 2 S.C.R. 507 and yet I am satisfied that abundant evidence exists to support the conclusion that the right to mobility was an activity essential to the practices, customs and traditions of the members of the Six Nations of whom Dr. Monture is a member. I would have no hesitation in concluding that the test in VanderPeet would be met and that mobility is an aboriginal right exercised by members of the Six Nations.

With these preliminary questions answered in favour of the Appellant we now turn to the more telling aspects of the tests set out in the Supreme Court of Canada in R. v. Sparrow [1990] 1 S.C.R. 1075 to determine whether Section 128 of The Highway Traffic Act is inconsistent with Section 35(1) of The Constitution Act, 1982.

As stated by Justices Dickson and La Forest the first question to be asked is whether the legislation in question has the effect of interfering with an existing aboriginal right, in this case, the mobility right of the Appellant.

In reviewing the transcript of the Trial it is clear no one was preventing the Appellant from travelling southbound on Highway 24 on the evening in question.

Had he been travelling at the posted speed limit of 80 km/h or less he would not have attracted the attention of the officer. He was stopped and charged by the officer because he was driving in excess of the speed limit.

Does this infringe on his aboriginal right of mobility? I can't see how it does. The simple fact of the matter is that no one was going to interfere with the Appellant's desire to travel on Highway 24 as long as he was not going in excess of the posted speed limit.

The Appellant during the course of the Trial and in argument during this Appeal spoke of his stature as a medical doctor and as a sovereign recognized as such by the Hereditary Chiefs of the Six Nations. But the Court cannot make the connection as to how this elevated or enhanced his mobility right. Moreover, on the evening in question the Appellant was simply driving his two children home from a visit to London. This outing had no connection to his status as a medical doctor or a sovereign with the Six Nations.

If I am wrong in concluding the Appellant's aboriginal right to mobility was not interfered with then I need to consider the second test in Sparrow namely if there was interference with an aboriginal right was there a valid legislative objective in interfering with that right.

To this end the Appellant fairly concedes there was in that laws need to be established to ensure the safety of the public both aboriginal and non-aboriginal on our roads and highways.

Finally the last question to be answered from Sparrow is whether the legislation can be justified in light of the special trust relationship and responsibility that exists between the Crown and aboriginal peoples.

To understand what is meant by this element of Sparrow it is useful to quote from Justice Lamer's decision at 1119:

"The objective of this requirement is not to undermine parliament's ability and responsibility with respect to creating and administering overall conservation and management plans regarding the salmon fishery. The objective is rather to guarantee that those plans treat aboriginal peoples in a way ensuring that their rights are taken seriously.

Within the analysis of justification there are further questions to be addressed depending on the circumstances of the inquiry. These include the questions of whether there has been as little infringement as possible in order to effect the desired result; whether, in a situation of expropriation, fair compensation is available; and, whether the aboriginal group in question has been consulted with respect to conservation measures being implemented. The aboriginal peoples, with their history of conservation-consciousness and interdependence with natural resources, would surely be expected, at the least, to be informed regarding the determination of an appropriate scheme for the regulation of the fisheries.

We would not wish to set out an exhaustive list of the factors to be considered in the assessment of justification. Suffice it to say that recognition and affirmation requires sensitivity to and respect for the rights of all aboriginal peoples on behalf of the government, Courts and indeed all Canadians'.

In the Appeal before me it was urged that the aboriginal population ought to have some similar consultative role with respect to establishing speed limits. Practically speaking that would cause some significant problems. But rights under The Charter aren't ignored simply because they are not practically expedient.

But in Sparrow the nature of the consultative process as it applied to the B.C. fishery vis a vis the aboriginal population would in my view of necessity require the input from those profoundly affected by it - namely the aboriginal population.

But the question in the context of this case is how profoundly affected would members of the Six Nations be if they had no say in whether the speed limit on Highway 24 was 80 km or 100 km or 60 km. I say this to suggest the need for a connection between the need for input and the practical repercussions of requiring that input.

It seems to me that is the difference between this case and Sparrow. In Sparrow the Supreme Court of Canada ultimately returned the case for re-Trial because of lack of evidence on matters cited in my previous quotation of Justice Lamer. Sparrow had a complexity that spoke to the need for consultation. In my view this case does not.

In summary I conclude that no aboriginal right to mobility the Appellant had on the date of the offence was infringed. If I am wrong and there was then there was a justifiable legislative infringement of that right. Further I conclude that there needs to be a connect between the manner of realizing the special trust relationship between the Crown and the aboriginal people and the practical application of realizing that relationship.

For these reasons the Appeal is dismissed and the conviction will stand.

- [121] And, in *R. v. Francis*, [1988] 1 S.C.R. 1025, La Forest J. for the Supreme Court of Canada, at paras. 1, 4, 5, 8 and 9, noted that in the absence of conflicting federal legislation, provincial motor vehicle laws of general application apply *ex proprio vigore* (without further authorization or authority needed) on Indian reserves. In addition, La Forest J. concluded that that federal and provincial laws that merely duplicate one another but do not conflict can exist side by side, so that a person may be charged with violating the provincial statute or the federal regulation [emphasis is mine below]:

This is an appeal from a decision of the Court of Appeal for New Brunswick in which it upheld the conviction of the appellant under s. 167(b) of the Motor Vehicle Act, R.S.N.B. 1973, c. M 17, for failing while driving a motor vehicle to yield the right of way when entering a highway from a driveway. Since the incident occurred on an Indian reserve, the appellant argues that he could only be charged and convicted under s. 6 of the Indian Reserve Traffic Regulations, C.R.C. 1978, c. 959. That provision was enacted pursuant to s. 73(1)(c) of the Indian Act, R.S.C. 1970, c. I 6, which empowers the Governor in Council to make regulations for the control of the speed, operation and parking of vehicles on roads within reserves.

Section 6 of the regulations reads as follows:

6. The driver of any vehicle shall comply with all laws and regulations relating to motor vehicles, which are in force from time to time in the province in which the Indian reserve is situated, except such laws or regulations as are inconsistent with these Regulations.

...

I shall begin by saying that, in the absence of conflicting federal legislation, provincial motor vehicle laws of general application apply ex proprio vigore on Indian reserves. To hold otherwise would amount to resuscitating the "enclave" theory which was rejected by a majority of this Court in *Cardinal v. Attorney General of Alberta*, [1974] S.C.R. 695; see also *Four B Manufacturing Ltd. v. United Garment Workers of America*, [1980] 1 S.C.R. 1031. In *Kruger v. The Queen*, [1978] 1 S.C.R. 104, this Court held that general provincial legislation relating to hunting applies on reserves, a matter which is obviously far more closely related to the Indian way of life than driving motor vehicles. Indeed Beetz J., speaking for the Court in *Dick v. The Queen*, [1985] 2 S.C.R. 309, at p. 326, expressly stated that provincial traffic legislation applies to Indians without touching their Indianness.

The question remaining then is whether, under the doctrine of paramountcy, the provincial law is inoperative because it is inconsistent with the Indian Reserve Traffic Regulations; see *Multiple Access Ltd. v. McCutcheon*, [1982] 2 S.C.R. 161. Section 6 of the regulations is the main area of contention, but before going further, it should be noted that in the courts below, the appellant contended that s. 5 deals expressly with driving at intersections. That section provides that "a person in charge of any vehicle...shall keep the vehicle in such control when approaching a[n] ... intersection...as will enable him to prevent a collision with, or damage to, all other persons and vehicles". Here the appellant had collided with another vehicle on the highway. However, the courts below found, rightly in my opinion, no inconsistency between s. 5 of the regulations and s. 167(b) of the Motor Vehicle Act, and the appellant did not appeal this finding.

...

In considering the interpretation of s. 6, counsel made reference, as had the courts below, to s. 88 of the Indian Act, which bears some resemblance to s. 6 of the regulations in issue here. Section 88 provides that all provincial laws of general application are applicable to Indians. Counsel on all sides rightly conceded that this provision had no direct bearing on this case. In *Dick v. The Queen*, supra, this Court held that s. 88 served to incorporate only those provincial laws that did not extend to Indians ex proprio vigore. In particular, Beetz J. expressly referred to traffic regulations as laws that applied to Indian reserves ex proprio vigore and as such not falling within the types of provincial laws extended to Indians by s. 88. Obviously, the reasoning in *Dick* does not apply to s. 6 since it is directly aimed at traffic regulations on Indian reserves.

The fact that a provincial law may be incorporated by reference as a federal law does not prevent the provincial law from operating in its own right. Since the *Multiple Access* case, supra, it is clear that federal and provincial laws that merely duplicate one another but do not conflict can exist side by side. A person may be

charged with violating the provincial statute or the federal regulation; see R. v. Chiasson (1982), 39 N.B.R. (2d) 631, aff'd [1984] 1 S.C.R. 266. To the extent that cases like R. v. Kenny (1982), 20 Sask. R. 361, [1983] 1 W.W.R. 284 (Q.B.), aff'd (1983), 36 Sask. R. 280 (C.A.), conflict with this, they must be deemed to be overruled.

(11) The Supreme Court Of Canada's View On Sovereignty In Respect To Aboriginal Title

- [122] In R. v. Sparrow, [1990] 1 S.C.R. 1075, the Supreme Court of Canada held that s. 35(1) of the Constitution Act, 1982, affords aboriginal peoples constitutional protection against provincial legislative power. Moreover, the Supreme Court also indicated that the Crown has the responsibility to act in a fiduciary capacity with respect to aboriginal peoples, since the relationship between the Crown and aboriginals is trust like, rather than adversarial, and contemporary recognition and affirmation of aboriginal rights must be defined in light of this historic relationship. The Supreme Court also confirmed that the Crown owes a fiduciary obligation to the Aboriginal Peoples with respect to the lands, which is based on the *sui generis* nature of Indian title, and the historic powers and responsibility assumed by the Crown. In addition, the Supreme Court held that legislation that affects the exercise of aboriginal rights will nonetheless be valid, if it meets the test for justifying an interference with a right recognized and affirmed under s. 35(1). Section 35(1) suggests that while regulation affecting aboriginal rights is not precluded, such regulation must be enacted according to a valid objective. The government is required to bear the burden of justifying any legislation that has some negative effect on any aboriginal right protected under s. 35(1) [*emphasis is mine below*]:

It is clear, then, that s. 35(1) of the Constitution Act, 1982, represents the culmination of a long and difficult struggle in both the political forum and the courts for the constitutional recognition of aboriginal rights. The strong representations of native associations and other groups concerned with the welfare of Canada's aboriginal peoples made the adoption of s. 35(1) possible and it is important to note that the provision applies to the Indians, the Inuit and the Métis. Section 35(1), at the least, provides a solid constitutional base upon which subsequent negotiations can take place. It also affords aboriginal peoples constitutional protection against provincial legislative power. We are, of course, aware that this would, in any event, flow from the Guerin case, supra, but for a proper understanding of the situation, it is essential to remember that the Guerin case was decided after the commencement of the Constitution Act, 1982. In addition to its effect on aboriginal rights, s. 35(1) clarified other issues regarding the enforcement of treaty rights (see Sanders, "Pre existing Rights: The Aboriginal Peoples of Canada," in Beaudoin and Ratushny, eds., The Canadian Charter of Rights and Freedoms, 2nd ed., especially at p. 730).

In our opinion, the significance of s. 35(1) extends beyond these fundamental effects. Professor Lyon in "An Essay on Constitutional Interpretation" (1988), 26 Osgoode Hall L.J. 95, says the following about s. 35(1), at p. 100:

... the context of 1982 is surely enough to tell us that this is not just a codification of the case law on aboriginal rights that had accumulated by 1982. Section 35 calls for a just settlement for aboriginal peoples. It renounces the old rules of the game under which the Crown established courts of law and denied those courts the authority to question sovereign claims made by the Crown.

The approach to be taken with respect to interpreting the meaning of s. 35(1) is derived from general principles of constitutional interpretation, principles relating to aboriginal rights, and the purposes behind the constitutional provision itself. Here, we will sketch the framework for an interpretation of "recognized and affirmed" that, in our opinion, gives appropriate weight to the constitutional nature of these words.

In Reference re Manitoba Language Rights, [1985] 1 S.C.R. 721, this Court said the following about the perspective to be adopted when interpreting a constitution, at p. 745:

The Constitution of a country is a statement of the will of the people to be governed in accordance with certain principles held as fundamental and certain prescriptions restrictive of the powers of the legislature and government. It is, as s. 52 of the Constitution Act, 1982 declares, the "supreme law" of the nation, unalterable by the normal legislative process, and unsuffering of laws inconsistent with it. The duty of the judiciary is to interpret and apply the laws of Canada and each of the provinces, and it is thus our duty to ensure that the constitutional law prevails.

The nature of s. 35(1) itself suggests that it be construed in a purposive way. When the purposes of the affirmation of aboriginal rights are considered, it is clear that a generous, liberal interpretation of the words in the constitutional provision is demanded. When the Court of Appeal below was confronted with the submission that s. 35 has no effect on aboriginal or treaty rights and that it is merely a preamble to the parts of the Constitution Act, 1982, which deal with aboriginal rights, it said the following, at p. 322:

This submission gives no meaning to s. 35. If accepted, it would result in denying its clear statement that existing rights are hereby recognized and affirmed, and would turn that into a mere promise to recognize and affirm those rights sometime in the future. . . . To so construe s. 35(1) would be to ignore its language and the principle that the Constitution should be interpreted in a liberal and remedial way. We cannot accept that that principle applies less strongly to aboriginal rights than to the rights guaranteed by the Charter, particularly having regard to the history and to the approach to interpreting treaties and statutes relating to Indians required by such cases as *Nowegijick v. R.*, [1983] 1 S.C.R. 29. . . .

In Nowegijick v. The Queen, [1983] 1 S.C.R. 29, at p. 36, the following principle that should govern the interpretation of Indian treaties and statutes was set out:

. . . treaties and statutes relating to Indians should be liberally construed and doubtful expressions resolved in favour of the Indians.

In R. v. Agawa, supra, Blair J.A. stated that the above principle should apply to the interpretation of s. 35(1). He added the following principle to be equally applied, at pp. 215-16:

The second principle was enunciated by the late Associate Chief Justice MacKinnon in *R. v. Taylor and Williams* (1981), 34 O.R. (2d) 360. He emphasized the importance of Indian history and traditions as well as the perceived effect of a treaty at the time of its execution. He also cautioned against determining Indian rights "in a vacuum". The honour of the Crown is involved in the interpretation of Indian treaties and, as a consequence, fairness to the Indians is a governing consideration. He said at p. 367:

"The principles to be applied to the interpretation of Indian treaties have been much canvassed over the years. In approaching the terms of a treaty quite apart from the other considerations already noted, the honour of the Crown is always involved and no appearance of 'sharp dealing' should be sanctioned."

This view is reflected in recent judicial decisions which have emphasized the responsibility of Government to protect the rights of Indians arising from the special trust relationship created by history, treaties and legislation: see *Guerin v. The Queen*, [1984] 2 S.C.R. 335; 55 N.R. 161; 13 D.L.R. (4th) 321.

*In *Guerin*, supra, the Musqueam Band surrendered reserve lands to the Crown for lease to a golf club. The terms obtained by the Crown were much less favourable than those approved by the Band at the surrender meeting. This Court found that the Crown owed a fiduciary obligation to the Indians with respect to the lands. The sui generis nature of Indian title, and the historic powers and responsibility assumed by the Crown constituted the source of such a fiduciary obligation. In our opinion, *Guerin*, together with *R. v. Taylor and Williams* (1981), 34 O.R. (2d) 360, ground a general guiding principle for s. 35(1). That is, the Government has the responsibility to act in a fiduciary capacity with respect to aboriginal peoples. The relationship between the Government and aboriginals is trust like, rather than adversarial, and contemporary recognition and affirmation of aboriginal rights must be defined in light of this historic relationship.*

*We agree with both the British Columbia Court of Appeal below and the Ontario Court of Appeal that the principles outlined above, derived from *Nowegijick*, *Taylor and Williams* and *Guerin*, should guide the interpretation of s. 35(1). As commentators have noted, s. 35(1) is a solemn commitment that must be given meaningful content (Lyon, op. cit.; Pentney, op. cit.; Schwartz, "Unstarted Business: Two Approaches to Defining s. 35 - 'What's in the Box?' and 'What Kind of Box?'" , Chapter XXIV, in *First Principles, Second Thoughts: Aboriginal Peoples, Constitutional Reform and Canadian Statecraft*; Slattery, op. cit.; and Slattery, "The Hidden Constitution: Aboriginal Rights in Canada" (1984), 32 Am. J. of Comp. Law 361).*

In response to the appellant's submission that s. 35(1) rights are more securely protected than the rights guaranteed by the Charter, it is true that s. 35(1) is not subject to s. 1 of the Charter. In our opinion, this does not mean that any law or regulation affecting aboriginal rights will automatically be of no force or effect by the operation of s. 52 of the Constitution Act, 1982. Legislation that affects the exercise of aboriginal rights will nonetheless be valid, if it meets the test for justifying an interference with a right recognized and affirmed under s. 35(1).

There is no explicit language in the provision that authorizes this Court or any court to assess the legitimacy of any government legislation that restricts aboriginal

rights. Yet, we find that the words "recognition and affirmation" incorporate the fiduciary relationship referred to earlier and so import some restraint on the exercise of sovereign power. Rights that are recognized and affirmed are not absolute. Federal legislative powers continue, including, of course, the right to legislate with respect to Indians pursuant to s. 91(24) of the Constitution Act, 1867. These powers must, however, now be read together with s. 35(1). In other words, federal power must be reconciled with federal duty and the best way to achieve that reconciliation is to demand the justification of any government regulation that infringes upon or denies aboriginal rights. Such scrutiny is in keeping with the liberal interpretive principle enunciated in Nowegijick, supra, and the concept of holding the Crown to a high standard of honourable dealing with respect to the aboriginal peoples of Canada as suggested by Guerin v. The Queen, supra.

We refer to Professor Slattery's "Understanding Aboriginal Rights", supra, with respect to the task of envisioning a s. 35(1) justificatory process. Professor Slattery, at p. 782, points out that a justificatory process is required as a compromise between a "patchwork" characterization of aboriginal rights whereby past regulations would be read into a definition of the rights, and a characterization that would guarantee aboriginal rights in their original form unrestricted by subsequent regulation. We agree with him that these two extreme positions must be rejected in favour of a justificatory scheme.

Section 35(1) suggests that while regulation affecting aboriginal rights is not precluded, such regulation must be enacted according to a valid objective. Our history has shown, unfortunately all too well, that Canada's aboriginal peoples are justified in worrying about government objectives that may be superficially neutral but which constitute de facto threats to the existence of aboriginal rights and interests. By giving aboriginal rights constitutional status and priority, Parliament and the provinces have sanctioned challenges to social and economic policy objectives embodied in legislation to the extent that aboriginal rights are affected. Implicit in this constitutional scheme is the obligation of the legislature to satisfy the test of justification. The way in which a legislative objective is to be attained must uphold the honour of the Crown and must be in keeping with the unique contemporary relationship, grounded in history and policy, between the Crown and Canada's aboriginal peoples. The extent of legislative or regulatory impact on an existing aboriginal right may be scrutinized so as to ensure recognition and affirmation.

The constitutional recognition afforded by the provision therefore gives a measure of control over government conduct and a strong check on legislative power. While it does not promise immunity from government regulation in a society that, in the twentieth century, is increasingly more complex, interdependent and sophisticated, and where exhaustible resources need protection and management, it does hold the Crown to a substantive promise. The government is required to bear the burden of justifying any legislation that has some negative effect on any aboriginal right protected under s. 35(1).

In these reasons, we will outline the appropriate analysis under s. 35(1) in the context of a regulation made pursuant to the Fisheries Act. We wish to emphasize the importance of context and a case by case approach to s. 35(1). Given the generality of the text of the constitutional provision, and especially in light of the

complexities of aboriginal history, society and rights, the contours of a justificatory standard must be defined in the specific factual context of each case.

Section 35(1) and the Regulation of the Fisheries

Taking the above framework as guidance, we propose to set out the test for prima facie interference with an existing aboriginal right and for the justification of such an interference. With respect to the question of the regulation of the fisheries, the existence of s. 35(1) of the Constitution Act, 1982, renders the authority of *R. v. Derriksan*, *supra*, inapplicable. In that case, Laskin C.J., for this Court, found that there was nothing to prevent the Fisheries Act and the Regulations from subjecting the alleged aboriginal right to fish in a particular area to the controls thereby imposed. As the Court of Appeal in the case at bar noted, the *Derriksan* line of cases established that, before April 17, 1982, the aboriginal right to fish was subject to regulation by legislation and subject to extinguishment. The new constitutional status of that right enshrined in s. 35(1) suggests that a different approach must be taken in deciding whether regulation of the fisheries might be out of keeping with constitutional protection.

The first question to be asked is whether the legislation in question has the effect of interfering with an existing aboriginal right. If it does have such an effect, it represents a prima facie infringement of s. 35(1). Parliament is not expected to act in a manner contrary to the rights and interests of aboriginals, and, indeed, may be barred from doing so by the second stage of s. 35(1) analysis. The inquiry with respect to interference begins with a reference to the characteristics or incidents of the right at stake. Our earlier observations regarding the scope of the aboriginal right to fish are relevant here. Fishing rights are not traditional property rights. They are rights held by a collective and are in keeping with the culture and existence of that group. Courts must be careful, then, to avoid the application of traditional common law concepts of property as they develop their understanding of what the reasons for judgment in *Guerin*, *supra*, at p. 382, referred to as the "sui generis" nature of aboriginal rights. (See also *Little Bear*, "A Concept of Native Title," [1982] 5 Can. Legal Aid Bul. 99.)

(12) Do Provincial Laws Apply To First Nations' People?

- [123] In *Dick v. The Queen*, [1985] 2 S.C.R. 309, at paras. 35 to 45, Beetz J. for the Supreme Court of Canada held that a distinction should be drawn between two categories of provincial laws. There are, on the one hand, provincial laws which can be applied to Indians without touching their Indianness, like "traffic legislation"; while on the other hand, there are provincial laws which cannot apply to Indians without regulating them *qua* Indians [*emphasis is mine below*]:

It has already been held in Kruger that on its face, and in form, the Wildlife Act is a law of general application. In the previous chapter, I have assumed that its application to appellant would have the effect of regulating the latter qua Indian. However, it has not been demonstrated, in my view, that this particular impact has been intended by the provincial legislator. While it is assumed that the Wildlife Act impairs the status or capacity of appellant, it has not been established that the

legislative policy of the Wildlife Act singles out Indians for special treatment or discriminates against them in any way.

I accordingly conclude that the Wildlife Act is a law of general application within the meaning of s. 88 of the Indian Act.

It remains to decide whether the Wildlife Act has been referentially incorporated to federal laws by s. 88 of the Indian Act.

In Kruger, Dickson J. wrote at p. 115:

There is in the legal literature a juridical controversy respecting whether s. 88 referentially incorporates provincial laws of general application or whether such laws apply to Indians ex proprio vigore. The issue was considered by this Court in *Natural Parents v. Superintendent of Child Welfare* (1975), 60 D.L.R. (3d) 148, [1976] 2 S.C.R. 751.

This controversy has so far remained unresolved in this Court.

I believe that a distinction should be drawn between two categories of provincial laws. There are, on the one hand, provincial laws which can be applied to Indians without touching their Indianness, like traffic legislation; there are on the other hand, provincial laws which cannot apply to Indians without regulating them qua Indians.

*Laws of the first category, in my opinion, continue to apply to Indians ex proprio vigore as they always did before the enactment of s. 88 in 1951 then numbered s. 87 (1951 (Can.), c. 29) and quite apart from s. 88. (Vide *R. v. Hill* (1908), 15 O.L.R. 406, where an Indian was convicted of unlawful practice of medicine contrary to a provincial medical act, and *R. v. Martin* (1917), 41 O.L.R. 79, where an Indian was convicted of unlawful possession of intoxicating liquor, contrary to a provincial temperance act.)*

*I have come to the view that it is to the laws of the second category that s. 88 refers. I agree with what Laskin C.J. wrote in *Natural Parents v. Superintendent of Child Welfare*, [1976] 2 S.C.R. 751, at p. 763:*

When s. 88 refers to "all laws of general application from time to time in force in any province" it cannot be assumed to have legislated a nullity but, rather, to have in mind provincial legislation which, per se, would not apply to Indians under the Indian Act unless given force by federal reference.

I am fully aware of the contention that it is enough to give force to the several opening provisions of s. 88, which, respectively, make the "provincial" reference subject to the terms of any treaty and any other federal Act and subject also to inconsistency with the Indian Act and orders, rules, regulations or by laws thereunder. That contention would have it that s. 88 is otherwise declaratory. On this view, however, it is wholly declaratory save perhaps in its reference to "the terms of any treaty", a strange reason, in my view, to explain all the other provisions of s. 88. I think too that the concluding words of s. 88, "except to the extent that such laws make provision for any matter for which provision is made by or under this Act" indicate clearly that Parliament is indeed effecting incorporation by reference.

I also adopt the suggestion expressed by Professor Lysyk, as he then was, op. cit., at p. 552:

Provincial laws of general application will extend to Indians whether on or off reserves. It has been suggested that the constitution permits this result without the assistance of section 87 of the Indian Act, and that the only significant result of that section is, by expressly embracing all laws of general application (subject to the exceptions stated in the section), to contemplate extension of particular laws which otherwise might have been held to be so intimately bound up with the essential capacities and rights inherent in Indian status as to have otherwise required a conclusion that the provincial legislation amounted to an inadmissible encroachment upon section 91(24) of the British North America Act.

The word "all" in s. 88 is telling but, as was noticed by the late Chief Justice, the concluding words of s. 88 are practically decisive: it would not be open to Parliament in my view to make the Indian Act paramount over provincial laws simply because the Indian Act occupied the field. Operational conflict would be required to this end. But Parliament could validly provide for any type of paramountcy of the Indian Act over other provisions which it alone could enact, referentially or otherwise. (It is true that the paramountcy doctrine may not have been as precise in 1951 as it has become, at a later date, but it is desirable to adopt a construction of s. 88 which accords with established constitutional principles.)

In a supplementary factum, appellant argues that a prospective incorporation into the Indian Act of future provincial laws which would regulate the appellant qua Indian, involves interdelegation of powers of a type held unconstitutional in Attorney General of Nova Scotia v. Attorney General of Canada, [1951] S.C.R. 31. In my opinion Attorney General for Ontario v. Scott, [1956] S.C.R. 137, and Coughlin v. Ontario Highway Transport Board, [1968] S.C.R. 569, provide a complete answer to this objection.

I accordingly conclude that, in view of s. 88 of the Indian Act, the Wildlife Act applies to appellant even if, as I have assumed, it has the effect of regulating him qua Indian.

(13) S. 88 Of The Indian Act, R.S.C. 1985, c. I-5

- [124] As to the application of provincial laws to Aboriginal people, such as Ontario's Highway Traffic Act, s. 88 of the Indian Act, R.S.C. 1985, c. I-5, provides that all laws of general application from time to time in force in any province are applicable to and in respect of Indians in the province unless it would be subject to the terms of any treaty and any other Act of Parliament [*emphasis is mine below*]:

Legal Rights

General provincial laws applicable to Indians

88 *Subject to the terms of any treaty and any other Act of Parliament, all laws of general application from time to time in force in any province are applicable to and in respect of Indians in the province, except to the extent that those laws are inconsistent with this Act or the [First Nations Fiscal Management Act](#), or with any order, rule, regulation or law of a band made under those Acts, and except to the extent that those provincial laws make provision for any matter for which provision is made by or under those Acts.*

[125] Section 1 of the [Indian Act](#), R.S.C., 1985, c. I-5, also defines “designated lands” to mean a tract of land or any interest therein the legal title to which remains vested in Her Majesty and in which the band for whose use and benefit it was set apart as a reserve:

designated lands means a tract of land or any interest therein the legal title to which remains vested in Her Majesty and in which the band for whose use and benefit it was set apart as a reserve has, otherwise than absolutely, released or surrendered its rights or interests, whether before or after the coming into force of this definition; (terres désignées)

...

reserve

(a) means a tract of land, the legal title to which is vested in Her Majesty, that has been set apart by Her Majesty for the use and benefit of a band, and

(b) except in subsection 18(2), sections 20 to 25, 28, 37, 38, 42, 44, 46, 48 to 51 and 58 to 60 and the regulations made under any of those provisions, includes designated lands; (réserve)

...

surrendered lands means a reserve or part of a reserve or any interest therein, the legal title to which remains vested in Her Majesty, that has been released or surrendered by the band for whose use and benefit it was set apart; (terres cédées)

(14) Do Ontario’s Traffic Laws Apply To The Six Nations Of The Grand River Reserve?

[126] The present area of the Six Nations of the Grand River reserve is what remains of the original Haldimand Tract that had been set aside for the exclusive use by the Six Nations Confederacy under the “Haldimand Proclamation of 1784”. It is noteworthy, that for the area of the Six Nations of the Grand River Reserve there is a Traffic Bylaw that applies to that reserve land and that the preamble in the “Six Nations of the Grand River Traffic By-law” that had been enacted by the Six Nations Council to regulate traffic on the Six Nations of the Grand River Reserve, expressly states that the Traffic By-law had been enacted pursuant to Section 81(1)(b) of the [Indian Act](#), R.S.C. 1970, c. 1-6:

WHEREAS the Six Nations Council is empowered to enact by-laws for the Regulation of Traffic on the Six Nations of the Grand River Reserve pursuant to Section 81 (b) (c) (d) (q) and (r) of the Indian Act R.S.C. 1970, c. 1-6 as amended.

- [127] Section 81(1)(b) of the Indian Act, R.S.C., 1985, c. I-5, provides that a council of a band may make by-laws not inconsistent with the Indian Act or with any regulation made by the Governor in Council or the Minister, for the regulation of traffic:

By-laws

81(1) The council of a band may make by-laws not inconsistent with this Act or with any regulation made by the Governor in Council or the Minister, for any or all of the following purposes, namely,

...

(b) the regulation of traffic;

...

- [128] But more importantly, under s. 1 of the “Six Nations of the Grand River Traffic By-law”, a “Driver’s Licence” means a licence issued pursuant to the Highway Traffic Act of Ontario or in the case of a resident of another province or state a licence issued in accordance with the laws of that province or state:

“ Driver’s Licence ” means a licence issued pursuant to the Highway Traffic Act of Ontario or in the case of a resident of another province or state a licence issued in accordance with the laws of that province or state.

- [129] Ergo, even under the “Six Nations of the Grand River Traffic By-law”, a resident of the Six Nations of the Grand River Reserve is required to have a driver’s licence that conforms to a licence issued according to Ontario’s Highway Traffic Act.

- [130] It is also noteworthy that the definition of “reserve” under s. 1 of “Six Nations of the Grand River Traffic By-law”, that had been enacted by the Six Nations Council, is defined to mean “*the tract of land, the Legal Title to which is vested in Her Majesty that has been set apart by Her Majesty for the use and benefit of the Indians of the Six Nations of the Grand River*”;

“ Reserve ” means the tract of land, the Legal Title to which is vested in Her Majesty that has been set apart by Her Majesty for the use and benefit of the Indians of the Six Nations of the Grand River, and for the purpose of this by-law includes that portion of the Tract known as the Six Nations Indian Reserve No. 40 and No. 40 B.

(15) Stare Decisis and Precedential Rulings in Respect to the “Haldimand Proclamation of 1784”

- [131] This court and other provincial offences courts are bound by the doctrine of “*stare decisis*” in respect to rulings and interpretations made by higher courts in respect to the meaning of the “Haldimand Proclamation of 1784”. Under the common law, lower courts must follow the principle of *stare decisis*, which requires that lower courts follow the previous rulings or precedents of higher courts in their province or territory and the Supreme Court of Canada on the same issue. In Canadian law, *stare decisis* and precedent fosters the principle that the law should be applied consistently throughout Canadian courts.
- [132] As in pertains to the case of bar, the Court of Appeal for Ontario, which is highest court in Ontario, has considered and decided on the issue of whether the “Haldimand Proclamation of 1784” had transferred absolute ownership or absolute title in *fee simple* (*estate in fee simple*) of the Haldimand Tract to the Six Nations Confederacy. In *Isaac et al. v. Davey et al.*, (1975), 5 O.R. (2d) 610, Arnup J.A. writing for the Court of Appeal for Ontario, noted that the British Government had firmly resisted both propositions put forth by Joseph Brant that the “Haldimand Proclamation of 1784” had given the Six Nations Confederacy “*full national recognition of as an independent national community*” and that the Six Nations Confederacy had received a “*grant of the Grand River lands to the Six Nations in fee simple*”. Moreover, Arnup J.A. further noted that the British government's position has never changed in that respect. In addition, Arnup J.A. acknowledged that it has long ago been authoritatively decided by the Courts that the Haldimand Proclamation did not give fee simple ownership or absolute title in *fee simple* of the Haldimand Tract to the Six Nations Confederacy. Arnup J.A. also confirmed that Indian title in Ontario has been determined to be “a personal and usufructuary right, dependent upon the good will of the Sovereign” and that “Indian lands” were reserved for the use of the Indians, as their hunting grounds, under the Sovereign's protection and dominion. In addition, Arnup J.A. emphasized that the Crown at all times held a substantial and paramount estate underlying the Indian title and that the Crown's interest became absolute whenever the Indian title was surrendered or otherwise extinguished. As for whether the Simcoe Patent had transferred legal title to the Haldimand Tract to the Six Nations Confederacy, Arnup J.A. held that the Simcoe Patent was not intended to be a conveyance of land, in the English sense and the English form, using the English conveyancing language [*emphasis is mine below*]:

This action requires the resolution of a dispute between two groups of Indians of the Six Nations residing on the Six Nations Reserve near Brantford. The plaintiffs, who are or were members of the elected Council of the Six Nations Band, support the form of government by elected Council pursuant to the Indian Act, R.S.C. 1970, c. I-6, and claim that the Council is lawfully entitled to govern the reserve. The defendants support the traditional form of government by hereditary chiefs and claim that the hereditary chiefs are still the lawful government of the Six

Nations Confederacy, which they assert owns in fee simple the lands occupied by its members.

This bald and over-simplified statement of the issues must be broken down into a whole series of interwoven issues that must be separately examined after the long history has been stated, since they cannot otherwise be formulated or understood.

*The present proceedings began after the defendants and their supporters asserted their alleged rights by padlocking the Council House at Ohsweken on several occasions in June and July, 1970, thereby preventing the elected Council from using the building for its meetings and administration. This resulted in some tense situations, but rather than permit or provoke confrontations and violence, the plaintiffs sensibly resorted to the Courts to settle the rights of the contending parties. In referring to some of the historical background of the Six Nations Reserve, I preface my resume of it by pointing out that the hereditary chiefs do not base their claims upon Indian or native title. The nature of native title is relevant only as a background to the interpretation of the so-called "Simcoe Deed", which the defendants assert conferred an estate in fee simple upon the Six Nations. I list some of the bibliography on Indian title in Appendix "D" [see Appendices, pp. 624-8, *infra*].*

I begin the historical background with the Treaty of Paris of February 10, 1763, entered into after the defeat in 1760 of the French in Canada by the British, and the acquisition by conquest of much of French North America. By Royal Proclamation of George III dated October 7, 1763 (R.S.C. 1970, Appendices, p. 123), four "distinct and separate Governments" were established, one of which was Quebec. The stated boundaries of the new area called Quebec did not include much of what is now Ontario. The lands west of the westerly boundary of Quebec, although containing some white settlers, were largely inhabited by Indians other than the Six Nations.

The Proclamation contained several paragraphs dealing with Indians and the lands inhabited by them. These provisions are set out in Appendix "A". Herein occur the phrases "Lands ... reserved to the ... Indians" and

to reserve under our Sovereignty, Protection, and Dominion, for the use of the said Indians, all the Lands and Territories not included within the Limits of Our said Three new Governments, or within the Limits of the Territory granted to the Hudson's Bay Company, as well as all the Lands and Territories lying to the Westward of the Sources of the Rivers which fall into the Sea from the West and North West as aforesaid.

British subjects were forbidden from making any purchases of land so reserved, or from taking possession thereof, and if any subjects had already "seated themselves" upon lands so reserved, they were ordered "to remove themselves" forthwith. Finally, where any Indians desired to dispose of reserved lands, purchase could be made only by the Crown, at a public meeting of the Indians.

The Royal Proclamation of 1763 was superseded in 1774 by the Imperial Statute, 14 Geo. III, c. 83, the Quebec Act. That Act was intended to provide for

the permanent government of the newly acquired domain and extended the boundaries set out in the Proclamation "by fixing the interior boundaries on the lines now established as the western limit of Ontario" (per Boyd, C., in *R. v. St. Catharines Milling & Lumber Co.* (1885), 10 O.R. 196 at p. 204).

The Six Nations resided south of the Great Lakes, primarily in what are now the States of New York, Pennsylvania and Ohio. In 1775, war broke out between the American colonies and Britain. Many (but not all) of the Six Nations Indians fought for the British. Some tried to maintain neutrality. Some campaigned with the Americans. As it became increasingly clear that the British were losing the war, their allies from the Six Nations became increasingly anxious as to what would happen after the war, despite reassurances from Sir Guy Carleton, Governor of Quebec, and his successor (from 1778 to 1786), Sir Frederick Haldimand. There is little doubt that some of these assurances were intended to bolster the morale of the Indian supporters of the British cause at a time when their anxiety was justified.

The war ended in September, 1783. The treaty of peace contained no definitive provisions concerning the territorial rights of the Six Nations. Those Indians who had fought with the British, or even remained neutral, rightly discerned that they could no longer remain in what was now to be American territory. (The new boundary, as negotiated, was the middle of the Great Lakes.)

Joseph Brant, a highly intelligent, educated and influential Mohawk chief who had ably supported the British during the war, pressed the Governor and ultimately the authorities in Britain for definitive action implementing the promises made to the Six Nations that their loyalty would be rewarded. Consideration was given to creating an Indian settlement in the Cataraqui District, but ultimately Brant gave priority to the valley of the Grand River. (A minority in fact chose to go to the allotted site at the Bay of Quinte.)

I omit many of the ancillary events. In May, 1784, Haldimand on behalf of the Crown purchased from the Mississaugas a large tract roughly described as six miles deep on either side of the Grand River from Lake Erie to the head of the river. On October 25, 1784, he issued the "Haldimand Proclamation" (Appendix "B").

Brant interpreted the Haldimand Proclamation as having two effects:

- (i) as being full national recognition of the Six Nations as an independent national community;
- (ii) as a grant of the Grand River lands to the Six Nations in fee simple.

The British Government firmly resisted both propositions, and the Crown's position has never changed. At least some members of the Six Nations have perpetuated Brant's position. (The allegation of national sovereignty was made in this very action but abandoned at trial.)

Western Quebec was reorganized by the Constitutional Act of 1791 [R.S.C. 1970, Appendices, p. 139] as Upper Canada. In that year Colonel John Graves

Simcoe was made Lieutenant-Governor of Upper Canada. He clashed almost at once with Brant over disposal by the Indians of any part of the Grand River lands. On January 14, 1793, Simcoe issued what is most often described as "Simcoe's Patent" (Appendix "C"). The defendants herein choose to call it the "Simcoe Deed".

It is a matter of history that Brant always refused to recognize the Simcoe Patent. He asserted it had no effect because the Haldimand Proclamation had already conveyed the fee simple to the Six Nations. Professor Johnston (see Appendix "D") states (p. xlv, footnote 8) that "the Six Nations, it would appear, have never recognized the so-called 'Simcoe Deed'". It may be thought ironical that after 180 years, the hereditary chiefs take the position in this action that the very "deed" Brant and his successors repudiated is now said to have given the fee simple to the Six Nations. (It has long ago been authoritatively decided by the Courts that the Haldimand Proclamation did not do so.)

The Six Nations continued to be governed by the hereditary chiefs, chosen according to ancient customs and usages said to date from the 14th century. Over the years substantial portions of the lands originally purchased by the Crown and reserved for the use of the Six Nations have been surrendered to the Crown and conveyed to others, until the original very large tract is reduced to its present size. As of 1969, there were approximately 10,000 members of the Six Nations, of whom about half were in actual residence on the tract (I use this neutral word purposely).

...

I turn next to the contention that the Simcoe Deed conveyed an absolute title in fee simple to the Six Nations Confederacy. This submission is based upon extracting from the Simcoe Patent certain words which are terms of art in the law of real property of England and Canada and urging that the common law effect of the extracted words should be applied to the document so as to interpret it as a deed in fee simple. The task of the Court is to construe the Simcoe Patent to determine what it was meant to do. In this task the Court must not only look at the words used in the document, but must construe those words against the background of the history and the facts existing at the time it was executed.

The nature of Indian title in Ontario, and the policy of the British Crown in relation to Indians and their rights has been authoritatively determined in a series of cases, in which much of the historical background is recounted, particularly in those cases decided when the events of the last 15 years of the 18th century were still present in the minds of living persons in the middle of the 19th century, and were recorded in documents available to the Judges of that time. As Osler, J., did, I find the judgment at trial of Chancellor Boyd -- a most learned, accurate and respected Judge -- In R. v. St. Catharines Milling & Lumber Co., to be of great assistance. It is reported in (1885), 10 O.R. 196. The history of public lands is dealt with at pp. 203-6, and the colonial policy of Great Britain concerning the aboriginal populations in America is dealt with at length commencing at p. 206. The judgment was affirmed, 13 O.A.R. 148, 13 S.C.R. 577, and by the Privy Council, 14 App. Cas. 46. Other cases dealing with various aspects of the history of the times, and certain books and articles on Indian title are listed in Appendix "D".

For the purposes of this case, it is sufficient to say that Indian title in Ontario has been "a personal and usufructuary right, dependent upon the good will of the

Sovereign". Indian lands were reserved for the use of the Indians, as their hunting grounds, under the Sovereign's protection and dominion. The Crown at all times held a substantial and paramount estate underlying the Indian title. The Crown's interest became absolute whenever the Indian title was surrendered or otherwise extinguished. These are the words of the Privy Council (per Lord Watson) in St. Catharines Milling & Lumber Co. v. The Queen, at pp. 54-5, and this statement of the legal position has been followed ever since.

Osler, J., recognized that the proposition of fee simple ownership involved finding that the Six Nations had had conferred upon them by the British Crown a type of Indian interest which was unique, or virtually unique, in North America. Prior to 1784 the Six Nations had not been in occupation of any of the Grand River valley. In my opinion the intention of the Haldimand Proclamation and of the Simcoe Deed was the same. It was to confer upon the loyal subjects of the Crown within the Six Nations Confederacy who had come to Upper Canada the same rights as were enjoyed by those Indians who had always been there. Both documents were in accord with and implemented the policy enunciated in the Proclamation of 1763.

The Simcoe Patent was not intended to be a conveyance of land, in the English sense and the English form, using the English conveyancing language. The words used in it ("given and granted", "do give and grant", and their heirs for ever", "to and for the sole use and behoof of them and their heirs for ever freely and clearly of and from all and all manner of Rents, fines and services whatever to be rendered by them") were not intended to create, and did not create a unique interest in the Six Nations which no other Indians in Canada enjoyed. They are consistent with what Boyd, C., and the Privy Council stated to be the policy and intention of the Crown. That intention is in accord with other language in the patent, such as "to be held and enjoyed by them in the most free and ample manner and according to the several customs and usages of them the said Chiefs Warriors Women and people of the Six Nations", and with the immediately succeeding language that the true intent and meaning of the patent is for the purpose of assuring the said lands to the Indians and their heirs "and of securing to them the free and undisturbed possession and enjoyment of the same".

The words of the Simcoe Patent prohibiting alienation by the Indians to anyone not of the band are also in keeping with the policy of the times and the understanding of both the Indians and the Crown even prior to the Haldimand Proclamation, and enunciated in 1763. The Haldimand Proclamation, much shorter and with less recital of the reason for the gratitude of the Crown, was expressed in terms of His Majesty "authorizing and permitting (the Mohawk Nation and other of the Six Nations Indians) to take possession of and settle upon the banks of the river ...". That Proclamation concluded: "which them & their Posterity are to enjoy for ever". The intention of the last quoted language was the same as the language of the Simcoe Deed "to them and their heirs for ever".

This approach to a document dealing with natives and their rights is in accord with the approach taken in several 20th century cases which I list without discussion: Amodu Tijani v. Secretary, Southern Nigeria, [1921] 2 A.C. 399 at p. 402; Sunmonu v. Disu Raphael, [1927] A.C. 881; Sakariyawo Oshodi v. Moriamo Dakolo et al., [1930] A.C. 667; Oyekan et al. v. Adele, [1957] 2 All E.R. 785 at p.

789. Useful reference may also be made to Prof. Smith's article "The Concept of Native Title" (see Appendix "D").

This conclusion eliminates from further consideration a whole series of issues much canvassed upon the argument, including the significance of lack of seals, whether there was a condition subsequent which was void either as being in derogation of the grant or as offending the rule against perpetuities, whether the rule against perpetuities binds the Crown, whether the deed itself created the Six Nations as a corporation, and if not, whether the deed was invalid as a deed because of the unincorporated nature of the alleged grantees, and whether the deed had been disclaimed by the Indians.

- [133] Furthermore, Arnup J.A. in Isaac et al. v. Davey et al (1975), 5 O.R. (2d) 610, had referred to Logan v. Styres, [1959] O.J. No. 329, [1959] O.J. No. 329 (Ont. Supreme Ct. – H.C.J.), in which King J. had to consider a “sovereign nation” claim made by the plaintiff Logan, a member of the Six Nations Indian Band who resides upon the Six Nations Indian Reserve near Brantford, Ontario, who was bringing the action on behalf of the hereditary Chiefs of the Six Nations Indian Band. The plaintiff Logan had sought an injunction to restrain the defendant Styres, chief councillor of the elected council of the Six Nations Indian Band and the defendant Stallwood, who is superintendent of the Six Nations Indian Agency at Brantford, Ontario, from taking any steps to facilitate the surrender of 3.05 acres of land being a part of the Reserve and for a declaration that Order-in-Council P.C. 1629 dated September 17th, 1924 and Order-in-Council P.C. 6015 dated November 12th, 1951 are *ultra vires* the powers of His Excellency the Governor General of Canada acting for and with the advice and consent of the Queen's Privy Council for Canada.
- [134] Furthermore, the position taken by the plaintiff Logan in the Logan v. Styres case, is that the Six Nations Indians, in the latter part of the Eighteenth Century and subsequently, were the faithful allies of the British Crown and that they continue to the present day to be such faithful allies and that they never were and are not today “subjects” of the Crown. The plaintiff Logan had also taken the position that since the Six Nations Indians were not subjects of the Crown, that it would be *ultra vires* the powers of the Parliament of the United Kingdom to enact s. 91(24) of the *British North America Act, 1867*, 30 Victoria, ch. 3, whereby the legislative authority of the Parliament of Canada, insofar as the said Six Nations Indians are concerned, is made to extend to all matters coming within the classification “Indians, and lands reserved for the Indians”. If this be so, the plaintiff Logan then states that it is *ultra vires* the powers of the Parliament of Canada to enact *The Indian Act*, R.S.C. 1952, ch. 149, insofar as the said Six Nations Indians are concerned and that likewise the Orders-in-Council already referred to and made pursuant to *The Indian Act* are likewise *ultra vires* insofar as the Six Nations Indians are concerned. The Six Nations Confederacy had been governed by their hereditary Chiefs and the Orders-in-Council that had been objected to by the plaintiff Logan, had set up a system whereby elected Councillors would supplant the hereditary Chiefs in dealing with the surrender of Reserve lands and a great majority of the Six Nations members do not

recognize the authority of the Parliament of Canada to provide for elected Councillors or to provide for the surrender of Reserve lands by means of a vote.

- [135] In considering the plaintiff's argument in Logan v. Styres, King J., had held at paras. 11 to 18, that the plaintiff Logan is not entitled to an injunction and is not entitled to the declaration that she had asked for. In arriving at that decision, King J. also concluded that the "Haldimand Proclamation of 1784" is a deed and is not in any sense a treaty. Furthermore, King J. had also noted that the purpose of the "Simcoe Deed" confirmed the grant already made by the "Haldimand Deed" and that each of these deeds made it clear that those of the Six Nations Indians settling on the lands therein described do so under the protection of the Crown. Moreover, King J. opined that those of the Six Nations Indians so settling on such lands, together with their posterity, by accepting the protection of the Crown then owed allegiance to the Crown, and thus, became subjects of the Crown and as a result, the said Six Nations Indians from having been the faithful allies of the Crown became, instead, loyal subjects of the Crown. In addition, King J. noted that the Six Nations Indians are entitled to the protection of the laws of the land duly made by competent authority and at the same time are subject to such laws [*emphasis is mine below*]:

A start has to be made at some stage and I believe a satisfactory point at which to begin is with the Haldimand Deed dated October 25th, 1784, which followed the conclusion of the American Revolution and which in its recitals sets out a sufficient background. It is as follows:

"Frederick Haldimand Captain General and Governor in chief of the province of Quebec and Territories depending thereon etc, etc, etc, General and Commander in Chief of His Majesty's Forces in said province and the Frontiers thereof - etc - etc - etc

- Whereas His Majesty having been pleased to direct that in consideration of the early attachment to his cause manifested by the Mohawk Indians and of the loss of their settlement which they thereby sustained - that a convenient tract of land under his protection should be chosen as a safe and comfortable retreat for them and others of the Six Nations, who have either lost their settlements within the Territory of the American States. or wish to retire from them to the British - I have at the earnest desire of many of these His Majesty's faithful allies purchased a tract of land from the Indians situate between the Lakes Ontario, Erie and Huron, and I do hereby in His Majesty's name authorize and permit the said Mohawk Nation and such others of the Six Nation Indians as wish to settle in that quarter to take possession of and settle upon the Banks of the River commonly called Ouse or Grand River, running into Lake Erie, allotting to them for that purpose six miles deep from each side of the river beginning at Lake Erie and extending in that proportion to the head of the said river which them and their posterity are to enjoy for ever.

Given under my hand and seal at arms at the Castle of St. Lewis at Quebec this twenty-fifth day of October one thousand seven hundred and eighty-four and in the twenty-fifth year of the reign of our Sovereign Lord George The Third by the Grace of God of Great Britain, France and Ireland King Defender of the Faith and so forth.

Fredk. Haldimand

By His Excellency's Command

R. Mathews"

It should be noted that the foregoing document is a deed and is not in any sense a treaty although in the course of the evidence it was referred to as The Haldimand Treaty from time to time.

In the surrender of their lands from time to time the Six Nations Indians trace their title to the lands to this Haldimand Deed and in a typical document of surrender there is included the recital

"Whereas His late Majesty did by a certain instrument, bearing date the twenty-fifth day of October, in the year of Our Lord one thousand seven hundred and eighty-four, under the hand and seal of Sir Frederick Haldimand, then Governor of Quebec, allot and grant unto us upon the banks of the said river running into Lake Erie six miles deep from each side of the said river, beginning at Lake Erie and extending in that proportion to the head of the said river;"

However, there is another document upon which the Six Nations Indians rely and it is known as the Simcoe Deed' dated 14th January, 1793, and it is as follows:

"J. Graves Simcoe
(Great Seal of Canada)

George the Third, by the Grace of God, King of Great Britain, France and Ireland;
Defender of the Faith, and so forth.

To all to whom these presents shall come,
Greeting:

Know ye, that whereas the attachment and fidelity of the Chiefs, Warriors, and people of the Six Nations, to Us and Our Government has been made manifest on divers Occasions by their spirited and zealous Exertions, and by the Bravery of their Conduct, and We being desirous of showing Our Approbation of the same and in recompense of the Losses they may have sustained of providing a convenient Tract of Land under Our protection for a safe and suitable Retreat for them and their Posterity, Have of Our Special Grace, certain Knowledge and mere motion, given and granted and by these Presents Do Give and Grant to the Chiefs, Warriors, Women and People of the said Six Nations and their Heirs forever, All that District or Territory of Land, being Parcel of a certain District lately purchased by Us of the Mississauga Nation, lying and being in the Home District of Our Province of Upper Canada, beginning at the Mouth of a certain River formerly known by the name of the Ouse or Grand River, now called the River Ouse, where it empties itself into Lake Erie, and running along the Banks of the same for the space of Six Miles on each side of the said River, or a space co-extensive therewith, conformably to a certain Survey made of the said Tract of Land, and annexed to these Presents, and continuing along the said River to a Place called or known by the Name of the Forks, and from thence along the main stream of the said River for the space of Six Miles on each side of the said Stream, or for a space equally extensive therewith, as shall be set out by a Survey to be made of the same to the utmost extent of the said River as far as the same has been purchased by us, and as the same is bounded and limited in a certain Deed made to Us by the Chiefs and People of the said Mississauga Nation, bearing Date the Seventh

Day of December, in the year of Our Lord One Thousand Seven Hundred and Thirty-Two; To have and to Hold the said District or Territory of Land so bounded as aforesaid of Us, Our Heirs and Successors, to them the Chiefs, Warriors, Women and People of the Six Nations, and to and for the sole use and Behoof of them and their Heirs forever, Freely and Clearly of and from, all, and all manner of rents, fines, and services whatever to be rendered by them or any of them to Us or Our Successors for the same, and of and from all conditions, stipulations and agreements whatever, except as hereinafter by Us expressed and declared. Giving and granting, and by these Presents confirming to the said Chiefs, Warriors, Women, and People of the said Six Nations and their Heirs, the full and entire possession, use, benefit and advantage of the said district or territory, to be held and enjoyed by them in the most free and ample manner, and according to the several customs and usages of them the said Chiefs, Warriors, Women, and People of the said Six Nations; Provided always, and be it understood to be the true intent and meaning of these Presents, that, for the purpose of assuring the said lands, as aforesaid to the said Chiefs, Warriors, Women, and People of the Six Nations, and their Heirs, and of securing to them the free and undisturbed possession and enjoyment of the same, it is Our Royal will and pleasure that no transfer, alienation, conveyance, sale, gift, exchange, lease, property or possession, shall at any time be had, made, or given of the said district or territory, or any part or parcel thereof, by any of the said Chiefs, Warriors, Women or People, to any other nation or body of people, person, or persons whatever other than among themselves the said Chiefs, Warriors, Women and People, but that any such transfer, alienation, conveyance, sale, gift, exchange, lease or possession shall be null and void, and of no effect whatever, and that no person or persons shall possess or occupy the said district or territory or any part or parcel thereof, by or under pretence of any such alienation, title or conveyance as aforesaid, or by or under any pretence whatever, upon pain of Our severe displeasure.

And that in case any person or persons other than them, the said Chiefs, Warriors, Women and People of the said Six Nations, shall under pretence of any such title as aforesaid presume to possess or occupy the said district or territory or any part or parcel thereof, that it shall and may be lawful for Us, Our heirs and successors, at any time hereafter, to enter upon the lands so occupied and possessed by any person or persons other than the people of the said Six Nations, and them the said intruders thereof and therefrom, wholly to dispossess and evict, and to resume the part or parcel so occupied to Ourselves, Our heirs and successors; Provided, always, that if at any time the said Chiefs, Warriors, Women and People of the said Six Nations should be inclined to dispose of and surrender their use and interest in the said district or territory or any part thereof, the same shall be purchased for Us, Our heirs and successors, at some public meeting or assembly of the Chiefs, Warriors, and People of the said Six Nations, to be holden for that purpose by the Governor, Lieutenant-Governor, or person administering Our Government in Our Province of Upper Canada.

In Testimony Whereof, We have caused these Our Letters to be made Patent, and the Great Seal of our said Province to be hereunto affixed, Witness. His Excellency John Graves Simcoe, Esquire, Lieutenant-Governor and Colonel Commanding Our Forces in Our said Province. Given at Our Government House, at Navy Hall, this fourteenth day of January, in the year of Our Lord one thousand seven hundred and ninety-three, in the thirty-third year of Our Reign.

(Signed) Wm. Jarvis, Secretary.

Recorded February 20th, 1837. Lib. F., Folio 106.

(Signed) D. Cameron, Sy. and Regr.

(Initialed)
J.G.S."

The purpose of the Simcoe Deed would seem to be to confirm the grant already made by the Haldimand Deed. In each of these deeds it is made clear that those of the Six Nations Indians settling on the lands therein described do so under the protection of the Crown. In my opinion, those of the Six Nations Indians so settling on such lands, together with their posterity, by accepting the protection of the Crown then owed allegiance to the Crown and thus became subjects of the Crown. Thus, the said Six Nations Indians from having been the faithful allies of the Crown became, instead, loyal subjects of the Crown.

The position which the Six Nations Indians have taken throughout the years is perhaps best stated in their own words in the submission made by them to the representatives of the United Nations at San Francisco, California, U.S.A., on April 13th, 1945 and which was as follows:

" On behalf of the people of the Six Nations Indians settled upon part of the territory granted to them pursuant to the pledge given by the British Crown and granted under the terms of the Haldimand Treaty of March 1784, we, the representatives of the above named people of the Six Nations Indians, appeal to the conscience of the democratic nations for action to correct the deep injustice under which we are suffering.

In accord with the terms of the proposal made to us by representatives of the English Crown, we as a sovereign people accepted the terms of the Haldimand Treaty and settled upon the territory thereby granted to us. A few years after our occupation of the territory and before it was fully settled a large part of the territory was alienated from us by methods and on terms which did a deep injustice to our people and all their descendants. One, Joseph Brant, using an alleged power of attorney from the Six Nations Indians dated November 2, 1796, leased large sections of our territory to white people. No revenue whatsoever accrued to the people of the Six Nations Indians for such leases and until now I we have been unable to secure either restoration of the property which was granted to us and our descendants and friends in perpetuity, nor to secure compensation for its alienation.

Our claim for abrogation of the so-called leases under which this property was alienated from us or, failing such abrogation, compensation for such alienation or revenues from all such lands, is based upon the fact that, according to the terms of the India Act (which deny to Indians the legal status of a person) and the terms under which the land was granted to us, the methods by which the above named Brant disposed of said lands were illegal and cannot be justified either in the eyes of the law or by the conscience of governments.

We appeal to the representatives of the governments and peoples of the United Nations gathered here in this historic conference at San Francisco to aid the people of the Six Nations Indians in securing these fundamental rights. Our appeal for restoration of the property rights guaranteed to us in 1784 is based first of all upon our duty, as parents, to protect the rights and the futures of our children, but

it is based also upon our solemn obligation to protect the rights of our people as a whole.

We, the people of the Six Nations Indians, who fought as allies of the British Crown during the American revolutionary war, accepted the grant of lands described in the Haldimand Treaty and came to Canada from the United States to settle on these lands in the spirit and in the understanding that we were doing so as a sovereign people. As a nation we now appeal to the conscience of the nations of the world. We appeal for the restoration of those lands which the terms of the Haldimand Treaty guaranteed the people of the Six Nations 'and their posterity are to enjoy forever'.

Verification of all the above statements is to be found in the copy of Sessional Paper No. 151 tabled in the House of Commons Canada on April 5th, 1945, which is attached.

ON BEHALF of the people of the Six Nations Indians on the Grand River at Brantford, Ontario.

From the evidence before me, however, it would appear the strongest case for the Six Nations Indians should be based upon the submission that Parliament should not make the Orders-in-Council to which objection is taken applicable to the Six Nations Indians rather than that Parliament cannot make such Orders-In-Council applicable. It seems to me much might be said on that score.

I am of the opinion that the Six Nations Indians are entitled to the protection of the laws of the land duly made by competent authority and at the same time are subject to such laws. While it might be unjust or unfair under the circumstances for the Parliament of Canada to interfere with their system of internal government by hereditary Chiefs, I am of the opinion that Parliament has the authority to provide for the surrender of Reserve land, as has been done herein, and that Privy Council Order P.C. 6015 is not ultra vires. It should be noted that P.C. 1629 has been revoked by P.C. 6015, so it is not necessary to consider P.C. 1629 further.

- [136] However, when the Court of Appeal's decision in Isaac et al. v. Davey et al was appealed to the Supreme Court of Canada, the Supreme Court in Isaac v. Davey, [1977] S.C.J. No. 34, did not make a final determination on whether the patent of the Grand River lands to the Six Nations executed by Governor Simcoe on January 14, 1793, was effective to pass title to the Haldimand Tract to all members of the Six Nations Band in fee simple. Martland J. for the Supreme Court held at paras. 7 and 8 that it had not been necessary to decide that question on appeal before the Supreme Court, or to make a final decision on the matter of title to the lands described in the Haldimand Tract in which the Court of Appeal for Ontario had held that the tract of land in question was still vested in the Crown subject to the exercise of traditional Indian rights [*emphasis is mine below*]:

The main issue at trial and on the argument before the Court of Appeal was in respect of para. (i), the contention of the appellants being that legal title to the lands occupied by the Six Nations was not vested in the Crown because the patent of the Grand River lands to the Six Nations executed by Governor Simcoe, in the

name of George III on January 14, 1793, was effective to pass title to the lands to all members of the Six Nations Band in fee simple. This submission was accepted by the judge at trial. His conclusion was, however, reversed by the Court of Appeal, which held that the tract of land in question was still vested in the Crown subject to the exercise of traditional Indian rights.

Without wishing to cast any doubt on the conclusion reached by the Court of Appeal I do not think it is necessary in the present case to make a final decision on the matter of title to the lands because, in my opinion, the validity of P.C. 6015 can be founded on para. (ii) of s. 2(1)(a) which provides that a "band" means a body of Indians "for whose use and benefit in common, moneys are held by His Majesty".

- [137] Moreover, the meaning of the “Haldimand Proclamation of 1784” was considered by a pre-Confederation and pre-Ontario court as far back as 1835. In Doe ex dem. Jackson v. Wilkes, [1835] O.J. No. 33 (Upper Canada Court of King’s Bench), Robinson C.J. for the Court of King’s Bench of Upper Canada had to considered the “Haldimand Proclamation of 1784” in a dispute on whether a parcel of land in the Haldimand Tract, in which an individual named Johnson, who was the lessor of a parcel of land in the Haldimand Tract had leased that parcel of land to the plaintiff named Wilkes (lessee). For that case titled, Doe ex dem. Jackson v. Wilkes, it signifies that the nominal defendant, “Doe”, is the hypothetical person holding the estate “on the demise” of, i.e. by a lease from the real defendant named Jackson. Wilkes is the plaintiff in that case. The action in that case was for an eviction of Jackson, a tenant of the plaintiff named Wilkes, who was the lessee of that parcel of land. Johnson, the lessor of the land to Wilkes, had obtained the land in fee simple by a grant from a letters patent from the Crown. The lessor (Johnson) of the plaintiff (Wilkes, the lessee) had provided proof of his title to that parcel of land by producing letters patent from the Crown, granting him the premises in fee simple. The date of the patent was March 5th, 1834, made in confirmation of a previous sale of the land to the grantor, through the Commissioner of Crown Lands, for the sum of 10 pounds 5s. To rebut that Johnson had a title in fee simple to that parcel of land, Jackson, the defendant, who is the tenant of Wilkes (the lessee), produced an instrument, which is known as the “Haldimand Proclamation of 1784”, to challenge Johnson’s claim of title to the land in the ejectment action brought by Wilkes against Jackson. In short, the defendant Jackson, was contending that Johnson did not have proper and legal title in fee simple to that parcel of land as the title of the land had been transferred to the Six Nations Confederacy in fee simple under the “Haldimand Proclamation of 1784”, and as such, it had been argued by Jackson that the Crown could not grant a letters patent for that parcel of land to Johnson (the lessor).
- [138] In determining that issue in Doe ex dem. Jackson v. Wilkes of whether title to that land in fee simple being claimed by Johnson could have been properly and legally transferred by the Crown to Johnson (the lessor), since it was contended by Jackson that the “Haldimand Proclamation of 1784” had transferred title in fee simple to the

Six Nations Confederacy, Robinson C.J. of the Upper Canada King's Bench, at paras. 1 to 3, and 5 to 17, held that the most that can be made of the instrument issued by Governor Haldimand is that it may be considered as a declaration by the King's Governor, and in the King's name, that certain lands of the Crown were held by the King for the exclusive use and enjoyment of the Six Nations. In addition Robinson C.J. opined that the case is clearly in favour of the King's right to make the patent in 1834 (to the lessor named Johnson), since it is impossible to adjudge upon any legal principle or upon any authority that such an instrument (the Haldimand Proclamation of 1784) could divest the crown of an estate. Moreover, Robinson C.J. also held that the "Haldimand Proclamation of 1784" conveyed "no legal title" to the Six Nations, since the instrument had not been under the Great Seal nor had it been made to any persons in their natural capacity or to a body corporate, and that the instrument also did not contain any legal words of inheritance. As such, Robinson C.J. concluded that it would be impossible to say the King did not continue to be fully seized in fee of the premises. In addition, Robinson C.J. held that a grant from the Crown must be by matter of record under the Great Seal and as exemplification under the Great Seal of a grant invalid in its inception will not have the effect of making such grant valid by relation from its commencement [*emphasis is mine below*]:

Ejectment brought to recover possession of a small tract of land, one-fifth of an acre, in the village of Brampton. The lessor [Johnson] of the plaintiff [Wilkes] proved his title by producing letters patent from the crown, granting him the premises in fee simple. The date of the patent was 5th March 1834, and upon the face of it, it appeared to be made in confirmation of a previous sale of the land to the grantor, through the Commissioner of Crown Lands, for the sum of 10 pounds 5s. To rebut this title the defendant [Jackson] produced an instrument, exemplified under the great seal of this province, of which the following is a transcript:

[GREAT SEAL.]

UPPER CANADA.

"WILLIAM THE FOURTH, by the Grace of God, of the United Kingdom of Great Britain and Ireland, King, Defender of the Faith, &c.

"To all to whom these presents shall come, Greeting:

"Know ye, that amongst the rolls and records in the Secretary and Registrar's Office, in the province of Upper Canada, Lib, A. fol 8, it is thus contained: - Frederick Haldimand, Captain General and Governor-in-Chief of the province of Quebec and territories depending thereon, &c. &c. &c., General and Commander-in-Chief of His Majesty's Forces in said province, and the territories thereof, &c. &c. &c. Whereas his Majesty having been pleased to direct that in consideration of the early attachment to his cause manifested by the Mohawk Indians, and of the loss of their settlement which they thereby sustained, a convenient tract of land under his protection should be chosen as a safe and comfortable retreat for them and others of the Six Nations who have either lost their settlements within the territory of the American States, or wish to retire from them to the British; I have, at the earnest desire of many of these his faithful allies, purchased street of land

from the Indians situated between the lakes Ontario, Erie and Huron; and I do hereby, in his Majesty's name, authorize and permit the said Mohawk Nation [4 UCQB(OS) Page143] and such others of the Six Nation Indians as wish to settle in that quarter, to take possession of and settle upon the banks of the river commonly called Ouse or Grand River, running into Lake Erie, allotting to them for that purpose six miles deep from each side of the river, beginning at Lake Erie and extending in that proportion to the head of the said river - which they and their posterity are to enjoy for ever.

Given under my hand and seal at arms, at the Castle of St. Lewis, at Quebec, this 26th day of October 1784, and in the 25th year of the reign of our sovereign lord George the Third, by the Grace of God of Great Britain, France and Ireland, King, Defender of the Faith, and so forth.

[Signed,]

FREDERICK HALDIMAND."

Registered, 26th March, 1795.

(signed) WM. JARVIS.

By His Excellency's command.

(signed) R. MATTHEWS.

"All which we have caused to be exemplified.

"In testimony whereof we have caused these our letters to be made patent, and the great seal of our said province to be hereunto affixed. Witness our trusty and well-beloved Sir John Colborne, K.C.B., lieutenant-governor of our said province, and major-general commanding our forces therein, this 28th June, 1834, and fifth year of our reign.

(signed) J. C."

It was then proved that the Six Nations Indians had enjoyed the lands described in this instrument for more than forty years; that the premises in question composed part of the tract; and that individual Indians had leased portions of the tract to different persons. There was also produced a letter, admitted to be under the signature of Mr. Goulburn, under-secretary of state for the colonies in 1816, addressed to Captain Norton, an Indian agent, in which it is stated that "there is no difficulty on the part of his Majesty's government, to admit that the grant on the Grand River, which was after the peace of 1783 made to the Five Nations and their posterity forever, is a grant as full and as binding upon the government as any other made to individual settlers."

A verdict was directed to be taken for the plaintiff [Wilkes], with leave for the defendant [Jackson] to move to enter a nonsuit if the court should be of opinion that by reason of the instrument under the hand and seal-at-arms of General Haldimand, [4 UCQB(OS) Page144] and the possession of the Indians under it,

the King was disabled from making the grant under which the lessor [Johnson] of the plaintiff [Wilkes the lessee] claims.

...

ROBINSON C.J.

Nothing is reported to have been given in evidence at the trial, from which it could be inferred whether the defendant [Jackson] was or was not in possession by privity with the Six Nations Indians, or whether they countenanced the defence and objected to this action upon the idea that the Crown had done or was attempting anything in opposition to their rights, and inconsistent with the former act of the governor of the province of Quebec, under which the Indians had originally taken possession. From what passed at the trial, there was no ground for assuming this; and upon the argument of this case last term, I considered the legal questions which have been agitated to have been raised by objections purely technical, taken by the defendant [Jackson] to the title of Johnson, the lessor of the plaintiff [Wilkes], and urged for the purpose of maintaining himself [Jackson] in possession without its being attempted to be shown, and indeed without its being pretended that the Crown, in what they have latterly done, have been acting adversely to the Indians, or with a view to deprive them of any advantage they could claim under the instrument of Governor Haldimand.

The defendant [Jackson] showing no privity between himself and the Six Nations Indians, and being, for all that appears, a stranger to any title that could be set up under the act of Governor Haldimand, does what any defendant [Jackson] in ejectment may do, generally speaking - that is, he takes whatever legal exceptions he can to the title setup for the plaintiff [Wilkes]; and he maintains that by the instrument made by General Haldimand as governor of the province of Quebec, the King was divested of the title of the premises in question, and was disabled to make the grant which he assumed to make to the lessor [Johnson] of the plaintiff [Wilkes] in 1834. [4 UCQB(OS) Page145]

To this it is answered, that the instrument produced can have no legal operation to pass an estate from the Crown - first, because it is not under the great seal, and not matter of record; secondly, if it were indeed a patent under the great seal, it would be void for uncertainty as to the parties who are to take under it, the grant not being made to any corporate body, nor to any person by name in their natural capacity; thirdly, that no estate is conveyed by the words of the instrument, which amounts merely to a license to the Six Nations of Indians to enjoy the land at the pleasure of the Crown.

The defendant [Jackson], on the other side, maintains, that the instrument is in fact matter of record, being made so by its being recently exemplified under the great seal; that the grantor can make title under the enrolment, and cites 3 & 4 Edw. VI. ch. 4, as it seems from the note on the instrument, as well as from the certificate exemplifying it, that it has become matter of record; that it is not indispensable, with respect to all grants from the Crown, that they should be under the great seal, for that leases may be made in England under the exchequer seal) cites Com. Dig. Patent); that in the colonies, grants from the Crown may be good, though not under the great seal, if they are sanctioned by usage in the particular colony (Chalmers' Opinions on Cases from the Colonies, vol. 1, p. 241); that it does not appear to the

court that there was a great seal in use in Canada when this instrument was made (1784); and that whether a great seal was necessary to grants of land, and whether the king could only grant by record in the province of Quebec, must be decided by the laws of Canada at the time the instrument was executed - that is, by the French law in force then - and not by the law of England, which, in civil matters, was suspended by the introduction of the law of Canada under Statute 14 Geo. III. c. 83.

As to the objection, that the grant is bad for uncertainty in respect to the grantor: that it is at least certain as to the Indians, who went into actual possession and lived upon it, and that it would be good as regards their interests, though there might be uncertainty as to other persons who might [4 UCQB(OS) Page146] claim; that the Indians were by this grant made a corporate body and enabled to take (1 Roll. 513) and hold in a corporate capacity, although no corporate name was expressly given to them. That if the grant did but give a right to hold generally, without strict legal words of inheritance, the grantor had a life interest, during the continuance of which the King could not make a grant to others; and that if the Indians or any Indians have under Governor Haldimand's grant a right to hold possession, that right must prevent any other person from recovering in ejectment, which implies a right to the immediate possession. - 1 Inst. 86.

In my opinion, the case is clearly in favour of the King's right to make the patent in 1834. Upon the first objection to the instrument of Governor Haldimand - for it is impossible to adjudge, upon any legal principle or upon any authority, that such an instrument could divest the crown of an estate - it is true, that by the law of England leases may be made of lands of the crown under the seal of the Court of Exchequer, either for years or for life, because such, it is said, has been the common usage of the Court of Exchequer, "and the customs and usages of every of the King's Courts are as a law, and it would lead to great difficulty and confusion if the multitude of leases which have been so made were to be held void." - 2 Co. 16; Cro. Car. 99, 513, 528; Cro Jac. 109; Plow. 320, b.

But it is impossible to bring this case within the reason or authority of Exchequer leases of crown lands, for here neither is the great seal used nor any seal answering to that which, upon the authority cited, can be admitted as equivalent. The seal at arms of Governor Haldimand is no seal of the King, and it is not shewn that in point of fact it was ever pretended in any other case to dispose of crown lands by an instrument under the seal at arms of the Governor of Quebec. Again, this instrument does not profess in its terms to be a lease for years or for life; but if it be meant to convey any legal estate, it clearly was not intended to limit such estate to the life of the grantee. The general principle is clear, that no grant of the King is available [4 UCQB(OS) Page147] or pleadable unless under the great seal, and it is equally clear that this case cannot be brought within the principle relied upon. Com. Dig. Patent C. 2; 2 Roll. 182, 1. 5. The laws of Canada were spoken of in the argument. It was not shewn, that according to those laws the Governor of a colony, acting in the name of the King, could under his own seal at arms grant away the lands of the crown; but it is not important to discuss this point, for the question must be resolved by the laws of England, and not by the French law as it prevailed in Canada upon the division of the Province of Quebec. King George the Third, in the royal proclamation of 1763, introduced the law of England into the newly conquered country, and the same proclamation, in speaking of grants of

land to be made in the Province of Quebec, uses the term patent; and no doubt, according to the law of England, it could only be by patent that lands could be granted. It is true that before 1784, when this instrument was made, the statute 14 Geo. III. c. 83, intervened, which enacted that thereafter, "in all matters of controversy relative to property and civil rights, resort shall be had to the laws of Canada, as the rule of decision of the same." But if it were otherwise clear, that under this form of words the laws of Canada could be considered as introduced in such a manner as to apply to the exercise of the King's prerogative in granting lands, binding his Majesty by whatever laws the French King had been bound, which I do not at present assent to, yet the ninth clause of the statute prevents such an application of the previous words, for it expressly declares "that nothing in this Act contained shall extend, or be construed to extend, to any lands that have been granted by his Majesty or shall thereafter be granted by his Majesty, his heirs and successors, to be holden in free and common socage." If without this clause the application of the laws of Canada would be extended to make valid this instrument of Governor Haldimand, which otherwise would convey no interest, it is clear that the ninth clause would prevent the laws of Canada from being so extended as to defeat the subsequent grant in free and common socage, which has been made to Jackson, the lessor of the plaintiff. [4 UCQB(OS) Page148]

We are thrown upon the law of England for the decision of this question, and by that law (and I imagine, not less by the laws of Canada), it is plain no estate has been created in crown lands by this grant, if it can be so called, which Governor Haldimand has assumed to make of them under his seal at arms. The want of the great seal is in my opinion fatal. It has been argued that the recent exemplification of this instrument, under the great seal of the province, has made it matter of record, but the question is, whether, when the patent was issued to Jackson in March, 1834, the King was or was not seized of the land? That he was so seized is plain, unless the instrument under Governor Haldimand's seal at arms had divested his Majesty of the estate. If that instrument could only derive validity from its being exemplified under the great seal, then the exemplification came too late, for clearly the principle upon which the enrolment of a bargain and sale may have an effect retrospectively, cannot apply in such a case, for no estate passed under that instrument at the time of its execution. - Com. Dig. Confirmation D. 5. But there can be nothing in this argument, in any view of it. The principle is - that the King can neither grant nor take an estate, but by matter of record. In respect to titles made to the King, the question of the necessity of the great seal does not occur, and it is sufficient to shew that the conveyance is by matter of record; but with respect to grants made by the King, the question is not merely whether the instrument of conveyance can or cannot be made out to be matter of record; the grant must be shewn to have been made under the great seal, and the exemplification under the great seal of an instrument in itself insufficient for the purpose, cannot change the nature of the instrument.

The 3 & 4 Edw. VI. ch. 4, was referred to - but nothing can be clearer than that that statute and the 13 Eliz. ch. 6, explaining it, can have no such effect as to make the exemplification of an instrument, which is not a patent, supply the place of a patent. It proves the very contrary, for it shews that no patent existed. Those statutes do nothing more than enable persons claiming by force of any patents [4 UCQB(OS) Page149] made to them, to make title by the enrolment of such patent. Enrolling an instrument such as that produced, I take to be merely a nugatory act. Whatever

may have been the intention of the Colonial Government of Quebec at the time the instrument was made, which, as far as has been shewn to us, is without precedent; it is impossible to give it effect, as divesting the King of his estate, without admitting that Governor Haldimand, under his hand and seal of arms, could have alienated all the Crown lands in the province without the intervention of those forms which are necessary to the perfecting of a patent, and which are designed to afford protection both to the crown and the subject.

It is not necessary to enter into a particular consideration of what might be the legal operation of this instrument, supposing it to have been made in such a manner as to be binding on the crown; I must say, however, that the letter which was produced, under the signature of Mr. Goulburn, can have no effect on the judgment of this court upon the legal construction or effect of this act of Governor Haldimand. It states very openly and candidly what effect the Government are willing to concede to it, so far as their rights and the rights of the Indians are concerned, and would be a very strong document in support of the Indians if anything had been since done by the Government inconsistent with the frank avowal contained in that letter. But it is not pretended that anything has been done at all at variance with the sentiments then expressed by the under secretary of state, or repugnant to the wishes or rights of the Six Nations. The defendant, I repeat, has shewn no priority between himself and the Six Nations, and, for all that appears, the necessity for this ejectment against the defendant may as probably have arisen in consequence of measures taken by the crown in concert with the Indians, and for their interest and protection, as from an opposite cause.

Though my opinion is given upon the insufficient nature of the instrument produced, separate from its contents, I have not failed to consider the question raised with respect to the uncertainty of the grantees that are to take, and the [4 UCQB(OS) Page150] nature of the interests intended to be passed. At present I consider that the instrument cannot be held to convey any legal estate, for the want of a certain designation of any person or persons to take as grantees. - 1 Co. 50; Dyer, p. 170; Co. Lit. 3, a.; 10 Co. 26, b. I do not think that a patent in the form of this instrument would have created a corporation consisting of "the Mohawk Nation and such other of the Six Nation Indians as wish to settle on the tract of land described;" and unless it can have that effect, as there are no persons particularly named, there cannot be said to be properly any grantees; and it is, at any rate, out of the question to contend that an instrument under the seal at arms of a colonial governor can constitute a legal charter erecting a corporation. The most that can be made of the instrument issued by Governor Haldimand is this, in my opinion - it may be considered as a declaration by the King's Governor, and in the King's name, that certain lands of the crown were held by the King for the exclusive use and enjoyment of the Six Nations. As it conveyed no legal title, not being under the great seal, and not being made to any persons in their natural capacity, or to a body corporate, and contains no legal words of inheritance, it is impossible to say the King did not continue fully seized in fee of the premises, or that in a court of law any greater effect could be ascribed to such an instrument than that of a license to possess during the King's pleasure, which pleasure would be determined by the King's death, or by the patent subsequently issued; and so long as the right of possession continued unaffected by any determination of the King's will, the King, as the possessor of the legal title, could of course assert that title against a stranger, for it might very well be that the ejectment might be necessary for the

very purpose of protecting the Indians in the exclusive possession which had been promised to them; so that the grant made to the lessor of the plaintiff may be no infringement of any equity between the crown and the Six Nations, and to allow of an ejectment against the defendant, who appears in no other light than a stranger, involves no opposition to legal principles, since if the crown had [4 UCQB(OS) Page151] made no recent grant, and had continued seized as trustee for the use of the Indians, (admitting that to be possible in law) the King could have asserted that legal title even against the cestui qui trust, and much more against a stranger. - Com. Dig. Grant G. 3; Hard. 443; 8 T.R. 118.

I am of opinion, on these grounds, that the verdict for the plaintiff should stand; and if this question which has been raised here were to be decided according to the laws of Canada, and not by the law of England, it has not been shewn that the result would be otherwise. We have ascertained that there was a great seal in use in the Province of Quebec in 1784, when the instrument of General Haldimand bears date; that grants of land, of which few were made by the British Government before the year 1795, were made by letters patent under the great seal, and that it has been uniformly held in the courts of Lower Canada that grants of the waste lands of the Crown could not be made in any other manner. Before the conquest, it appears that no seal was held to be necessary in grants from the French Crown. The Governor and Intendant were enabled to grant jointly, but their grant was not effectual until it was ratified by the King of France; and it may reasonably therefore be inferred that such an instrument as this before us could not have availed under the French-Canadian law to possess any interest beyond that of a mere license of occupation.

I repeat, however, that such a question as this, arising here or in Lower Canada, is not to be decided by the laws in force at the time of the conquest, but upon the principles of the common law of England, which, in respect to the prerogative of the King in granting the lands of the crown, continued to be in force after the passing of the 14 Geo. III. ch. 83, as well as before.

- [139] Although the issue of what and how much of the original Haldimand Tract had been surrendered to the Crown or sold off by the Six Nations Confederacy to the Crown or to non-Six Nations persons (with or without permission of the Crown), or whether the territory of the County of Brant that had been part of the original Haldimand Tract had had been surrendered or sold to the Crown, does not have to be decided by this Provincial Offences Court, there is nonetheless indication that parcels of the Haldimand Tract had been voluntarily sold off by the Six Nations back to the Crown or to non-Six Nations persons (with or without permission of the Crown) since 1784, and such indication is indicated in the Statement of Defence filed by the Crown in the Superior Court of Justice case of Six Nations Of The Grand River Band Of Indians v. The Attorney General Of Canada And His Majesty The King In Right Of Ontario (Toronto Court File No. CV-18-00594281-0000 (Formerly Brantford Court File No. 406/95)). Also, such indication that parts of the Haldimand Tract had been sold off to non-Six Nations persons has further been confirmed in reported court cases. For example, in Miller v. The King, [1950] S.C.R. 168, Locke J. of the Supreme Court of Canada at pp. 185 to 186, had referred to Miller's pleadings that

there had been an indication that the Five Nations (now known as the Six Nations) had given a power of attorney to Joseph Brant and that the lands in question were surrendered simply for the purpose of permitting grants to be made to the persons to whom the Five Nations had desired the lands to be sold and the particulars of the deed of surrender show that the consideration for the purchase was to be paid over to the individuals named by the Five Nations as trustees *[emphasis is mine below]*:

While the reference to the Power of Attorney given to Brant by the Five Nations Indians referred to in paragraph 13 shows that the lands in question were surrendered simply for the purpose of permitting grants to be made to the persons to whom the Indians desired the lands to be sold and the particulars of the deed of surrender show that the consideration for the purchase was to be paid over to the individuals named by the Indians as trustees and these persons are referred to in the communication from Peter Russell to the Secretary for the Colonies as the "trustees to receive for their use mortgages and other securities for the payment to them of the several and respective considerations stipulated" and the pleading does not allege that these trustees thereafter paid over the consideration to the Crown to be held on behalf of the Indians, I think when these paragraphs are read together it is made sufficiently clear that the suppliants claim that the funds realized from the sale came into the possession of the Crown and were held on behalf of the Indians. The identity of the trustees, named, two of whom were the Honourable David William Smith, His Majesty's Acting Surveyor General, and Captain William Claus, His Majesty's Deputy Superintendent of Indian Affairs, and the fact that by c. 74 of the Statutes of the First Parliament of the Province of Canada (4 & 5 Vict.) it was recited that three-quarters of the stock of the Grand River Navigation Company were held in trust for the benefit of the Six Nations Indians (presumably by the Crown) and it was provided that the Governor of the Province, by and with the advice and consent of the Executive Council, might nominate two of the directors of the company, would at least indicate either that possession of the funds by the trustees had been treated from the outset as possession by the Crown or that possession of the funds had thereafter been taken. These are facts which undoubtedly should have been more clearly pleaded but that this is what the suppliants really contend is, in my opinion, evident. It is alleged in paragraph 15 that the Government of Upper Canada contracted to purchase the shares in the Grand River Navigation Company and that the said Government prior to 1841 and the Government of the Province of Canada thereafter paid in the aggregate \$160,000 out of the moneys held in trust for the Indians, ...

- [140] Moreover, in granting the interlocutory injunction to prevent First Nations' protests blocking and disrupting work on municipal roadways in the City of Brantford, Arrell J. at paras. 6 to 9 in Brantford (City) v. Montour, [2013] O.J. No. 1016, 2013 ONSC 1219 (Ont. S.C.J.), had concluded that there had been evidence presented regarding an alleged surrender of lands comprising the City of Brantford by the Six Nations, even though Six Nations had claimed ownership of the land as a result of past treaties *[emphasis is mine below]*:

The City of Brantford passed by-laws prohibiting blockage and disruption of work on municipal roadways at certain construction sites within the City. These locations were the subject of the work stoppages as a result of the protests by various first

nations' individuals, represented by the respondents, who claimed ownership of the land as a result of past treaties.

The City then sought and obtained an interim injunction to prevent work stoppages at the specific sites. The City then sought an interlocutory injunction. The respondents sought a dismissal of the application and a declaration that the by-laws were invalid and should be quashed.

The hearing before me for the interlocutory injunction was vigorously defended by the Respondents and encompassed 22 days of court time. As well this Court arranged an opportunity for further consultation between the parties with Mr. Justice Colin Campbell for 2 days prior to this application being heard and further consultation was ordered by me over a number of months with 2 agreed upon mediators during this application.

There was evidence presented in this case regarding an alleged surrender of lands by the Six Nations people. In particular, lengthy evidence was filed, and submissions were made, regarding treaties, minutes, documents and letters confirming agreements in various subsequent meetings of the Six Nations and the Crown, over many decades. As well, the résumés, reports and cross-examinations of the two admitted experts, Darlene Johnston and Joan Holmes, were part of the record. The issues were significant to all parties and complex. Volumes of material were filed and lengthy cross-examinations were conducted on affidavits filed as part of this application, along with extensive factums and case briefs.

- [141] In sum, even if the Court of Appeal for Ontario in Isaac et al. v. Davey et al., (1975), 5 O.R. (2d) 610, had erred in law in holding that the “Haldimand Proclamation of 1784” did not confer title in fee simple of the Haldimand Tract to the Six Nations Confederacy, as their judgment had been made before the enactment of s. 35 of the Constitution Act, 1982 and the constitutionalization of “existing” aboriginal treaties and rights, and before the advent of the notion of reconciliation with First Nations through implementing treaties honourably or to enter into treaties to resolve outstanding First Nations’ land claims, this Provincial Offences Court is still constrained by the principle of *stare decisis* and precedent under the common law, which requires this court to follow that binding decision of the Court of Appeal. So until Isaac et al. v. Davey et al. is overturned by the Supreme Court of Canada or readdressed by the Court of Appeal for Ontario, the Isaac et al. v. Davey et al. decision is binding and must be adhered to by this court that the Haldimand Tract was still vested in the Crown subject to the exercise of traditional Indian rights.

(16) The Same Jurisdictional And Sovereignty Issue Was Raised As A Defence In The Criminal Case Of R. v. Jamieson, [2013] O.J. No. 5473 (Ont. C.J.)

- [142] In R. v. Jamieson, [2013] O.J. No. 5473 (Ont. C.J.), at paras. 6, 8, 11, 36 to 48, 62 to 70, and 74, Harris J. had to determine the issue of whether he had the jurisdiction to hear the case based on the accused’s claim that the alleged offences had occurred on the Haldimand Tract, which the accused in that case had contended is

the sovereign territory of the Haudenosaunee (Six Nations) and which would exempt her from prosecution because she was a Haudenosaunee woman. In addition, Harris J. recognized that the Six Nations Grand River is the name of the Reserve in the area of the court that is located at Cayuga, Ontario. Jamieson had been charged with the criminal offences of assault with a weapon and possession of a weapon for a dangerous purpose. Specifically, Jamieson had picked up a piece of plastic pipe and had moved toward a protestor who was walking on a street in the Douglas Creek Estates/Kanohnstaton subdivision near Caledonia, Ontario and she had swung the pipe at him. Jamieson had been prevented from striking the protestor by another person who got in the way. The incident had taken place against a backdrop of disputed aboriginal land claims. Harris J. held that the “Two Row Wampum of 1664”, “Nanfan Treaty of 1701 (amended 1726)”, “Royal Proclamation of 1763”, and the “Treaty of Niagara of 1764”, and the “Haldimand Proclamation of 1784”, have previously been cited in support of arguments raised by various accused persons to the effect that the Crown in Right of Canada has no criminal law jurisdiction over aboriginal persons, especially members of the Haudenosaunee, but that these arguments have consistently been rejected by courts whose decisions are binding. Furthermore, Harris J. emphasized that the courts in *R. v. Sparrow*, *R. v. Pamajewon* and *Ro: Ri: Wi: lo v. Canada (Attorney General)* had all concluded that sovereignty, legislative power, and the underlying title to such lands is vested in the Crown. In addition, Harris J. also noted that in *R. v. David*, [2000] O.J. No. 561 (Ont. S.C.J.), *R. v. Francis*, [2007] O.J. No. 966 (Ont. S.C.J.) and *R. v. Gibson*, [2007] O.J. No. 3948 (Ont. S.C.J.), three separate Justices of the Ontario Superior Court of Justice all rejected the argument that members of the Haudenosaunee were exempt from the application of Canadian criminal law. Harris J. also concluded that he had the jurisdiction to decide the case [*emphasis is mine below*]:

The events of February 18, 2012 occurred against a backdrop of protest and social unrest that has its origins in aboriginal land claims. This situation goes back many years but has grown much more intense over the past seven years. The Haudenosaunee or the people of Six Nations Grand River have asserted numerous land claims against the federal government over many years. They claim entitlement to the Haldimand Tract, a 950,000 acre parcel of land, which extends six miles on either side of the Grand River, from the river's source to Lake Erie. This area would include the Town of Caledonia. The Canadian government has taken the position that the disputed lands were surrendered lawfully.

...

These actions were seen by members of the Six Nations as a reclamation of their land. They referred to the property as Kanohnstaton, or "the protected place".

...

The Ontario government eventually purchased the property from the developers who owned it, but disputes over the land have yet to be resolved.

...

The first issue is whether this court has the jurisdiction to try Ms. Jamieson.

She repeatedly told me during the trial that "I do not recognize your laws".

She asked Crown witnesses if they knew anything about the "Two Row Wampum" or the "Nanfan Treaty".

I was able, with the assistance of several textbooks, to refresh my memory with respect to the following information.

In 1664, the Haudenosaunee entered into an agreement with the British King's agents called the Treaty of Albany or the Two Row Wampum or the Kaswehnta (the River of Life). In its simplest form, the resulting relationship was symbolized by a ship and a canoe which were moving separately but in the same direction.

This relationship of two separate nations agreeing to work together was reaffirmed in subsequent agreements, especially the Royal Proclamation of October 7, 1763 and the Treaty of Niagara in 1764 [Harris J. also in a footnote stated that The Royal Proclamation dealt with a number of issues. Of importance to current issues is the fact that while the language of the proclamation made it clear that the British still believed that all native lands ultimately belonged to the Crown, the proclamation established that the aboriginal population had certain rights to the lands they occupied].

The Nanfan Treaty ceded title to certain lands to the Crown in return for perpetual hunting rights being retained by the Haudenosaunee.

All of these agreements have previously been cited in support of arguments raised by various accused persons to the effect that the Crown in Right of Canada has no criminal law jurisdiction over aboriginal persons, especially members of the Haudenosaunee. These arguments have consistently been rejected by courts whose decisions are binding on me.

In R. v. Sparrow, the Supreme Court of Canada stated that:

It is worth recalling that while British policy towards the native population was based on respect for their right to occupy their traditional lands a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that the sovereignty and legislative power, and indeed the underlying title to such lands vested in the Crown.

In R. v. Pamajewon, the Ontario Court of Appeal stated that Sparrow "plainly established that sovereignty and legislative power are vested in the Crown".

The Court of Appeal reached a similar conclusion in Ro: Ri: Wi: lo v. Canada (Attorney General).

In R. v. David [2000] O.J. No. 561 (Ont. S.C.J.), R. v. Francis [2007] O.J. No. 966 (Ont. S.C.J.) and R. v. Gibson [2007] O.J. No. 3948 (Ont. S.C.J.), three separate Justices of the Ontario Superior Court of Justice all rejected the argument that members of the Haudenosaunee were exempt from the application of Canadian criminal law.

Accordingly, I also reject any argument that Ms. Jamieson is exempt from prosecution here as a result of her status as a Haudenosaunee woman.

...

The Haudenosaunee rely on the Haldimand Proclamation in support of their claim that these events took place on their land. This decree was issued by Frederick Haldimand, Governor General, on October 25, 1784. It granted certain lands in perpetuity to members of the Six Nations as compensation for the lands they had lost as a result of their support for the British King during the American Revolution.

The Canadian government recognizes the Haldimand Proclamation. The government disagrees however as to the extent of the land covered by that decree. The government also takes the position that certain lands, including DCE/Kanonhstaton, were lawfully surrendered by the Haudenosaunee since the original grant.

The government position is that Surrey Street, where Mr. McHale was walking, is public/municipal property.

It certainly appears to be a paved municipal street.

In the circumstances, I am satisfied beyond a reasonable doubt that Ms. Jamieson was not in possession of the property, within the meaning of the criminal law.

I am also satisfied beyond a reasonable doubt that any possession by her was not peaceable, in that it was seriously challenged by Mr. McHale and his group and by the police who permitted them to walk there, and by various levels of government.

I have no doubt that Ms. Jamieson genuinely believed (and still believes) this to be Haudenosaunee land. I have no doubt that she genuinely believed that Mr. McHale was trespassing. I have no doubt that she genuinely believed that she was protecting the land from him.

I cannot however find that she was legally justified in acting on her beliefs.

Nor can I find that she can advance a defence of mistake of fact.

...

I am satisfied that I do have jurisdiction to decide this case.

(17) The Crown's Statement of Defence in Six Nations of the Grand River Band of Indians v. The Attorney General of Canada and His Majesty the King in Right of Ontario (COURT FILE NO.: CV-18-594281-0000)

[143] The ongoing dispute between the Six Nations of the Grand River and the Government of Canada is focused on land along the length of the Grand River in Ontario known as the Haldimand Tract, a 950,000-acre tract of land that had been granted to indigenous allies of the British Crown in 1784 to make up for territorial losses suffered as a result of the American Revolutionary War and

the Treaty of Paris of 1783. The Six Nations Confederacy had been granted the land in perpetuity by the British Crown and allege that lands were improperly sold, leased or given away by various Canadian or British colonial governments, leaving only 5 per cent of the original lands of the Haldimand Tract under Six Nations' control. The Six Nations also allege that monies owed to the Six Nations from leases and loans on much of the disputed tract have not been paid or were redirected into government coffers.

- [144] The dispute has been the subject of many formal negotiations under the land claims process since the 1970s and several instances of direct action in the form of protests, blockades, and occupations. However, formal negotiations have broken down and the dispute is presently being litigated in the courts. The Government of Canada's policy to extinguish aboriginal title as a condition of settlement is considered to be unacceptable by the Six Nations. The Six Nations are also seeking monies owing and ongoing payments for leased lands and the return of lands improperly transferred.
- [145] The dispute came to wide attention in Canada in 2006 when the Six Nations formally reactivated litigation initially brought in 1995 against Canada and Ontario.
- [146] The Six Nations of the Grand River's claim over the disputed land expressly described under the "Haldimand Proclamation of 1784" is presently being litigated in the Superior Court of Justice in Toronto, Ontario. The case is styled as "Six Nations of the Grand River Band of Indians v. The Attorney General of Canada and His Majesty the King in Right of Ontario".
- [147] From the "Land rights for the Six Nations of the Grand River -- A GLOBAL SOLUTION" <<[130877E.pdf \(jaac-aeic.gc.ca\)](#)>>, the Six Nations of the Grand River, as represented by the Six Nations Elected Council, filed a Statement of Claim on March 7, 1995, against the government of Canada and Ontario (Court File 406/95) regarding the Crowns' handling of Six Nations' property before and after Confederation. Six Nations of the Grand River in their action is seeking from the Crown a comprehensive general accounting for all money, all property under the "Haldimand Proclamation of 1784", and for other assets belonging to the Six Nations and the manner in which the Crown managed or disposed of such assets. In addition, Six Nations of the Grand River is further seeking an order that the Crown must replace all assets or value thereof, which ought to have been received or held by the Crown, plus compound interest on all sums, which the Crown should have received but failed to receive or hold for the benefit of the Six Nations and the return of lands where appropriate.
- [148] Since some of the issues about the "Haldimand Proclamation of 1784" having set aside lands along the Grand River in Ontario for the Six Nations and their progeny, had been raised by the defendants in the case at bar, are presently being litigated before the Superior Court of Ontario in Toronto, there will be no need to address

and resolve them in the case at bar, except to outline what the federal Crown's response has been to the claim over the disputed land in the Haldimand Tract.

- [149] As outlined by Akbarali J. at paras. 3 to 8, in Six Nations of the Grand River Band of Indians v. The Attorney General of Canada and His Majesty the King in Right of Ontario, 2023 ONSC 3604, the litigation had started in 1995 and has been transferred in late 2017 from the Superior Court of Justice in Brantford to the Superior Court in Toronto. Moreover, Akbarali J. explained that the plaintiffs, Six Nations of the Grand River Band of Indians (which comprise of the six Haudenosaunee nations: the Seneca, Cayuga, Onondaga, Oneida, Mohawk and Tuscarora nations), were seeking an accounting and compensation for what it alleges are breaches of duty and treaty obligations by the Crown defendants ("Canada" and "Ontario") dating back to 1784, which is the time of the Haldimand Proclamation. In addition, Akbarali J. notes that the Six Nations of the Grand River claim that the Haldimand Proclamation had set aside lands along the Grand River for the Haudenosaunee people who wished to settle there, and their progeny, as compensation for the homes and property that the Haudenosaunee lost after the American Revolution, during which the Haudenosaunee had been allies of the British Crown. Akbarali J. also indicated that the Six Nations of the Grand River contend that it today has the use of less than 4.8 percent of the lands reserved by the Haldimand Proclamation. Akbarali J. also commented that the action brought by Six Nations of the Grand River is over 28 years old and is complex and covers about 250 years of history and involves a large tract of land. Moreover, Akbarali J. explained that the dispute between Six Nations of the Grand River and the Crown defendants concerns the extent of the lands set aside by the Crown defendants, whether certain lands were properly alienated, and whether the Crown (initially the British Crown, and now the Ontario and Federal Crowns as its successors) properly managed and accounted for Six Nations of the Grand River's monies, and as such, the Six Nations of the Grand River seek an accounting and compensation from the defendants.
- [150] Akbarali J. also acknowledged that there are many reasons why the action has progressed slowly, including that it was held in abeyance for a lengthy period of time to enable the parties to undertake negotiations, which had not been successful.
- [151] In respect to the alienation of parcels of land in the Haldimand Tract, the "Statement of Defence" by the federal Crown in Six Nations Of The Grand River Band Of Indians v. The Attorney General Of Canada And His Majesty The King In Right Of Ontario (Toronto Court File No. CV-18-00594281-0000 (Formerly Brantford Court File No. 406/95)), outlines many parcels of land that were originally part of the Haldimand Tract that were either sold or surrendered back to the Crown and the federal Crown have asserted the following: (1) it denies that the Haldimand Proclamation constitutes a treaty within the meaning of s. 35 of the Constitution Act, 1982 and says that it was a unilateral declaration by the British Imperial Crown that certain lands would be allocated to the Six Nations; (2) that both the Haldimand Proclamation and the Simcoe Patent use clear and unambiguous language linking

the grant to the Six Nations to the surrender given by the Mississauga; (3) that the Six Nations received possession of all of the land given to them by the British Imperial Crown intended for their use and occupation in the Haldimand Proclamation and the Simcoe Patent and that the Simcoe Patent did not grant any interest in the riverbed between the banks of the Grand River; (4) and that at meetings held from July 24 to 26, 1797, the Six Nations Council had authorized the surrender for sale of 381,480 acres of land to the Crown [*emphasis is mine below*]:

77. This Defendant denies that the Haldimand Proclamation constitutes a treaty within the meaning of section 35 of the Constitution Act, 1982 and says that it was a unilateral declaration by the British Imperial Crown that certain lands would be allocated to the Six Nations.

78. Both the Haldimand Proclamation and the Simcoe Patent use clear and unambiguous language linking the grant to the Six Nations to the surrender given by the Mississauga. Furthermore, while the instruments provided to the Six Nations are commonly referred to as the “Haldimand Proclamation” of October 25, 1784, and “Simcoe Patent” of January 14, 1793, this Defendant specifically denies that these instruments are, respectively, a proclamation or patent.

79. The Simcoe Patent fully implemented the British Imperial Crown’s intention to make lands available within the colony to the Six Nations for settlement. This Defendant says that the Six Nations received possession of all of the land given to them by the British Imperial Crown intended for their use and occupation in the Haldimand Proclamation and the Simcoe Patent. The Simcoe Patent did not grant any interest in the riverbed between the banks of the Grand River.

79.1 This Defendant specifically denies that the Haldimand Proclamation and Simcoe Patent had the effect of creating a “reserve” for the Six Nations or that these instruments gave rise to an obligation on the British Imperial Crown, the Province of Upper Canada, the Province of Canada or this Defendant to set the lands apart as a “reserve” as described at paragraphs 14.1 to 15.1 of the Statement of Claim.

79.2 Rather, the Simcoe Patent officially confirmed a grant made collectively to the Six Nations and imposed limitations on the disposal of lands by the Six Nations to anyone but the Crown, under penalty of lawful repossession, by the Crown for itself, its heirs, and successors. The grant did not create, in the 18th century, a “reserve” as the term is understood today, nor did the Six Nations’ interest in the lands give rise, at the time, to the specific Crown duties that developed through policy and legislation in the latter part of the 19th century, as further described below.

...

81.1 In 1950, certain issues concerning the liability of His Majesty the King in Right of Canada to the Six Nations for any damages incurred prior to the Act of Union, 1840, were determined in *Miller v. The King*, (1950] S.C.R. 168, affirming [1948] Ex. C.R. 372. From 1950 until 1995 when the Statement of Claim in this action was issued, the Plaintiff did not litigate this claim. Canada does not plead this fact as a bar, but states that it is a circumstance that should be taken into consideration in

determining the existence of, or nature of, any duty or breach of duty and in fashioning an appropriate remedy for it.

Brant's Power of Attorney

81.2 In response to paragraphs 24.1 and 24.2 of the Statement of Claim, this Defendant defers to the terms of the power of attorney given to Joseph Brant by the Six Nations Council on November 2, 1796, and denies the remainder of the paragraphs. 81.3 This Defendant denies the allegations in paragraph 24.3 of the Statement of Claim and states that the Crown did not owe the alleged duties to the Six Nations at the time. The Six Nations' trustees, not the Crown, were at all times responsible for managing the mortgages, collecting payments from third party purchasers, and investing the proceeds of sale.

Blocks 1 to 6

81.4 This Defendant denies the allegations contained in paragraph 24.4 of the Statement of Claim. As outlined in paragraph 19 above, at meetings held from July 24 to 26, 1797, the Six Nations Council authorized the surrender for sale of 381,480 acres of land to the Crown (including Blocks 1-6) and maintained Joseph Brant as their representative.

...

The Claus Trust

...

82.1 In denying the allegations in paragraphs 33, 34, and 35 of the Statement of Claim, this Defendant states, as outlined in paragraphs 35 to 35.2 above, that the 1830 Executive Council Committee did not find that William Claus had misappropriated or mismanaged trust funds. To the contrary, it found that William Claus had served reluctantly as a trustee appointed by the Six Nations for years; and that during his service there was never a complaint from the Six Nations; that he would not have failed to render accounts upon request of the Six Nations; and that it was likely such accounts were rendered and in their possession. The 1830 Executive Council Committee concluded that in the "whole of these proceedings it is material to consider in reference to the manner in which the Trust has been performed by Colonel Claus, as he vindicates himself distinctly and with earnestness upon the several points on which he heard his conduct had been questioned".

83. This Defendant says that the Plaintiff has pleaded no basis on which a fiduciary duty could be imposed on the British Imperial Crown or the Province of Upper Canada. Further this Defendant says that William Claus and John Claus were trustees appointed and instructed by the Six Nations, and that officials of the Province of Upper Canada were at all times acting upon the request of the Six Nations to assist it in the matter of recovering its records, and did so.

84. While it is denied that there was any fiduciary duty to pursue a full accounting from the Claus estate, this Defendant says that if there had been, that duty was discharged when such records as were made available by John Claus, were

provided to the Six Nations through their lawyer, and at their Council meeting held on September 28, 1831.

85. In any event, there are no such records extant today, to the knowledge of this Defendant, which would permit such an accounting to be done, except those already in the possession of the Plaintiff.

85.1 In denying the allegations in paragraph 33.1, this Defendant states, as indicated in paragraph 26 above, that the Six Nations granted the 4,000 acres to Williams Dickson for his past professional services to them and as a retainer “to transact all necessary business on their behalf.”

85.2 In response to the allegations in paragraph 36 of the Statement of Claim, which are denied, this Defendant states, as outlined in paragraphs 38 to 40.1 above, that the Crown sought and received the Six Nations’ acceptance of John Claus’ offer to transfer his Innisfil and East Hawkesbury lands and Catherine Claus’ East Hawkesbury lands. These lands were transferred to trustees Baby, Dunn, and Markland, whose appointments were unanimously approved by the Six Nations Council in April and June 1830, as outlined in paragraph 35.2, above.

86. With respect to the allegation at paragraph 37 of the Statement of Claim, this Defendant denies that the British Imperial Crown or the Province of Upper Canada owed any such duty as a fiduciary. Officials of the Province of Upper Canada were requested by the lawyer of the Six Nations to act with respect to the accounts, and did so, after consulting with the Six Nations as to the settlement.

87. In the alternative, if there was any such fiduciary duty, which is denied, officials of the Province of Upper Canada discharged the obligation in a manner consistent with the standards of the day by using reasonable efforts in the best interests of the Plaintiff by negotiating the repayment of the debt, in difficult circumstances, with the result that there was a substantial if not complete retirement of the debt.

87.1 This Defendant denies the allegations in paragraph 38 and 39 of the Statement of Claim and states, as outlined in paragraphs 40 and 42 above, that on September 15, 1838, the Six Nations requested that the Innisfil and East Hawkesbury lands be sold because they were unproductive and subject to taxes. The Executive Council determined that the terms of sale offered “appear to be advantageous” to the Six Nations. The trustees held these lands on behalf of the Six Nations.

87.2 This Defendant admits the allegations in paragraph 40 of the Statement of Claim.

87.3 In response to the allegations in paragraph 41 of the Statement of Claim, this Defendant admits that the Province of Upper Canada undertook the defence of the action in Dickson and Gross (referred to in paragraph 40 of the Statement of Claim) and the costs of the action and other expenses were paid out of the Six Nations’ trust, but denies the remainder of the paragraph.

87.4 In response to the allegations in paragraph 42 of the Statement of Claim, this Defendant admits that the Crown withdrew £5,000 from the Six Nations trust to

pay the beneficiaries of the Colonel William Claus' estate but denies the remainder of the allegations in that paragraph.

Block 5 (Selkirk Mortgage)

...

89. The Selkirk mortgage was negotiated and arranged by William Dickson with Selkirk's agent. Responsibility for collecting payments was given to the Six Nations Appointed Trustees.

90. After 1831, trustees Baby, Dunn, and Markland made many attempts to collect payments and were partially successful. The mortgage was otherwise uncollectible. Historical documents relating to the collection of the mortgage are in the possession of the Plaintiff, or are available in archives to the Plaintiff, as they are to the Defendants; or they no longer exist.

Block 6 (Canby Mortgage)

...

92. This Defendant says that the mortgage was a private matter between the estates of the parties to the mortgage, not involving the Crown or the Six Nations.

Welland Canal Flooding

92.1 In response to paragraphs 44 to 50 of the Statement of Claim, this Defendant says the following:

92.2 In 1829, the Directors of the Welland Canal Company (the "WCC") resolved to build a dam upstream from the mouth of the Grand River for the purpose of a feeder canal to provide water to the Welland Canal. The Lieutenant Governor consented to the construction of the dam and the Six Nations were advised that the directors of the WCC would compensate all persons who sustained any loss from resulting flooding. The dam was constructed in 1829. The height of the dam was periodically raised between 1829 and approximately 1835.

92.3 In 1834, Lewis Burwell, Deputy Provincial Land Surveyor of Upper Canada, reported on his survey of lands flooded by the dam. He found that, as of 1834, a total of 2,393.65 acres had been flooded in the Townships of Cayuga and Dunn, and deducted 400 acres, which were private property. On this basis, he calculated that the WCC should pay compensation to the Six Nations for the remaining 1993.65 acres of flooded land.

92.4 Various attempts were made to value the lands flooded by the construction of the dam. James Cowan, an arbitrator with the Dominion Board of Arbitrators, considered this question in 1882 using 1842 land values to conclude that the average price per acre was \$4.23, making the total value of the 1993.65 acres flooded \$28,672.67.

92.5 Six Nations received compensation for improvements damaged by flooding, but did not receive compensation for the flooded land itself. PostConfederation, it was unclear whether it was the Crown in right of Canada or of Ontario that was to

be responsible for the outstanding flooding-related damage. On behalf of Six Nations, the Dominion of Canada presented the Welland feeder canal claim against the provinces of Ontario and Quebec before the Dominion Board of Arbitrators in 1895. Six Nations' claim was dismissed by the arbitrators without reasons.

92.6 From 1895 onwards, compensation for the flooded lands was still not paid by either Canada or Ontario. This Defendant says that as a matter of honour of the Crown principles, the lapse in time that occurred after the 1895 arbitration does warrant an appropriate remedy that is reconciliatory, reparative of the damage as it relates to this Welland feeder canal claim, and restorative of the Crown-Six Nations relationship. Any such remedy must be fashioned in the context of this case as a whole and requires an analysis of the pre-Confederation context referred to in paragraphs 59 and 79.3 to 79.7 above in order to determine: the nature and scope of the Crown duty or obligation that arose; the nature and circumstances of the breach; the remedy warranted by the breach; and if such liability is shared, which respective level of government bears the burden of responsibility for any such remedy or any proportion thereof.

92.7 In particular response to paragraph 44 of the Statement of Claim, this Defendant says that at most 2,400 acres of lands flooded by the dam were Six Nations' lands and that no Six Nations' lands were flooded in relation to the feeder canal and Dunnville Dam.

93. In 1950, issues raised in this Welland feeder canal claim were adjudicated by the Supreme Court of Canada in Miller v. The King, [1950] S.C.R. 168, affirming [1948] Ex. C.R. 372. The petition was dismissed because it did not assert any valid grounds upon which Canada could be held liable for actions that took place prior to 1840. From 1950 until 1995, when the Statement of Claim in this action was issued, the Plaintiff did not litigate this claim. Canada does not plead this fact as a bar, but states that it is a circumstance that should be taken into consideration in determining the existence of or nature of any duty or breach of duty and in fashioning an appropriate remedy for it.

93.1 In response to paragraph 47.1 of the Statement of Claim, this Defendant admits that the Six Nations were not compensated for the flooded lands, as indicated in paragraphs 92.5 to 92.7 above, and denies the remainder of the paragraph.

94. In any event, if there is any Crown liability for damages or other remedies for this claim, it is not the liability of this Defendant.

The Grand River Navigation Company

...

96. While it is admitted that Colborne recommended the investment to the Six Nations, it was believed that the stocks would be profitable and that the project would greatly enhance the value of Six Nations' lands. The investment was made with the knowledge and consent of the Six Nations.

97. In any event, His Majesty the King in Right of Canada paid the Six Nations the sum of \$164,938.61 between 1925 and 1932 by way of improvements to its reserve.

...

99. This Defendant denies the allegations in paragraphs 54 and 55 of the Statement of Claim and states that the land was patented to the Grand River Navigation Company ("GRNC") pursuant to Article III of An Act to Incorporate a Joint Stock Company, to Improve the Navigation of the Grand River, Chap. XIII. 2nd Year William IV, 1832.

100. The GRNC compensated the Six Nations for the land by crediting the Six Nations' account for subscribed shares in the amount of £368.14 provincial currency.

101. In 1950, issues raised in this GRNC appropriation claim were adjudicated by the Supreme Court of Canada in *Miller v. The King*, [1950] S.C.R. 168, affirming [1948] Ex. C.R. 372. The petition was dismissed because it did not assert any valid grounds upon which Canada could be held liable for actions before 1840. From 1950 until 1995, when the Statement of Claim in this action was issued, the Plaintiff did not litigate this claim. Canada does not plead this fact as a bar, but states that it is a circumstance that should be taken into consideration in determining the existence of, or nature of, any duty or breach of duty and in fashioning an appropriate remedy for it.

...

103. This Defendant specifically denies the allegations in the Statement of Claim relating to a breach of fiduciary duty arising from surrenders of Six Nations' lands in the 1830s and 1840s. As a result of a process of consultation and consent no Six Nations' lands were sold without the consent of the Six Nations Council.

...

A. Brantford Tract and Brantford Township

105. With respect to the allegations in paragraphs 56 to 57 of the Statement of Claim, this Defendant denies that there was any duty on the Province of Canada as a fiduciary or otherwise, to sell these lands at set valuations or in accordance with sale conditions established from time to time by officials of the Province of Canada.

...

107.2 In particular response to the allegations contained in paragraph 56.2 of the Statement of Claim, this Defendant says that, in any event, the Crown took measures to protect the Grand River tract, including by investigating the circumstances of the occupation by settlers of Grand River tract lands, enacting legislation, and removing a number of them, where appropriate. With the consent of the Six Nations, lands were surrendered, surveyed, subdivided, and sold for their benefit.

B. Talbot Road Lands

108. This Defendant denies the allegations in paragraphs 58.1 to 58.11 of the Statement of Claim and says that at the time of the surrender of the Talbot Road lands, the Six Nations were aware that the lands were to be subdivided into 200 acre lots for sale, and that in any event no objection was taken to the sale of 200 acre lots at the time the lots were being sold.

109. At the time of the surrender of the Talbot Road lands or shortly thereafter, the Six Nations requested that some of the surrendered lands, be retained rather than sold, so that their “people living on either side of the Grand River would not be disturbed”. The Crown complied with this request to the satisfaction of the Six Nations, by exempting from sale lots 29 to 35 located immediately on either side of the banks of the Grand River.

109.1 On February 1, 1833, the Six Nations consented to the sale of several lots on the banks of the Grand River that had previously been exempted from sale for the establishment of a village to be located near a bridge that was to be constructed in the area. The village and bridge, respectively, were to become the Cayuga Townplot and Cayuga Bridge.

109.2 As pleaded at paragraph 60.3 above, lands south of the Talbot Road lands and forming part of Cayuga Township were surrendered on February 8, 1834.

110. In particular response to paragraph 58.11 of the Statement of Claim, this Defendant says that the Crown sought and received the consent of the Six Nations to surrender lands for the purpose of establishing Talbot Road and complied with their request to retain lots on the banks of the Grand River. The Six Nations also consented to the sale of lands for the later establishment of the Cayuga Townplot. These lands were then surveyed, subdivided, and sold for the benefit of the Six Nations.

C. Hamilton/Port Dover Plank Roads Lands

...

112. The Six Nations surrendered the subject lands for sale on January 18, 1841. The Six Nations affirmed their decision to sell in their petition to the government of June 24, 1843. In the petition, the Six Nations selected lands they wished to retain for their use and occupation, and sought to have most of the balance, which included the Plank Road lots, sold. The government accepted the decision by an Order in Council of October 4, 1843. The Six Nations re-affirmed their decision to sell the subject lands at a Council meeting on December 18, 1844.

...

E. Surrenders of 1841 and Selection of Lands for the Use and Occupation of the Six Nations

115. This Defendant denies the allegations in paragraphs 63 to 73.7, particularly the allegation in paragraph 71 that the Crown granted letters patent for the Johnson Settlement lands contrary to the wishes of the Six Nations. This Defendant says that the Six Nations consented to the surrender and sale of these lands. The consent was given after the Six Nations had thoroughly discussed the

matter at various Council meetings between 1840 and 1844, and after the Crown dealt with the objections and concerns of the Six Nations. More particularly, the Six Nations consented to the sale of these lands at a Council meeting held on December 18, 1844.

116. In particular response to paragraph 73 of the Statement of Claim, it is admitted that the Crown discharged William Jarvis as Chief Superintendent of Indian Affairs following the report of the Bagot Commission. The Commission noted that it had been asserted that Jarvis had been negligent in his management of the Indian fund, and recommended that an accounting be demanded of Jarvis.

...

- [152] Consequently, despite the Supreme Court of Canada not making a final determination on the legal effect and meaning of the “Haldimand Proclamation of 1784”, this court’s legal requirement based on the doctrine of *stare decisis* is to follow the judgments, rulings, and interpretations of higher courts in Ontario. As such, this court is bound by the judgment of Arnup J.A. of the Court of Appeal for Ontario in *Isaac et al. v. Davey et al* (1975), 5 O.R. (2d) 610, who held that the “Haldimand Proclamation of 1784” and the “Simcoe Proclamation of 1793” did not transfer title in fee simple of the Haldimand Tract to the Six Nations Confederacy. However, before continuing with the defendants’ other pre-trial motions, this Provincial Offences Court did review and consider academic writings related to the defendant’s claim in respect to the “no jurisdiction motion” based on the Mohawk Nation of the Grand River’s claim of sovereignty over the Haldimand Tract for a better understanding and perspective of Aboriginal Peoples’ view of their sovereignty over the traditional lands they have occupied for over a millennia.

(18) De Facto Sovereignty Versus De Jure Sovereignty

- [153] In his tome entitled, “Sovereignty and Indigenous Peoples in North America”, (2016), Articles & Book Chapters, 2642, [Source Publication: 22:2 University of California Davis Journal of International Law and Policy 81], online: Osgoode Hall Law School of York University (Osgoode Digital Commons) website <<Sovereignty and Indigenous Peoples in North America (yorku.ca)>> or <<https://digitalcommons.osgoode.yorku.ca/scholarly_works/2642>>, Professor McNeil emphasized that it would be a mistake to conclude from the notion that sovereignty is only attributable to states embraced by European jurists which became a fundamental tenet of international law and that sovereignty could not be vested in political entities, such as Indigenous peoples, that were not states as defined and acknowledged by international law. Moreover, Professor McNeil noted that although nineteenth century international law appears to have denied state status and thus sovereignty to Indigenous peoples, it would be a mistake to conclude that these peoples were not sovereign and these peoples were not sovereign, as some jurists have concluded. Professor McNeil in his tome explains the difference between *de facto* or and *de jure* sovereignty. For sovereignty in international law Professor McNeil indicates that it is considered to be “*de jure* sovereignty”, which involves acknowledgement of sovereign status by a particular body of legally

recognized participants according to particular legal rules. When based on effective occupation of a territory by a political entity that functions as a state, this acknowledgement has a factual foundation. On the other hand, Professor McNeil classifies “*de facto* sovereignty” as the actual exercise of political authority by a ruling entity or community over an independent group of people (personal authority) or, more commonly, over a people and a geographical area (personal and territorial authority) [*emphasis is mine below*]:

IV. DE FACTO VERSUS DE JURE SOVEREIGNTY

We have seen that the notion that sovereignty is only attributable to states was embraced by European jurists and became a fundamental tenet of international law. Although leading seventeenth and eighteenth century jurists, such as Hugo Grotius, Samuel Pufendorf, and Emmerich de Vattel, tried to make the law of nations universal by appealing to natural law, by the nineteenth century most jurists acknowledged the positive sources and limited scope of international law: it was made by and applied only to states recognized as such by the existing circle of European states. For these legal positivists, sovereignty could not be vested in political entities, such as Indigenous peoples, that were not states as defined and acknowledged by international law.

Although nineteenth century international law appears to have denied state status and thus sovereignty to Indigenous peoples, it would be a mistake to conclude from this (as some jurists have) that these peoples were not sovereign. Instead, the only conclusion that should be reached from this denial is that, by some time in the nineteenth century, this body of law did not acknowledge that they were sovereign. In this context, it is essential to distinguish between de facto and de jure sovereignty.

Sovereignty in international law is de jure - it involves acknowledgement of sovereign status by a particular body of legally recognized participants according to particular legal rules. When based on effective occupation of a territory by a political entity that functions as a state, this acknowledgement has a factual foundation. In other instances, however, sovereignty is accorded or denied in international law with much less regard to the facts. The decolonization of Africa, for example, led to the admission of new states into the international community, some of which would not have qualified had prior international law standards of effective occupation been applied. More recently, Somalia effectively ceased to function as a state after the collapse of civil government there in 1991, and yet has continued to be acknowledged as a sovereign state by the international community and by international law. On the other end of the spectrum, Rhodesia effectively functioned as an independent state for about fifteen years after the Smith regime's Unilateral Declaration of Independence (UDI) in 1965, without international recognition and without being accorded sovereignty in international law. While these are twentieth century examples, they illustrate the fundamental distinction between de jure sovereignty in international law and de facto sovereignty on the ground. Clearly, the former can exist without the latter, and vice versa.

To determine whether any given political entity has de jure sovereignty, one first has to decide which body of law applies. There will usually be more than one body

of law to choose from, and the answer to the sovereignty question will vary in some instances, depending on which body of law is applied. The example of Rhodesia after the UDI in 1965 can be used to illustrate this. Although unrecognized by the international community, there can be little doubt that the white-minority regime of Ian Smith, though racist and undemocratic, exercised the effective control required for de facto sovereignty. Turning to the matter of de jure sovereignty, in international law Rhodesia was clearly not a sovereign state from 1965 to 1980, as the international community did not generally acknowledge Rhodesia's independence and the Smith regime was illegal by international standards.⁶² Likewise, in English law Rhodesia was not accorded de jure sovereignty because Rhodesian independence was rejected by the British government, and British courts decided that the UDI was illegal. Within Rhodesia, however, the courts, after some prevarication, did recognize the Constitution of 1965 and hence the legality of the Smith government, and so accorded de jure sovereignty to Rhodesia.

The Declaration of Independence by the United States in 1776 provides a North American example that is closer in time to European colonization of this part of the world. By it, thirteen British colonies declared that they, the "United Colonies are, and of Right ought to be, Free and Independent States; . . . and that as Free and Independent States, they have full Power to levy War, conclude Peace, contract Alliances, establish Commerce, and to do all other Acts and Things which Independent States may of right do." ⁶⁶ Relying on "the Laws of Nature and of Nature's God" and the "unalienable rights" that have been "endowed [on Men] by their Creator",⁶⁷ the United Colonies thus declared themselves to be members of the community of states that were acknowledged as such by the law of nations. However, it took several years of war for them to repel the British army and establish unchallenged control over their territories that amounted to de facto sovereignty. Their sovereignty was recognized by Great Britain in the Treaty of Paris in 1783, and acknowledged by other European states when they entered into diplomatic relations with the United States. These acts of recognition by subjects of the law of nations resulted in acknowledgement of the de jure sovereignty of the United States in that legal system. However, courts in the rebellious colonies and Britain were compelled to determine whether the United Colonies, in the interval between the Declaration of Independence and the Treaty of Paris, were sovereign entities for the purposes of domestic law. As in the case of Rhodesia, local courts decided they were, whereas English courts were inclined to decide they were not. De jure sovereignty was thus acknowledged in the domestic laws of the newly-declared United States, but generally denied in English domestic law. It is therefore apparent that a political entity can have de jure sovereignty in one legal system, and yet be denied de jure sovereignty in another.⁷² Unlike de facto sovereignty, de jure sovereignty is thus a relative matter. It exists only in relation to other entities that have legal personality within a particular system of law. In international law, it exists vis-a-vis other subjects that are accorded legal personality as states. A political entity is generally accorded de jure sovereignty in international law after it has been treated as a state by other states that are the subjects of that body of law. Within domestic law, acknowledgement of de jure sovereignty by the courts of a particular jurisdiction gives legal force to the exercise of sovereignty by the government whose authority is acknowledged. De jure sovereignty therefore has legal effect only in relation to the legal entities that are recognized by and are subject to the body of law acknowledging sovereignty. In positivist international

law, these are states. In domestic law, they are the natural persons, corporations, and other entities that enjoy legal personality. Entities that are not subject to a particular body of law are not bound by its acknowledgement of the de jure sovereignty of the political entity in question. In the Rhodesian context, this means that acknowledgement of de jure sovereignty by Rhodesian courts would not have bound legal persons (e.g., natural persons and corporations outside Rhodesia) and political entities (e.g., states) that were not subject to Rhodesian law. Conversely, the refusal of international law and English law to acknowledge Rhodesian de jure sovereignty could not be relied upon by legal persons within Rhodesia to avoid the exercise of jurisdiction by the government in power after the de jure sovereignty of Rhodesia had been accepted by domestic courts. Turning to North America during the period of colonization, any attempt to answer the question of whether Indigenous or European nations were sovereign at any particular time and place must take into account the distinction between de facto and de jure sovereignty. De facto sovereignty can be determined by the application of reasonably objective criteria that are as culturally neutral as possible, whereas de jure sovereignty depends on meeting the subjective criteria of a specific legal order, created within the context of a particular culture (or cultures) and designed to suit the needs of a particular political society (or societies). Because it does not stem from a specific cultural milieu and does not depend on the existence of a particular legal order, the de facto approach can be applied universally. By contrast, de jure sovereignty cannot be universal in the absence of a universally applicable body of laws. In North America during the course of European colonization, there were a number of legal orders under which de jure sovereignty might have been claimed: the law of particular Indigenous nations, inter-nation law that Indigenous nations developed to govern their relations with one another, the domestic law of colonizing European nation-states, the European law of nations (international law), and in some instances inter-societal law arising out of relations, including treaty relations, between Indigenous and European nations. I will undertake assessment of the applicability of these bodies of law in subsequent work. I will conclude this article, which as mentioned earlier is designed to create a conceptual framework for assessing claims to sovereignty in North America, by providing a clearer notion of what de facto sovereignty means.

V. DEFINING DE FACTO SOVEREIGNTY

By de facto sovereignty I mean the actual exercise of political authority by a ruling entity or community over an independent group of people (personal authority) or, more commonly, over a people and a geographical area (personal and territorial authority). This excludes what some writers, especially political economists, refer to as individual sovereignty. Individual sovereignty is the freedom or liberty of individuals to act, a freedom that is invariably constrained to some extent by the society in which they live. While not placing any lower limit on the size of a community that can exercise de facto sovereignty, the authority exercised by small units such as single nuclear families might not be regarded as political, and thus would not amount to sovereignty. Our focus is therefore on communities that are independent and large enough to exercise actual authority that is political in nature. I refer to these communities as sovereign polities. A more complete understanding of de facto sovereignty requires clarification of the terms "independent" and "political authority". This involves distinguishing between internal and external sovereignty.⁸ Internal sovereignty is the authority a polity exercises over its

members, or over its members and the territory it occupies. External sovereignty is the authority the polity exercises in relation to other sovereign polities. Internal sovereignty can be exercised in a wide variety of ways: autocratically by an absolute monarch or dictator; in an elitist manner by an oligarchy or theocracy; democratically by the people as a whole or through a representative body or bodies; and so on. The way in which authority is exercised within the polity is irrelevant insofar as the existence of de facto sovereign is concerned - what matters is that political authority is actually exercised. Moreover, internal sovereignty can be divided jurisdictionally, as it is in federal systems such as the United States and Canada. ⁸² It can also be divided by function, for example into legislative (law-making), executive (policy and administrative), and judicial (dispute-resolution) functions, as it is in polities based on European models. External sovereignty and independence go hand in hand. A polity exercises external sovereignty by asserting and maintaining its independence from other sovereign polities. It is free to choose to enter into friendly relations with them by forming alliances or negotiating treaties of peace or commerce. It can also engage in war to protect its people, its territory, and other interests against other polities. This does not mean it has to be as large or as powerful as other sovereign polities. But to have and maintain de facto sovereignty, it must act independently of other polities and not be subject to their authority. As a general rule, it would also need to act as a single unit or entity in its relations with other polities. As a consequence, external sovereignty, unlike internal sovereignty, is generally undivided. Political authority, in its internal manifestations, involves the exercise of power by a polity over its members, or over its members and the territory it occupies. Bearing in mind the challenge posed by Taiaiake Alfred in the quotation near the beginning of this article, we have to understand that power can be exercised in diverse ways in different societies and cultures. As mentioned earlier, many Indigenous societies in North America avoided the use of coercion (except in extreme circumstances) to maintain societal norms. This does not mean, however, that power was not exercised. Other sanctions, such as ridicule and ostracism, could be just as effective as coercion for exerting pressure on individuals to conform to community standards. What counts, therefore, is not the use of coercion, but the existence of standards that are generally agreed upon and followed in the community. Internal political authority also involves mechanisms for making community decisions and resolving internal disputes. While it is unlikely that any polity could remain intact without such mechanisms, their form can vary greatly. In modern polities based on European models, community decisions are generally made by representative bodies such as legislatures and by an executive or executives, and courts resolve legal disputes that cannot be otherwise settled. But many Indigenous polities have functioned very well without European-style legislatures or courts, by vesting decision making authority and dispute-resolution capacity in individuals or groups that are responsible for different aspects of the collective life of the community. Again, to determine whether a community has de facto sovereignty, what matters is the existence, not the form, of mechanisms for making community decisions and resolving disputes. External political authority involves a polity's capacity to act collectively and independently vis-d-vis other sovereign polities. ⁸⁶ Assessment of this aspect of de facto sovereignty therefore entails looking for evidence that a polity has acted collectively by defending itself against other polities, entering into treaty relations, and so on. As with internal authority, empirical evidence of actual exercise of this kind of authority is what counts.

VI. CONCLUSION

In subsequent work, I will examine evidence of the exercise of political authority by Indigenous polities in particular geographical regions, focusing on the northern plains of what are now the United States and Canada. This will make it possible to determine what polities had de facto sovereignty there during specific historical periods. We have seen, however, that de facto sovereignty is not the same as de jure sovereignty, and one can exist without the other. Moreover, a community can have de jure sovereignty under one legal order and lack it under another. Determining de facto sovereignty is therefore only the first step, after which one has to assess the validity of claims to de jure sovereignty. This involves examination of the various legal orders relevant to the North American context. However, in this context legality is not the same as legitimacy, an ethical and political issue rooted in justice as a moral imperative that takes us to the choice of law question inherent in assessing de jure sovereignty. The approach I am proposing, and plan to apply in subsequent work, therefore involves a three step process: (1) determining de facto sovereignty in a particular region; (2) assessing the validity of claims to de jure sovereignty in that region under applicable bodies of law; and (3) evaluating the legitimacy of those claims based on principles of justice. The current article provides a conceptual framework for addressing these matters in the North American context and, I would hope, in other parts of the world as well.

(19) Reconciling The Concept Of Canadian Crown Sovereignty And First Nations' Sovereignty

[154] Although the Provincial Offences Court has not been provided the power to grant the prerogative and equitable remedies that are being sought by the defendants, this court nonetheless can decide the issue of jurisdiction in respect to the prosecution of the defendants' Highway Traffic Act offences. For the other pre-trial motions that seek remedies such as injunctive relief, mandamus, or a claim of unjust enrichment related to the Haldimand Tract, the Provincial Offence Court is not the proper venue to hear or consider the defendants' request for remedies that are based on the claim that the Haldimand Tract is not part of the Province of Ontario, but part of the territory of the sovereign Mohawk nation. However, it may be helpful to outline an academic view of how Aboriginal Peoples' sovereignty can exist alongside Canadian sovereignty in order to put into proper perspective the defendants' disputed claim that the defendants' alleged Highway Traffic Act offences had occurred on the sovereign territory of the Mohawk Nation.

[155] Of assistance is Professor McNeil's academic writings. He has written extensively on the sovereignty issue with respect to indigenous peoples and their land claims. In his tome, "Shared Indigenous and Crown Sovereignty: Modifying the State Model" (2020), Articles & Book Chapters. 2815. online: Osgoode Hall Law School of York University (Osgoode Digital Commons) website <<Shared Indigenous and Crown Sovereignty: Modifying the State Model (yorku.ca)>> or https://digitalcommons.osgoode.yorku.ca/scholarly_works/2815, Professor McNeil explains that prior to European colonization, the Indigenous nations of North

America were factually independent and exercised jurisdictional control amounting to “de facto sovereignty” over their territories and peoples. Moreover, Professor McNeil notes that these Indigenous nations’ political independence was acknowledged by France and Britain, in part through the negotiation of treaties with them. On the other hand, Professor McNeil remarked that in their relations with one another, the European nations tended to act as though North America was juridically vacant – terra nullius – insofar as territorial sovereignty was concerned. In particular, Professor McNeil noted that the European nations had made preposterous claims to vast regions scarcely even explored by them on the basis of discovery, papal grants, symbolic acts of possession, royal charters, and the like, which did not take account of the presence and control of the Indigenous nations. As such, Professor McNeil concludes that the Europeans had adopted a two-faced approach to colonization, by acknowledging Indigenous sovereignty on the one hand and effectively denying it on the other, depending on whether they were dealing with Indigenous nations or fellow European nations. Professor McNeil further explained that the European nations and their successors, the United States, Mexico and Canada, were able to eventually extend their *de facto* sovereignty over all of North America [*emphasis is mine below*]:

Prior to European colonization, the Indigenous nations of North America were factually independent. Although socially and politically organized in vastly different ways than European states, they exercised jurisdictional control amounting to de facto sovereignty over their territories and peoples. Their political independence was acknowledged by France and Britain in particular, in part through the negotiation of treaties with them. At the same time, however, in their relations with one another the European nations tended to act as though North America was juridically vacant – terra nullius – insofar as territorial sovereignty was concerned. They made preposterous claims to vast regions scarcely even explored by them on the basis of discovery, papal grants, symbolic acts of possession, royal charters, and the like that did not take account of the presence and control of the Indigenous nations. The Europeans thus adopted a two-faced approach to colonization, acknowledging Indigenous sovereignty on the one hand and effectively denying it on the other, depending on whether they were dealing with Indigenous nations or fellow European nations. Eventually, of course, the European nations and their successors, the United States, Mexico and Canada, were able to extend their de facto sovereignty over all of North America. The European state system that became the basis for international law was applied, as it has been in the World generally (apart from oceans, seas, and Antarctica).

- [156] Professor McNeil also examined the issue of what had happened to the Indigenous sovereignty that had pre-dated the creation of the state system in North America in his tome, “Shared Indigenous and Crown Sovereignty: Modifying the State Model”. For Canada’s situation, Professor McNeil remarked that the concept of shared sovereignty somehow got lost in the transition from British colonies to independent nation-state, although Professor McNeil had suggested that a modification is beginning to take place in Canada where a sharing of Indigenous and Crown sovereignty can be envisaged and that International support for this development is

provided by the United Nations Declaration on the Rights of Indigenous Peoples that Canada has pledged to implement. Professor McNeil also notes that from the outset of colonization, the French and British had entered into treaties with the Indigenous peoples that acknowledged their political authority, a process that continued up to the 1920s, was renewed in the 1970s, and continues to this day. In addition, Professor McNeil remarked that even though France and Britain had claimed sovereignty vis-à-vis other European nations over the territory now known as Canada, they realized that their relations with the Indigenous nations were a separate matter, governed in part by Indigenous laws and protocols. Professor McNeil then outlines some of the treaties that were entered into that recognized the sovereignty of Indigenous nations starting in 1664, when the British had entered into the Two-Row-Wampum (Kaswehnta or Guswhenta) Treaty with the Haudenosaunee at Albany, by which they had agreed to respect each other's independence. Then after the British Crown acquired New France and issued the Royal Proclamation of 1763, Sir William Johnson, the Superintendent of Indian Affairs for the Britain's northern district, met with numerous Indigenous nations at Niagara in 1764, where he read the Royal Proclamation and negotiated a treaty that respected their protocols and, among other things, "gave treaty recognition to the nation-to-nation relationship between the First Nations and the British Crown." More importantly, Professor McNeil indicated that the Supreme Court of Canada in 1990 in *R. v. Sioui*, likewise acknowledged the independence of the Indigenous nations in what is now Eastern Canada during the colonial period when France and Britain claimed sovereignty vis-à-vis Europeans. However, Professor McNeil had recounted with incredulity that one week after deciding *R. v. Sioui*, the Supreme Court of Canada had delivered its unanimous judgment in *R. v. Sparrow*, in which it had declared that "there was from the outset never any doubt that sovereignty and legislative power ... vested in the Crown". However, Professor McNeil has noted that more recently, the Supreme Court has begun to exhibit some discomfort with the notion that the Crown could acquire sovereignty by mere assertion that had been confirmed by a treaty with the United States. In two decisions released simultaneously in 2004, *Haida Nation v. British Columbia (Minister of Forests)* and *Taku River Tlingit First Nation v. British Columbia (Project Assessment Director)*, Professor McNeil remarked that the Supreme Court, for the first time, had acknowledged "pre-existing Aboriginal sovereignty" and had referred to Crown sovereignty as "de facto", and said that the promise of rights recognition in s. 35 of the *Constitution Act, 1982* "is realized and sovereignty claims reconciled through the process of honourable negotiation" [emphasis is mine below]:

What, then, happened to the Indigenous sovereignty that pre-dated this state system? Did it disappear, or was it somehow taken into account and incorporated into the body politic of what became the United States and Canada? As these questions were addressed earlier and more explicitly in the United States, this paper begins with a discussion of how American jurisprudence modified the Westphalian model to make space for continuing Indigenous sovereignty. Turning to Canada, I suggest that an equivalent modification is beginning to take place here, so a sharing of Indigenous and Crown sovereignty can be envisaged. International support for this development is provided by the United Nations

Declaration on the Rights of Indigenous Peoples that Canada has pledged to implement.

...

Although Canada, like the United States, is a federal state, the concept of shared sovereignty somehow got lost in the transition from British colonies to independent nation-state. Perhaps this was due to the concept of a unified Crown in which complete sovereignty is thought to be vested – the federal and provincial governments act on its behalf but, in theory, the Crown is a single legal entity that F.W. Maitland described as “a corporation sole.” Despite the unreality of this concept in a nation where the federal and provincial governments enter into contracts and sue one another in court, it has remained remarkably tenacious. Nonetheless, the notion of a single sovereign in Canada from which all governmental authority is derived is inconsistent with our history. From the outset of colonization, the French and British entered into treaties with the Indigenous peoples that acknowledged their political authority, a process that continued up to the 1920s, was renewed in the 1970s, and continues to this day. Although France and Britain claimed sovereignty vis-à-vis other European nations over the territory now known as Canada, they realized that their relations with the Indigenous nations were a separate matter, governed in part by Indigenous laws and protocols. In 1664, the British entered into the Two-Row-Wampum (Kaswehnta or Guswhenta) Treaty with the Haudenosaunee at Albany, by which they agreed to respect each other’s independence. In 1701, France negotiated a treaty of peace and alliance with forty sovereign Indigenous nations, an event that historian Gilles Havard describes as “a triumph for Amerindian diplomatic customs.” In 1764, after the British Crown acquired New France and issued the Royal Proclamation of 1763, Sir William Johnson, the Superintendent of Indian Affairs for the Britain’s northern district, met with numerous Indigenous nations at Niagara, where he read the Proclamation and negotiated a treaty that respected their protocols and, among other things, “gave treaty recognition to the nation-to-nation relationship between the First Nations and the British Crown.”

In 1990 in R. v. Sioui, the Supreme Court of Canada likewise acknowledged the independence of the Indigenous nations in what is now Eastern Canada during the colonial period when France and Britain claimed sovereignty vis-à-vis Europeans. For a unanimous Court, Justice Lamer (as he then was) said:

The mother countries did everything in their power to secure the alliance of each Indian nation and to encourage nations allied with the enemy to change sides. When these efforts met with success, they were incorporated in treaties of alliance or neutrality. This clearly indicates that the Indian nations were regarded in their relations with the European nations which occupied North America as independent nations. The papers of Sir William Johnson (The Papers of Sir William Johnson, 14 vol.), who was in charge of Indian affairs in British North America, demonstrate the recognition by Great Britain that nation-to-nation relations had to be conducted with the North American Indians.

Lamer J. then quoted with approval a passage from in Worcester v. Georgia where the Chief Justice Marshall had said: “Such was the policy of Great Britain towards the Indian nations inhabiting the territory from which she excluded all other Europeans; such her claims, and such her practical exposition of the charters she had granted: she considered them as nations capable of maintaining the relations

of peace and war; of governing themselves, under her protection; and she made treaties with them, the obligation of which she acknowledged.” So although Britain excluded other European nations from the territories it claimed, it still considered the Indigenous peoples inhabiting these territories as nations that governed themselves. Moreover, when Britain accepted the French Capitulation of Montreal in 1760, that “was fundamentally an agreement between the French and the British which in no way prevented independent agreements between the British and the Indian nations, whether allies of the French or of the British, being concluded or continuing to exist.” In other words, treaties with France only governed relations with that nation. “It would be contrary to the general principles of law,” Lamer J. said, “for an agreement concluded between the English and the French to extinguish a treaty concluded between the English and the Hurons.” Treaties with the Indigenous nations thus operated in a separate realm – they created nation-to-nation relationships that were not affected by diplomatic dealings between European nations.

Remarkably, one week after deciding R. v. Sioui, the Supreme Court delivered its unanimous judgment in R. v. Sparrow, in which it declared that “there was from the outset never any doubt that sovereignty and legislative power ... vested in the Crown”. The Sparrow case involved the fishing rights of the Musqueam in British Columbia, where relations between the Indigenous peoples and the British were different from Eastern Canada. British sovereignty was asserted much later in British Columbia and treaties were not negotiated there, apart from the fourteen Douglas Treaties in the 1850s, involving small areas of Vancouver Island, and Treaty 8 in 1899, extending into the northeast of the province. Another difference was that the Indigenous peoples in what is now British Columbia were each smaller in population and more isolated geographically from one another than the Mi’kmaq, Haudenosaunee, Huron, Anishinaabe, and other eastern Indigenous peoples, so they did not pose a military threat to the British, either on their own or as allies of France, Britain’s colonial rival in the East. The British apparently thought they could simply assert sovereignty over the Indigenous peoples west of the Rocky Mountains, and only entered into treaties with a few of them on Vancouver Island to acquire lands for settlement. The Supreme Court apparently agreed, given the statement in Sparrow that the Crown acquired sovereignty “at the outset” (which we now know was in 1846 when a bilateral treaty with the United States “conclusively established” British sovereignty), even over the territories of the Gitksan and Wet’suwet’en, far to the north of the international boundary along 49th parallel in a region where the British were certainly not in effective occupation or control at the time.

How could Britain have acquired sovereignty over all of British Columbia in 1846 when its occupation and control was limited to small areas around isolated trading posts (e.g. Fort Langley and Fort Victoria) operated by the Hudson’s Bay Company, posts that were few and far between and located mainly in the southern part of the territory? Britain obviously did not have de facto sovereignty over the rest of the province, as that would have required effective control and the exercise of government functions. Its assertion of sovereignty was at best notional – it operated only at some abstract level and would not even have provided Britain with de jure sovereignty in the international law of the time.

More recently, the Supreme Court has begun to exhibit some discomfort with the notion that the Crown could acquire sovereignty by mere assertion, confirmed by a treaty with the United States. In two decisions released simultaneously in 2004, *Haida Nation v. British Columbia (Minister of Forests)* and *Taku River Tlingit First Nation v. British Columbia (Project Assessment Director)*, the Court, for the first time, acknowledged “pre-existing Aboriginal sovereignty”, referred to Crown sovereignty as “de facto”, and said that the promise of rights recognition in section 35 of the Constitution Act, 1982 “is realized and sovereignty claims reconciled through the process of honourable negotiation.” But if the Indigenous nations of British Columbia were sovereign prior to Britain’s assertion of sovereignty in 1846, how could the Crown have acquired sovereignty over them and their territories without conquest and without treaties with them that recognized Crown sovereignty? A possible international law answer is prescription, which involves the peaceful exercise of de facto sovereignty for a sufficiently long time, but apparently de jure sovereignty could only be acquired by prescription if the prior sovereigns acquiesced, which the Indigenous nations have not. Moreover, prescription could not have applied in 1846 because the Crown’s exercise of sovereignty did not even commence over most of the province until many years later.

- [157] But more significantly, Professor McNeil commented that due to the “act of state doctrine”, Canadian courts do not have the authority to question Crown sovereignty and that the courts are obliged to accept its reality and lack jurisdiction to rule on its legality, in his tome, “Shared Indigenous and Crown Sovereignty: Modifying the State Model”. However, Professor McNeil emphasized that the Supreme Court of Canada in *Haida Nation* seems to have realized that Crown sovereignty would not be legitimate until it is reconciled with pre-existing Indigenous sovereignty through honourable negotiations leading to treaties [*emphasis is mine below*]:

It is thus apparent that the Supreme Court has created quite a muddle for itself by acknowledging pre-existing Indigenous sovereignty while continuing to accept 1846 as the time of Crown assertion of sovereignty in British Columbia. A more accurate understanding of the legal history would be to accept that the Oregon Boundary Treaty of 1846 only settled the territorial claims of Britain and the United States in relation to one another. Given that the Indigenous nations were sovereign, that bilateral treaty could not have affected their territorial rights because they were not parties to it. *Crown sovereignty over British Columbia was not acquired by that treaty; instead, the Crown gradually extended its sovereignty by exercising de facto jurisdiction and control over the province. The Supreme Court acknowledged in *Haida Nation* and *Taku River* that the Crown’s sovereignty is de facto. However, due to the act of state doctrine, the courts do not have the authority to question Crown sovereignty. They are obliged to accept its reality but lack jurisdiction to rule on its legality. Nonetheless, as we have seen, the Court in *Haida Nation* seems to have realized that Crown sovereignty would not be legitimate until it is reconciled with pre-existing Indigenous sovereignty through honourable negotiations leading to treaties.*

What, then, is the situation prior to the negotiation of treaties that reconcile sovereignties, which is still the situation in most of British Columbia? It cannot be that the Westphalian model of sovereignty applies to give the Crown complete

sovereignty, as that would be inconsistent with historical reality and fundamental principles of justice and self-determination of peoples. In 1846, we have seen that Britain occupied only tiny bits of the province (Hudson's Bay Company posts) and exercised no jurisdiction whatsoever over the Indigenous peoples. Consequently, Indigenous law and governmental authority must have continued unabated – there was simply no other law and authority in place. In other words, Indigenous sovereignty was maintained, alongside Crown sovereignty that was limited to miniscule areas. Over the second half of the 19th century, the Crown gradually extended its jurisdiction over most of province, acquiring de facto sovereignty, as the Supreme Court recognized in *Haida Nation* and *Taku River*. But this does not mean Indigenous sovereignty was entirely displaced. Despite infringements on their sovereignty by the application of provincial and federal laws, such as hunting and fishing laws and the Indian Act, Indigenous nations continued to govern themselves and follow their own laws, albeit clandestinely in many cases. In *Campbell v. British Columbia*, Justice Williamson decided that the Indigenous peoples' inherent right to govern themselves has continued and not been extinguished.

- [158] As a result of Crown acquisition of sovereignty, Professor McNeil also notes that Indigenous nations have no doubt lost their authority to engage in relations with foreign states, given that the international community has acknowledged Crown sovereignty over Canada. But as both a practical and a legal matter, Professor McNeil indicates that the Indigenous nations must have retained some of their sovereignty, but this Indigenous sovereignty is internal rather than external. Moreover, Professor McNeil remarked that the pre-existing governmental authority of the Indigenous peoples continues and is recognized and affirmed by s. 35 of the Constitution Act, 1982. Therefore, Professor McNeil concludes that s. 35 provides constitutional space and protection for the inherent governmental authority that Indigenous nations have as a result of their pre-colonization sovereignty. Furthermore, Professor McNeil noted that European assertions of sovereignty and the incorporation of the Indigenous peoples into the United States had diminished their sovereignty so they could no longer interact with foreign states, but it did not take away their internal sovereignty. Professor McNeil also indicated that it was likewise in Canada, where the inherent right of the Indigenous peoples to govern themselves is limited by the concept of sovereign incompatibility, it nevertheless has continued to this day *[emphasis is mine below]*:

So as both a practical and a legal matter, the Indigenous nations must have retained some of their sovereignty. As a result of Crown acquisition of sovereignty, they have no doubt lost their authority to engage in relations with foreign states – given that the international community acknowledges Crown sovereignty over Canada, Indigenous sovereignty is internal rather than external. How, then, is sovereignty shared internally? Federal and provincial powers are listed in sections 91 and 92 of the Constitution Act, 1867. But as decided by Williamson J. in *Campbell*, that Act did not exhaustively distribute governmental powers. The pre-existing governmental authority of the Indigenous peoples continued and was recognized and affirmed by section 35 of the Constitution Act, 1982. Unlike sections 91 and 92, that section does not enumerate the powers of Indigenous

governments; instead, it provides constitutional space and protection for the inherent governmental authority that Indigenous nations have as a result of their pre-colonization sovereignty. As Chief Justice Marshall acknowledged in Johnson v. M'Intosh and Worcester v. Georgia, prior to European colonization that authority was complete because the Indigenous nations were sovereign. European assertions of sovereignty and the incorporation of the Indigenous peoples into the United States diminished their sovereignty so they could no longer interact with foreign states, but it did not take away their internal sovereignty. Likewise in Canada, the inherent right of the Indigenous peoples to govern themselves, while limited by the concept of sovereign incompatibility, has continued to this day.

- [159] In addition Professor McNeil also discussed in his tome the effect of s. 35 of the Constitution Act, 1982, and indicated that s. 35 has resulted in a major shift in Canadian constitutional law. And, prior to its enactment, Professor McNeil remarked that Parliament had enjoyed complete legislative authority over Indigenous peoples and their rights, equivalent to the plenary power of Congress in the United States, but that since 1982, the rights recognized and affirmed by that section can no longer be extinguished unilaterally, even by Parliament, and infringement requires justification. Moreover, Professor McNeil indicated that the shared sovereignty that had pre-dated s. 35 has, therefore, been constitutionalized, providing the Indigenous peoples with substantial protection for their governmental authority [*emphasis is mine below*]:

However, because the Crown has sovereignty, Parliament and the provincial legislatures also have governmental authority over Indigenous territories. Their authority, as defined by sections 91 and 92, is concurrent with Indigenous governmental authority, so federal and provincial laws can apply in Indigenous territories, in the absence of conflict with Indigenous laws. In the event of conflict, Indigenous laws should prevail because Indigenous sovereignty is protected by section 35. For federal or provincial laws to prevail over Indigenous laws, the Crown would have to prove that, in the circumstances, this is a justifiable infringement in accordance with the test established by the Supreme Court in Sparrow, which requires proof of a valid legislative objective and respect for the Crown's fiduciary obligations towards the Indigenous peoples.

Section 35 has resulted in a major shift in Canadian constitutional law. Prior to its enactment, Parliament enjoyed complete legislative authority over Indigenous peoples and their rights, equivalent to the plenary power of Congress in the United States. Since 1982, the rights recognized and affirmed by that section can no longer be extinguished unilaterally, even by Parliament, and infringement requires justification, which the Crown, as far as I know, has only been able to succeed in proving in one instance. The shared sovereignty that pre-dated section 35 has thus been constitutionalized, providing the Indigenous peoples with substantial protection for their governmental authority.

(20) United Nations Declaration on the Rights of Indigenous Peoples Act, S.C. 2021, c. 14

- [160] Although the United Nations Declaration on the Rights of Indigenous Peoples is not binding as a treaty in Canada, it is incorporated into Canada's domestic positive law by the United Nations Declaration on the Rights of Indigenous Peoples Act, S.C. 2021, c. 14, which states that the United Nations Declaration on the Rights of Indigenous Peoples provides a framework for reconciliation. This Canadian legislation came into effect by royal assent on June 21, 2021, and advances the implementation of the Declaration as a key step in renewing the Government of Canada's relationship with Indigenous peoples. In addition, the purpose of this Act is to affirm the Declaration as an international human rights instrument that can help interpret and apply Canadian law and also provides a framework to advance implementation of the Declaration at the federal level.
- [161] In regards to the United Nations Declaration, Professor McNeil in his tome, discusses the implication of this Declaration with respect to Canada's obligations to its indigenous peoples and explains that even though the United States and Canada initially voted against the Declaration, President Obama in 2010 announced that the United States would support it, and Canada in the same year provided weak acceptance. Furthermore, Professor McNeil commented that the concept of absolute state sovereignty is gradually being eroded as Indigenous nations in North America challenge its imposition on them and demand acknowledgement of their sovereignty. However, with rare exceptions – the Haudenosaunee Confederacy is one – they are not asserting their independence from the United States or Canada. Instead, they are generally willing to share sovereignty with the governments of these states. Professor McNeil also notes that even though the United States Supreme Court acknowledged internal Indigenous sovereignty early on, the Court's later invention of congressional plenary power over the Indian nations has diminished Indigenous sovereignty by making it vulnerable to the legislative will of Congress. Fortunately, Professor McNeil observed, Canada had moved away from parliamentary supremacy over the Indigenous peoples when s. 35 was included in the Constitution in 1982, though the justifiable infringement doctrine does provide a way for legislatures to impinge on Indigenous sovereignty in some situations. Nonetheless, shared sovereignty is now a constitutional reality in Canada opines Professor McNeil. Moreover, Professor McNeil indicates that the Westphalian model of complete state sovereignty has never applied in North America, as is evident from the nation-to-nation relationships developed with the Indigenous peoples by treaty and other dealings. Professor McNeil also concluded that the United Nations, by adopting the Declaration on the Rights of Indigenous Peoples, has acknowledged that internal sovereignty has to be shared with Indigenous peoples [*emphasis is mine below*]:

The UN General Assembly adopted the United Nations Declaration on the Rights of Indigenous Peoples (Declaration) on September 13, 2007. Although the United States and Canada initially voted against the Declaration, in 2010 President Obama announced that the United States would support it, and Canada in the same year provided weak acceptance. The Trudeau government went further in 2016 by endorsing it without qualification and promising to implement it.

Several articles in the Declaration are relevant to our discussion because they appear to endorse the concept of shared sovereignty. Article 3 states that “Indigenous peoples have the right to self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.” The right to “freely determine their political status” must mean that they have the right to govern themselves. This is explicitly confirmed in article 4: “Indigenous peoples, in exercising their right to self-determination, have the right to autonomy or self-government in matters relating to their internal and local affairs, as well as ways and means for financing their autonomous functions.” Article 5 provides in part that “Indigenous peoples have the right to maintain and strengthen their distinct political, legal, economic, social and cultural institutions” (this is repeated in article 20, with slightly different wording, with “develop” in place of “strengthen”). This implies that, if the authority of their political institutions has been restricted, their right to self-determination includes the right to re-assert their governance authority. Article 18 states: “Indigenous peoples have the right to participate in decision-making in matters which would affect their rights, through representatives chosen by themselves in accordance with their own procedures, as well as to maintain and develop their own indigenous decision-making institutions.” These representative institutions are obviously governmental in nature, as they have authority to participate in decision-making in relation to rights. Article 33(2) provides that “Indigenous peoples have the right to determine the structures and to select the membership of their institutions in accordance with their own procedures.” “Institutions” in this article must include “political institutions” in accordance with articles 5 and 20 (above). Article 34 acknowledges the right of Indigenous peoples “to promote, develop and maintain their ... judicial systems and customs”, thereby recognizing that they have governance authority in relation to enforcing their own laws. Article 37(1) provides that “Indigenous peoples have the right to the recognition, observance and enforcement of treaties, agreements and other constructive arrangements concluded with States or their successors and to have States honour and respect such treaties, agreements and other constructive arrangements.” As we have seen, early treaties in what are now the United States and Canada acknowledged Indigenous sovereignty and created nation-to-nation relationships. Articles 41 and 42 impose obligations on the United Nations to contribute to the realization of the Declaration’s provisions and to promote respect for the rights contained therein.

Taken as a whole, the Declaration’s provisions provide strong acknowledgment of the right of Indigenous peoples to govern themselves, but only within the confines of the state that encompasses them. This is made clear at the end of the Declaration in article 46, which provides in part: “Nothing in this Declaration may be ... construed as authorizing or encouraging any action which would dismember or impair, totally or in part, the territorial integrity or political unity of sovereign and independent States.”

The Declaration is consistent with the American concept of shared sovereignty (though probably not with the plenary power of Congress) that has been accepted by the Supreme Court ever since Chief Justice Marshall’s decisions in the 1820s and ’30s. Justifiable infringement aside, it is also consistent with the interpretation of Canadian constitutional law presented in this paper. The Declaration thus

provides international confirmation of the continuing internal sovereignty of the Indigenous peoples in North America.

Conclusion

The concept of absolute state sovereignty is gradually being eroded as Indigenous nations in North America challenge its imposition on them and demand acknowledgement of their sovereignty. However, with rare exceptions – the Haudenosaunee Confederacy is one – they are not asserting their independence from the United States or Canada. Instead, they are generally willing to share sovereignty with the governments of these states.

Although the United States Supreme Court acknowledged internal Indigenous sovereignty early on, the Court's later invention of congressional plenary power over the Indian nations has diminished Indigenous sovereignty by making it vulnerable to the legislative will of Congress. Fortunately, Canada moved away from parliamentary supremacy over the Indigenous peoples when section 35 was included in the Constitution in 1982, though the justifiable infringement doctrine does provide a way for legislatures to impinge on Indigenous sovereignty in some situations. Nonetheless, shared sovereignty is now a constitutional reality in Canada.

The Westphalian model of complete state sovereignty has never applied in North America, as is evident from the nation-to-nation relationships developed with the Indigenous peoples by treaty and other dealings. The United Nations, by adopting the Declaration on the Rights of Indigenous Peoples, has acknowledged that internal sovereignty has to be shared with Indigenous peoples. The challenge now is to get states to take this concept of shared sovereignty seriously and fully implement the Declaration.

(21) The “Act of State Doctrine” Does Not Permit The Provincial Offences Court To Question The Claim Of Crown Sovereignty

- [162] Professor McNeil, at pp. 11 to 12 of his tome, had commented that because of the “act of state doctrine”, the courts do not have the authority to question Crown sovereignty nor the jurisdiction to rule on its legality, and consequently, are obliged to accept its reality. Despite that, Professor McNeil has discerned that the Supreme Court of Canada in *Haida Nation* has come to realize that Crown sovereignty would not be legitimate until it is reconciled with pre-existing Indigenous sovereignty through honourable negotiations leading to treaties. Professor McNeil also noted that the Supreme Court had held in the *Haida Nation* and *Taku River* cases that the Crown's sovereignty in Canada is *de facto* [emphasis is mine below]:

It is thus apparent that the Supreme Court has created quite a muddle for itself by acknowledging pre-existing Indigenous sovereignty while continuing to accept 1846 as the time of Crown assertion of sovereignty in British Columbia. A more accurate understanding of the legal history would be to accept that the Oregon Boundary Treaty of 1846 only settled the territorial claims of Britain and the United States in relation to one another. Given that the Indigenous nations were

sovereign, that bilateral treaty could not have affected their territorial rights because they were not parties to it. Crown sovereignty over British Columbia was not acquired by that treaty; instead, the Crown gradually extended its sovereignty by exercising de facto jurisdiction and control over the province. The Supreme Court acknowledged in Haida Nation and Taku River that the Crown's sovereignty is de facto. However, due to the act of state doctrine, the courts do not have the authority to question Crown sovereignty. They are obliged to accept its reality but lack jurisdiction to rule on its legality. Nonetheless, as we have seen, the Court in Haida Nation seems to have realized that Crown sovereignty would not be legitimate until it is reconciled with pre-existing Indigenous sovereignty through honourable negotiations leading to treaties.

- [163] In Sobhuza II v. Miller, [1926] A.C. 518, the Judicial Committee of the Privy Council held that the extension of British jurisdiction by an Order in Council in Swaziland, which was a British protectorate, may be referred to as an exercise of power by an “act of State” that would be unchallengeable in any British Court [*emphasis is mine below*]:

In South Africa the extension of British jurisdiction by Order in Council has at times been carried very far. Such extension may be referred to an exercise of power by an act of State, unchallengeable in any British Court, or it may be attributed to statutory powers given by the Foreign Jurisdiction Act, 1890. This statute provided, upon the preamble that by treaty, capitulation, grant, usage, sufferance, and other lawful means, the Crown has power

- [164] Furthermore, in Vajesingji Joravarsingji Nayak vs. Secretary Of State For India, [1924] L.R. 51 1.8. 357 (J.C.P.C.), Dunedin J. reiterated that when a territory is acquired by a sovereign state for the first time that is an “Act of State” and that it matters not how the acquisition has been brought about. Moreover, Dunedin J. recounted that the acquisition may be by conquest or it may be by cession following on treaty, or it may be by occupation of territory hitherto occupied by a recognized ruler, but that in all cases the result is the same. Furthermore, Dunedin J. explained that the annexation of territory was also an “Act of State”, and that any obligation assumed under a treaty either to the ceding sovereign or to individuals is not one which “municipal Courts” are authorized to enforce [*emphasis is mine below*]:

In these consolidated appeals the three Naiks of Tanda, Chandwana and Katwada respectively, sue the Indian Government for a declaration that they are proprietors of the whole lands in the Talukas belonging to them and that they are not bound to accept a lease of the same in the terms offered to them by the Government in 1907. They admit that they are bound to pay a jammabundi or revenue contribution but contend that there the right of the Government of India ends. Their demand was refused by the District Judge and his judgment was confirmed on appeal by the High Court.

The lands in question are situated in the Panch Mahals and, previously to 1860, were in the domain of Scindia of Gwalior. On December 12 of that year Scindia

ceded this territory to the British Government by a treaty of which Article 3 is as follows:--

The Maharaja transfers to the British Government in full Sovereignty the whole of his Highness' possession in the Panch Mahals and to the south of the river Narbada also Paragna Kumghar on the Betwa river on the following conditions:--

1st. That for the lands transferred by his Highness, the British Government shall give in exchange lands of equal value calculated on both sides on the present gross revenue.

3rd. That each Government shall respect the conditions of the existing leases until their expiry, and that in order that this may be made clear to all concerned, each Government shall give to its new subjects leases for the same terms of years and on the same conditions as those which they at present enjoy.

4th. That each Government shall give both its new subjects 'Sanads' in perpetuity for the rent-free lands--the Jageers the perquisites and the hereditary claims (i.e; 'Huks and Watans') which they enjoy at present under the other Government.

Their Lordships will have occasion presently to enquire into the circumstances of an earlier date, out for the moment they pause at this date because what happened in 1860 determines the law of the case. This law was most clearly laid down in the judgment of the Board delivered by Lord Atkinson in the case of Secretary of State for India v. Bai Rajbai (1916) L.R. 42 IndAp 229: 17 Bom. L.R. 730. Their Lordships do not propose to repeat what was there said. It was no new law that Lord Atkinson laid down. The same had been held in the case of Secretary of State in Council of India v. Kamachee Boye Sahaba (1859) 7 M.I.A. 476 and Cook v. Sprigg [1899] A.C. 572. But a summary of the matter is this: when a territory is acquired by a sovereign state for the first time that is an Act of State. It matters not how the acquisition has been brought about. It may be by conquest, it may be by cession following on treaty, it may be by occupation of territory hitherto "occupied by a recognized ruler. In all cases the result is the same. Any inhabitant of the territory can only make good in the municipal Courts established by the new sovereign such rights as the sovereign has, through his officers, recognised. Such rights as he had under the rule of predecessors avail him nothing. Nay more, even if in a treaty of cession it is stipulated that certain inhabitants should enjoy certain rights, that does not give a title to these inhabitants to enforce these stipulations in the municipal Courts. The right to enforce remains only with the High Contracting Parties. This is made quite clear by Lord Atkinson at page 238, when, citing the Pangoland case of Cook V/s. Sprigg (supra), he says: "It was held that the annexation of territory was an Act of State, and that any obligation assumed under a treaty either to the ceding sovereign or to individuals is not one which municipal Courts are authorised to enforce." Their Lordships have thought it necessary so far to repeat what has been said before because the appellants counsel sought to make two points. He said that Act of State had not been pleaded before the Judge of first instance and ought not to be given effect to now. Their Lordships think that at least the appellants themselves recognised the true situation when, in paragraph

6 of the *plaint*, they say: "after the advent of the British rule the ancestors of the plaintiff used to be treated as proprietors of the estates in the same way as the other Talukdars in the Panch Mahals." But in truth no plea specifically using the words "Act of State" is required. If there existed a right, either admitted or that could be established by decree of Court, and that right it was alleged was taken by an Act of State, it would be necessary so specifically to plead, but that is not the situation. The moment that cession is admitted the appellants necessarily become petitioners and have the onus cast on them of showing the acts of acknowledgment, which give them the right they wish to be declared. The other point was that, in virtue of certain general declarations, the appellants became entitled to enforce the treaty. The general declarations will be subsequently examined. If they give a right of themselves well and good, but they can never have the effect of altering the law as above stated; that is to say, of making the appellants, so to speak, a party to the treaty with a right to enforce the conditions of the same in a municipal Court.

- [165] Furthermore, in *Post Office v. Estuary Radio*, [1968] 2 Q.B. 740 (Court of Appeal (Civil Division)), which is another English case that applied the doctrine of "act of state", the English Court of Appeal held at paras. 4 and 5, that a clear declaration from the British government that a given territory is within the Crown's dominions is binding on the courts. Furthermore, the English Court of Appeal noted that the Crown, in the exercise of its prerogative powers, was thereby asserting a claim which the courts are constitutionally bound to recognize, and the Queen's Courts, upon being informed by Order in Council or by the appropriate Minister or Law Officer of the Crown's claim to sovereignty or jurisdiction over any place, must give effect to it and are bound by it [*emphasis is mine below*]:

It still lies within the prerogative power of the Crown to extend its sovereignty and jurisdiction to areas of land or sea over which it has not previously claimed or exercised sovereignty or jurisdiction. For such extension the authority of Parliament is not required. The Queen's Courts, upon being informed by Order in Council or by the appropriate Minister or Law Officer of the Crown's claim to sovereignty or jurisdiction over any place, must give effect to it and are bound by it. (See *The Fagerness*, 1927 Probate page 311). And so, when any Act of Parliament refers to the United Kingdom or to the territorial waters adjacent there to those expressions must prima facie be construed as referring to such area of land or sea as may from time to time be formally declared by the Crown to be subject to its sovereignty and jurisdiction as part of the United Kingdom or the territorial waters of the United Kingdom, and not as confined to the precise geographical area of the United Kingdom or its territorial waters at the precise moment at which the Act received the Royal Assent. The area comprised within the United Kingdom and its territorial waters varies in any event from time to time by natural processes as parts of the coastline change by erosion or accretion. The accreting shingle bank at Dungeness is no Alsatia in which a citizen enjoys immunity from the law of the land. The area to which an Act of Parliament of the United Kingdom applies may vary too as the Crown, in the exercise of its prerogative, extends its claim to areas adjacent to the coast of the United Kingdom in which it did not previously assert its sovereignty. On the construction of

the [Wireless Telegraphy Act, 1949](#), we agree with the majority judgments of the Divisional Court in *The Queen v. Kent Justices*.

Accordingly this appeal falls to be decided upon the basis adopted by the learned judge, to wit, whether Red Sand Tower is situate within the area claimed by the Crown after 1964 as comprising the internal waters and the territorial sea of the United Kingdom. The information as to what that area is in to be found in the Territorial Waters Order in Council, 1964. ... But it is not disputed that, construing the Order in Council in the light of the Convention and the law as it was before the Order in Council came into operation, the Crown, in the exercise of its prerogative powers, was thereby asserting a claim which the courts are constitutionally bound to recognise, to incorporate within the United Kingdom that area of the sea which lies upon the landward side of the baseline (that is, internal waters) and within three nautical miles on the seaward side of the baseline (that is, the territorial sea).

- [166] Additionally, in Ryan Beaton's recent tome, "De facto and de jure Crown Sovereignty: Reconciliation and Legitimation at the Supreme Court of Canada", (2024), vol. 32, April, Constitutional Forum constitutionnel journal, 25-34, online: Constitutional Forum constitutionnel journal website <<https://journals.library.ualberta.ca/constitutional_forum/index.php/constitutional_forum/article/view/29371/21370>>, at pp. 26 to 31, the author remarked that the Supreme Court of Canada has long accepted sovereign claims made by the Crown and that the default position for domestic courts in other common law settler states has traditionally been that a court cannot adjudicate the sovereign claims of the state that established it. However, Beaton also noted that the Supreme Court of Canada has taken several noteworthy steps to underscore that the Crown has a sovereign legitimacy problem and (1) has claimed the authority to question sovereign claims made by the Crown; (2) has qualified Crown sovereignty in various ways, notably by speaking of "de facto Crown sovereignty"; and (3) has explicitly rejected doctrines traditionally relied upon to justify the Crown's acquisition of sovereignty through assertion. Moreover, Beaton also indicated that the Supreme Court has consistently reaffirmed the Crown's acquisition of sovereignty and underlying title from the moment of sovereignty assertion and has upheld the Crown's legal power to exercise sovereignty over unceded territory, despite the questions the Supreme Court has itself raised about the legitimacy of Crown sovereignty [*emphasis is mine below*]:

Crown Sovereignty at the Supreme Court of Canada

It should come as no surprise that the Supreme Court of Canada has long accepted sovereign claims made by the Crown. The default position for domestic courts in other common law settler states has traditionally been that a court cannot adjudicate the sovereign claims of the state that established it. Thus, in Johnson v M'Intosh, Chief Justice John Marshall of the United States Supreme Court rejected the notion that US courts might question the legitimacy of sovereign claims made by the US:

We will not enter into the controversy, whether agriculturists, merchants, and manufacturers, have a right, on abstract principles, to expel hunters from the territory they possess, or to contract their limits. Conquest gives a title which the courts of the conqueror cannot deny, whatever the private and speculative opinions of individuals may be, respecting the original justice of the claim which has been successfully asserted.... It is not for the courts of this country to question the validity of this title, or to sustain one which is incompatible with it.

Similarly, in *Coe v Common Wealth of Australia*, Justice Jacobs of the High Court of Australia stated that a challenge to a nation's sovereignty was "not cognisable in a court exercising jurisdiction under that sovereignty which is sought to be challenged."

The Supreme Court of Canada has often positioned itself along the same track. For instance, in *R v Sparrow*, the Court offered the following unequivocal statement, citing Chief Justice Marshall's reasons in *M'Intosh*:

It is worth recalling that while British policy towards the native population was based on respect for their right to occupy their traditional lands, a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that sovereignty and legislative power, and indeed the underlying title, to such lands vested in the Crown.

Yet in the same set of reasons, the Court seemed to signal a radically different tack, quoting with approval the words of Professor Noel Lyon: "Section 35 calls for a just settlement for aboriginal peoples. It renounces the old rules of the game under which the Crown established courts of law and denied those courts the authority to question sovereign claims made by the Crown." Building on this rationale in *Taku River Tlingit First Nation v British Columbia (Project Assessment Director)*, the Court offered a striking qualification of Crown sovereignty by pointedly stating that "[t]he purpose of s. 35(1) of the Constitution Act, 1982 is to facilitate the ultimate reconciliation of prior Aboriginal occupation with de facto Crown sovereignty."

That said, the ambivalence expressed by the Court in *Sparrow* reappears in similar form in the Court's 2014 reasons in *Tsilhqot'in Nation v British Columbia*. In the same paragraph, the Court states that "the doctrine of terra nullius (that no one owned the land prior to European assertion of sovereignty) never applied in Canada, as confirmed by the Royal Proclamation of 1763" but nonetheless that "[a]t the time of assertion of European sovereignty, the Crown acquired radical or underlying title to all the land in the province [of British Columbia]."

The Court here seems to understand the doctrine of terra nullius in the strict sense of a doctrine that denies any pre-existing legal rights in the land — in which case the Court can, without contradiction, reject the application of terra nullius while at the same time accept that the Crown acquired underlying title to, and sovereignty over, all the land in British Columbia through mere assertion of sovereignty. The position is then that there exist some legal rights in the land that predate the Crown's assertion of sovereignty, but that these rights are in some sense too weak to prevent the Crown's acquisition — through assertion, and even in the absence of treaty-making or conquest — of sovereignty and underlying title. And this is precisely what the Court had stated in *Delgamuukw v British Columbia*, concluding

that “aboriginal title crystallized” as a burden on underlying Crown title “at the time sovereignty was asserted.”

Put this way, however, it is clear that this conception of Aboriginal rights relies, if not on terra nullius, then on some attenuated doctrine of a hierarchy of civilizations, or at least a hierarchy of legal systems. How else could the Crown acquire sovereignty over, and underlying title to, Indigenous territories through mere assertion, in the face of “pre-existing systems of aboriginal law” that did not recognize the Crown’s acquisition of sovereignty and underlying title? If the Crown acquired sovereignty and underlying title by assertion, in the absence of treaty or conquest, then it follows that the Crown displaced pre-existing systems of Aboriginal law — at least on fundamental questions of sovereignty and underlying title — by mere assertion. To accept that conclusion, in such a manner that it would ground de jure Crown sovereignty, we must accept that the legal system asserted by the Crown is in some sense superior to pre-existing systems of Aboriginal law — a view that, historically at least, is grounded in doctrines of civilizational hierarchy that rank Indigenous societies as less advanced than those of their European colonizers.

In this respect, it is worth noting that the Supreme Court has rejected not only terra nullius, but also earlier judicial acceptance of doctrines of civilizational hierarchy. In Simon v The Queen, for instance, the Court expressly rejected the view that Aboriginal peoples lacked the capacity to enter binding treaties. The Court in Simon noted that the Nova Scotia Court of Appeal had agreed with statements of Justice Patterson in R v Syliboy, explaining why Indigenous peoples lacked the capacity to enter into treaties. Justice Patterson had concluded that “the Indians of Nova Scotia” did not have “status to enter into a treaty”, explaining that conclusion by stating, in part, that “[a] civilized nation first discovering a country of uncivilized people or savages held such country as its own until such time as by treaty it was transferred to some other civilized nation. The savages’ rights of sovereignty even of ownership were never recognized.” In Simon, Chief Justice Dickson quoted these words of Justice Patterson, finding that they “reflect[ed] the biases and prejudices of another era in our history” and that “[s]uch language is no longer acceptable in Canadian law”. As a result, Chief Justice Dickson rejected Justice Patterson’s conclusions on the capacity of Indigenous peoples to enter treaties: “With regard to the substance of Justice Patterson’s words, leaving aside for the moment the question of whether treaties are international-type documents, his conclusions on capacity are not convincing.” Chief Justice Dickson concluded that “[t]he Micmac Chief and the three other Micmac signatories, as delegates of the Micmac people, would have possessed full capacity to enter into a binding treaty on behalf of the Micmac.”

In sum, the Supreme Court of Canada has taken several noteworthy steps to underscore that the Crown has a sovereign legitimacy problem. The discussion above highlights three in particular. The Court has: (1) claimed the authority to question sovereign claims made by the Crown; (2) qualified Crown sovereignty in various ways, notably by speaking of “de facto Crown sovereignty”; and (3) explicitly rejected doctrines traditionally relied upon to justify the Crown’s acquisition of sovereignty through assertion.

At the same time, the Court has consistently reaffirmed the Crown's acquisition of sovereignty and underlying title from the moment of sovereignty assertion. In so doing, the Court is not simply making historical or empirical claims. The Court is upholding the Crown's legal power to exercise sovereignty over unceded territory, despite the questions the Court has itself raised about the legitimacy of Crown sovereignty.

Unpacking the Court's Qualifications of Crown Sovereignty

How, then, should we describe the function and significance of the Court qualifying Crown sovereignty in the way it has? As already suggested, we might say that the Court has raised questions about the legitimacy of Crown sovereignty in the absence of treaties, while continuing to uphold the legality of Crown sovereignty. In this sense, then, we can draw a rough analogy to a suspended declaration of invalidity in the case of legislation that the Court finds unconstitutional but continues to enforce in law. The Court's case law under section 35 does, however, show an increasing sense of urgency regarding the gap between the legitimacy and legality of Crown sovereignty.

The Court first addressed this gap between legitimacy and legality in Sparrow, framing the gap in terms of a collision between the federal power "to legislate with respect to Indians pursuant to s. 91(24) of the Constitution Act, 1867" and the federal duty under section 35(1) of the Constitution Act, 1982. The Court's response to the collision in Sparrow set the course for its response in all subsequent section 35 cases. Broadly speaking, there are two prongs to the Court's response: (i) declaring an increasingly stringent duty on the Crown to reach negotiated settlements, while (ii) imposing procedural constraints on exercises of Crown sovereignty, as a kind of stopgap legitimization measure, pending final settlement of treaties.

In particular, the Court stated in Sparrow that the most promising way to reconcile conflicts between federal power and federal duty is to require the Crown to justify any infringement or denial of Aboriginal rights. In cases of disagreement as to whether the Crown can justify proposed infringements or denials, the parties may ask the courts to settle the issue. This establishes a form of judicially mediated Crown sovereignty — the courts weeding out illegitimate exercises of Crown sovereignty, while allowing legitimate ones, pending negotiated solutions.

In one sense, there is nothing unusual in the courts reviewing state action for violations of constitutional rights. That is par for the course in a system of judicial supremacy. As far as rights under the Canadian Charter of Rights and Freedoms are concerned, section 1 of the Charter explicitly calls for the courts to distinguish justifiable from non-justifiable infringements. However, the doubts the Court have raised regarding the legitimacy of Crown sovereignty in the context of outstanding Aboriginal rights and title claims are what make the section 35 context unique. For the Court has framed the overarching purpose of section 35 not simply in terms of protecting constitutional rights, but rather, as noted above, in terms of reconciling "the pre-existence of aboriginal societies with the sovereignty of the Crown." Thus the judicial protection of section 35 rights, particularly the procedural safeguards discussed below, are designed to promote the overarching goal of reconciliation,

understood as the legitimization of Crown sovereignty through negotiated settlement of outstanding claims.

The following two sections retrace how the Court has developed the two-pronged approach first laid down in *Sparrow*, ratcheting up the strictness of the Crown duty to negotiate and multiplying the procedural safeguards for claimed but still “unproven” section 35 rights.

The Court urges the Crown to negotiate

The Court’s characterization of the Crown duty to negotiate has moved steadily from a duty grounded in morality, to one grounded in the honour of the Crown, to one grounded squarely in law. In 1997, the Court issued its reasons in *Delgamuukw*, with a majority of the Court concluding that Aboriginal title had not been extinguished in British Columbia following assertion of Crown sovereignty and that it now received constitutional protection under section 35 of the Constitution Act, 1982. However, for technical reasons relating to the original form of pleadings, the Court refrained from declaring that the *Delgamuukw* plaintiffs had Aboriginal title to the land they claimed. The Court thus combined judicial restraint in ordering a new trial with pressure on the Crown to negotiate in light of the Court’s broader conclusion that Aboriginal title had not generally been extinguished in British Columbia. Citing *Sparrow*, Chief Justice Lamer added that the Crown had a “moral, if not a legal, duty to enter into and conduct [...] negotiations in good faith”, with the Court acting in a supporting role through its judgments.

The language of “moral duty” was adopted three years later by the chambers judge in *Haida*, a case in which the Crown had replaced tree farm licences on territory claimed by the Haida Nation without consulting the Haida. At issue was whether the Crown had a duty to consult with the Haida about the decision to replace the licences. Although such a focused duty of consultation is considerably narrower than the duty to negotiate that was at issue in *Delgamuukw*, the chambers judge in *Haida* drew on *Delgamuukw* to conclude that the Crown had only a moral duty to consult:

In the circumstances, I conclude that the Crown does have a moral duty to consult with the Haida concerning their Aboriginal claims, in connection with the decision to replace T.F.L. 39. In *Delgamuukw* supra, in the context of encouraging the parties to settle their dispute by negotiation, Lamer, C.J.C. said this at paragraph 186: “Moreover, the Crown is under a moral, if not a legal, duty to enter into and conduct those negotiations in good faith.” I think that statement also applies to this case.

The Supreme Court of Canada went further on appeal, agreeing with the British Columbia Court of Appeal that the “government has a legal duty to consult with the Haida people.” The Court added, more broadly, that the Crown also had a duty to enter into treaty negotiations, though it avoided any explicit characterization of this broader duty as either moral or legal, stating instead that “the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims.” The Court then linked this duty to negotiate to the overarching purpose of section 35 by underscoring that “[t]reaties serve to reconcile pre-existing Aboriginal sovereignty

with assumed Crown sovereignty, and to define Aboriginal rights guaranteed by section 35 of the Constitution Act, 1982.”

The Court in Haida also explained how the duty to negotiate and the duty to consult were distinct yet related, with the duty to consult protecting those interests that are subject to negotiation while negotiations are ongoing. In particular, the Court stated that where treaties have yet to be concluded, the honour of the Crown requires the Crown “to participate in processes of negotiation. While this process continues, the honour of the Crown may require it to consult and, where indicated, accommodate Aboriginal interests.”

At issue in Haida was the split between the chambers judge and Court of Appeal about whether to characterize as “moral” or “legal” the narrower Crown duty to consult the Haida on its decision to replace a tree farm licence. One can only assume the Supreme Court made a deliberate choice to avoid explicitly characterizing the broader duty to negotiate treaties as either “moral” or “legal”, opting instead to ground this broader duty in the honour of the Crown. However, a decade later, the Court offered this gloss in Tsilhqot’in: “The Court in Haida stated that the Crown had not only a moral duty, but a legal duty to negotiate in good faith to resolve land claims.... The governing ethos is not one of competing interests but of reconciliation.” Both the narrower Crown duty to consult First Nations pending comprehensive negotiated settlements and the broader duty to pursue negotiations towards such settlements are now clearly characterized by the Court as legal duties.

Over the quarter century from Sparrow to Tsilhqot’in, the Court has thus steadily ratcheted up the urgency of its calls for the Crown to negotiate treaties where treaties have yet to be concluded — that is, where questions are most pressing about the legitimacy of “de facto” or “assumed” Crown sovereignty. Against the background of this case law, then, the primary function of these striking qualifications of Crown sovereignty is to signal to the Crown an urgency to repair the questionable foundations of its sovereign claims, at least where treaties are lacking.

The Court imposes procedural constraints on the Crown

Given the slow pace of treaty negotiations, many First Nations began turning to the courts for protection of rights they asserted but that had not yet been secured in treaties or recognized by courts. To address these concerns, the Court in Haida developed the Crown duty of consultation and accommodation. This duty serves to protect Aboriginal interests that were the subject of asserted rights, such that “[t]he Crown, acting honourably, cannot cavalierly run roughshod over Aboriginal interests where claims affecting these interests are being seriously pursued in the process of treaty negotiation and proof.” The Court distinguished the Crown fiduciary duty, applicable to established Aboriginal legal interests, from the Crown duty to consult, applicable to asserted but unproven interests.

As a result of the procedural protections developed in Haida, the courts are now positioned to review exercises of Crown sovereignty that affect Aboriginal interests subject to asserted rights, as well as exercises of Crown sovereignty that infringe established Aboriginal and treaty rights. In the specific context of Aboriginal title,

the Court in *Tsilhqot'in* recently explained in detail the current state of the law on Crown obligations under the duty to consult and accommodate, and under the Crown fiduciary duty. In particular, the Court stressed that where title is claimed but not yet established, the Crown has only a procedural duty “to consult and, if appropriate, accommodate the unproven Aboriginal interest.” This statement would apply equally to Aboriginal rights other than title.

Since *Haida*, the courts have developed considerable case law on the procedural obligations that constrain Crown exercises of sovereignty in the face of outstanding Aboriginal rights and title claims. For instance, the Court has held that the duty to consult is “not confined to decisions or conduct which have an immediate impact on lands and resources” but rather “extends to ‘strategic, higher level decisions’ that may have an impact on Aboriginal claims and rights”. The Court has also held that the duty to consult applies where the Crown exercises a power granted to it by treaty. The Court has explained that, given the collective nature of Aboriginal rights, the duty to consult is in each case owed to the appropriate collective, and the Court has given some consideration to circumstances in which individuals might have standing to assert a breach of the duty to consult. The Court has held that the Crown duty to consult may, in certain circumstances, be discharged by an administrative tribunal such as the National Energy Board.

Indeed, the Crown duty to consult, introduced in *Haida* to address situations in which Aboriginal rights were asserted but not yet established, may be displacing the Crown fiduciary duty as the Court’s preferred frame of analysis even in cases of established section 35 rights. In *Clyde River (Hamlet) v Petroleum Geo-Services Inc.*, for instance, the Court repeatedly stressed the fact that the case involved established treaty rights, yet incorporated this fact within its analysis of the Crown’s duty to consult, never mentioning the Crown fiduciary duty. This development is cause for concern for section 35 rights-holders, as the Court has repeatedly insisted that the duty to consult imposes no duty on the Crown to reach an agreement on the necessary scope of consultation with those asserting rights; the Crown may act in the face of disagreement. The power of the Crown to act in the face of disagreement as to the scope of its procedural duties under section 35 in turn raises questions about how effective the imposition of such duties can be in encouraging the Crown to pursue treaty negotiations in earnest. That said, a critique of the Court’s section 35 is beyond the scope of this paper; the intention here has been simply to describe that framework as it currently exists.

Conclusion

The procedural duties imposed on the Crown under section 35 are framed by the Court’s stated purpose for that section: “to facilitate the ultimate reconciliation of prior Aboriginal occupation with de facto Crown sovereignty.” Such “ultimate reconciliation” would, presumably, mean also the legitimization of Crown sovereignty, i.e. the perfection of Crown assertions of sovereignty. To that end, the Court has repeatedly urged the Crown, in increasingly strict terms, to negotiate treaties with First Nations who have yet to conclude them. In the meantime, the Court will impose procedural obligations on the Crown where proposed state action could negatively impact Aboriginal interests subject to asserted rights. The promise seems to be that this judicial filter will allow only legitimate, or “honourable,”

exercises of Crown sovereignty to pass, as we await “ultimate reconciliation” and legitimation of Crown sovereignty.

This regime of judicial review could be characterized as one of judicially mediated Crown sovereignty or as a procedural legitimation of Crown sovereignty. The Court has designed this regime with the stated aim of supporting the Crown in perfecting its assertions of sovereignty. In other words, the Court’s aim is to assist the Crown in repairing or establishing legitimate foundations for its assertions of sovereignty in Canada. In the meantime, the Court’s repeated qualifications of Crown sovereignty by such terms as “de facto” and “assumed” signal that the Court has to some degree withdrawn the legitimacy of Crown sovereignty, while nonetheless upholding its legality. In practical terms, this means that the courts will continue to enforce exercises of Crown sovereignty that infringe Aboriginal interests, subject to judicial review for an expanding list of procedural safeguards.

- [167] Furthermore, in Richard Spaulding’s analysis of the “act of state doctrine” in his research paper entitled, “Doctrines Of Dispossession: A Critical Analysis Of Four Rationales For The Denial Or Extinguishment Of Aboriginal Rights In Canada” (Prepared for the Royal Commission on Aboriginal Peoples, 1996), online: Government of Canada Publications website <<[Z1-1991-1-41-151-eng.pdf](https://publications.gc.ca/Z1-1991-1-41-151-eng.pdf) (publications.gc.ca)>>, at pp. 6 to 14, he commented that under English law that had been inherited by Canada, it provides that domestic courts have no authority to question the validity of an exercise of sovereign power. Furthermore, Spaulding noted that the main rationale for the “act of state doctrine” concerns the substantive mandate of the executive branch of government and that the executive is deemed authoritative because traditionally the Crown has held prerogative power in the conduct of foreign affairs. However, in contrast, Spaulding indicated that the courts which are creatures of the very sovereign authority whose validity is at issue in such matters, would be disqualified, in effect, from adjudicating such questions by their own mandate. Moreover, Spaulding remarked that except in so far as international law has been incorporated into domestic law, however, the “act of state doctrine” directs domestic courts to uphold an “act of state” even where its execution violates international law. In addition, Spaulding concluded that courts in deciding cases from formerly British colonies have held that the acquisition of territorial sovereignty by the Crown has the effect of diminishing Aboriginal sovereignty, to the extent that Aboriginal sovereignty is inconsistent with that acquired by the Crown. However, Spaulding indicated that in territories acquired by “derivative” means - i.e. by conquest or cession - the Crown’s sovereign title is treated as having been acquired from the previous Aboriginal sovereign. Furthermore, Spaulding noted that the common law doctrine of “act of state” is also subject to any constitutional constraints upon the Crown’s exercise of its foreign affairs prerogative power, including instruments such as the “Royal Proclamation of 1763”. More significantly, Spaulding remarked that Canada’s adoption in 1982 of a constitution dedicated to the supremacy of the rule of law, regulating legislative and executive exercises of state power in relation both to citizens and non-citizens, would curtail the “act of state” doctrine from 1982 forward. Spaulding also opines that to the extent that the Charter regulates by law the conduct of governments in all spheres of their activity, including

foreign affairs, the “act of state” doctrine has been abrogated in Canada; and that Part II of the Constitution Act, 1982, concerning the rights of the Aboriginal peoples of Canada, should have the same effect in so far as the “act of state” doctrine might affect rights recognized and affirmed in that Part. In sum, Spaulding indicated that the “act of state” doctrine offers no justification for the arbitrary dispossession of Aboriginal peoples by the Crown; rather it purports to bar any challenge to the validity of such conduct, placing it beyond the reach of domestic law [*emphasis is mine below*]:

1.1 Acts of state under English law

The English law inherited by Canada provides that domestic courts have no authority to question the validity of an exercise of sovereign power. When the Crown represented by the executive, for example, declares war upon another state, or annexes new territory, the courts may determine the domestic law implications of such “acts of state”, but they may not question their validity.

Institutional considerations may have some bearing, but the main rationale for the act of state doctrine concerns the substantive mandate of the executive branch of government. The executive is deemed authoritative because traditionally the Crown has held prerogative power in the conduct of foreign affairs. By contrast, it is sometimes added, the courts are creatures of the very sovereign authority whose validity is at issue in such matters, disqualified, in effect, from adjudicating such questions by their own mandate.

The legal consequence of such a mandate is profound. In effect, the doctrine curtails the law itself. Not only is the executive sole arbiter of such matters, it engages in them beyond the common law's reach, neither applying nor being governed by it. In societies subscribing to the rule of law, the act of state doctrine represents an extraordinary kind of authority.

A number of limits on the scope and exercise of the act of state power exist. International laws govern many, though not all of the matters exempted from domestic law by the doctrine. Where the act of state doctrine, for example, leaves a government free to declare war for any purpose, international law constrains resort to force for the settlement of international disputes, and proscribes (since 1945) the forcible acquisition of new territory by a state. Except in so far as international law has been incorporated into domestic law, however, the act of state doctrine directs domestic courts to uphold an act of state even where its execution violates international law.

Domestic law imposes some constraints upon the doctrine. Since the source of the doctrine is the common law, domestic courts themselves define the doctrine's scope, and decide whether or not a particular act falls within the class of matters encompassed by the doctrine. One of the doctrine's boundaries, for example, is the common law rule that “[t]here can be no act of state against British subjects on British soil”. In addition, Parliament possesses full constitutional authority to control the scope and exercise of the power, and could eliminate it altogether if it were to deem this advisable.

The doctrine is also subject to any constitutional constraints upon the Crown's exercise of its foreign affairs prerogative power, including instruments such as the Royal Proclamation of 1763. Canada's adoption in 1982 of a constitution dedicated to the supremacy of the rule of law, regulating legislative and executive exercises of state power in relation both to citizens and non-citizens, curtails the act of state doctrine from 1982 forward. In fact, to the extent that the Charter regulates by law the conduct of governments in all spheres of their activity, including foreign affairs, the act of state doctrine has been abrogated in Canada. Part II of the Constitution Act, 1982, concerning the rights of the Aboriginal peoples of Canada, should have the same effect in so far as the act of state doctrine might affect rights recognized and affirmed in that Part.

We shall return to questions concerning the basis for and limits of the act of state doctrine after reviewing the ways in which the doctrine has been applied to assertions of Aboriginal rights. At this stage, two points deserves emphasis. First, the act of state doctrine does not purport to decide the rightness or wrongness of an act of state or to justify the act legally. If the courts determine that a matter falls within the scope of the doctrine and thus outside the ambit of their review, that is all that their decision represents: it does not vindicate the act in question.

The second point to emphasize is that as an incident of the royal prerogative, the act of state doctrine is in fact "the residue of royal authority left over from a time before it was effectively controlled by law." English subjects "struggled and fought through the centuries to establish the rights of the subject to be protected from arbitrary acts of the King's servants." That struggle, which began at a time when the doctrine reserved to the monarchy unfettered power to declare any matter an act of state, was English society's contest for democracy and the rule of law. Along with other incidents of the political branch of the royal prerogative, the act of state doctrine constitutes one of the "survivals of an obsolete form of political society".

1.2 Acts of state in the law of extinguishment of Aboriginal rights

The fundamental "act of state" upon which British courts have relied in relation to Aboriginal rights is the acquisition of sovereignty, or imperium, over foreign territory:

These courts have generally held that where the Crown has officially advanced an unequivocal claim of sovereignty over a certain territory, British courts should recognize and enforce that claim without further scrutiny, regardless of the degree of control actually exerted by the government, the legal pedigree of the claim, or the presence of competing claims by other states and peoples. This is considered part of the "act of state doctrine".

A case arising in territory now within India exemplifies this application of the doctrine in the sphere of English common law known as colonial law. When the Aboriginal ruler of Tanjore died in 1855 without male heirs, the trading company representing the British Crown

in the region pronounced the ruling dynasty extinct and seized the territory for the Crown, opposing the female heir's suit to recover items of formerly sovereign property in the British courts. The Judicial Committee of the Privy Council held that

"the act so done, with its consequences, is an act of state" not open to challenge in British courts:

Of the propriety and justice of that act, neither the Court below nor the Judicial Committee have the means of forming, or the right of expressing if they had formed, any opinion. It may have been just or unjust, politic or impolitic, beneficial or injurious, taken as a whole, to those whose interests are affected. These are considerations into which their Lordships cannot enter. It is sufficient to say that, even if a wrong has been done, it is a wrong for which no Municipal Court of Justice can afford a remedy.

Building upon this foundation, courts deciding cases from formerly British colonies have held that the acquisition of territorial sovereignty by the Crown has the effect of diminishing Aboriginal sovereignty, to the extent that Aboriginal sovereignty is inconsistent with that acquired by the Crown. In territories acquired by "derivative" means - i.e. by conquest or cession - the Crown's sovereign title is treated as having been acquired from the previous Aboriginal sovereign. (Aboriginal laws are presumed to continue operating, but subject to alteration by exercise of the Crown's sovereign authority.) In territories acquired "originally" - i.e. by "peaceful settlement" - Aboriginal sovereignty is conventionally considered never to have existed, in which case the rule that Crown acquisition of sovereignty is unreviewable by the courts, plays no necessary part in the denial of Aboriginal sovereignty: see part 4, "terra nullius", below. Increasingly, however, courts reluctant to base their conclusions upon the distorted doctrine of terra nullius alone, give this rule as a reason to reject claims of continuing Aboriginal sovereignty in "settled" territories. (Similarly, this rule appears to be the basis for the qualification - often referred to in commentaries upon the continuity of Aboriginal laws in "settled" territory - that any Aboriginal laws must be consistent with the sovereignty of the Crown.)

In these cases (except where it is claimed that Aboriginal sovereignty was non-existent) the act of state doctrine plays an instrumental role in the purported extinguishment of Aboriginal sovereignty, as follows. When the Crown asserts sovereignty over a new territory in fact, the courts attribute legal meaning to the claim (i.e. the courts determine whether the Crown intends to be claiming that it has acquired sovereignty as a matter of law). The courts also attribute to the claim, legal consequences. The law governing both of these judicial determinations might be said to form part of the act of state doctrine, but the cardinal feature of the doctrine in this context concerns the latter matter, the legal consequences of the Crown's claim. This feature is the rule that the courts must accept any claim to acquisition of sovereignty by the Crown, as legally effective, such that any true claim must be treated as valid title. This rule follows from the premise that acquisition of territory is the Crown's prerogative: the Crown not only possesses authority to acquire territory; it is its own judge whether it has done so. The matter of the validity of its claim to having done so is outside the jurisdiction of the courts.

The effect of this rule in relation to Aboriginal sovereignty can be understood as having two dimensions. First, the validity of the Crown's claim to acquisition of sovereignty over Aboriginal territory is unassailable in a domestic court. Second - a corollary - any inconsistent Aboriginal claims may not be entertained. Inconsistent Aboriginal claims are not directly cancelled as a consequence of this

rule, but they are rendered void as a matter of colonial law, effectively extinguished.

It should be noted that the definition of the sovereignty acquired by the Crown is not addressed by this rule. The act of state doctrine only restricts the courts' mandate to define the nature of the Crown's sovereignty over new territory in so far as the doctrine directs the courts to give effect to the Crown's intention to acquire sovereignty. Presumably this means that where the Crown unequivocally declares that absolute sovereignty has been acquired, the courts are bound to agree, while reserving to themselves the mandate to interpret the meaning of absolute sovereignty in law. In the absence of such an unequivocal declaration, however - and such declarations are historically rare where colonial relations have developed relatively peaceably - the act of state doctrine does not tell the courts how to define the sovereignty of the Crown.

To the extent that the Crown asserts a sovereignty consistent with Aboriginal sovereignty, or that colonial law so defines the Crown sovereignty asserted, the acquisition of Crown sovereignty has no extinguishing effect. Where some such consistency exists, the acquisition has only a partial extinguishing effect, to the extent of the inconsistency between the two sovereignties. Nonetheless, upon the law attributing a meaning to Crown sovereignty inconsistent in some respect with the sovereignty of Aboriginal peoples, it is the act of state doctrine which immunizes the Crown's claim - however arbitrary its basis - from what might otherwise be the legal effect of the competing claim.

Building further upon the fundamental act of state in such cases, the jurisprudence from formerly British colonies also provides that an Aboriginal sovereign's proprietary title to lands or goods held in its sovereign capacity (generally called "public" property in English law) is necessarily inconsistent with Crown sovereignty, and is therefore extinguished upon acquisition of the latter. (These cases concern "derivative" acquisitions, in which such title is deemed necessarily to have passed to the Crown as part and parcel of the acquired sovereign title to territory. In cases of "peaceful settlement", where prior sovereignties are deemed not to have existed, neither is prior "public property".) Again, this conclusion depends also upon the courts' definition of the sovereignty acquired by the Crown, but it is the act of state doctrine that effects the purported extinguishment by barring judicial review of the Crown's action in the domestic courts.

Some British colonial precedents have taken the further step of declaring that any former proprietary interest (or equivalent right) is necessarily extinguished by Crown acquisition of territorial sovereignty. That assertion is contrary to established authority (particularly firm in Canada) which recognizes a common law presumption that the Crown will respect the private property or equivalent prior rights of the inhabitants of newly acquired territory. The erroneous assertion depends upon the act of state doctrine in the following way. As noted above, the appropriation of "public" property is considered part and parcel of the acquisition of territorial sovereignty, unreviewable by virtue of the act of state doctrine. Included in the catalogue of "acts of state", however, as an incident of the prerogative to acquire territory, is the power to confiscate the private property of aliens in a territory undergoing acquisition. If such confiscation occurs, the act of state doctrine precludes its review in domestic courts. The contention that

acquisition of sovereignty necessarily extinguishes the rights of private property of the formerly alien inhabitants - and that any subsequent proprietary claims of such persons must depend upon some act of positive recognition by the British Crown - rests on the incorrect assumption that the act of acquiring sovereignty over new territory necessarily or presumptively operates as a seizure of private property formerly held by non-subjects.

The weight of authority requires instead that some distinct act of seizure on behalf of the Crown must have been taken in the course of acquiring territorial sovereignty, for an extinguishment of this nature to occur. It should be noted, however, that should the property of Aboriginal peoples be shown to have been actually confiscated in this way, the act of state doctrine would effect an extinguishment, by shielding the seizure from investigation as to its justice or legality.

The act of state doctrine and especially its American counterpart, the political questions doctrine, also underpin - indefensibly, it will be argued here - certain judicial pronouncements that, after acquisition of Crown sovereignty, the extinguishment of Aboriginal rights unilaterally by the Crown is not governed by the law. It is true that where, in the course of acquiring sovereignty, the Crown expressly elects to reserve to itself a power to dispose of previous property rights, British courts have treated the election as part of an act of state, and have given it effect as such even after sovereignty is acquired and the Crown is otherwise subject to domestic law in the conduct of domestic affairs. But once territorial sovereignty has been acquired, the act of state doctrine, by its own terms, has no place in domestic law otherwise:

[t]he Crown's ability to deal with a territory and its inhabitants under its general authority in foreign affairs ceases after the country becomes part of the Sovereign's dominions and the inhabitants are received into its protection as British subjects.

Indeed, subject to the exception just noted, there can be no act of state against British subjects on British soil.

On one reading, these cases have simply extended the act of state doctrine so as to make it apply to a matter ordinarily subject to domestic law - the taking of private property within the realm. Without some justification for such an extension being given - and none appears in these cases - this proposition would appear not only to be arbitrary, but contrary to the foreign affairs rationale of the doctrine itself, and discriminatory against Aboriginal peoples, who, exclusively amongst the Crown's subjects, would thereby be denied recourse to the courts for the taking of their property.

On another reading of some of these cases, something "international" is presumed retained in the Crown/Aboriginal relationship after acquisition of Crown sovereignty, such as a continuing nation-to-nation relationship reflected in the allocation of legislative jurisdictions between the Crown and Aboriginal nations. Such a perspective treats both Crown and Aboriginal sovereignty as less than absolute, and the two as coexisting in one state. That perspective has been partially adopted in the United States, and would appear to have substantial merit. From that point of view, application of the act of state doctrine to Crown conduct

interfering with the "foreign" elements of Aboriginal rights, might appear, superficially, consistent with the thrust of the doctrine.

The problem with this application of the act of state doctrine in Canada, however (apart from the serious problems inherent in the doctrine itself, discussed below), is that in the perspective this latter reading depends upon, Aboriginal persons are dual citizens, not aliens; Aboriginal governments constitute one of three orders of government within Canada, not foreign governments; and one of the other two orders of government possesses a degree of shared sovereignty over Aboriginal territory, subject to constitutional constraints enforceable by the courts - including the Royal Proclamation of 1763, the succession of Imperial Orders-in Council reaffirming the Proclamation's principles and, since 1982, s. 35 of the Constitution Act, 1982. If Aboriginal territories and their inhabitants are integrated to this degree into Canada's domestic constitution, special Crown immunity for interference with Aboriginal rights on the basis of the act of state doctrine would entail the same arbitrariness and discrimination present in the extended notion of the doctrine, canvassed as the first reading of these cases above. Further recognition of an act of state prerogative of this nature for one of the partners in confederation and not another, would appear discriminatory as between nations, and contrary to the reciprocal logic of the doctrine as it has been applied to foreign states. Yet that logic works poorly in the sphere of international relations, and would invite legal chaos if incorporated into a domestic constitution. The fair and practical alternative to recognizing a reciprocal power in Aboriginal peoples and their associated states to seize each others' territory arbitrarily would be to vest no such prerogative in either partner.

To summarize, according to the jurisprudence stemming from British colonization, the conventional act of state doctrine shields from judicial review the potentially arbitrary extinguishment of any gradation of Aboriginal entitlement, from sovereignty, through "public" property belonging to Aboriginal sovereigns, to proprietary rights of a "private" nature, during the course of Crown acquisition of a new territory. In this last-mentioned instance, the cases which hold prior inhabitants' property rights so extinguished during Crown acquisition of sovereignty, in the absence of an actual seizure, are not authoritative, but Crown power to make Aboriginal peoples trespassers in their homelands by such means is guaranteed by this doctrine nonetheless. Some courts have relied upon a variation of the doctrine or its American counterpart, to exempt from the rule of law the unilateral extinguishment of any Aboriginal entitlement by the Crown, at any time after sovereignty is acquired. This line of authority, too, runs afoul of a basic tenet of colonial law, but its current influence is significant.

In all of these applications, the act of state doctrine offers no justification for the arbitrary dispossession of Aboriginal peoples by the Crown. Instead it purports to bar any challenge to the validity of such conduct, placing it beyond the reach of domestic law.

(22) The Royal Proclamation of 1763

- [168] The “Royal Proclamation of 1763”, was issued after the British defeated the French in the Seven Years’ War. After those defeats, New France was taken over by the British and the Royal Proclamation brought the new Province of Quebec under British control. The Royal Proclamation also created new territories, including the Province of Quebec and a huge Aboriginal Peoples’ reserve. The reserve was located west of the Appalachian mountain range. Settlers were not allowed to buy any of the land belonging to Aboriginal Peoples and only the British Crown could do this. Many Americans were angry at the British because they wanted this land and some 12 years after the Royal Proclamation was issued, the American Revolution began. Part of the wording of the Royal Proclamation indicates that “*the several nations or tribes of Indians with whom we are connected, and who live under our protection, should not be molested or disturbed in the possession of such parts of our dominions and territories as, not having been ceded to or purchased by us, are reserved to them, or any of them, as their hunting grounds*” [emphasis is mine below]:

And whereas it is just and reasonable and essential to our interest and the security of our colonies that the several nations or tribes of Indians with whom we are connected, and who live under our protection, should not be molested or disturbed in the possession of such parts of our dominions and territories as, not having been ceded to or purchased by us, are reserved to them, or any of them, as their hunting grounds; we do therefore...declare it to be our royal will and pleasure that no governor or commander in chief, in any of our colonies of Quebec, East Florida, or West Florida, do presume, upon any pretense whatever, to grant warrants of survey or pass any patents for lands beyond the bounds of their respective governments...

And whereas great frauds and abuses have been committed in the purchasing lands of the Indians, to the great prejudice of our interests and to the great dissatisfaction of the said Indians; in order, therefore, to prevent such irregularities for the future, and to the end that the Indians may be convinced of our justice and determined resolution to remove all reasonable cause of discontent, we...strictly enjoin and require that no private person do presume to make any purchase from the said Indians of any lands reserved to the said Indians within those parts of our colonies where we have thought proper to allow settlement; but that if at any time any of the said Indians should be inclined to dispose of the said lands, the same shall be purchased only for us, in our name, at some public meeting or assembly of the said Indians, to be held for that purpose by the governor or commander in chief of our colony, respectively, within which they shall lie.

- [169] Furthermore, the “Royal Proclamation of 1763” laid out a procedure for the future opening of portions of Aboriginal Peoples’ territory for colonization and settlement by the British Crown’s non-Indigenous subjects. Through the Royal Proclamation of 1763, the British Crown claimed dominion and sovereignty over Aboriginal Peoples’ territories and that only the British Crown could make treaties with aboriginal societies. Hence, on one hand, the Royal Proclamation appeared to protect Aboriginal Peoples’ territories from encroachment by outsiders, but on the other hand, it left the possibility for just such encroachment by the British Crown. The

King had decreed in the Royal Proclamation that no individual person or colony could purchase territory from Aboriginal Peoples and only the British Crown could negotiate treaties with the Aboriginal Peoples. Moreover, the Royal Proclamation of 1763 was affirmed by s. 35 of the Constitution Act, 1982 and the Royal Proclamation of 1763 forms the constitutional basis for Crown and Aboriginal Peoples' treaties in Canada.

(23) The Supreme Court Of Canada In R. v. Sparrow Made A Legal Determination Of Sovereignty In Respect To The Royal Proclamation of 1763

- [170] The Supreme of Canada in R. v. Sparrow, [1990] 1 S.C.R. 1075, at p. 1103, held that while British policy towards the native population was based on respect for their right to occupy their traditional lands, a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that sovereignty and legislative power, and indeed the underlying title, to such lands vested in the Crown [*emphasis is mine below*]:

It is worth recalling that while British policy towards the native population was based on respect for their right to occupy their traditional lands, a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that sovereignty and legislative power, and indeed the underlying title, to such lands vested in the Crown; see Johnson v. M'Intosh (1823), 8 Wheaton 543 (U.S.S.C.); see also the Royal Proclamation itself (R.S.C., 1985, App. II, No. 1, pp. 4 6); Calder, supra, per Judson J., at p. 328, Hall J., at pp. 383 and 402. And there can be no doubt that over the years the rights of the Indians were often honoured in the breach (for one instance in a recent case in this Court, see Canadian Pacific Ltd. v. Paul, [1988] 2 S.C.R. 654. As MacDonald J. stated in Pasco v. Canadian National Railway Co., [1986] 1 C.N.L.R. 35 (B.C.S.C.), at p. 37: "We cannot recount with much pride the treatment accorded to the native people of this country."

(24) The Legal Duty By The Crown To Consult And Accommodate

- [171] The defendants in the case at bar contend that no consultation had been conducted between the Crown and the Mohawk Nation in respect to the application of Canadian, provincial and municipal laws on the sovereign territory of the Mohawk Nation, which comprises the land designated under the "Haldimand Proclamation of 1784".
- [172] In R. v. Van der Peet, [1996] 2 S.C.R. 507, at para. 31, 49, and 50, Lamer C.J. held that the aboriginal rights recognized and affirmed by s. 35(1) of the Constitution Act, 1982 must be directed towards the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown. In addition, Lamer C.J. explained that s. 35(1) provides the constitutional framework through which the fact that aboriginals lived on the land in distinctive societies, with their own practices, traditions and cultures, is acknowledged and reconciled with the sovereignty of the Crown. Moreover, Lamer C.J. indicated that one of the fundamental purposes of s. 35(1) is

for reconciling the pre-existence of distinctive aboriginal societies with the assertion of Crown sovereignty. Accordingly, Lamer J. concluded that the definition of an aboriginal right must, if it is truly to reconcile the prior occupation of Canadian territory by aboriginal peoples with the assertion of Crown sovereignty over that territory, take into account the aboriginal perspective, yet do so in terms which are cognizable to the non-aboriginal legal system [*emphasis is mine below*]:

More specifically, what s. 35(1) does is provide the constitutional framework through which the fact that aboriginals lived on the land in distinctive societies, with their own practices, traditions and cultures, is acknowledged and reconciled with the sovereignty of the Crown. The substantive rights which fall within the provision must be defined in light of this purpose; the aboriginal rights recognized and affirmed by s. 35(1) must be directed towards the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown.

...

In assessing a claim for the existence of an aboriginal right, a court must take into account the perspective of the aboriginal people claiming the right. In Sparrow, supra, Dickson C.J. and La Forest J. held, at p. 1112, that it is "crucial to be sensitive to the aboriginal perspective itself on the meaning of the rights at stake". It must also be recognized, however, that that perspective must be framed in terms cognizable to the Canadian legal and constitutional structure. As has already been noted, one of the fundamental purposes of s. 35(1) is the reconciliation of the pre-existence of distinctive aboriginal societies with the assertion of Crown sovereignty. Courts adjudicating aboriginal rights claims must, therefore, be sensitive to the aboriginal perspective, but they must also be aware that aboriginal rights exist within the general legal system of Canada. To quote again Walters, at p. 413: "a morally and politically defensible conception of aboriginal rights will incorporate both [aboriginal and non-aboriginal] legal perspectives". The definition of an aboriginal right must, if it is truly to reconcile the prior occupation of Canadian territory by aboriginal peoples with the assertion of Crown sovereignty over that territory, take into account the aboriginal perspective, yet do so in terms which are cognizable to the non-aboriginal legal system.

It is possible, of course, that the Court could be said to be "reconciling" the prior occupation of Canada by aboriginal peoples with Crown sovereignty through either a narrow or broad conception of aboriginal rights; the notion of "reconciliation" does not, in the abstract, mandate a particular content for aboriginal rights. However, the only fair and just reconciliation is, as Walters suggests, one which takes into account the aboriginal perspective while at the same time taking into account the perspective of the common law. True reconciliation will, equally, place weight on each.

[173] Furthermore, L'Heureux-Dubé J. in her dissent in *R. v. Van der Peet*, [1996] 2 S.C.R. 507, at paras. 106, 108 to 112, 115, noted that in the eyes of international law, the settlement thesis is the one rationale which can most plausibly justify European sovereignty over Canadian territory and the aboriginal people living on it. In spite of the sovereignty proclamation, L'Heureux-Dubé J. however noted that the early

practices of the British had recognized aboriginal title or rights and had required their extinguishment by cession, conquest or legislation. As such, L'Heureux-Dubé J. reasoned that it has become accepted in Canadian law that aboriginal title, and aboriginal rights in general, derive from historic occupation and use of ancestral lands by the natives and do not depend on any treaty, executive order or legislative enactment. Moreover, L'Heureux-Dubé J. held that the traditional and main component of the doctrine of aboriginal rights relates to aboriginal title, i.e., the *sui generis* proprietary interest which gives aboriginal people the right to occupy and use the land at their own discretion, subject to the Crown's ultimate title and exclusive right to purchase the land. Moreover, L'Heureux-Dubé J. indicated that the aboriginal rights recognized and affirmed by s. 35(1) must be directed towards the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown [*emphasis is mine below*]:

It is commonly accepted that the first aboriginal people of North America came from Siberia, over the Bering terrestrial bridge, some 12,000 years ago. They found a terra nullius and gradually began to explore and populate the territory. These people have always enjoyed, whether as nomadic or sedentary communities, some kind of social and political structure. Accordingly, it is fair to say that prior to the first contact with the Europeans, the native people of North America were independent nations, occupying and controlling their own territories, with a distinctive culture and their own practices, traditions and customs.

...

At the time of the first formal arrival of the Europeans, in the sixteenth century, most of the territory of what is now Canada was occupied and used by aboriginal people. From the earliest point, however, the settlers claimed sovereignty in the name of their home country. Traditionally, there are four principles upon which states have relied to justify the assertion of sovereignty over new territories: see Brian Slattery, The Land Rights of Indigenous Canadian Peoples, as Affected by the Crown's Acquisition of Their Territories (1979). These are: (1) conquest, (2) cession, (3) annexation, and (4) settlement, i.e., acquisition of territory that was previously unoccupied or is not recognized as belonging to another political entity.

In the eyes of international law, the settlement thesis is the one rationale which can most plausibly justify European sovereignty over Canadian territory and the native people living on it (see Patrick Macklem, "Normative Dimensions of an Aboriginal Right of Self-Government" (1995), 21 Queen's L.J. 173) although there is still debate as to whether the land was indeed free for occupation. See Brian Slattery, "Aboriginal Sovereignty and Imperial Claims" (1991), 29 Osgoode Hall L.J. 681, and Michael Asch, Home and Native Land: Aboriginal Rights and the Canadian Constitution (1984).

In spite of the sovereignty proclamation, however, the early practices of the British recognized aboriginal title or rights and required their extinguishment by cession, conquest or legislation: see André Émond, "Existe-t-il un titre indien originaire dans les territoires cédés par la France en 1763?" (1995), 41 McGill L.J. 59, at p. 62. This tradition of the British imperial power (either applied directly or after French capitulation) was crystallized in the Royal Proclamation of 1763, R.S.C., 1985,

App. II, No. 1.

In R. v. Sparrow, [1990] 1 S.C.R. 1075, Dickson C.J. and La Forest J. wrote the following regarding Crown sovereignty and British practices vis-à-vis aboriginal people at p. 1103:

It is worth recalling that while British policy towards the native population was based on respect for their right to occupy their traditional lands, a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that sovereignty and legislative power, and indeed the underlying title, to such lands vested in the Crown. . . .

See also André Émond, "Le sable dans l'engrenage du droit inhérent des autochtones à l'autonomie gouvernementale" (1996), 30 R.J.T. 1, at p. 1.

As a result, it has become accepted in Canadian law that aboriginal title, and aboriginal rights in general, derive from historic occupation and use of ancestral lands by the natives and do not depend on any treaty, executive order or legislative enactment: see Calder v. Attorney-General of British Columbia, supra, at p. 390, per Hall J., confirmed in Guerin v. The Queen, [1984] 2 S.C.R. 335, at p. 379, per Dickson J. (as he then was), and Sparrow, supra; see also the decision of the High Court of Australia in Mabo v. Queensland [No. 2] (1992), 175 C.L.R. 1. See also Brian Slattery, "The Constitutional Guarantee of Aboriginal and Treaty Rights" (1983), 8 Queen's L.J. 232, at p. 242, and Peter W. Hogg, Constitutional Law of Canada (3rd ed. 1992) at p. 679. ...

The traditional and main component of the doctrine of aboriginal rights relates to aboriginal title, i.e., the sui generis proprietary interest which gives native people the right to occupy and use the land at their own discretion, subject to the Crown's ultimate title and exclusive right to purchase the land: see St. Catherine's Milling and Lumber Co. v. The Queen (1888), 14 A.C. 46 (P.C.), at p. 54, Calder v. Attorney-General of British Columbia, supra, at p. 328, per Judson J., and at p. 383, per Hall J., and Guerin, supra, at pp. 378 and 382, per Dickson J. (as he then was).

- [174] Moreover, in R. v. Van der Peet, L'Heureux-Dubé J. in her dissent, at paras. 117 to 127, describes the different type of lands on which aboriginal rights can exist, which are namely, on "reserve lands", on "aboriginal title lands", and on aboriginal right lands. L'Heureux-Dubé J. explained that the common feature of these lands is that the Canadian Parliament and, to a certain extent, provincial legislatures have a general legislative authority over the activities of aboriginal people, which is the result of the British assertion of sovereignty over Canadian territory. In addition, L'Heureux-Dubé J. held that "reserve lands" are those lands reserved by the Federal Government for the exclusive use of Indian people and that such lands are regulated under the Indian Act, R.S.C., 1985, c. I-5. More importantly, L'Heureux-Dubé J. noted that federal legislation, pursuant to s. 91(24) of the Constitution Act, 1867, as well as provincial laws of general application, pursuant to s. 88 of the Indian Act, are

applicable on “reserve lands”. And, in respect to “aboriginal title lands”, L'Heureux-Dubé J. explained that these are lands which aboriginal people possess for occupation and use at their own discretion, subject to the Crown's ultimate title (see *Guerin v. The Queen*, supra, at p. 382) and that federal and provincial legislation also applies to “aboriginal title lands”, pursuant to the governments' respective general legislative authority. Furthermore, L'Heureux-Dubé J. indicated that “aboriginal title” of this kind is founded on the common law and strict conditions must be fulfilled for such title to be recognized. In addition, L'Heureux-Dubé J. held that “aboriginal title” can also be founded on treaties concluded between the aboriginal people and the competent government. Finally, L'Heureux-Dubé J. explained that there are “aboriginal right lands” which are those lands on which only specific aboriginal rights exist (e.g., the right to hunt for food, social and ceremonial purposes) because the occupation and use by the particular group of aboriginal people is too limited and, as a result, did not meet the criteria for the recognition, at common law, of “aboriginal title”. In these cases, L'Heureux-Dubé J. held that the aboriginal rights on the land are restricted to residual portions of the aboriginal title — such as the rights to hunt, fish or trap — or to other matters not connected to land. However, L'Heureux-Dubé J. held that “aboriginal right lands” do not as a result entail the full *sui generis* proprietary right to occupy and use the land, and that both the Canadian Parliament and provincial legislatures can enact legislation, pursuant to their respective general legislative competence, that affect aboriginal activities on “aboriginal right lands” [*emphasis is mine below*]:

This brings me to the different type of lands on which aboriginal rights can exist, namely reserve lands, aboriginal title lands, and aboriginal right lands: see Brian Slattery, “Understanding Aboriginal Rights”, supra, at pp. 743-44. The common feature of these lands is that the Canadian Parliament and, to a certain extent, provincial legislatures have a general legislative authority over the activities of aboriginal people, which is the result of the British assertion of sovereignty over Canadian territory. There are, however, important distinctions to draw between these types of lands with regard to the legislation applicable and claims of aboriginal rights.

Reserve lands are those lands reserved by the Federal Government for the exclusive use of Indian people; such lands are regulated under the Indian Act, R.S.C., 1985, c. I-5. On reserve lands, federal legislation, pursuant to s. 91(24) of the Constitution Act, 1867, as well as provincial laws of general application, pursuant to s. 88 of the Indian Act, are applicable. However, under s. 81 of the Indian Act, band councils can enact by-laws, for particular purposes specified therein, which supplant incompatible provincial legislation — even that enacted under s. 88 of the Act — as well as incompatible federal legislation — in so far as the Minister of Indian Affairs has not disallowed the by-laws pursuant to s. 82 of the Act. The latter scenario was the foundation of the claims in R. v. Lewis, [1996] 1 S.C.R. 921, and partly in R. v. Nikal, supra.

*Aboriginal title lands are lands which the natives possess for occupation and use at their own discretion, subject to the Crown's ultimate title (see *Guerin v. The Queen*, supra, at p. 382); federal and provincial legislation applies to aboriginal title lands, pursuant to the governments' respective general legislative authority.*

Aboriginal title of this kind is founded on the common law and strict conditions must be fulfilled for such title to be recognized: see *Calder v. Attorney-General of British Columbia*, *supra*, and *Baker Lake v. Minister of Indian Affairs and Northern Development*, [1980] 1 F.C. 518. In fact, aboriginal title exists when the bundle of aboriginal rights is large enough to command the recognition of a *sui generis* proprietary interest to occupy and use the land. It follows that aboriginal rights can be incidental to aboriginal title but need not be; these rights are severable from and can exist independently of aboriginal title. As I have already noted elsewhere, the source of these rights is the historic occupation and use of ancestral lands by the natives.

Aboriginal title can also be founded on treaties concluded between the natives and the competent government: see *Simon v. The Queen*, [1985] 2 S.C.R. 387, and *R. v. Horseman*, [1990] 1 S.C.R. 901. Where this occurs, the aboriginal rights crystallized in the treaty become treaty rights and their scope must be delineated by the terms of the agreement. The rights arising out of a treaty are immune from provincial legislation — even that enacted under s. 88 of the *Indian Act* — unless the treaty incorporates such legislation, as in *R. v. Badger*, [1996] 1 S.C.R. 771. A treaty, however, does not exhaust aboriginal rights; such rights continue to exist apart from the treaty, provided that they are not substantially connected to the rights crystallized in the treaty or extinguished by its terms.

Finally, aboriginal right lands are those lands on which only specific aboriginal rights exist (e.g., the right to hunt for food, social and ceremonial purposes) because the occupation and use by the particular group of aboriginal people is too limited and, as a result, does not meet the criteria for the recognition, at common law, of aboriginal title. In these cases, the aboriginal rights on the land are restricted to residual portions of the aboriginal title — such as the rights to hunt, fish or trap — or to other matters not connected to land; they do not, therefore, entail the full *sui generis* proprietary right to occupy and use the land.

Both the Canadian Parliament and provincial legislatures can enact legislation, pursuant to their respective general legislative competence, that affect native activities on aboriginal right lands. As Cory J. puts it in *Nikal*, *supra* (at para. 92): "[t]he government must ultimately be able to determine and direct the way in which these rights [of the natives and of the rest of Canadian society] should interact". See also, *Calder v. Attorney-General of British Columbia*, *supra*, at pp. 328-29, per Judson J., and at p. 401, per Hall J; *Guerin*, *supra*, at pp. 377-78, *Sparrow*, *supra*, at p. 1103, and *Mitchell v. Peguis Indian Band*, [1990] 2 S.C.R. 85, at p. 109.

These types of lands are not static or mutually exclusive. A piece of land can be conceived of as aboriginal title land and later become reserve land for the exclusive use of Indians; such land is then, reserve land on aboriginal title land. Further, aboriginal title land can become aboriginal right land because the occupation and use by the particular group of aboriginal people has narrowed to specific activities. The bottom line is this: on every type of land described above, to a larger or smaller degree, aboriginal rights can arise and be recognized.

This being said, the instant case is confined to the recognition of an aboriginal right and does not involve by-laws on a reserve or claims of aboriginal title, nor does it relate to any treaty rights. The contention of the appellant is simply that the *Sto:lo*,

of which she is one, possess an aboriginal right to fish — arising out of the historic occupation and use of their lands — which includes the right to sell, trade and barter fish for livelihood, support and sustenance purposes.

Prior to 1982, the doctrine of aboriginal rights was founded only on the common law and aboriginal rights could be extinguished by treaty, conquest and legislation as they were "dependent upon the good will of the Sovereign": see St. Catherine's Milling and Lumber Co. v. The Queen, supra, at p. 54, also R. v. George, [1966] S.C.R. 267, Sikyea v. The Queen, [1964] S.C.R. 642, and Calder v. Attorney-General of British Columbia, supra; see also, regarding the mode of extinguishing aboriginal rights, Kenneth Lysyk, "The Indian Title Question in Canada: An Appraisal in the Light of Calder" (1973), 51 Can. Bar Rev. 450.

Since then, however, s. 35(1) of the Constitution Act, 1982 provides constitutional protection to aboriginal interests arising out of the native historic occupation and use of ancestral lands through the recognition and affirmation of "existing aboriginal and treaty rights of the aboriginal peoples of Canada": see Brian Slattery, "First Nations and the Constitution: A Question of Trust" (1992), 71 Can. Bar Rev. 261, at p. 263. Consequently, as I shall examine in some detail, the general legislative authority over native activities is now limited and legislation which infringes upon existing aboriginal or treaty rights must be justified.

The general analytical framework developed under s. 35(1) will now be outlined before proceeding with the interpretation of the nature and extent of constitutionally protected aboriginal rights.

- [175] In addition, the legal duty for the Crown to consult with Indigenous Peoples arises from the protection of Aboriginal and Treaty Rights set out in s. 35(1) of the Constitution Act, 1982. The purpose of such protection has been interpreted by the Supreme Court of Canada as the reconciliation of the pre-existence of Aboriginal societies with the sovereignty of the Crown. Consequently, the duty to consult is an aspect of the reconciliation process, which flows from the historical relationship between the Crown and Aboriginal people and is grounded in the "honour of the Crown". The duty arises when the Crown has knowledge, real or constructive, of the potential existence of the Aboriginal right or title and contemplates conduct that might adversely affect it. The Crown's duty to consult is proportionate to the strength of the Aboriginal claim that has been asserted; it is not a duty to agree, nor does it give Aboriginal Peoples a right to veto, but rather requires good faith on both sides and requires the Crown to make a bona fide commitment to the principle of reconciliation over litigation.

(25) Provincial Duty To Consult

- [176] In respect to the Province of Ontario's duty to consult Aboriginal Peoples, McLachlin, C.J. in Haida Nation v. British Columbia (Minister of Forests), [2004] 3 S.C.R. 511, at paras. 57 to 59, had disagreed with the Province of British Columbia's argument that any duty to consult or accommodate rests solely with the federal government, since s. 109 of the Constitution Act, 1867, which provides that "[a]ll Lands, Mines,

Minerals, and Royalties belonging to the several Provinces of Canada . . . at the Union . . . shall belong to the several Provinces”, would give it exclusive right to the land at issue and cannot be limited by the protection for Aboriginal rights found in s. 35 of the Constitution Act, 1982. McLachlin C.J. had reasoned that under s. 109 the Provinces had taken their interest in land subject to “any Interest other than that of the Province in the same”. Therefore, McLachlin C.J. held that the duty to consult and accommodate at issue is grounded in the assertion of Crown sovereignty which had pre-dated the Union, so it would necessarily follow that the Province had taken those lands subject to that duty. And, as a consequence, the province cannot now claim that s. 35 deprives it of powers it would otherwise have enjoyed. As stated in St. Catherine’s Milling and Lumber Co. v. The Queen (1888), 14 App. Cas. 46 (P.C.), at p. 59, lands in the Province are “available to [the Province] as a source of revenue whenever the estate of the Crown is disencumbered of the Indian title” [*emphasis is mine below*]:

The Province of British Columbia argues that any duty to consult or accommodate rests solely with the federal government. I cannot accept this argument.

The Province’s argument rests on s. 109 of the Constitution Act, 1867, which provides that “[a]ll Lands, Mines, Minerals, and Royalties belonging to the several Provinces of Canada . . . at the Union . . . shall belong to the several Provinces.” The Province argues that this gives it exclusive right to the land at issue. This right, it argues, cannot be limited by the protection for Aboriginal rights found in s. 35 of the Constitution Act, 1982. To do so, it argues, would “undermine the balance of federalism” (Crown’s factum, at para. 96).

The answer to this argument is that the Provinces took their interest in land subject to “any Interest other than that of the Province in the same” (s. 109). The duty to consult and accommodate here at issue is grounded in the assertion of Crown sovereignty which pre-dated the Union. It follows that the Province took the lands subject to this duty. It cannot therefore claim that s. 35 deprives it of powers it would otherwise have enjoyed. As stated in St. Catherine’s Milling and Lumber Co. v. The Queen (1888), 14 App. Cas. 46 (P.C.), lands in the Province are “available to [the Province] as a source of revenue whenever the estate of the Crown is disencumbered of the Indian title” (p. 59). The Crown’s argument on this point has been canvassed by this Court in Delgamuukw, supra, at para. 175, where Lamer C.J. reiterated the conclusions in St. Catherine’s Milling, supra. There is therefore no foundation to the Province’s argument on this point.

(26) The Crown In Its Dealings With First Nations and Indigenous and Aboriginal Peoples Must Act Honourably

- [177] In Haida Nation v. British Columbia (Minister of Forests), [2004] 3 S.C.R. 511, McLachlin C.J. of the Supreme Court of Canada held at paras. 17 to 20, 25 to 27, and 32, that in all its dealings with Aboriginal peoples, from the assertion of sovereignty to the resolution of claims and the implementation of treaties, the Crown must act honourably. Moreover, McLachlin C.J. indicated that nothing less is

required if we are to achieve the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown. Furthermore, McLachlin C.J. held that the honour of the Crown also infuses the processes of treaty making and treaty interpretation, so in making and applying treaties, the Crown must act with honour and integrity, avoiding even the appearance of “sharp dealing”. However, where treaties remain to be concluded, McLachlin C.J. held that the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims, which implies a duty to consult and, if appropriate, accommodate. In addition, McLachlin C.J. recognized that the Aboriginal peoples in Canada were here when Europeans came and were never conquered and that many bands have reconciled their claims with the sovereignty of the Crown through negotiated treaties. On the other hand, McLachlin C.J. noted that others bands, notably in British Columbia, have yet to do so. Moreover, McLachlin C.J. held that the potential rights embedded in these claims are protected by s. 35 of the Constitution Act, 1982. But more importantly, McLachlin C.J. held that the honour of the Crown requires that these rights be determined, recognized and respected, which in turn, requires the Crown, acting honourably, to participate in processes of negotiation. Therefore, McLachlin C.J. held that while this process continues, the honour of the Crown may require it to consult and, where indicated, accommodate Aboriginal interests, since the jurisprudence of this Court supports the view that the duty to consult and accommodate is part of a process of fair dealing and reconciliation that begins with the assertion of sovereignty and continues beyond formal claims resolution. Moreover, McLachlin C.J. remarked that reconciliation is not a final legal remedy in the usual sense, but rather, it is a process flowing from rights guaranteed by s. 35(1) of the Constitution Act, 1982. Accordingly, McLachlin C.J. reasoned that this process of reconciliation flows from the Crown’s duty of honourable dealing toward Aboriginal peoples, which arises in turn from the Crown’s assertion of sovereignty over an Aboriginal people and de facto control of land and resources that were formerly in the control of that people [*emphasis is mine below*]:

The historical roots of the principle of the honour of the Crown suggest that it must be understood generously in order to reflect the underlying realities from which it stems. In all its dealings with Aboriginal peoples, from the assertion of sovereignty to the resolution of claims and the implementation of treaties, the Crown must act honourably. Nothing less is required if we are to achieve “the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown”: Delgamuukw, supra, at para. 186, quoting Van der Peet, supra, at para. 31.

The honour of the Crown gives rise to different duties in different circumstances. Where the Crown has assumed discretionary control over specific Aboriginal interests, the honour of the Crown gives rise to a fiduciary duty: Wewaykum Indian Band v. Canada, [2002] 4 S.C.R. 245, 2002 SCC 79, at para. 79. The content of the fiduciary duty may vary to take into account the Crown’s other, broader obligations. However, the duty’s fulfilment requires that the Crown act with reference to the Aboriginal group’s best interest in exercising discretionary control over the specific Aboriginal interest at stake. As explained in Wewaykum, at para. 81, the term “fiduciary duty” does not connote a universal

trust relationship encompassing all aspects of the relationship between the Crown and Aboriginal peoples:

... “fiduciary duty” as a source of plenary Crown liability covering all aspects of the Crown-Indian band relationship ... overshoots the mark. The fiduciary duty imposed on the Crown does not exist at large but in relation to specific Indian interests.

Here, Aboriginal rights and title have been asserted but have not been defined or proven. The Aboriginal interest in question is insufficiently specific for the honour of the Crown to mandate that the Crown act in the Aboriginal group’s best interest, as a fiduciary, in exercising discretionary control over the subject of the right or title.

The honour of the Crown also infuses the processes of treaty making and treaty interpretation. In making and applying treaties, the Crown must act with honour and integrity, avoiding even the appearance of “sharp dealing” (Badger, at para. 41). Thus in Marshall, supra, at para. 4, the majority of this Court supported its interpretation of a treaty by stating that “nothing less would uphold the honour and integrity of the Crown in its dealings with the Mi’kmaq people to secure their peace and friendship . . .”.

Where treaties remain to be concluded, the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims: R. v. Sparrow, [1990] 1 S.C.R. 1075, at pp. 1105-6. Treaties serve to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty, and to define Aboriginal rights guaranteed by s. 35 of the Constitution Act, 1982. Section 35 represents a promise of rights recognition, and “it is always assumed that the Crown intends to fulfil its promises” (Badger, supra, at para. 41). This promise is realized and sovereignty claims reconciled through the process of honourable negotiation. It is a corollary of s. 35 that the Crown act honourably in defining the rights it guarantees and in reconciling them with other rights and interests. This, in turn, implies a duty to consult and, if appropriate, accommodate.

...

Put simply, Canada’s Aboriginal peoples were here when Europeans came, and were never conquered. Many bands reconciled their claims with the sovereignty of the Crown through negotiated treaties. Others, notably in British Columbia, have yet to do so. The potential rights embedded in these claims are protected by s. 35 of the Constitution Act, 1982. The honour of the Crown requires that these rights be determined, recognized and respected. This, in turn, requires the Crown, acting honourably, to participate in processes of negotiation. While this process continues, the honour of the Crown may require it to consult and, where indicated, accommodate Aboriginal interests.

...

Honourable negotiation implies a duty to consult with Aboriginal claimants and conclude an honourable agreement reflecting the claimants’ inherent rights. But proving rights may take time, sometimes a very long time. In the meantime, how are the interests under discussion to be treated? Underlying this question is the need to reconcile prior Aboriginal occupation of the land with the reality of Crown

sovereignty. Is the Crown, under the aegis of its asserted sovereignty, entitled to use the resources at issue as it chooses, pending proof and resolution of the Aboriginal claim? Or must it adjust its conduct to reflect the as yet unresolved rights claimed by the Aboriginal claimants?

The answer, once again, lies in the honour of the Crown. The Crown, acting honourably, cannot cavalierly run roughshod over Aboriginal interests where claims affecting these interests are being seriously pursued in the process of treaty negotiation and proof. It must respect these potential, but yet unproven, interests. The Crown is not rendered impotent. It may continue to manage the resource in question pending claims resolution. But, depending on the circumstances, discussed more fully below, the honour of the Crown may require it to consult with and reasonably accommodate Aboriginal interests pending resolution of the claim. To unilaterally exploit a claimed resource during the process of proving and resolving the Aboriginal claim to that resource, may be to deprive the Aboriginal claimants of some or all of the benefit of the resource. That is not honourable.

...

The jurisprudence of this Court supports the view that the duty to consult and accommodate is part of a process of fair dealing and reconciliation that begins with the assertion of sovereignty and continues beyond formal claims resolution. Reconciliation is not a final legal remedy in the usual sense. Rather, it is a process flowing from rights guaranteed by s. 35(1) of the *Constitution Act, 1982*. This process of reconciliation flows from the Crown's duty of honourable dealing toward Aboriginal peoples, which arises in turn from the Crown's assertion of sovereignty over an Aboriginal people and de facto control of land and resources that were formerly in the control of that people. As stated in *Mitchell v. M.N.R.*, [2001] 1 S.C.R. 911, 2001 SCC 33, at para. 9, "[w]ith this assertion [sovereignty] arose an obligation to treat aboriginal peoples fairly and honourably, and to protect them from exploitation" (emphasis added).

(27) The Royal Proclamation Of 1763 Is Constitutionalized Under s. 25 of the Charter of Rights and Freedoms

[178] Any aboriginal or treaty rights or freedoms that have been recognized by the Royal Proclamation of 1763 and any rights or freedoms that now exist by way of land claims agreements or may be so acquired are guaranteed under s. 25 of the Charter of Rights and Freedoms:

25. The guarantee in this Charter of certain rights and freedoms shall not be construed so as to abrogate or derogate from any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples of Canada including:
 - a. any rights or freedoms that have been recognized by the Royal Proclamation of October 7, 1763; and
 - b. any rights or freedoms that now exist by way of land claims agreements or may be so acquired.

(28) The British Colonial Government's View Of The "Haldimand Proclamation Of 1784"

- [179] Lawyer and historian, John S. Hagopian, in his dissertation entitled, "*Joseph Brant vs. Peter Russell: A Re-examination of the Six Nations' Land Transactions in the Grand River Valley*", (1997), vol. 30, No. 60, November, *Histoire sociale / Social History journal*, 301-333, online: York University website <<[Joseph Brant vs. Peter Russell: A Re-examination of the Six Nations' Land Transactions in the Grand River Valley | Histoire sociale / Social History \(yorku.ca\)](http://yorku.ca/histoire/journal/vol30no60/brant_russell.htm)>>, has examined the political, historical, and legal aspects of the "Haldimand Proclamation of 1784", as well as how it ought to be legally interpreted under the auspices of the "Royal Proclamation of October 7, 1763", which has since been constitutionalized under s. 25 of the Charter of Rights and Freedoms.

(a) The Haldimand Proclamation of 1784 only conveyed a "right of occupation" to the Six Nations Confederacy

- [180] At pp. 303 to 304 of his dissertation, John Hagopian summarizes the historical background of how the Haldimand Proclamation of 1784 came into existence. He indicates that when the American Revolutionary War began in 1775, most of the Six Nations Confederacy had sided with the British. Joseph Brant, a Mohawk military and political leader, had travelled to London later that year and in 1776 received King George's oral assurance that the Six Nations' military support would be rewarded by the return of their lands in the Finger Lakes area (in New York state) after the war. Brant also obtained a further assurance in Montreal from British General Frederick Haldimand that any property lost by the Six Nations during the war would be replaced by the King. However, the British had agreed in the Treaty of Paris signed on September 3, 1783, to award the Finger Lakes lands to the Americans, which caused the Six Nations to feel betrayed. Joseph Brant then approached Frederick Haldimand, by now the Governor of Quebec, with a view to receiving compensatory land in Canada. King George the Third then authorized Haldimand to allot lands to the Six Nations for them to occupy. Governor Haldimand then arranged for the purchase of a large tract of land in Southern Ontario from the Mississauga First Nation, and on October 25, 1784, he conveyed a portion of this large tract to the Six Nations. Haldimand then permitted the Six Nations "to take Possession of, & Settle upon" the land lying six miles on either side of the entire length of the Grand River. However, Hagopian remarks that the wording that Haldimand had used in the "Haldimand Proclamation of 1784" was significant in that Brant would spend the rest of his life trying to have what was clearly a limited right of possession interpreted as a greater estate. Moreover, Hagopian indicates that, at times, Joseph Brant had appeared to seek an unencumbered "fee simple" ownership, while at other times Brant seemed to seek "absolute sovereignty" as a nation separate from Britain. To support Hagopian's view that the "Haldimand Proclamation of 1784" had only conveyed a limited right of possession of the Haldimand Tract to the Six Nations Confederacy, Hagopian examined the wording of King George III's "Royal Proclamation of 1763", and based on that wording

Hagopian contends that Governor Haldimand had no power legally to convey anything other than “occupation rights” to the Six Nations Confederacy. Furthermore, Hagopian notes that the Royal Proclamation of 1763 had specified that Indians could occupy land, but not own any, and that they could sell their “right of occupation”, but only to the Crown. In addition, Hagopian surmises that, in effect, it was this right of occupation which the Mississauga First Nation had sold to the Crown in 1784. Hagopian also noted that the right to sell land had been important to Brant nevertheless, both for the cash that it provided and for its implication that the Six Nations had all the rights of true landowners. However, Hagopian claims that Brant had never understood the terms of Haldimand’s licence that had been given to the Six Nations Confederacy to occupy the Haldimand Tract in perpetuity, nor the legal effect of the Royal Proclamation of 1763 on the “Haldimand Proclamation of 1784”. And, without the revocation of the Royal Proclamation of 1763, Hagopian contends that the Six Nations Confederacy could never be sovereign in British North America, nor deal with land as if they owned it. Furthermore, Hagopian remarked that Joseph Brant should not be blamed for his lack of understanding, as British law was perplexing and remains even now for modern historians [*emphasis is mine below*]:

The Settling of the Six Nations in Upper Canada

The Mohawk, Oneida, Onondaga, Cayuga, and Seneca Indians were independent Iroquois nations which in about 1459 formed a Confederacy called the Five Nations while living in the Finger Lakes region of New York State. In about 1715 the Tuscarora Indians joined the Confederacy to form the Six Nations. When the American Revolutionary War began in 1775, most of the Confederacy sided with the British. Brant had travelled to London later that year and in 1776 received King George’s oral assurance that the Six Nations’ military support would be rewarded by the return of their lands after the war. Brant obtained a further assurance in Montreal from British General Frederick Haldimand that any property lost by the Six Nations during the war would be replaced by the King. In 1783 when the war was lost, the British agreed in the Treaty of Paris to award the Finger Lakes lands to the Americans, causing the Six Nations to feel betrayed. Brant then approached Haldimand, by now the Governor of Quebec, with a view to receiving compensatory land in Canada. King George authorized Haldimand to allot lands to the Six Nations for them to occupy. To this end Haldimand arranged for the purchase of a large tract of land in Southern Ontario from the Mississauga Indians. On October 25, 1784, Haldimand conveyed a portion of this large tract to the Six Nations. Specifically, he permitted them “to take Possession of, & Settle upon” the land lying six miles on either side of the entire length of the Grand River.

The wording Haldimand used was significant in that Brant would spend the rest of his life trying to have what was clearly a limited right of possession interpreted as a greater estate. At times Brant seems to have sought an unencumbered “fee simple” ownership, while at others he seems to have sought absolute sovereignty as a nation separate from Britain. Under King George’s Proclamation of 1763, however, Haldimand had no power to convey anything other than occupation rights to the Six Nations. The Proclamation specified that Indians could occupy land, but not own any, and that they could sell their right of occupation, but only to the

Crown. It was this right of occupation, in effect, which the Mississauga Indians had sold to the Crown in 1784.

Thus, when the Six Nations settled in the Grand River valley, they were in theory able to remain there forever. The right of occupation given by Haldimand was indefinite in duration, but the Six Nations were soon motivated to sell portions of their land out of necessity. The large numbers of white settlers around the Six Nations had diminished the supply of game for hunting. The death of many Six Nations warriors during the Revolutionary War had left widows and children “destitute of any support”. Further, the annual “bounty” of supplies delivered to the Six Nations by the Crown was not sufficient to meet their needs.

The right to sell land was thus important to Brant, both for the cash it provided and for its implication that the Six Nations had all the rights of true landowners. But Brant never understood the terms of Haldimand’s licence, nor the effect of the 1763 Proclamation. Short of a revocation of the Proclamation, the Six Nations could never be sovereign in British North America, nor deal with land as if they owned it. Brant is not to be blamed for his lack of understanding, for British law was perplexing, and remains so for modern historians.

(b) Under the Royal Proclamation of 1763 only a beneficial interest in land had been granted by the British Crown to the Indigenous Peoples

- [181] In respect to the Haldimand Tract that had been reserved for the Six Nations Confederacy, as it relates to the Royal Proclamation of 1763, John S. Hagopian, at pp. 305 to 308, in “*Joseph Brant vs. Peter Russell: A Re-examination of the Six Nations’ Land Transactions in the Grand River Valley*”, outlined the legal nature of aboriginal land title that had been provided for under the “Royal Proclamation of 1763” according to the law of British North America, and he indicated that it did not entail land ownership. Rather, as Hagopian explains, the legal title, or fee simple, to the lands claimed by Britain had belonged to the Crown, and were subject only to a continuing right of occupation by any aboriginals who are on the lands. Furthermore, Hagopian noted that this principle applied not only to British North America as it existed in 1763, but arguably to all lands in North America which Britain later claimed. Hagopian also specified that the preamble to the Royal Proclamation of 1763 had recognized that aboriginals living under the King’s protection “should not be molested or disturbed in the Possession of such Parts of our Dominions and Territories as, not having been ceded to or purchased by Us, are reserved to them or any of them, as their Hunting Grounds”. To that end, Hagopian noted that the Royal Proclamation of 1763 had prohibited colonial officials from issuing land patents in respect of land that had been reserved for natives. Hagopian also remarked that Southern Ontario had been among the lands that the Royal Proclamation had designated for Indian occupancy. Moreover, Hagopian commented that the Royal Proclamation had prohibited all British subjects from purchasing Indian lands or even occupying them. But in the event that the Indians should wish to dispose of any lands, Hagopian indicated that they were to be purchased in the name of the King by the relevant colonial governor, in accordance

with any special instructions the King or governor “shall think proper or give for that purpose”. Thus, according to the law of British North America, Hagopian concluded that “native title” does not entail land ownership. Instead, the legal title or fee simple to the lands claimed by Britain, as Hagopian had noted, belonged to the Crown, subject to a continuing right of occupation by any aboriginals who are on the lands. This principle, Hagopian states, applied not only to British North America as it existed in 1763, but arguably to all lands in North America which Britain later claimed. Moreover, Hagopian described “fee simple ownership” as the right to sell or bequeath the subject lands freely, but in contrast, native title could not be alienated. In addition, Hagopian described native title as a right that is specific to those aboriginals who originally occupied the lands, or who, like the Six Nations, were the party named in a licence from the Crown. As such, Hagopian explained that the only transfer permitted in law by the aboriginals is a sale to the holder of the fee simple, which would be the Crown. Such a transfer, Hagopian noted, would then merge “the Indians’ beneficial use with the legal fee that was held by the Crown. More importantly, Hagopian concluded that the transfer would extinguish the natives’ beneficial rights or use to the land, so that the fee simple held by the Crown would then become absolute. This clear title, Hagopian observed, would be necessary before the Crown would be able to transfer the lands to any of its citizens. Simply stated, the policy codified in the Royal Proclamation of 1763 was as follows: from the time that newly claimed lands are incorporated into British North America, aboriginals on such lands hold only a right of occupancy; from the time of a transfer by these aboriginals to the Crown, they lose this right of occupancy. It should be mentioned that, in law, this right of occupancy was taken to include a right to use the resources of the lands being occupied, such a right being called one of “usufruct”. Hagopian also remarked that an Ontario court had ruled in a case relating to the Six Nations’ lands that these lands “were reserved for the use of the Indians, as their hunting grounds, under the Sovereign’s protection and dominion. The Crown at all times held a substantial and paramount estate underlying the Indian title.” To understand fully the authority by which the 1763 Royal Proclamation was issued and by which it endured in British North America, we must consider the structure of political institutions in the British Empire in the eighteenth century [*emphasis is mine below*]:

The Proclamation of 1763 and the Nature of Indian Title

It is true that the Supreme Court of Canada has in recent years been redefining the nature of aboriginal land title. However, the fundamental principles specified in the 1763 Proclamation continue to be supreme. The most contentious legal issues today are whether the Proclamation negated any rights that aboriginals may have had before it was issued and whether aboriginals may have subsequently negotiated any further rights. In short, the Proclamation is still the focus of discussion, and the validity of any other bases for aboriginal land rights have only recently been “discovered” by the courts. As late as 1973, Justice Bora Laskin wrote, “This Proclamation was an Executive Order having the force and effect of an Act of Parliament and was described ... as the ‘Indian Bill of Rights’ ... its force as a statute is analogous to the status of Magna Carta. ... The Proclamation must be regarded as a fundamental document upon which any just determination of

original rights rests.” The Proclamation had constitutional status in British North America from the time it was issued in 1763. The parts which deal with Indians have never been repealed, and their constitutional status was recognized and affirmed by Canada’s Constitution Act in 1982. Current legal and political debates concerning other sources of native rights have no place in an exploration of native rights as they existed and were understood in the eighteenth century, however. The Proclamation was clearly supreme, and in most respects was reasonably clear in its meaning and effect.

The preamble to the Proclamation recognized that aboriginals living under the King’s protection “should not be molested or disturbed in the Possession of such Parts of our Dominions and Territories as, not having been ceded to or purchased by Us, are reserved to them or any of them, as their Hunting Grounds”. To that end, the Proclamation prohibited colonial officials from issuing land patents in respect of land reserved for natives. Southern Ontario was among the lands it designated for Indian occupancy. The Proclamation further prohibited all British subjects from purchasing Indian lands or even occupying them. In the event that the Indians should wish to dispose of any lands, they were to be purchased in the name of the King by the relevant colonial governor, in accordance with any special instructions the King or governor “shall think proper or give for that purpose”.

Thus, according to the law of British North America, native title does not entail land ownership. The legal title, or fee simple, to the lands claimed by Britain belongs to the Crown, subject to a continuing right of occupation by any aboriginals who are on the lands. This principle applied not only to British North America as it existed in 1763, but arguably to all lands in North America which Britain later claimed. (This issue does not affect a legal analysis of Southern Ontario, as it was clearly part of British North America in 1763, though not part of any colony. Fee simple ownership entails the right to sell or bequeath the subject lands freely, but native title cannot be alienated. It is a right specific to those aboriginals who originally occupied the lands, or who, like the Six Nations, were the party named in a licence from the Crown. The only transfer permitted in law by the aboriginals is a sale to the holder of the fee simple. Such a transfer merges “the Indians’ beneficial use with the legal fee held by the Sovereignty”. More importantly, the transfer extinguishes the natives’ rights, and the fee simple held by the Crown is now absolute. This clear title is necessary before the Crown can transfer the lands to any of its citizens. Simply stated, the policy codified in the Proclamation was as follows: from the time that newly claimed lands are incorporated into British North America, aboriginals on such lands hold only a right of occupancy; from the time of a transfer by these aboriginals to the Crown, they lose this right of occupancy. It should be mentioned that, in law, this right of occupancy was taken to include a right to use the resources of the lands being occupied, such a right being called one of “usufruct”. An Ontario court ruled in a case relating to the Six Nations’ lands that these lands “were reserved for the use of the Indians, as their hunting grounds, under the Sovereign’s protection and dominion. The Crown at all times held a substantial and paramount estate underlying the Indian title.”

In any analysis of native land history, an understanding of the distinction in British law between occupancy and ownership is essential. Some historians, though, have not demonstrated a clear understanding of this distinction. For example, Robert J. Surtees asserts that the 1763 Proclamation “certainly recognized Aboriginal proprietorship” of land, which it did not. Because title implies ownership, he is equally misleading when he asserts that the Mohawk had “received a written title” for a certain tract of land. He precisely reverses the

respective land rights of natives and whites when he writes of the lands upon which several British forts were built: “The British met no difficulty in occupying these lands, as they had already purchased them from their Indian owners.” Such misunderstandings of the nature of Indian title are not unknown even among lawyers. In 1973 an Ontario judge ruled that a 1793 “deed” to the Six Nations executed by Lieutenant Governor John Graves Simcoe was effective in passing title in fee simple. Of course, on appeal this decision was reversed, with the appellate judge ruling that the document was “in accord with and implemented the policy enunciated in the Proclamation of 1763”.

The Proclamation’s terms were not novel, but merely codified existing legal principles and practices. The provisions concerning the legal effect of the “discovery” of Indian lands by European colonizers, for example, can be traced to sixteenth-century Spanish theological jurists. The provisions concerning the procedure by which natives could dispose of their interest in land was “the formalized culmination of more than a decade of British efforts and practices in dealing with the Indians”. The legality of these provisions has been consistently upheld. In both Canada and the United States, “The principle that Indians could alienate their lands solely to the government (or to private individuals with government consent) has received the unquestioned approval of subsequent court decisions.” Americans asserted that the Treaty of Paris transferred to them all of the rights that the British had enjoyed by virtue of the Proclamation with respect to land within their boundaries. To understand fully the authority by which the 1763 Proclamation was issued and by which it endured in British North America, we must consider the structure of political institutions in the British Empire in the eighteenth century.

- [182] As for an historical and legal analysis of the Haldimand land transactions, John Hagopian, at pp. 311 to 313 in his writing, notes that on May 22, 1784, land had been purchased by the Crown from the Mississauga Indians, and on October 25, 1784, some of this land was transferred to the Six Nations Confederacy. Hagopian also noted that General Haldimand had overseen two transactions as part of his duties as Governor-in-Chief of Quebec. On May 22, 1784, land was purchased by the Crown from the Mississauga Indians, and on October 25, 1784, some of this land was transferred to the Six Nations. In addition, Hagopian indicated that the remarkable differences between the two transactions have not always been appreciated by historians, but that such an appreciation would be necessary, since Joseph Brant’s lifelong goal had been to have this conveyance to the Six Nations confirmed as an outright grant of title in fee simple. Hagopian also explained that the sale by the Mississaugas to the British Crown had been a surrender of any and all rights the Mississaugas had to the subject lands, that would be analogous to a quit-claim deed, whereby all rights of any kind had been relinquished. In contrast, Hagopian noted that the transfer to the Six Nations had been specific and narrowly construed, and in which there was no mention of grants, sales, releases, or such other words suggesting a change in ownership, but had been merely an extension of the British Crown’s permission to take possession of and settle upon the Grand River lands. Moreover, Hagopian indicated that the transfer to the Six Nations had been done in accordance with the principles in the Royal Proclamation of 1763 and with the explicit instructions Haldimand had received on the matter. Hagopian also

remarked that the lands issued to the Six Nations would be for their occupation only, as Haldimand had no power to endow them with ownership rights. Furthermore, Hagopian explained that the Haldimand grant was not in fact a grant, but merely a licence to occupy land, and which had been the most that Haldimand had the power to provide. Hagopian also indicated that Joseph Brant had believed he had been promised more and had begun a lengthy but ultimately fruitless campaign to obtain a greater legal estate for the Six Nations [*emphasis is mine below*]:

The Haldimand Transactions

General Haldimand oversaw two transactions as part of his duties as Governor-in-Chief of Quebec. On May 22, 1784, land was purchased by the Crown from the Mississauga Indians, and on October 25, 1784, some of this land was transferred to the Six Nations. The remarkable differences between the two transactions have not always been appreciated by historians. Such an appreciation is necessary, though, since Brant's lifelong goal was to have this conveyance to the Six Nations confirmed as an outright grant.

The sale by the Mississaugas was a surrender of any and all rights they had to the subject lands, as they "did grant, bargain, sell, alien, release and confirm unto His said Majesty" the lands in question for the sum of 1,180 pounds of currency. The British "understood that they had extinguished the native title to the land and that the Crown had obtained full proprietary rights". The exact nature of the Mississaugas' legal rights was not characterized in the agreement. Thus, there was no explicit recognition or confirmation of any existing legal rights that were being sold. Instead, the document had the effect of a quit-claim deed, whereby all rights of any kind were relinquished.

By contrast, the transfer to the Six Nations was specific and narrowly construed. There was no mention of grants, sales, releases, or such other words suggesting a change in ownership, but merely an extension of permission to "take possession of and settle upon" the Grand River lands. This was done in accordance with the principles in the 1763 Proclamation and with the explicit instructions Haldimand had received on the matter. Colonial governors frequently received Royal Instructions which were binding on them in their administration of the colony. Haldimand had received such instructions through Lord North, permitting him to make offers to Indians desirous of "occupying any Lands which you may allot to them".

Thus, Haldimand was specifically instructed to do that which existing laws required him to do anyway. Any lands issued to the Six Nations could be for their occupation only, as he had no power to endow them with ownership rights. An 1830 report confirms this state of affairs: "It is hardly necessary to remark that an estate in fee simple in lands belonging to the crown could not be conveyed by Sir Frederick Haldimand's mere licence of occupation under his seal. Letters patent under the Great Seal of England, or of the Province of Quebec, could alone have conferred such title."

Michael Simon ignores the applicable law and advocates a wildly pronative interpretation of Haldimand's licence. Simon asserts that "there is a great deal of validity in the claim of the Six Nations that the Haldimand Agreement" created a sovereign native state. (He calls the document an "agreement" to promote his view of it as a nation-creating treaty, even though it was signed by only one party (Haldimand.) He infers that sovereignty was granted by virtue of the reference in

the document to the Six Nations as “His Majesty’s faithfull Allies [sic]”, and not as British subjects. He reasons, by inference, that if the Six Nations were receiving land rights as something other than British subjects, the intent could only have been that they were to become a sovereign state. But Simon leaps to this sovereignty conclusion without considering that the 1763 Proclamation consistently distinguished between natives and British subjects. The Proclamation described natives as “the several Nations or Tribes of Indians with whom We are connected, and who live under our Protection” and decreed that they were not sovereign, but were merely occupants on British lands. Further, as the 1763 Proclamation was part of the constitution of British North America, Haldimand had no power to overturn its provisions; his direction that the Six Nations were merely to take possession of the specified lands reflected the British policy regarding natives which was codified in the Proclamation.

In short, the Haldimand grant was not in fact a grant, but merely a licence to occupy land. Even at that, it was the most that Haldimand had the power to provide. Brant believed he had been promised more, and began a lengthy but ultimately fruitless campaign to obtain a greater legal estate for the Six Nations.

(c) The Six Nations Confederacy may not have been treated honourably by the British Crown in respect to the Haldimand Tract

- [183] From historian John Hagopian’s perspective, the Six Nations’ people were not treated honorably by the British Crown in their dealings with the Six Nations of the Grand River over the Haldimand Tract. At p. 329 in his writing, Hagopian notes that the strategy used by Britain was not novel, as American officials had earlier been instructed to break up any Indian confederations within their borders and to foster jealousy between the tribes. Hagopian also indicated that the British goal of native dependency would ultimately be realized, as natives became wards of the state by the mid-nineteenth century. As a consequence of this dependency on the British Crown, Hagopian indicated that the various remnant lands held by the Six Nations had been conveyed to the Crown, and the current Six Nations reserve would be created and designated exclusively for their use. Moreover, Hagopian noted that the details of this conspiracy show how poor the relations were between the Six Nations and Britain, especially after 1797. In addition, Hagopian remarked that there were no “good faith” negotiations, but rather only concerted attempts to undermine and delude Joseph Brant, as the British had never intended to convey clear title or sovereignty to the Six Nations, and the British authorities did not want Brant to come to Britain to haggle with them. The only battle of wills that might have mattered had been between Brant and the British Parliament, but Hagopian noted that Brant did not know this [*emphasis is mine below*]:

The strategy used by Britain was not novel, as American officials had earlier been instructed to break up any Indian confederations within their borders and to foster jealousy between the tribes. The British plan was not lost on the Six Nations. They suspected that the change in the Mississauga bounty site was done “with an intent to disunite us”, and Brant knew he was being slandered by Givens for the same reason. Still, the British goal of native dependency would ultimately be realized, as natives became wards of the state by the mid-nineteenth century. The various

remnant lands held by the Six Nations were conveyed to the Crown, and the current Six Nations reserve was created and designated exclusively for their use.

The details of this conspiracy show how poor the relations were between the Six Nations and Britain, especially after 1797. There were no “good faith” negotiations, but rather only concerted attempts to undermine and delude Brant. The British never intended to convey clear title or sovereignty to the Six Nations, and authorities did not want Brant to come to Britain to haggle with them. The only battle of wills that might have mattered was that between Brant and the British Parliament, but Brant did not know this.

(d) British and colonial officials instituted an elaborate scheme of espionage and conspiracy to undermine Joseph Brant’s authority and effectiveness

- [184] In addition, Hagopian at pp. 301 to 303 in his historical account, indicated that a legal analysis helps resolve the ambiguities and inconsistencies which have marred the current understanding of the Six Nations land transactions. To properly analyze the Haldimand Tract transaction, Haldimand explained that the legal sources which should be consulted include the Royal Commissions and Instructions to colonial governors, as well as proclamations and statutes, as all these sources have relevance in a study of Joseph Brant, Peter Russell, and the Six Nations land transactions. In addition, Hagopian noted that Joseph Brant’s dedication to the Six Nations’ land quest was so great that it prompted British and colonial officials to institute an elaborate scheme of espionage and conspiracy to undermine Brant’s authority and effectiveness as an Indian leader. Moreover, Hagopian indicated that Brant had erroneously believed that confirmation of those land sales of part of the Haldimand Tract to non-Six Nations people by the colonial administration would amount to legal recognition of the Six Nations’ right to sell lands, and therefore of their absolute ownership of other unsold tracts. Hagopian also noted that Brant had initially thought he had succeeded, but Peter Russell had structured the transactions in such a way that they did not amount to a ratification. This deception was not particularly underhanded Hagopian indicated, as it was the only sort of transaction permitted by British law and policy since at least 1763. Moreover, Hagopian surmised that there was nothing unusual about how Peter Russell had structured the land sales transactions of the Haldimand Tract to non-Six Nations people, except in the eyes of Brant and those historians who have not carefully considered British law. But more importantly, Hagopian indicated that British officials were in no hurry to explain to Brant that his tribes would never be allowed to own land, as one informant thought it more advisable to dampen Brant’s hopes by degrees, than at once to extinguish them. And, when Joseph Brant died in 1807, he had still hoped that the Six Nations would be given clear title to the Grand River lands they had been allowed to occupy in 1784 [*emphasis is mine below*]:

... But the historiography of the dealings between Brant and Russell is based on a misconception of the legal context of their negotiations. Consequently, their actions have been misunderstood. Once the legal context is clarified, Russell emerges as a highly skilled negotiator and administrator who, largely through his own efforts and in difficult circumstances, ensured that imperial land policy was consistently

observed. Brant emerges as the deceived innocent who did not appreciate the principles or subtleties of British law. Moreover, Brant's dedication to the Six Nations' land quest was so great as to prompt British and colonial officials to institute an elaborate scheme of espionage and conspiracy to undermine his authority and effectiveness as an Indian leader.

Brant's efforts to obtain for the Six Nations clear title to the Grand River lands they occupied involved many colonial and British officials, beginning in 1776 when Brant met with King George III in London. Between 1796 and 1798 Brant sought permission from Russell to sell six large blocks of Indian lands along the Grand River to white speculators. This sale was the climax of 20 years of struggle by Brant and the Six Nations to find a permanent home. Brant believed that confirmation of these sales by the colonial administration would amount to legal recognition of the Indians' right to sell lands, and therefore of their absolute ownership of other unsold tracts. Brant himself initially thought he had succeeded, but Russell structured the transactions in such a way that they did not amount to a ratification. This deception was not particularly underhanded, as it was the only sort of transaction permitted by British law and policy since at least 1763. Indeed, there was nothing unusual about it except in the eyes of Brant and those historians who have not carefully considered British law. British officials were in no hurry to explain to Brant that his tribes would never be allowed to own land, as one informant "thought it more advisable to damp his hopes by degrees, than at once to extinguish them". Indeed, when Brant died in 1807, he still hoped that the Six Nations would be given clear title to the Grand River lands they had been allowed to occupy in 1784.

A legal analysis helps resolve the ambiguities and inconsistencies which mar the current understanding of the Six Nations' land transactions. That the existing historiography of the Six Nations' lands is inadequate is widely conceded, with one observer writing, "The story of the dealings in Grand River lands is a murky one." The many historiographical errors which emerge should make two conclusions clear: first, the popular view of the Six Nations' land transactions needs to be changed in light of these new legal facts; secondly, historical work generally stands to benefit from a stronger grasp, on the part of historians, of the law pertaining to the topics they study.

Other writers have noticed this legal vacuum in the work of Canadian historians. Donald J. Bourgeois writes, "The role of the courts in Canadian society is often misunderstood or ignored by Canadians in general and historians in particular." He attributes this neglect of the legal system to the belief of non-lawyers "that legal language is archaic" and that "the concepts of law are beyond the comprehension and manipulation of ordinary people". He believes historians must pay attention to law because "Law is at the root of any and all societies."

Bruce A. Clark notes that aboriginal historiography in Canada is overwhelmingly "practice" oriented: Historians have reconstructed the "real world" of the past by examining political and administrative documents which were created at the time. There is an inherent problem with this approach: "Practice merely describes how and to what extent the law has been observed and respected in the field. The evidence as to whether the practice was either to ignore or to follow the strictures of the law cannot of itself be conclusive as to what the law is." By emphasizing practice, historians "run the risk either of ignoring the law entirely or of confusing policy for law". Historians have based their work on authorities which have no legislative or juridical jurisdiction to make or to change the law. Not missionaries, fur traders, administrators of Indian affairs, or even the colonial governors had any

inherent jurisdiction in that regard. Rather, the requisite jurisdiction at all material times has been vested in specific imperial authorities, latterly in the Dominion Parliament, in certain institutions duly made subordinate to these two and vested with their principals' delegated jurisdiction.

Clark suggests that the legal sources which should be consulted include the Royal Commissions and Instructions to colonial governors, as well as proclamations and statutes. These sources all have relevance in a study of Brant, Russell, and the Six Nations land transactions.

- [185] In addition, Hagopian at pp. 323 to 326, in his historical account, indicated that it is erroneous for some historians to assert that Brant's land transactions were officially recognized by Simcoe's successor and that such recognition constituted proof that the Six Nations now had the legal right to sell their lands to buyers other than the Crown. Hagopian also noted that Joseph Brant had never understood the significance of his agreement with Peter Russell in respect to the sale of part of the Haldimand Tract to non-Six Nations people, largely because he did not understand the law established by the Royal Proclamation of 1763. In addition, Hagopian remarked that Joseph Brant had desired that the Six Nations should hold their lands as an absolute and indefeasible estate, yet Brant had been agreeable to terms that had been inconsistent with such absolute title. Hagopian also explained that in Joseph Brant's mind, such surrenders of land had involved the passing of land from one sovereign state (the Six Nations) to another (Britain), but in actuality the transaction was in accordance with the British law governing relations between Indian occupants and the British sovereign [*emphasis is mine below*]:

Russell had technically deviated from the Royal Instructions he had received in July, but that breach was forgiven. The Duke of Portland, who represented the King on this matter, lamented the situation in which Russell found himself. Portland was pleased with another provision that Russell had negotiated with Brant, that no future land sales would be allowed without the King's permission. Russell was careful not to complete the transaction until he had received Portland's approval, thus ensuring the propriety of his actions. It is therefore erroneous for Johnston to assert that "The beleaguered Russell, lacking instructions from home ... was finally forced to confirm the sale of the tracts in question". So, too, is it erroneous for Simon to assert that Brant's land transactions "were officially recognized by Simcoe's successor" and that such recognition constituted proof that the Six Nations now had the legal right to sell their lands to buyers other than the Crown.

Brant never understood the significance of his agreement with Russell, largely because he did not understand the law established by the Proclamation of 1763. He desired that the Six Nations should hold their lands "as an absolute and indefeasible [*sic*] Estate", yet he was agreeable to terms that were inconsistent with such absolute title. He agreed that none of their property would be sold without the King's assent, as he and his followers were "willing and desirous that it ever continue to be as it has been with the Sales we have heretofore treated for, that is to say they to surrender to the Crown, and the Crown allocate [*sic*] to Purchasers, whereby they necessarily become subjects". In Brant's mind, such surrenders involved the passing of land from one sovereign state (the Six Nations) to another (Britain), but in actuality the transaction was in accordance with the British law

governing relations between Indian occupants and the British sovereign. Thus, it is specious for Johnston to assert that Russell had agreed to unfavourable terms which Simcoe had “always refused” and that Russell had deviated from established British policy because of his inferiority to Simcoe as an administrator.

British officials were in no hurry to clear up Brant’s obvious misunderstanding. This was true even of Robert Liston, the British Ambassador to the United States, whom Brant trusted and to whom he poured out his soul. Johnston claims that Liston intervened on Brant’s behalf during the block sales negotiations, and that it was due to such highly placed assistance that Brant prevailed. As will be discussed later, Liston was in fact spying on Brant, and he offered this worthless advice to Brant while fully aware of the Six Nations’ land ownership aspirations: “That you should surrender to the Crown, and that the Crown should alienate to purchasers by which means they become subjects, appears to me to be a very proper mode of conducting the transaction, and I flatter myself that it will obtain the approbation of the King’s government at home.” Liston was only toying with Brant for his own amusement when he “flattered himself” that the King’s government would approve of the structure of the transactions. Of course it would!

On January 15, 1798, Brant executed the surrender of the six blocks to the Crown on behalf of the Six Nations who had previously given him a written power of attorney for this purpose. The surrender was especially thorough, as the Six Nations and their posterity did “fully, freely and absolutely surrender, relinquish and quit claim to all and singular the right, title, property, possession and interest, which the said Nations, they or either of them now have, might or could have had to such parts of the said lands”. On February 5, 1798, the Crown then issued the land patent to the six purchasers specified by the Six Nations. Russell wanted the transactions “done in as public manner as possible, That my Conduct in this business may stand justified to His Majesty and the posterity of these people forever”. Russell had sent a “secret and confidential letter” to D. W. Smith, who was the Surveyor General of Upper Canada and one of three white trustees appointed by the Six Nations to receive the sale proceeds. Russell instructed him not to issue any official surveys to Brant until the surrender was executed, as he wished to ensure that Brant did not use them to represent himself as the owner in the interim. Russell also explained to Smith:

The Instrument of Surrender is proposed to be a record to posterity that this has been a transaction of the Six Nations own seeking and Solicitation, by which they have of their own free motion renounced and relinquished in their own names and that of their Children for ever such a Part of His Majesty’s gracious Bounty to them. You will be pleased to look upon this communication as entirely confidential.

The law requires trustees to share all relevant facts within their knowledge with their principals, who in this case were the Six Nations. Thus, it was a conflict of interest for Smith to abide by the terms of Russell’s confidential letter. Another of the trustees was a white lawyer named Alexander Stewart, who was married to Brant’s niece. He charged Brant “exorbitant” sums for legal advice which apparently did little to clear up Brant’s legal misunderstandings.

The Six Nations were forbidden to receive the sale proceeds directly, and they were required to appoint non-natives as their trustees. The trustees were supposed to invest and manage the proceeds and to provide the Six Nations with an annual sum (an annuity) for their support. After a short time, Stewart died and Smith left Upper Canada, leaving only one of the three trustees in charge. This was the

superintendent of Indian Affairs, Col. William Claus, who was a most unfortunate choice by Brant. Claus did not in fact pay the annuities as required, and the Six Nations essentially lacked the legal status to obtain a court order compelling him to do so. Brant knew by 1806 that Claus was the Six Nations' "implacable enemy", but his request to replace Claus with a new trustee was not granted by the government. Thus, the financial security that Brant thought he had arranged did not in fact result. Further, Brant's aggressive behaviour during 1797 prompted British and colonial officials to escalate the "divide and conquer" policy they had been using against the Six Nations. Russell would figure prominently in this scheme, which employed espionage and conspiracy to undermine Brant and natives generally. Brant's commitment to the Six Nations was so great as to cause officials to rely less on placation and deferral, and more on active sabotage.

- [186] Furthermore, in his historical account, Hagopian at pp. 326 to 329, remarked that Joseph Brant had been perceived as a threat by Britain for several reasons, so Britain sought to undermine Brant, divide the tribes, and render them dependent on British charity for their survival. Moreover, Hagopian indicated that a vast network of conspirators had been organized to implement this plan. Hagopian also noted that Peter Russell had been instructed by the British Crown to implement these changes, as part of a general plan of fomenting jealousy between the Six Nations and the Mississauga Indians, and to keep the Indian Nations separate and unconnected with one another, so that they would be rendered more dependent on the King's government [*emphasis is mine below*]:

Espionage, Conspiracy, and Britain's "Divide and Conquer" Policy

Brant was perceived as a threat by Britain for several reasons. Beyond his quest for native sovereignty over the lands they occupied, Brant was also trying to unify Indians of all tribes, the better to ensure their survival. He was especially keen to foster close ties with the Mississauga Indians, and in fact was appointed by them in 1798 to negotiate their land sales with the Crown. Though he did not fully understand the law, Brant had a good appreciation for the money value of land, and colonial officials resented his wise advice to the Mississauga in this regard. Britain sought to undermine Brant, divide the tribes, and render them dependent on British charity for their survival. A vast network of conspirators was organized to implement this plan.

Brant had been a unifying force among North American Indians since shortly after the American Revolution. In 1786, when Americans and natives were fighting over frontier lands, Brant sought a united confederacy of all tribes. He knew that "the Indians could hope to retain possession of their lands only if all the tribes were united in an organization strong enough to command the respect of the white man." Colonial officials were determined to undermine Brant even before his confrontation with Russell. Simcoe had sought "to continue the jealousy & separation [*sic*] of the Six Nations (& particularly of the Mohawks conducted by Brant & the Land-jobbers) from the Chippewas". (The Mississauga were viewed by colonial officials as a tribe within the Chippewas.) In 1795 Simcoe suggested to Dorchester changes in native policy that would "prevent improper influence and dependence on their Chiefs, and particularly on Brant".

In September 1797 Simcoe, though now in England, suggested a further change. He proposed that the Mississauga should not receive their annual bounty

at the “head of the lake” (near present-day Dundas) where the Six Nations received theirs, but rather at York. This would “prevent them Falling into the hands of Brant”. He also advised that a separate administrative district be set up to deal with Mississauga matters, and that Lieutenant James Givens of the Queen’s Rangers be appointed as the agent in charge of it. Russell was shortly thereafter instructed by Portland to implement these changes, as part of a general plan

of fomenting the jealousy which subsists between them and the Six Nations, and of preventing, as far as possible, any junction or good understanding taking place between those two Tribes ... keep the Indian Nations separate and unconnected with one another, as by that means they will be rendered in proportion more dependent on the King’s government.

After hearing of the confrontation between Brant and Russell, Portland again advised Russell of

the necessity of the most zealous and strict attention to every possible means of preventing connections or confederations from taking place between the several Nations, and that the rendering them dependent on your government, and keeping them as separate and distinct as possible from each other, should be laid down by you as a system, from which, on no account, you should ever depart.

Portland advised Russell and Liston, in a “most secret letter”, of the response they should give if Brant “should be desirous of coming to England” to discuss with British officials the future of the Six Nations’ land holdings. Both were instructed not to discourage Brant’s departure, but to assure him that they themselves would give effect to whatever the King’s personal representatives should decide. Such a statement was intended to deceive Brant into thinking that Britain was actually contemplating a change in native policy, which was not the case.

Russell implemented Portland’s plan and placed Givens in charge of the new district within which the Mississauga would receive their bounty. Acting on Portland’s instructions to “temporize” with Brant, Russell did an admirable job of seeming favourably disposed to him, claiming “I had never been actuated in my transactions with the Five Nations by any other Motive than a sincere wish to serve and oblige them ... I beg you to be assured that the Interests of the Five Nations have a true and faithful friend in me.” Russell repeated to Brant what Portland had instructed him to say on the matter of Brant’s going to England. He also explained that the change in the Mississaugas’ bounty site was done for reasons of “OEconomical management [sic]” and for the Indians convenience, “at which they should undoubtedly rejoice”.

Liston followed his orders regarding the matter of Brant’s trip to England and wrote, “I beg you will rest assured of my inclination to serve you to the utmost of my power.” The next day, Liston reported to British foreign secretary Lord Grenville rumours he had heard of the Six Nations planning for war, and concluded “every movement on the part of Brant, at the present moment, must naturally give rise to suspicion.”

Givens, too, performed his prearranged function. He ignored Brant’s efforts to act as agent in the sale of Mississauga lands. He chastised the Mississauga for attending a Six Nations’ council meeting, told them Brant was “drunken and Ignorant”, and warned them that contact with his council might incur the displeasure of the King or his government. He was used by Russell to find out

certain facts “merely in the course of conversation” and to “collect all the intelligence he could.” Russell told him to tell Brant that “you have often heard me speak in the most friendly terms of him.” Leo Johnson has also written of Givens’s role as a spy within a colonial strategy of duplicity against the Mississauga.

Other officials were also involved in the web of intrigue. For example, Sir John Johnson was told to follow a specific course of conduct which would convince Brant “that your attachment to the Interest of the Indians is as firm as ever, and that neither he nor any of the Indian tribes have the smallest reason to suspect the contrary”. William Claus, the superintendent for the Six Nations district, was instructed by Russell “to do everything in his power (without exposing the object of this Policy to Suspicion) to foment any existing Jealousy between the Chippewas & the Six Nations”. Claus would have been a particularly effective spy, as he knew the natives’ language, exhibited a “kindly attitude” toward them, and was initially trusted by them. He would later work “hand in glove with the speculators” who bought the Six Nations’ lands by never pressing them for payment.

(29) Does The Provincial Offences Court Have Jurisdiction Over the Defendants and Their Highway Traffic Act Charges?

[187] As the defendants’ alleged Highway Traffic Act charges had allegedly occurred in the County of Brant, in the Province of Ontario, and because s. 29(1) of the Provincial Offences Act directs that proceedings of provincial offences matters be heard in the territory of the place of the alleged offence, and since the County of Brant falls within the territorial jurisdiction of the Provincial Offences Court in the City of Brantford, then this Provincial Offences Court has the proper jurisdiction over the subject matter of the defendants’ Highway Traffic Act charges. Moreover, the County of Brant is located in the Province of Ontario and although at some point after the “Haldimand Proclamation of 1784” the lands comprising the County of Brant had been part of the Haldimand Tract, which had been decreed for the exclusive and beneficial use of the Six Nations Confederacy in perpetuity, legal title in fee simple had not been granted to the Six Nations Confederacy in respect to the Haldimand Tract under the “Haldimand Proclamation of 1784”. In addition, parts of the original Haldimand Tract have been sold off by the Crown to purchasers that had been arranged for and accepted by Six Nations. In addition, the British Crown had *de facto* sovereignty over the original Haldimand Tract at the time of the Haldimand Proclamation of 1784 and that assertion of sovereignty has not been supplanted by any treaty between the Crown and the Six Nations Confederacy.

[188] More importantly, the Provincial Offences Court is bound by the principle of *stare decisis* and the Court of Appeal for Ontario’s decision in Isaac et al. v. Davey et al (1975), 5 O.R. (2d) 610, had confirmed that it has long ago been authoritatively decided by the Courts that the “Haldimand Proclamation of 1784”, did not give fee simple ownership or absolute title in fee simple of the Haldimand Tract to the Six Nations Confederacy. Moreover, the Provincial Offences Court is also bound to follow the High Court of Justice judgment in Logan v. Styres, [1959] O.J. No. 329 (Ont. Supreme Ct. - H.C.J.), in which it had been found that the “Haldimand Proclamation of 1784” was contextually a deed and had not been in any sense a treaty.

PART 3

- [189] For the remaining defendants’ pre-trial motions, some of the remedies that the defendants’ are seeking appear to require political decisions and not legal solutions. When remedies involve political solutions rather than legal solutions, the principle of justiciability is applicable.

(A) The Justiciability Principle

- [190] In Bally Hundal’s tome entitled, “Judicial Review and Justiciability”, Canadian Legal Information Institute, 2019 CanLII Docs 4050, <<https://canlii.ca/t/ss68>> the author indicated that “justiciability” means the interplay of the judiciary having reluctance to weigh in on issues that can arguably be described as fundamental under the Charter, against a fear of overstepping its reach due to a perception of political factors. Hundal also commented that most justiciability issues arise when litigants, who are primarily motivated to vindicate public rights, seek to contest the validity of government behavior, especially on constitutional grounds and that such public interest suits are usually designed not so much to redress traditional personal grievances but to vindicate fundamental principles.
- [191] Furthermore, Hundal noted that the plaintiffs in these public interest litigation would commonly seek “declaratory judgments” or “injunctions” to prevent government officials from carrying on objectionable practices that affect a wide segment of the population, as these actions often test and illustrate the degree to which judges view their power of constitutional oversight as warranted only by the necessity to resolve traditional legal disputes or, rather, by a broader judicial mission to ensure government observance of the Constitution. In delineating the judicial function, Hundal explained that the law of justiciability comprises a complex of doctrines, which include mootness, advisory opinions, and political questions.
- [192] In addition, Hundal said there are three notions of appropriateness that shape the many manifestations of justiciability.
- [193] Hundal indicated that one concerns judicial capability, which centers on making adjudication competent, informed, necessary, and useful. For this notion, Hundal indicated that a judicial decision is proper only when adversely affected parties litigate live issues of current personal consequence in a lawsuit whose format assures adversary argument and judicial capacity to devise meaningful remedies.
- [194] For the second notion of appropriateness, Hundal said it would concern fairness, which promotes judicial consideration for parties and interests not represented in the lawsuit, whose rights might be compromised unfairly by a substantive decision rendered without their participation.

- [195] And, for the third notion, Hundal explained that it would concern the proper institutional and political role in our democracy of the appointed, electorally unaccountable judiciary, which cautions courts to be sure of the need for imposing restraints, especially constitutional restraints, on other, particularly more representative government officials.
- [196] Moreover, Hundal indicated that whether the policies underlying the “justiciability” doctrine are or should be applied in a principled and consistent fashion depends on the form and characteristics of the litigation. Hundal noted that unsurprisingly a court would still have the discretion to adjust the degree to which these imprecise and flexible policies must be satisfied in particular cases, given individual variations in the configuration of lawsuits and the inherently relative nature of judgments about judicial capability, litigant need, and the propriety of judicial activism and restraint. In addition, Hundal remarked that assessments of the information and circumstances needed for intelligent, effective adjudication will vary with the levels of generality at which issues are posed and with judicial willingness to act under conditions of uncertainty.

(1) The Appropriateness Of A Political Solution In Respect To The Haldimand Tract

- [197] On aboriginal land claim issues, the courts in Australia had decided in the past that such decisions were rightfully a political issue and should be resolved with political solutions and not by litigation in the courts. In Canada, McLachlin C.J. of the Supreme Court of Canada in Haida Nation v. British Columbia (Minister of Forests), [2004] 3 S.C.R. 511, 2004 SCC 73 (S.C.C.), at paras. 14, 17, 20, 25 to 27, and 38, held that while Aboriginal claims can be and are pursued through litigation, negotiation is a preferable way of reconciling state and Aboriginal interests in all its dealings with Aboriginal peoples, from the assertion of sovereignty to the resolution of claims and the implementation of treaties, the Crown must act honourably. In addition, McLachlin C.J. had recognized that many Aboriginal Peoples had reconciled their claims with the sovereignty of the Crown through negotiated treaties and that treaties would serve to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty and to define Aboriginal rights guaranteed by s. 35 of the Constitution Act, 1982. McLachlin C.J. also emphasized that where treaties remain to be concluded, then the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims since Aboriginal peoples in Canada were here when Europeans came, and were never conquered. More importantly, McLachlin C.J. indicated that sovereignty claims reconciled through the process of honourable negotiation is a corollary of s. 35. Furthermore, McLachlin C.J. noted that honourable negotiation would imply a duty on the Crown to consult with Aboriginal claimants and conclude an honourable agreement reflecting the claimants’ inherent rights and to reconcile prior Aboriginal occupation of the land with the reality of Crown sovereignty [*emphasis is mine below*]:

While Aboriginal claims can be and are pursued through litigation, negotiation is a preferable way of reconciling state and Aboriginal interests.

...

In all its dealings with Aboriginal peoples, from the assertion of sovereignty to the resolution of claims and the implementation of treaties, the Crown must act honourably.

...

Where treaties remain to be concluded, the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims: R. v. Sparrow, [1990] 1 S.C.R. 1075, at pp. 1105-6. Treaties serve to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty, and to define Aboriginal rights guaranteed by s. 35 of the Constitution Act, 1982. Section 35 represents a promise of rights recognition, and "it is always assumed that the Crown intends to fulfil its promises" (Badger, supra, at para. 41). This promise is realized and sovereignty claims reconciled through the process of honourable negotiation. It is a corollary of s. 35 that the Crown act honourably in defining the rights it guarantees and in reconciling them with other rights and interests. This, in turn, implies a duty to consult and, if appropriate, accommodate.

...

Put simply, Canada's Aboriginal peoples were here when Europeans came, and were never conquered. Many bands reconciled their claims with the sovereignty of the Crown through negotiated treaties. Others, notably in British Columbia, have yet to do so. The potential rights embedded in these claims are protected by s. 35 of the Constitution Act, 1982. The honour of the Crown requires that these rights be determined, recognized and respected. This, in turn, requires the Crown, acting honourably, to participate in processes of negotiation. While this process continues, the honour of the Crown may require it to consult and, where indicated, accommodate Aboriginal interests.

Honourable negotiation implies a duty to consult with Aboriginal claimants and conclude an honourable agreement reflecting the claimants' inherent rights. But proving rights may take time, sometimes a very long time. In the meantime, how are the interests under discussion to be treated? Underlying this question is the need to reconcile prior Aboriginal occupation of the land with the reality of Crown sovereignty. Is the Crown, under the aegis of its asserted sovereignty, entitled to use the resources at issue as it chooses, pending proof and resolution of the Aboriginal claim? Or must it adjust its conduct to reflect the as yet unresolved rights claimed by the Aboriginal claimants?

The answer, once again, lies in the honour of the Crown. The Crown, acting honourably, cannot cavalierly run roughshod over Aboriginal interests where claims affecting these interests are being seriously pursued in the process of treaty negotiation and proof. It must respect these potential, but yet unproven, interests. The Crown is not rendered impotent. It may continue to manage the resource in question pending claims resolution. But, depending on the circumstances, discussed more fully below, the honour of the Crown may require it to consult with and reasonably accommodate Aboriginal interests pending resolution of the claim. To unilaterally exploit a claimed resource during the process of proving and resolving the Aboriginal claim to that resource, may be to deprive the Aboriginal claimants of some or all of the benefit of the resource. That is not honourable.

...
I conclude that consultation and accommodation before final claims resolution, while challenging, is not impossible, and indeed is an essential corollary to the honourable process of reconciliation that s. 35 demands. It preserves the Aboriginal interest pending claims resolution and fosters a relationship between the parties that makes possible negotiations, the preferred process for achieving ultimate reconciliation: see S. Lawrence and P. Macklem, "From Consultation to Reconciliation: Aboriginal Rights and the Crown's Duty to Consult" (2000), 79 Can. Bar Rev. 252, at p. 262. Precisely what is required of the government may vary with the strength of the claim and the circumstances. But at a minimum, it must be consistent with the honour of the Crown.

(2) Change Of Attitude By Governments And Courts On Aboriginal Peoples' Sovereignty

- [198] In concurrence with a change of attitude by the courts in respect to Aboriginal Peoples' sovereignty, Professor Brian Slattery, in his thesis, "Aboriginal Rights and the Honour of the Crown", (2005), vol. 29, no. 1, The Supreme Court L.R.: Osgoode's Annual Constitutional Cases Conference, 433-445, DOI: <https://doi.org/10.60082/2563-8505.1086> or online: Osgoode Digital Commons website <<<https://digitalcommons.osgoode.yorku.ca/sclr/vol29/iss1/20>>>, at pp. 433 to 445, discusses what he views as an evolution and new constitutional paradigm in dealing with Aboriginal rights in Canada. Professor Slattery had recounted that according to the dominant viewpoint, the Crown's acquisition of sovereignty over indigenous peoples and their territories gave rise to Aboriginal rights in the common law of Canada and that these rights continue to exist in their original form unless or until extinguished by legislation, voluntary surrender or other valid process. In addition, Professor Slattery indicated that this paradigm represents a clear advance over the paradigm of non-recognition that tended to dominate Canadian jurisprudence in earlier days. Of this observable shift in attitude by the courts, Professor Slattery remarked that prior to *Haida Nation*, the Supreme Court generally took the view that the existence of Crown sovereignty over indigenous peoples was legally unassailable. However, after the *Haida Nation* and *Taku River* decisions, Professor Slattery indicated that we can witness the emergence of a new constitutional paradigm governing Aboriginal rights and that this new paradigm recognizes the potential of s. 35 as a generative constitutional order, which mandates the Crown to negotiate with Aboriginal peoples for the recognition of their rights in a contemporary form that balances their needs with the interests of the broader society. Furthermore, Professor Slattery emphasized that under this new approach, when the Crown had claimed sovereignty over Canadian territories and ultimately gained factual control over them, it did so in the face of pre-existing Aboriginal sovereignty and territorial rights, but that this tension between these conflicting claims gave rise to a special relationship between the Crown and Aboriginal peoples, which requires the Crown to deal honourably with Aboriginal peoples. In addition, Professor Slattery points out that in *Haida Nation* and *Taku River*, the Supreme Court had been careful to avoid suggesting that the Crown had gained sovereignty over Aboriginal peoples in a lawful or legitimate manner; instead

the Supreme Court speaks of the Crown's assertion of sovereignty, as opposed to its acquisition of sovereignty, and it notes that this assertion effectively collided with the preexisting sovereignty and territorial rights of indigenous peoples. Moreover, Professor Slattery noted that the Supreme Court had recognized that the Crown had ultimately gained factual control of the territories claimed — what it describes as *de facto* sovereignty and deliberately refrained from concluding that this sovereignty is *de jure* [emphasis is mine below]:

When the Supreme Court first grasped the nettle of section 35 of the Constitution Act, 1982 in the Sparrow case, it held that the constitutional affirmation of Aboriginal rights should be interpreted in the light of the fundamental principle of the honour of the Crown. This principle pointed simultaneously in two different but complementary directions: negotiation and litigation. With respect to the first, the Court noted that the section provided a solid constitutional base for negotiated treaties between Aboriginal peoples and the Crown that would represent a just settlement of their claims. With respect to litigation, the Court held that the section furnished Aboriginal rights with a judicial shield against legislative infringement and limitation, except where the latter could be justified under the “high standard of honourable dealing” demanded of the Crown.

According to the dominant viewpoint, the Crown's acquisition of sovereignty over indigenous peoples and their territories gave rise to Aboriginal rights in the common law of Canada. These rights continue to exist in their original form unless or until extinguished by legislation, voluntary surrender or other valid process. As legal rights, Aboriginal rights are cognizable and enforceable in Canadian courts. However, Aboriginal peoples have to prove the existence of these rights on a case by-case basis in order to gain judicial protection.

While this paradigm represents a clear advance over the paradigm of non-recognition that tended to dominate Canadian jurisprudence in earlier days, it has several drawbacks. These relate to three areas: (1) Crown sovereignty; (2) proof of Aboriginal rights; and (3) the potential for evolution. I will say a few words about each.

1. Crown Sovereignty

Prior to Haida Nation, the Supreme Court generally took the view that the existence of Crown sovereignty over indigenous peoples was legally unassailable. As the Court stated in the Sparrow case:

It is worth recalling that while British policy towards the native population was based on respect for their right to occupy their traditional lands, a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that sovereignty and legislative power, and indeed the underlying title, to such lands vested in the Crown; ...

Yet many indigenous people take the view that the Crown's acquisition of control over their territories was an illegitimate act, consummated without their consent. This illegitimacy was compounded by the ensuing acts of dispossession, segregation and disenfranchisement visited on many Aboriginal groups by the

Crown. Some deny outright that the Crown ever gained lawful sovereignty over them, arguing that they were never conquered by the Crown and never voluntarily ceded their territories to the Crown or accepted its claims of authority. Others point to ancient treaties as the basis of their relationship with the Crown, as friends and allies rather than subjects. Still others say that the Crown stands as the protector of their rights rather than as a “sovereign” on the European model. In one way or another, then, Crown sovereignty has always been a sticking point for Aboriginal peoples — even when presented as part and parcel of the common law doctrine of Aboriginal rights.

...

3. The Potential for Evolution

The standard paradigm holds that, once Aboriginal rights are proven to have existed at the critical historical date (often centuries ago), they continue to exist more or less in their original form, with only a modest allowance for evolution and change. This approach does not allow courts to take proper account of the tremendous changes that have occurred in Canadian society in the interval. It mandates the recognition of Aboriginal rights in historical configurations that are often ill-adapted to contemporary conditions. At the same time, it does not permit courts to consider the interests of third parties and the larger society in moulding the modern contours of Aboriginal rights.

So courts are forced to make hard and somewhat unrealistic choices. Either they must hold that the asserted Aboriginal rights continue to exist in their original historical forms, which may satisfy neither the Aboriginal claimants nor third-party stakeholders. Or they must hold that the rights have been extinguished, which often compounds the injustices already experienced by the indigenous parties and fails to resolve the long-standing grievances that separate them from their neighbours. In other words, the paradigm does not lend itself to a flexible approach which permits Aboriginal rights to be recognized in a form that makes allowance for the current and future needs of Aboriginal peoples and the reasonable interests of the larger society.

III. THE NEW PARADIGM

In the Haida Nation and Taku River decisions, we witness the emergence of a new constitutional paradigm governing Aboriginal rights. This paradigm recognizes the potential of section 35 as a generative constitutional order — one that mandates the Crown to negotiate with Aboriginal peoples for the recognition of their rights in a contemporary form that balances their needs with the interests of the broader society.

According to this approach, when the Crown claimed sovereignty over Canadian territories and ultimately gained factual control over them, it did so in the face of pre-existing Aboriginal sovereignty and territorial rights. The tension between these conflicting claims gave rise to a special relationship between the Crown and Aboriginal peoples, which requires the Crown to deal honourably with Aboriginal peoples. The “honour of the Crown” obliges the Crown to respect Aboriginal rights, which in turn requires it to negotiate with Aboriginal peoples with a view to identifying those rights. It also obliges the Crown to consult with Aboriginal peoples

in all cases where its activities affect their asserted rights and, where appropriate, to accommodate these rights by adjusting the activities.

The Court's overall approach is outlined by McLachlin C.J. in a pithy paragraph:

Put simply, Canada's Aboriginal peoples were here when Europeans came, and were never conquered. Many bands reconciled their claims with the sovereignty of the Crown through negotiated treaties. Others, notably in British Columbia, have yet to do so. The potential rights embedded in these claims are protected by s. 35 of the Constitution Act, 1982. The honour of the Crown requires that these rights be determined, recognized and respected. This, in turn, requires the Crown, acting honourably, to participate in processes of negotiation. While this process continues, the honour of the Crown may require it to consult and, where indicated, accommodate Aboriginal interests.

This new approach attempts to remedy some of the main drawbacks of the standard paradigm. Let us review the three areas of difficulty identified earlier.

1. Crown Sovereignty

In Haida Nation and Taku River, the Supreme Court is careful to avoid suggesting that the Crown gained sovereignty over Aboriginal peoples in a lawful or legitimate manner. The Court speaks of the Crown's assertion of sovereignty, as opposed to its acquisition of sovereignty, and it notes that this assertion effectively collided with the preexisting sovereignty and territorial rights of indigenous peoples. The Court acknowledges that the Crown ultimately gained factual control of the territories claimed — what it describes as de facto sovereignty. But it pointedly refrains from concluding that this sovereignty is de jure.

The term de facto characterizes a state of affairs that is illegal or illegitimate but accepted for practical purposes. It contrasts with the term de jure, which means rightful, legitimate, just, or constitutional, and generally describes a condition in which there has been full compliance with all legal requirements. Overall, the Court's choice of language suggests that the Crown's claims of sovereignty over Aboriginal peoples will continue to be legally deficient until there has been a just settlement of their rights through negotiated treaties. As McLachlin C.J. says:

Treaties serve to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty, and to define Aboriginal rights guaranteed by s. 35 of the Constitution Act, 1982. Section 35 represents a promise of rights recognition, and "[i]t is always assumed that the Crown intends to fulfil its promises" This promise is realized and sovereignty claims reconciled through the process of honourable negotiation.

...

3. The Potential for Evolution

The Court emphasizes that the Crown has the duty to achieve a just settlement of Aboriginal claims by negotiation and treaty. So doing, the Court attributes a generative role to section 35. In effect, it holds that the Crown, with the assistance of the courts, has the duty to bring into being a new legal order that accommodates Aboriginal rights, through negotiation and agreement with the indigenous peoples

affected. This approach views section 35 as serving a dynamic and not simply static function — a function that does not come to an end even when treaties are successfully negotiated. As the Supreme Court states:

The jurisprudence of this Court supports the view that the duty to consult and accommodate is part of a process of fair dealing and reconciliation that begins with the assertion of sovereignty and continues beyond formal claims resolution. Reconciliation is not a final legal remedy in the usual sense. Rather, it is a process flowing from rights guaranteed by s. 35(1) of the Constitution Act, 1982.

In other words, section 35 does not simply recognize a static body of specific Aboriginal rights, whose contours may be ascertained by the application of general legal criteria to historical circumstances — historical rights for short. Rather, the section binds the Crown to take positive steps to identify Aboriginal rights in a contemporary form, with the consent of the indigenous parties concerned — what we may call settlement rights. Settlement rights have two distinctive characteristics, not shared by historical rights. First, they represent contemporary restatements of Aboriginal rights in a form that renders them useful and commodious for indigenous groups in modern conditions. Second, settlement rights perforce take account of the interests of the broader society, of which Aboriginal peoples are also members.

...

IV. THE SOURCE OF THE DUTY TO ACT HONOURABLY

As we have seen, the Supreme Court holds that the Crown has a general duty to act honourably as regards indigenous peoples and their rights. The Court refers to this as “the Crown’s duty of honourable dealing” or more briefly “the honour of the Crown.”

But how did the Crown’s duty to act honourably arise? Here again there are three theories. The first argues that the Crown voluntarily assumed this duty when it asserted sovereignty over the indigenous peoples of Canada. In effect, the duty arose from a freely undertaken Crown Act. A plausible candidate is the Royal Proclamation of 1763, where the Crown states:

... whereas it is just and reasonable, and essential to Our Interest and the Security of Our Colonies, that the several Nations or Tribes of Indians, with whom We are connected, and who live under Our Protection, should not be molested or disturbed in the Possession of such Parts of Our Dominions and Territories as, not having been ceded to, or purchased by Us, are reserved to them, or any of them, as their Hunting Grounds; ...

Advocates of this theory point to the Proclamation’s declaration that Indian nations live under the Crown’s protection and argue that the document’s detailed provisions are only partial articulations of the basic responsibilities that the Crown assumed.

The second theory does not necessarily deny the far-reaching effects of the Royal Proclamation of 1763, but it argues that the document only gave voice to what was in reality a pre-existing legal duty or responsibility. This duty flowed from a general

principle of imperial law that governed the Crown's assertion of sovereignty over indigenous peoples and required the Crown to deal honourably with these peoples and respect their basic rights. So the Proclamation was, in this respect, not a pure "act of grace" on the part of the Crown, but rather an explicit recognition of what was in fact its bounden legal duty.

The third theory takes an altogether different tack. It suggests that the duty to act honourably stems from the explicit recognition and affirmation of Aboriginal rights in section 35 of the Constitution Act, 1982. As such the duty only came into existence at the time the section was enacted in 1982 and presumably only governs Crown dealings from that date onwards. Prior to this time, while specific fiduciary obligations bound the Crown in particular contexts, the general duty to act honourably did not exist beyond the purely moral and political sphere.

Which of these theories does the Supreme Court favour in Haida Nation? At least one thing is clear: the Court rejects the third theory. Time and again it insists that the duty to act honourably governs all the Crown's dealings with Aboriginal peoples "from the assertion of sovereignty to the resolution of claims and the implementation of treaties."

The Court's clearest statement on the point comes in its response to the argument advanced by the Province of British Columbia that the Crown's duty to consult or accommodate rests solely with the federal government. The province invoked section 109 of the Constitution Act, 1867, which provides that "[a]ll Lands, Mines, Minerals, and Royalties belonging to the several Provinces of Canada . . . at the Union . . . shall belong to the several Provinces." The province argued that this provision gave it exclusive rights to the lands at issue. This right, it maintained, could not be limited by the protection for Aboriginal rights found in section 35 of the Constitution Act, 1982, for to do so would undermine the balance of federalism.

The Supreme Court rejects this argument. It points out that, under the terms of section 109, the provinces took their interest in lands subject to "any Interest other than that of the Province in the same." It goes on to hold that the duty to consult and accommodate "is grounded in the assertion of Crown sovereignty which pre-dated the Union." It follows that the province took the lands subject to this duty. It cannot therefore argue that section 35 deprives it of powers it would otherwise have enjoyed. So, the Court clearly rules out the view that the duty to act honourably only came into existence in 1982, with the enactment of section 35.

Elsewhere, the Court makes statements favouring the view that the honour of the Crown flows from general principles of law applying at the time of asserted sovereignty. In a passage noted earlier, Chief Justice McLachlin C.J. says that the duty to consult and accommodate is part of a process of fair dealing and reconciliation that begins with the assertion of sovereignty and continues beyond formal claims resolution. She goes on to state:

This process of reconciliation flows from the Crown's duty of honourable dealing toward Aboriginal peoples, which arises in turn from the Crown's assertion of sovereignty over an Aboriginal people and de facto control of land and resources that were formerly in the control of that people. As stated in Mitchell v. M.N.R., [2001] 1 S.C.R. 911, 2001 SCC 33, at para. 9, "[w]ith this assertion [sovereignty]

arose an obligation to treat Aboriginal peoples fairly and honourably, and to protect them from exploitation.”

This passage suggests that the duty of honourable dealing arose automatically upon the Crown’s assertion of sovereignty over indigenous nations. The Court does not invoke any specific Crown acts, such as the Royal Proclamation of 1763. Rather it portrays the duty as the inevitable by-product of the process itself. No doubt the Court would acknowledge that the Proclamation bears witness to the existence of the duty, but evidently it rejects the view that the Proclamation (or any other Crown Act) is its source.

What role, then, does section 35 play in implementing the honour of the Crown? According to Haida Nation, the section has a dual function.

On the one hand, it serves as a basis for the judicial identification and protection of historical Aboriginal rights, through the application of general constitutional principles. On the other hand, it serves as a springboard for negotiations leading to just settlements, in which Aboriginal rights are recognized in a modern form and reconciled with the interests of the larger society. In both cases, the process is informed by the honour of the Crown.

[199] Additionally, James Collie, in his recent article entitled, “Unsettling The Royal Proclamation Of 1763: A Substantive Analysis Of Section 25 Of The Charter”, (2024), vol. 61, no. 3, Alta. L.R., 637, 2024 CanLII Docs 929, at pp. 666 to 676, contends that a shift in interpretations of the Royal Proclamation of 1763 is essential to judicial reconciliation in order to better understand Indigenous peoples, perspectives, and legal orders, as courts have overwhelmingly endorsed a static, unilateral narrative of the Royal Proclamation in a manner that constrains the importance given to these rights in s. 25 of the Charter of Rights and Freedoms. Collie in his journal article had compared two recent decisions in respect to the Proclamation of 1763. In the *Rice v. Agence du revenu du Québec* case, Collie indicates that the Quebec Court of Appeal upheld the trial judge’s decision that had found against the incorporation of commercial rights as an Aboriginal right that would be protected under s. 35 of the Constitution Act, 1982. In addition, Collie notes that the Quebec Court of Appeal held that 25 of the Constitution Act, 1982 does not generate new rights and that s. 25 is an interpretative measure that is aimed at preventing contestation of Aboriginal rights based on other provisions of the Canadian Charter, and as a result, the Quebec Court of Appeal had found that the right to trade freely from the Royal Proclamation of 1763 did not have constitutional status. Collie also remarked that the Quebec Court of Appeal in *Rice* had interpreted the Royal Proclamation of 1763 and s. 25 rights in a highly constrained way that had embodied the settled narrative of the Royal Proclamation of 1763.

[200] In contrast, Collie then noted that of Hennessey J. of the Superior Court of Justice of Ontario in the *Restoule v. Canada (A.G.)* case had found that Canada’s and Ontario’s responsibilities toward Indigenous peoples stemmed from the Royal Proclamation of 1763 and the Treaty of Niagara. Furthermore, Collie indicated that

Hennessey J. had also described the connections between the Royal Proclamation of 1763 and the events of the Treaty of Niagara, noting how it had been a cross-cultural merging of diplomatic protocols and legal orders. Collie also indicated that the Hennessey J. had noted the importance of the council at Niagara to extend the Covenant Chain Alliance to the Anishinaabe, as well as noting the expert testimony that indicated that the Anishinaabe had understood that they held title to their lands, maintained their autonomy, re-established fair trade relationships with the British, secured themselves protection from unscrupulous traders, and secured a process for restitution of fraudulent land purchases. In Collie's view, the restrictions of *Restoule* is the result of the maintenance of a settled narrative of the Royal Proclamation of 1763, such that Collie argues for an unsettling of this judicial narrative to better contextualize the Royal Proclamation alongside themes of Indigenous mutuality and consent, that would be largely based in the Treaty of Niagara. Collie demonstrates this imperative with the *Rice* and *Restoule* cases, in which one was complete with a static understanding of the Royal Proclamation, and the other which had given credit to the Treaty of Niagara and had worked to unsettle the dominant narrative [*emphasis is mine below*]:

A. JUDICIAL RECONCILIATION

Courts in Canada have often been directly implicated in, if not entirely supportive of, the colonial project; although, there is a growing awareness that courts need to change to better understand Indigenous peoples, perspectives, and legal orders. Interestingly, in most of the positions advocating change, there is an explicit recognition that the courts have not done enough. Thus, there is a need for the courts to move forward in order to enable reconciliation in Canada.

In terms of the rights recognized by the Royal Proclamation, I suggest this move forward can come from two realities. The first is that the Royal Proclamation came about through a pre-existing relationship between the Crown and Indigenous peoples based on mutuality and consent. The second is that the rights ascribed into the Constitution Act, 1982, are far from settled. These rights were to be worked out at a later date. However, as we know, the ensuing constitutional discussions, conferences, and proposals did address the rights recognized by the Royal Proclamation, but without reaching agreement. If the need today is to recalibrate the foundations of Canadian law, I see no reason why we cannot start with addressing the unfinished nature of constitutional guarantees of Aboriginal and treaty rights. It is worth noting that changing such foundations would likely be the product of sustained political discussions between appropriate representatives of the Crown and Indigenous peoples. This shift seems like an unlikely one for a Canadian courtroom. However, in this next section, I will examine two cases to show how a shift in interpretations of the Royal Proclamation is essential to judicial reconciliation.

B. RICE V. AGENCE DU REVENU DU QUÉBEC

*The second case, *Rice v. Agence du revenu du Québec*, comes from the Court of Appeal of Quebec and has direct implications for cases involving section 25 and the Royal Proclamation. In the 1990s, the Kahnawake Reserve had several*

retailers who were selling gas to interested vendors, some who had Indian status, others who did not. Kahnawake retailers benefited from being exempt from certain taxes through their status, providing a commercial advantage compared to retailers outside of the reserve. In the spring of 1994, the Agence du Revenu Québec revoked several registration certificates based on a “belief that it was being deprived of significant tax revenue because of the appellants’ failure to collect and remit the various taxes.” In response, the Kahnawake retailers filed against the department based in claims of Aboriginal rights deriving from the Royal Proclamation, section 25, and section 35.

The first part of the ruling considered whether there was a section 35 right to trade freely and whether the trial judge erred in ruling that there was not. The first, and larger component, of this claim focused on the longstanding practice of trading amongst the Kanien,kehá ka (Mohawk) people and if this could contribute to an Aboriginal right. The Court found that through jurisprudence, notably R. v. Van der Peet and cases using the test established within that case, there was no right to trade freely. In Van der Peet, the Supreme Court of Canada ruled 7–2 in favour of protecting Aboriginal cultural practices in Aboriginal rights but ruled against the incorporation of commercial rights as Aboriginal rights. That ruling contended that, “[e]ven if the object of an ancestral right can evolve over time, this does not mean it can be transformed into a completely different modern right.” As a result, the Rice Court found that the trial judge did not err in judgment, that “the Court cannot make the quantum leap proposed by the Petitioners from the practice of exchanging spiritual ‘orenda’ artefacts to the practice of the commercial sale of fuels (regular, super, diesel), i.e. refined synthetic products supplied by petroleum companies, their suppliers.”

It should be noted that the Rice decision directly recognizes the importance of section 25 for Aboriginal rights. This position goes beyond the traditional interpretation of section 25 as a saving provision, and instead recognizes its importance in line with the need to unsettle the Proclamation narrative. The Kahnawake appellants held that the trial judge made two mistakes in not attributing constitutional status to the Royal Proclamation and ignoring commitments within that allow for Indigenous peoples to trade freely. The Quebec Court of Appeal replied in its ruling that amongst the small jurisprudence and scholarly works on it, section 25 does not generate new rights and rather “the provision is interpretative, and is aimed at preventing contestation of Aboriginal rights based on other provisions of the Canadian Charter.” As a result, the Court found that the right to trade freely from the Proclamation did not have constitutional status.

In its ruling, the Court continued to explore the right to trade freely, contemplating if it came from the Proclamation and whether it could be established as an existing Aboriginal right. The Court, despite finding that the appellants were correct in arguing the Proclamation “granted them significant rights,” was intensely critical of a right to trade. The Court acknowledged the right to trade freely guaranteed in the Proclamation but clarified that this provision was designed to protect Indigenous peoples against commercial abuse by deceitful merchants. Accordingly, the Court concluded on the right to trade freely: “Nothing in the text of the Royal Proclamation or its historical context gives rise to the conclusion that [the] British Crown promised Aboriginals an unrestricted right to trade that was

exempt from regulation of any kind.” Ultimately, despite brief acknowledgement of a potential right to trade freely, this right was found to be highly limited.

Rice creates three significant issues in dealing with the Royal Proclamation rights provided by section 25. The first issue is that the Court’s understanding of the Proclamation remains tied to one of British supremacy, evident by the Court explicitly noting that the Proclamation “was not a treaty, but a unilateral declaration of the Imperial Crown.” This statement sheds the Proclamation of its Treaty of Niagara roots and instead posits the document as one that sought to do little more than ensure colonization. Moreover, this interpretation ignores that the Proclamation was a response to the need to establish friendly relations with Indigenous peoples. Principles of mutuality and consent are removed if we presume the starting point was always a British one, and not a mutual one.

This starting point creates the context for the second issue; there is a significant deviation between the legislative intentions of section 25 and how the Court treats the appellants’ section 25-based claim. The Court’s statement that section 25 is an interpretive provision is correct, and I agree that it did not create new rights in and of itself. However, this analysis overlooks two realities. The first, as explained by Chrétien, is that Parliament cannot overturn the Royal Proclamation even if it wanted to. The fact that the drafters of the Constitution Act, 1982 felt they could not remove Proclamation rights even if they wanted to surely indicates the importance of the Proclamation. The second is the constitutional status of section 25. While the Proclamation has been subject to debate over its constitutional status, it is clear that section 25 constitutionalizes the protection of the Proclamation. Moreover, the legislative history suggests that the content of Proclamation rights is not clear. There was an explicit intention to determine the rights at a later date, which as mentioned, turned into constitutional conferences, failed amendments, and ultimately, no agreement on the content of these rights. While the courts have further defined the content of these rights, this has essentially depoliticized a process that was supposed to be conducted with Indigenous peoples, not for them.

The final issue is the presumption of regulation. It is a debatable claim that the Proclamation did not guarantee unrestrained commercial activity by Indigenous peoples, although it did guarantee “that the Trade with the said Indians shall be free and open to all our Subjects whatever” requiring only a licence on the side of settlers. However, beyond this debate, why should we presume that this guaranteed the ability of the Crown to regulate Indigenous commercial activity? It is probably worth turning to the section of the Proclamation that guarantees that Indigenous peoples “should not be molested or disturbed.” Certainly, there are grounds to argue that the Kahnawake retailers would be disturbed by Crown regulations on their commercial activity. The assumption of regulation is only made possible by the Court’s unilateral starting place, free of Indigenous mutuality and consent. At the time of writing, an Indigenous dispensary, Spirit River Cannabis, has opened without provincial regulation in London, Ontario by members of Chippewa of the Thames First Nation on their traditional territory. This dispensary has a large sign near the entrance explaining that the store is “protected” by sections 25 and 35, signed by Hereditary Chief Del Riley who is explicitly mentioned as a negotiator of the Constitution Act, 1982. The future of such

commercial arguments through section 25 and the Royal Proclamation are yet to be seen, but represent a test of the economic guarantees of the Proclamation.

C. RESTOULE V. CANADA (A.G.)

The recent case, Restoule v. Canada (A.G.), represents one of the most expansive views of the Royal Proclamation and the Crown's duties arising from it. In the trial court, the Ontario Superior Court considered the Robinson Treaties of 1850, in which the Anishinaabe of the upper Great Lakes claimed that Ontario and Canada had ignored specific increases in the treaty annuities clauses over the years. The Court found that the treaty annuities did require to be increased. The Ontario Court of Appeal upheld the judgment, only differing from the trial judge on a few matters. The decision was significant for a few distinct reasons. The first is that the Court found that Canada's and Ontario's responsibilities toward Indigenous peoples stemmed from the Royal Proclamation and the Treaty of Niagara. Recall earlier, that the Proclamation has been used as a recognition of inherent Aboriginal rights, but this decision was different. While the Court did acknowledge that the Proclamation was a unilateral declaration of sovereignty for the Crown, it also declared the Proclamation as a starting point for contextualizing the Robinson Treaties: "The motivation for and the fundamental concepts in the Robinson Treaties flow from the Royal Proclamation."

The second point of significance is the Court's description of the connections between the Proclamation and the events of the Treaty of Niagara, noting how it was a "cross-cultural merging of diplomatic protocols and legal orders." The Court noted the importance of the council at Niagara to extend the Covenant Chain Alliance to the Anishinaabe, and noted the expert testimony that the Anishinaabe "understood that they held title to their lands, maintained their autonomy, re-established fair trade relationships with the British, secured themselves protection from unscrupulous traders, and secured a process for restitution of fraudulent land purchases." The starting point of Crown sovereignty remains, but there is a significant deviation in incorporating Indigenous perspectives into traditional understandings of the Royal Proclamation. As a result, the Proclamation becomes a unilateral document grounded in a multilateral reality. Without the latter, the Proclamation would have been devoid of real operative power.

Finally and most significantly, Restoule contains one of the most thorough engagements with Indigenous perspectives in recent jurisprudence. The Court took the crucial step of hearing from several experts, scholars, and community members, all of whom have some tie to Anishinaabe systems of politics, governance, and law. Doing so allowed the Court to move past abstract notions of "Aboriginal" and "Indigenous" and listen to the actual nation who is making the claim. In this case, the trial judge directly considered Anishinaabe principles of respect, responsibility, reciprocity, and renewal. The Court also travelled to three different Anishinaabe communities throughout the duration of the case. With sustained attention to Anishinaabe perspectives of the Treaties, Justice Hennessey could conclude "that the Treaties were not a bargain for a \$4 fixed amount; rather, they were future-oriented agreements situated within an ongoing relationship." In noting the ongoing nature of treaties, Restoule provides us with an example of not viewing Indigenous rights solely in terms of past infringement, but rather that treaties should continue to be observed, and a demonstrable

commitment to the principle that “once a valid treaty is found to exist, that treaty must in turn be given a just, broad and liberal construction.”

Restoule stands out for its significant interpretation of the Royal Proclamation and the Treaty of Niagara. This is not to suggest, however, that the case is not without its flaws. As Heidi Stark writes, who was also an expert witness in the case representing Anishinaabe law, the issue with cases that deal with treaty infringements and rights disputes is that they constrain the ability for proper rectification. Put simply, narrow claims heard in court do not consider greater contexts of colonialism, such as the denial of Indigenous political and legal orders. As Stark writes, “[i]f we are going to take Indigenous assertions of sovereignty and nationhood seriously, as well as the laws and political traditions that give shape and meaning to Indigenous sovereignty and nationhood, we must also ask what treaty rights exist beyond the scope of hunting and fishing.” I contend that the restrictions of Restoule come from the maintenance of a settled narrative of the Royal Proclamation. As we continue to view the Proclamation in non-contestable terms, so too do we constrain the document as one that ensures the Crown’s political and legal orders, without offering the same in kind for Indigenous nations. Thus, the need to unsettle the constitutional interpretation of the Royal Proclamation continues.

D. JUDICIAL NARRATIVES OF PROCLAMATION

In this section, I reviewed two different cases. Rice embodied the settled narrative of the Proclamation and accordingly understood the Proclamation and section 25 rights in a highly constrained way. The arguments of the appellants, despite holding great promise for section 25 clarity given their provocative premise, have been dismissed for leave by the Supreme Court of Canada. The second case, Restoule, gave tremendous credit to the Treaty of Niagara and the mutual roots of the Proclamation. Despite its issues, Restoule considered Anishinaabe perspectives and questioned the premise of Crown supremacy, finding that the Crown owes the Anishinaabe fair and changing annuities as a result of the Robinson Treaties. Rice and Restoule represent two directions for the courts in approaching the Proclamation narrative. It is worth asking: if the Robinson Treaties can be understood in a modern context, why not the rights recognized by the Proclamation and their constitutional guarantee in section 25? The test of whether courts will unsettle the Proclamation narrative will only continue as more and more recent cases invoke both the use of the Royal Proclamation and the Treaty of Niagara to stake their claims. This test will involve moving outside the colonial structures of the courts and toward a mutual understanding.

VI. CONCLUSION

As the foundational document in the relationship between the Crown and Indigenous peoples, the Royal Proclamation remains relevant to the state of this relationship today. I set out to examine the content of the rights provided by the Proclamation guaranteed in section 25 of the Charter. These rights continued to be ill-defined, but I did find that there is a consensus about the savings provision this section creates, protecting Aboriginal rights from Charter challenges. I argue two things throughout this article. First, section 25 rights are ill defined because they were ill-defined at conception. The inclusion of the section intended to figure

out the content of these protected rights at a later time. In the words of Chrétien: “What we are trying to do in ... Section 24 [draft of 25] we want to protect all the rights of the natives.... Exactly the reason why we are doing that is to make sure that all the rights be protected because in Canada we still need some clarification to come to an agreement about native rights.” The need for clarification resulted in a constitutional conference, the Constitutional Amendment Proclamation, 1983, more conferences, two failed constitutional amendments, and yet, no clarity on the content of Proclamation rights protected by section 25. Chrétien’s demand about the need for an agreement on Indigenous rights reads as true today as it did in 1982.

The second part of my argument has built on the notion that courts have largely determined the content of Aboriginal rights since the constitutional gridlock of the late twentieth century. Grounded in the context of our discussion, this reality is problematic as courts have overwhelmingly endorsed a static, unilateral narrative of the Royal Proclamation in a manner that constrains the importance given to these rights in section 25. As a result, I argue for an unsettling of this judicial narrative to better contextualize the Proclamation alongside themes of Indigenous mutuality and consent, largely based in the Treaty of Niagara. This imperative is supported with two cases, one complete with a static understanding of the Proclamation, and the other which gave credit to the Treaty of Niagara and worked to unsettle the dominant narrative. The latter case — Restoule — should be looked on as a path forward for judicial approaches to the Royal Proclamation, a vital task considering the amount of recent Aboriginal rights claims grounded in the Proclamation.

In the context of Proclamation rights, we are left with several unexplored and unresolved issues. For land rights, there exists the question of whether courts can retroactively correct unsanctioned purchasing or settling on Indigenous lands — more aptly referred to as land theft — with the rights guaranteed by the Proclamation. Another issue is whether the rights protected by the Proclamation could be subject to an originalist application. The troubling notion of originalism is that it could constrain modern applications of historical guarantees, much in the way that judges in the Rice decision did not find sufficient grounds for permitting contemporary economic activities. Additionally, we are left with some confusion on the application of individual Aboriginal rights. As Justice Abella wrote in the unanimous Supreme Court of Canada ruling dismissing the Behn v. Moulton Contracting Ltd. appeal: “[I]t could be said that these rights might belong to them or that they have an individual aspect regardless of their collective nature.” Proclamation rights, while addressed to Indigenous nations, seem to have an individual character, demonstrated when Chrétien stated that non-status Indigenous people have these rights. Further investigation on the nature of collective versus individual Proclamation rights is therefore necessary.

I conclude by noting the limits of my argumentation. The most notable is that many Indigenous peoples do not want to engage with the Crown and its systems in a way that unsettling this narrative would likely require. Moreover, even sustained engagement could still fail to meet the demands for a nation-nation relationship; namely the demands of legal pluralism and the engagement of settlers with Indigenous laws, political orders, and legal orders. The final contention is that the shortcomings of section 25 have been addressed, in part, by the inception of

section 35, and the subsequent jurisprudence that has developed section 35 into the main guarantor of Aboriginal rights in Canada. The issue with this explanation is that section 35 rights have been, through cases like *Guerin* and *Delgamuukw*, moved away from the Royal Proclamation. As a result, there exists no recognized substantive Proclamation-based rights, despite the creation of section 25. These rights, as has been argued, could greatly expand legal protections of land rights and nation-based rights for Indigenous peoples. While section 35 and subsequent developments have been important, so too is the need to unsettle the interpretation of the Proclamation as dormant, in order to expand Aboriginal rights and return to the principles of mutuality and consent that the Crown-Indigenous relationship was founded on. The relatively open-ended nature of what unsettling requires is necessary to ensure that this process is conducted by and with Indigenous nations; such notions must run contrary to the history of the Crown's decidedly one-sided decision-making of the content of Aboriginal rights.

This article has worked from a position that the relationship between the Crown and Indigenous peoples is unjust. I have sought to investigate one element of the foundations of this relationship: the rights recognized by the Royal Proclamation of 1763. The inclusion of these rights in the Charter, through section 25, has not been the subject of large examination. Throughout this article, I have sought to highlight the inconsistencies and undetermined nature of the section. To conclude, we are left with a settled narrative of the Proclamation, but an unsettled state of section 25. Thus, we need to begin to see the Proclamation as unsettled to fully appreciate the inclusion of section 25 and the rights that it includes. In doing so, we can begin to unravel the tensions at the heart of the relationship between the Crown and Indigenous peoples. If done correctly, I believe it can help lead us to a place with more room for mutuality and consent, but only if we are ready to unsettle what we already know.

- [201] Ergo, since the issue of whether the “Haldimand Proclamation of 1784” and the Simcoe Proclamation of 1793 had transferred title in fee simple of the Haldimand Tract to the Six Nations Confederacy has not been ultimately decided by the Supreme Court of Canada, that issue may still need to be decided when the Supreme Court decides to consider it. Considering that the concept of Indigenous Peoples’ sovereignty, aboriginal title and rights, and Aboriginal Peoples’ land claims have evolved since the Court of Appeal’s judgment had been rendered in *Isaac et al. v. Davey et al* (1975), 5 O.R. (2d) 610, and how these same issues have been viewed by the Supreme Court of Canada after the enactment of s. 35 of the *Constitution Act, 1982* and its decision in *Haida Nation v. British Columbia (Minister of Forests)*, [2004] 3 S.C.R. 511, specifically regarding reconciliation of the Crown’s assertion of sovereignty with Aboriginal People’s sovereignty over the occupation of their traditional lands through negotiated treaties and the honour of the Crown to deal fairly with Aboriginal People in their land claims, the contentious issue of the Six Nations’ claim to having been granted absolute ownership of the Haldimand Tract by the “Haldimand Proclamation of 1784” may someday result in a conceptually different legal outcome that does not rest solely on common law concepts such as “title in fee simple” or a “personal and usufructuary right”.

(B) Motion For Change Of Venue To The Federal Court Or To An Alternative Court Location Outside The Disputed Territory To Ensure Impartiality And Fairness

- [202] The defendants also move for a change of venue to the Federal Court or to an alternative court location outside the disputed territory to ensure impartiality and fairness and rely on the case of R. v. Tran, [1994] 2 S.C.R. 951 (S.C.C.) to support their motion.
- [203] In R. v. Tran, [1994] 2 S.C.R. 951, the Supreme Court of Canada had to consider whether the failure to provide the accused with full and contemporaneous translation of all the evidence at trial constituted a breach of his right to an interpreter, as guaranteed by s. 14 of the Canadian Charter of Rights and Freedoms.

(1) Jurisdiction Of The Federal Court

- [204] As for the defendants' request to change the venue of the defendants' Highway Traffic Act charges to the Federal Court, unlike the Superior Courts established by the provinces, the Federal Court does not have inherent, general jurisdiction. In order for the Federal Court to have authority to hear a given subject matter it must be given the jurisdiction to hear the matter. In particular, (1) that subject matter must be assigned to Parliament under the Constitution; and (2) there must be actual, existing and applicable federal law; and (2) the administration of that law must have been conferred upon the Federal Court. The jurisdiction of the Federal Court is conferred by the Federal Courts Act, R.S.C. 1985, c. F-7, and from a hundred other applicable federal statutes.
- [205] However, the Federal Court does have specialized jurisdiction in Aboriginal law, which includes claims against the federal Crown, such as claims regarding Aboriginal title, Aboriginal rights and treaty rights, and claims for damages against the Crown; judicial review of conduct and decisions of federal bodies and tribunals that affect First Nations, Métis and Inuit; judicial review of Aboriginal Peoples' decision-making bodies, in particular elections tribunals. Furthermore, as indicated on the Federal Court website, some of the cases that have been brought in the area of Aboriginal law before the Federal Court involve the following:
- *Judicial review of a decision of a federal department on the grounds that it failed in its duty to consult with an Aboriginal group;*
 - *Action against the federal Crown for breach of fiduciary duty in making certain treaties;*
 - *Judicial review of a decision of the Non-Insured Health Benefits Program to deny benefits to a First Nations person;*
 - *Judicial review of a Canadian Human Rights Tribunal decision regarding provision of funding and services for First Nations;*

- *Action for a declaration that Métis and non-status Indians are “Indians” within the meaning of “Indians and lands reserved for Indians” in s. 91(24) of the Constitution Act, 1867;*
- *Class action for damages resulting from the “Sixties Scoop”;*
- *Judicial review related to a governance dispute in a First Nation;*
- *Application for a declaration that a First Nation’s election law breaches the Canadian Charter of Rights and Freedoms.*

(2) An Action In Respect To The “Haldimand Tract” Is Presently Being Litigated In The Superior Court of Ontario in Toronto

[206] Although the defendants submit they are not arguing on the issues of aboriginal rights, but rather on the argument that the Provincial Offences Court lacks the jurisdiction to hear and try the defendants’ Highway Traffic Act charges because the alleged offences had allegedly been committed in the County of Brant, which the defendants claim is the sovereign territory of the Mohawk Nation of the Grand River that had been granted to them under the “Haldimand Proclamation of 1784”. In addition, the defendants contend that the action in the Superior Court of Justice in Toronto is unlike the defendants argument in his pre-trial motions, since the action in the Superior Court is for compensation and an accounting of moneys that are owed to the Six Nations of the Grand River.

[207] However, some of the defendants’ pre-trial motions would require having to make findings of fact and to grant equitable and prerogative remedies that appear to be analogous to the issues and claims made in the action being litigated in the case of Six Nations Of The Grand River Band Of Indians v. The Attorney General Of Canada And His Majesty The King In Right Of Ontario (Toronto Court File No. CV-18-00594281-0000 (Formerly Brantford Court File No. 406/95)). The statement of claim by The Grand River Band Of Indians seeks from the Superior Court of Justice a declaration that the Haldimand Proclamation had set apart or aside lands whose legal title was vested “in the Crown” extending for six miles from each side of the Grand River beginning at Lake Erie and extending in that proportion to the head of the Grand River (the “Haldimand Tract”) for the use and benefit of the Six Nations of the Grand River. In the alternative, The Grand River Band Of Indians seek a declaration that, if the Haldimand Proclamation did not set aside the Haldimand Tract as a Reserve in 1784, that it obliged the Crown to make the Haldimand Tract a Reserve. Additionally, in their Statement of Claim, The Grand River Band Of Indians seek declarations that one or both of the Defendants (The Attorney General Of Canada And His Majesty The King In Right Of Ontario) breached fiduciary and/or treaty obligations owing to the Six Nations of the Grand River, equitable compensation and/or damages arising from the above-noted breaches of fiduciary and/or treaty obligations; alternatively to a declaration, if and as appropriate, that

one or both of the Defendants is obliged to account to the Six Nations of the Grand River for all property, interests in property, money or other assets (“assets”) which were or ought to have been received, managed or held by the Defendants or either of them, or by others for whom they are in law responsible, including their predecessors (collectively, the “Crown”) for the benefit of the Six Nations of the Grand River, and if necessary, a declaration that one or both of the Defendants must restore to the Six Nations Trust all assets which were not received but ought to have been received, managed or held by the Crown for the benefit of the Six Nations of the Grand River or the value thereof.

- [208] The Six Nations of the Grand River Band is suing the governments of Canada and Ontario in a court case that started in 1995. The Six Nations says that under the 1784 Haldimand Proclamation, which it considers a treaty, the British Crown set aside about 950,000 acres of lands along the Grand River in Ontario which the Six Nations of the Grand River and their descendants were to enjoy forever. The Six Nations also says that after 1784, the British Crown, and later the governments of Canada and Ontario, failed to set aside these lands, improperly sold most of them to settlers, and mismanaged the proceeds of sales from them. The Six Nations is therefore asking the court to make findings to this effect, and seeking compensation from the governments of Canada and Ontario for these historical wrongs.
- [209] The Crown in their “Statement of Defence” contends that the 1784 Haldimand Proclamation is not a treaty and did not set aside or create an obligation to establish a reserve. Moreover the Crown contends that the tract of land described in the 1784 Haldimand Proclamation and 1793 Simcoe Patent, which was made available to the Six Nations people who wished to settle there, came from lands covered by a treaty made with the Mississaugas in 1784. And, over decades, contends the Crown, the Six Nations people made a series of valid surrenders and sales of lands within the tract; while some lands were also affected by canals and other infrastructure projects. Moreover, the Crown contends that while historical facts and positions will continue to be researched and reviewed during the litigation process, Canada and Ontario both disagree with the Six Nations that they have been at fault in their dealings with the Six Nations that are raised in the action and that the Crown have also raised various defences to the Six Nations’ claims.
- [210] Therefore, considering how complex the Haldimand Tract land claim litigation is, it would be more appropriate for the Six Nations Of The Grand River, as an entity to litigate the Haldimand Tract land claim than it would be for individuals to independently raise the same issues in a legal proceeding related to the Haldimand Tract land claim, especially when the individual claimants may not have the legal acumen, resources or wherewithal to litigate the Haldimand land claim properly or be able to adduce expert evidence, archivists who can testify about documents related to letters patent in respect to parcels of the Haldimand Tract that had been sold or related to the cessation of land that form parts of the Haldimand Tract, historians, and testimony from individuals who can provide oral histories related to

leases or use of lands that form parts of the Haldimand Tract, and which may involve tens of thousands of documents to be submitted and authenticated to the court.

(3) The Special Claims Tribunal

- [211] Another specialized court dealing with aboriginal peoples' claims against the federal government is the Special Claims Tribunal, in which issues related to the Haldimand Tract land claim and the "Haldimand Proclamation of 1784" could be litigated.

(4) The Change Of Venue Provisions Under The Provincial Offences Act, R.S.O. 1990, c. P.33

- [212] In respect to the defendants' pre-trial motion for change of venue, it is governed by s. 29(4) of the Provincial Offences Act, R.S.O. 1990, c. P.33, which provides that the court may order that the proceeding be heard and determined at another location in Ontario where it appears to the court that (a) it would be appropriate in the interests of justice to do so; or (b) both the defendant and prosecutor consent thereto:

Change of venue

29(4) *Where, on the motion of a defendant or prosecutor made to the court at the location named in the information or certificate, it appears to the court that,*

(a) it would be appropriate in the interests of justice to do so; or

(b) both the defendant and prosecutor consent thereto,

the court may order that the proceeding be heard and determined at another location in Ontario.

- [213] Paragraph 29(4)(b) does not apply, as both the defendants and the prosecutor have not consented to a change in venue. Therefore, the court is left with s. 29(4)(a) on whether a change of venue is necessary when "*it would be appropriate in the interests of justice to do so*". The defendants are applying to change the venue to the Federal Court or to a court located outside of the area which forms part of the "Haldimand Tract" because the defendants are members of the sovereign Mohawk nation in which they claim only the Federal Court of Canada has the jurisdiction to hear cases involving nation to nation disputes, such as the land claim dispute between Canada and the sovereign Mohawk nation. Alternatively, the defendants contend that their case should be moved to a courthouse outside the disputed territory which comprises the Haldimand Tract in order to ensure impartiality and fairness.
- [214] With respect to the motion to move this Highway Traffic Act prosecution to the Federal Court of Canada, the nature of the prosecution of Highway Traffic Act charges, does not involve a specific aboriginal right but is related to a provincial law

of general application that does not affect the “Indianness” of the defendants. The defendants can bring any matter to the Federal Court that the Federal Court has jurisdiction over. Moreover, the defendants if they have standing in respect to a matter related to aboriginal treaties or rights can also bring those matters to the Special Claims Tribunal that deals with land claims or treaty issues or to the Superior Court of Canada. It is doubtful that the Federal Court or the Special Claims Tribunal would take jurisdiction of a prosecution under the Highway Traffic Act and the Superior Court of Justice of Ontario would not likely take jurisdiction of the present Highway Traffic Act prosecution unless it is hearing it on appeal or some prerogative remedy is being sought in the Superior Court of Justice.

- [215] More importantly, the Highway Traffic Act is not a federal statute but a provincial statute that applies to all motorists operating motor vehicles in the province of Ontario on public roadways. The Highway Traffic Act does not restrain any activity related to the defendants being a member of First Nations, Métis and Inuit group in respect to any aboriginal rights protected by s. 35 of the Constitution Act, 1982 or as contemplated by R. v. Sparrow.
- [216] However, the Federal Court has not been given jurisdiction or co-jurisdiction over prosecutions under Ontario’s Highway Traffic Act, which is a provincial statute and not a federal statute. As such, if the defendants can obtain standing and wish to bring some of their claims about the “Haldimand Proclamation of 1784” related to Aboriginal title, Aboriginal rights and treaty rights, and claims for damages against the Crown, then they are freely permitted to do that, but the Highway Traffic Act charges would remain in the Provincial Offences Court. Therefore, the defendants’ motion to change to venue to the Federal Court is dismissed.
- [217] In respect to the motion to move the defendants’ matter outside the City of Brantford to another courthouse outside the area covered by the Haldimand Tract there is no evidence that has been adduced that the defendants would not receive a fair trial in the Provincial Offences Courthouse in the City of Brantford.
- [218] As for the second part of the motion to change venue to an alternative court location outside the disputed territory to ensure impartiality and fairness, there is no evidence proffered that supports the defendants’ concerns about impartiality or fairness in their matters stayed in the Provincial Offences Court in Brantford.
- [219] Ergo, the proper place for the hearing of the defendants’ Highway Traffic Act matter is in the Provincial Offences Court in the City of Brantford. Accordingly, the defendants’ motion for a change of venue outside the present jurisdiction is also dismissed.

(C) Motion For Recusal Of Officials And Court Members Who Possess Or Occupy Lands Within The Grand River Mohawk Lands To Avoid Conflict Of Interest

- [220] The defendants also move for a recusal of officials and court members who possess or occupy lands within the land originated described in the “Haldimand Proclamation of 1784” to avoid conflict of interest submit and rely on Wewaykum Indian Band v. Canada, [2003] 2 S.C.R. 259 (S.C.C.) to support their motion.
- [221] The Wewaykum Indian Band v. Canada, [2002] 4 S.C.R. 245, 2002 SCC 79 (S.C.C.) case had been about two Indian bands seeking declarations against each other and equitable compensation from the Crown. Both bands were claiming each other’s reserve land and alleged that they would have possessed both reserves but for breaches of fiduciary duty by the federal Crown. The Supreme Court dismissed the two bands’ appeals and held that on the evidence, no fiduciary duty had been breached by the federal Crown and no “equitable” remedy would be available either to dispossess an incumbent band that is entitled to the beneficial interest, or to require the Crown to pay “equitable” compensation for its refusal to bring about such a wrongful dispossession.
- [222] However, the Wewaykum Indian Band v. Canada case, which began as an Aboriginal law case dealing primarily with the Crown’s fiduciary duty to First Nations, also generated an important administrative law decision on the issue of a “reasonable apprehension of bias”. After judgment had been rendered by the Supreme Court of Canada, a motion was brought to vacate it on the grounds that the judgment was tainted by the “reasonable apprehension of bias” involving one of the nine members of the Supreme Court who had heard the appeal. Prior to Justice Binnie being appointed to the Supreme Court, he was the Associate Deputy Minister in the Department of Justice in 1985 and early 1986. During that period, Associate Deputy Minister Binnie had received some information and attended a meeting in the early stages of the Campbell River Indian Band’s claim against Canada, which was one of the reserves at issue before the Supreme Court in the Wewaykum Indian Band v. Canada case.
- [223] In the motion to vacate for reasonable apprehension of bias, the Supreme Court (minus Justice Binnie) in Wewaykum Indian Band v. Canada, [2003] 2 S.C.R. 259, found there was no reasonable apprehension of bias on Justice Binnie’s part in the earlier judgment, and as such, Binnie J. was not disqualified from hearing the appeals or participating in the judgment. Moreover, the motion to vacate the judgment had also been dismissed. In addition, the Supreme Court noted at paras. 57 and 58 that public confidence in our legal system is rooted in the fundamental belief that those who adjudicate in law must always do so without bias or prejudice and must be perceived to do so [*emphasis is mine below*]:

... public confidence in our legal system is rooted in the fundamental belief that those who adjudicate in law must always do so without bias or prejudice and must be perceived to do so.

The essence of impartiality lies in the requirement of the judge to approach the case to be adjudicated with an open mind. Conversely, bias or prejudice has been defined as

a leaning, inclination, bent or predisposition towards one side or another or a particular result. In its application to legal proceedings, it represents a predisposition to decide an issue or cause in a certain way which does not leave the judicial mind perfectly open to conviction. Bias is a condition or state of mind which sways judgment and renders a judicial officer unable to exercise his or her functions impartially in a particular case.

(R. v. Bertram, [1989] O.J. No. 2123 (QL) (H.C.), quoted by Cory J. in R. v. S. (R.D.), [1997] 3 S.C.R. 484, at para. 106.)

- [224] When there is an apparent conflict of interest, the prosecution, generally, will bring in out an out-of-town prosecutor from another jurisdiction to ensure there would be no conflict of interest. Similarly, a member of the judiciary will recuse themselves if there is a conflict of interest or will notify the parties in a proceeding that there may be a conflict of interest.
- [225] For the present proceeding involving the defendants, there has been no evidence adduced that indicates that the officials and court members in the defendants' proceeding would have a conflict of interest in respect to the prosecution of the defendants' Highway Traffic Act charges, due to being a present resident in the territory that had comprised the original Haldimand Tract. As such, the defendants' motion for recusal of Officials and Court members who possess or occupy lands within the Grand River Mohawk lands is dismissed.

(D) Constitutional Challenge Of The Assertion By The Court And Prosecutors That They Are Not Obligated To Observe The “Haldimand Proclamation” And To Ensure The Officials’ Actions Comply With Their Constitutional Obligations

- [226] The defendants further bring a constitutional challenge of the assertion by the court and prosecutors that they are not obligated to observe the “Haldimand Proclamation of 1784” and to ensure their actions comply with their constitutional obligations and rely on the Reference re Secession of Quebec, [1998] 2 S.C.R. 217 (S.C.C.) case to support this motion.
- [227] In Reference re Secession of Quebec, [1998] 2 S.C.R. 217, the Supreme Court of Canada held at paras 70 to 74, that the rule of law provides that the law is supreme over the acts of both government and private persons, as there is one law for all. In addition, the Supreme Court reiterated that the rule of law requires the creation and maintenance of an actual order of positive laws which preserves and embodies the more general principle of normative order. And thirdly, the Supreme Court commented that a third aspect of the rule of law is that the exercise of all public power must find its ultimate source in a legal rule and that the relationship between the state and the individual must be regulated by law. Furthermore, the Supreme

Court noted that the constitutionalism principle requires that all government action comply with the Constitution and that the rule of law principle requires that all government action must comply with the law, including the Constitution. More importantly, the Supreme Court also remarked that the Supreme Court has noted on several occasions that with the adoption of the Charter, the Canadian system of government was transformed to a significant extent from a system of Parliamentary supremacy to one of constitutional supremacy. The Supreme Court also explained why a constitution is entrenched beyond the reach of simple majority rule in that: first, a constitution may provide an added safeguard for fundamental human rights and individual freedoms which might otherwise be susceptible to government interference; second, a constitution may seek to ensure that vulnerable minority groups are endowed with the institutions and rights necessary to maintain and promote their identities against the assimilative pressures of the majority; and third, a constitution may provide for a division of political power that allocates political power amongst different levels of government [emphasis is mine below]:

The principles of constitutionalism and the rule of law lie at the root of our system of government. The rule of law, as observed in *Roncarelli v. Duplessis*, [1959] S.C.R. 121, at p. 142, is "a fundamental postulate of our constitutional structure". As we noted in the *Patriation Reference*, *supra*, at pp. 805-6, "[t]he 'rule of law' is a highly textured expression, importing many things which are beyond the need of these reasons to explore but conveying, for example, a sense of orderliness, of subjection to known legal rules and of executive accountability to legal authority". At its most basic level, the rule of law vouchsafes to the citizens and residents of the country a stable, predictable and ordered society in which to conduct their affairs. It provides a shield for individuals from arbitrary state action.

In the Manitoba Language Rights Reference, *supra*, at pp. 747-52, this Court outlined the elements of the rule of law. We emphasized, first, that the rule of law provides that the law is supreme over the acts of both government and private persons. There is, in short, one law for all. Second, we explained, at p. 749, that "the rule of law requires the creation and maintenance of an actual order of positive laws which preserves and embodies the more general principle of normative order". It was this second aspect of the rule of law that was primarily at issue in the *Manitoba Language Rights Reference* itself. A third aspect of the rule of law is, as recently confirmed in the *Provincial Judges Reference*, *supra*, at para. 10, that "the exercise of all public power must find its ultimate source in a legal rule". Put another way, the relationship between the state and the individual must be regulated by law. Taken together, these three considerations make up a principle of profound constitutional and political significance.

The constitutionalism principle bears considerable similarity to the rule of law, although they are not identical. The essence of constitutionalism in Canada is embodied in s. 52(1) of the Constitution Act, 1982, which provides that "[t]he Constitution of Canada is the supreme law of Canada, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect." Simply put, the constitutionalism principle requires that all government action comply with the Constitution. The rule of law principle requires that all government action must comply with the law, including

the Constitution. This Court has noted on several occasions that with the adoption of the Charter, the Canadian system of government was transformed to a significant extent from a system of Parliamentary supremacy to one of constitutional supremacy. The Constitution binds all governments, both federal and provincial, including the executive branch (Operation Dismantle Inc. v. The Queen, [1985] 1 S.C.R. 441, at p. 455). They may not transgress its provisions: indeed, their sole claim to exercise lawful authority rests in the powers allocated to them under the Constitution, and can come from no other source.

An understanding of the scope and importance of the principles of the rule of law and constitutionalism is aided by acknowledging explicitly why a constitution is entrenched beyond the reach of simple majority rule. There are three overlapping reasons.

First, a constitution may provide an added safeguard for fundamental human rights and individual freedoms which might otherwise be susceptible to government interference. Although democratic government is generally solicitous of those rights, there are occasions when the majority will be tempted to ignore fundamental rights in order to accomplish collective goals more easily or effectively. Constitutional entrenchment ensures that those rights will be given due regard and protection. Second, a constitution may seek to ensure that vulnerable minority groups are endowed with the institutions and rights necessary to maintain and promote their identities against the assimilative pressures of the majority. And third, a constitution may provide for a division of political power that allocates political power amongst different levels of government. That purpose would be defeated if one of those democratically elected levels of government could usurp the powers of the other simply by exercising its legislative power to allocate additional political power to itself unilaterally.

- [228] In sum, if there is an ultimate decision by a higher court on the legal interpretation of the “Haldimand Proclamation of 1784”, then the Provincial Offences Court and prosecutors would be bound to follow and comply with that juridical interpretation of the “Haldimand Proclamation of 1784”. For the Provincial Offences Court, it would be bound to follow that higher court’s legal interpretation of the Haldimand Proclamation of 1784 because of the principle of *stare decisis*. There are several binding judgments that the Provincial Offences Court would have to follow in regards to the legal meaning of the Haldimand Proclamation of 1784. The most important one is the judgment in *Isaac et al. v. Davey et al.*, (1975), 5 O.R. (2d) 610, rendered by the Court of Appeal for Ontario, which is the highest court in Ontario. The Court of Appeal’s judgment in *Isaac et al. v. Davey et al.* disagrees with the defendants’ contention that the Haldimand Tract is the sovereign territory of the Mohawk Nation. The Court of Appeal had found that the Haldimand Proclamation of 1784 was not a treaty and that the territory described in the Haldimand Proclamation of 1784 did not transfer legal title in fee simple or ownership to the Six Nations Confederacy and only provided the Six Nations Confederacy with the beneficial and exclusive use of the Haldimand Tract for perpetuity and that sovereignty and legal title remained with the British Crown.

- [229] Therefore, in law, the Provincial Offences Court and the prosecutor are obligated to follow the Court of Appeal's decision in Isaac et al. v. Davey et al and the Court of Appeal's legal interpretation of the "Haldimand Proclamation of 1784".

(1) The Provincial Offences Court Is A Statutory Court

- [230] For the defendants pre-trial motions that are grouped together and included in this Part, the remedies that the defendants seek are either prerogative writs or equitable remedies. Only specific courts in Ontario are legally permitted to grant prerogative writs or equitable remedies.
- [231] The Provincial Offences Court within the Ontario Court of Justice is a "statutory court". Other statutory courts in Canada include the Supreme Court of Canada, the Federal courts and the various appellate courts from the provinces and territories, and the numerous low-level provincial courts, whose decision-making power is granted by either the federal parliament or a provincial legislature. The powers of these statutory courts are derived from a statute and are defined and limited by the terms of that statute. A statutory court will also not be able to try or hear cases in areas of law that have not been expressly mentioned or implicitly indicated or suggested in the statute. By this connotation, statutory courts would be similar then to adjudicative bodies, such as administrative tribunals, boards, and commissions, which are created and given limited power by legislation. Ergo, as a practical consequence, a statutory court would be unable to provide a specific type of legal remedy or relief unless it is expressly or implicitly referred to in its enabling or empowering statute.
- [232] In addition, the Supreme Court of Canada in R. v. 974649 Ontario Inc., [2001] 3 S.C.R. 575, 2001 SCC 81, at paras. 69 to 71, held that a statutory body enjoys not only the powers expressly conferred upon it, but also by implication all powers that are reasonably necessary to accomplish its mandate *[emphasis is mine below]*:

The "functional and structural" approach to determining whether a tribunal is competent to grant Charter remedies under s. 24(2) accords with the general approach to discerning the implied powers of statutory bodies, and the test established by this Court for determining whether a tribunal has jurisdiction to consider Charter issues under s. 52(1) of the Constitution Act, 1982.

It is well established that a statutory body enjoys not only the powers expressly conferred upon it, but also by implication all powers that are reasonably necessary to accomplish its mandate: Halsbury's Laws of England (4th ed. 1995), vol. 44(1), at para. 1335. In other words, the powers of a statutory court or tribunal extend beyond the express language of its enabling legislation to the powers necessary to perform its intended functions: Bell Canada v. Canada (Canadian Radio-Television and Telecommunications Commission), [1989] 1 S.C.R. 1722.

Consequently, the function of a statutory body is of principal importance in assessing whether it is vested with an implied power to grant the remedy sought. Such implied powers are found only where they are required as a matter of

practical necessity for the court or tribunal to accomplish its purpose: National Energy Board Act (Can.) (Re), [1986] 3 F.C. 275 (C.A.). While these powers need not be absolutely necessary for the court or tribunal to realize the objects of its statute, they must be necessary to effectively and efficiently carry out its purpose: Interprovincial Pipe Line Ltd. v. National Energy Board, [1978] 1 F.C. 601 (C.A.); Bell Canada, supra; Macaulay and Sprague, supra, vol. 4, at p. 29-2. This emphasis on the function of a court or tribunal, in discerning the powers with which the legislature impliedly endowed it, accords with the functional and structural approach to the Mills test set out above.

- [233] The Honourable Justice David Stratas, in an journal article entitled, “A Judiciary Cleaved: Superior Courts, Statutory Courts And The Illogic Of Difference”, (2017), 58 U.N.B.L.J. 54 (available at SSRN: <https://ssrn.com/abstract=3057037> or <http://dx.doi.org/10.2139/ssrn.3057037>), discusses the difference between superior courts, which are courts of inherent jurisdiction and provincial courts, which are statutory courts. At pp. 55 to 56, Justice Stratas remarked that the Provincial Court does not have the power to declare legislation unconstitutional and can only disregard laws that are unconstitutional in the particular cases before it, and as a result, that Provincial Court ruling would not apply across the province and would only apply to that particular case. However, Justice Stratas indicates that if a superior court in a province declares the police power unconstitutional for example, it would be invalid not just in that locality, but everywhere in that province and the Superior Court ruling becomes the law all across that province and the police must comply right away with that ruling. More importantly, Justice Stratas noted that the Supreme Court of Canada had held that only a superior court could make a ruling of province-wide effect through its power to make declarations [*emphasis is mine below*]:

In Canada, we have superior courts like the New Brunswick Court of Queen’s Bench and the New Brunswick Court of Appeal. Then there are statutory courts, the New Brunswick Provincial Court, the Federal Court and the Federal Court of Appeal. All operate in New Brunswick.

Superior courts are fully empowered. For example, superior courts have a full ability to award any constitutional remedies under section 24 and 52 of the Constitution Act, 1982.

The power to declare legislation invalid under section 52 matters, deeply so. Let me illustrate. Suppose a statute sets out a police power of dubious constitutionality. The police have the power across the province. Suppose that it likely offends the right against unreasonable search and seizure in section 8 of the Charter.

If you go to any courtroom of New Brunswick’s superior court, the Court of Queen’s Bench, in Bathurst, Woodstock, Edmundston, Campbellton, Miramichi, Moncton or Fredericton and if the court declares the police power unconstitutional, it is invalid not just in that locality, but everywhere in New Brunswick. The ruling becomes the law all across New Brunswick. Right across the province, the police must comply right away. All New Brunswickers are protected and treated alike.

Now take the New Brunswick Provincial Court, a statutory court. Same police power. Same challenge. But the challenge is brought in Edmunston in the Provincial Court there. It reaches the same result, word-for-word the same.

But the ruling doesn't apply across the province. It applies only to the particular case. The Provincial Court does not have the power to declare legislation unconstitutional. It can only disregard laws that are unconstitutional in the particular cases before it.

This means that the law, adjudged unconstitutional, remains on the books across the province. All across the province, the police can continue to use the unconstitutional power. Even in the particular locality where a ruling of unconstitutionality was made, that ruling does not bind a later judge in the locality. The ruling applies only in that particular case.

Sounds strange? This is the law as set out in the 2016 decision of the Supreme Court in *R v Lloyd*.

Lloyd was convicted in the British Columbia Provincial Court of possession of drugs for the purpose of trafficking. Because he had an earlier conviction for a similar offence, he was subject to a mandatory minimum sentence of one year imprisonment. The Provincial Court judge issued a declaration. He declared that the mandatory minimum sentencing provision offended the guarantee against cruel and unusual punishment under section 12 of the Charter and was not justified under section 1 of the Charter.

The Supreme Court agreed. It held that the mandatory minimum sentencing provision was unconstitutional. But it also held that the Provincial Court, as a statutory court, did not have the power to make a declaration of invalidity. All the statutory court could do is rule the provision unconstitutional and decline to apply it in the case before it, but nothing more.

The Supreme Court acknowledged that this left the unconstitutional provision alive in other cases across the province or in future cases that arise, even before the same court. It confirmed that only a superior court could make a ruling of province-wide effect through its power to make declarations.

The effect of this is to leave an unconstitutional law in force across the province. And if the Crown does not appeal the decision, there is no risk of a province-wide declaration of unconstitutionality from a superior court. The Crown remains free to reargue the point in any Provincial Court in the province.

[234] Furthermore, Justice Stratas, commented in “A Judiciary Cleaved: Superior Courts, Statutory Courts And The Illogic Of Difference”, at pp. 57 to 61, that the question of jurisdiction is different from the question of the powers that can be exercised. Justice Stratas indicated that the “jurisdiction” of a court means the ability of a court to speak on a particular subject-matter or to consider it. Moreover, Justice Stratas noted that once a court has the ability to consider a subject-matter, the next question

is what it can do while considering that subject-matter or what powers can it exercise. As for a court having “inherent jurisdiction, Justice Stratas explained that it is the court’s residual source of powers, which the court may draw upon as necessary whenever it is just or equitable to do so, in particular to ensure the observance of the due process of law, to prevent improper vexation or oppression, to do justice between the parties and to secure a fair trial between them. In addition, Justice Stratas indicated that the inherent jurisdiction of the superior courts means nothing more than a residual jurisdiction over matters that cannot be dealt with by others [*emphasis is mine below*]:

So why are provincial courts as statutory courts treated so differently from superior courts?

The difference is merely one of historical oddity. The superior courts are the heirs of the Royal Courts in England, such as the High Court of Chancery. Those English courts had inherent jurisdiction. Thus, so do the superior courts. Historically, superior courts have had the power to grant declarations. So it has been said that statutory courts do not have that power unless their statutes give them it.

...

Now let’s turn to the superior court’s inherent jurisdiction and examine it more closely. First, it’s important to get our terms right.

The question of jurisdiction, properly defined, is different from the question of the powers that can be exercised. Jurisdiction—literally from the Latin, speaking the law—means the ability of a court to speak on a particular subject-matter; in other words, to consider it. Once a court has the ability to consider a subject-matter, the next question is what it can do while considering that subject-matter; in other words, what powers can it exercise?

An influential article by Sir Jack Jacob 45 years ago—adopted uncritically in Canada — describes “inherent jurisdiction” of a court as a “residual source of powers, which the court may draw upon as necessary whenever it is just or equitable to do so, in particular to ensure the observance of the due process of law, to prevent improper vexation or oppression, to do justice between the parties and to secure a fair trial between them.”

But here Jacob is not really talking about jurisdiction, properly defined. Rather, he is speaking of powers that a court must have by virtue of being a court. This is nothing unique to superior courts. All courts, even statutory courts, have these powers.

With the proper definition of jurisdiction in mind, the inherent jurisdiction of the superior courts means nothing more than a residual jurisdiction over matters that cannot be dealt with by others.

So said the Supreme Court in the 1998 decision in Liberty Net. There it said that superior courts have a “residual jurisdiction” and confirmed that the doctrine of inherent jurisdiction means nothing more than that. In its words, this residual jurisdiction of the superior court “does not operate to narrowly confine a statutory

grant of jurisdiction” to another court, nor does it say anything “about the proper interpretation of such a grant.”

Liberty Net put the inherent jurisdiction of superior courts in its proper place. Superior courts do have a time-honoured power to grant declarations. But that has nothing to with their inherent subject-matter jurisdiction. Nor does it automatically foreclose the existence or the scope of that power—express, implied or necessarily incidental—in a statutory court.

So why can’t statutory courts grant constitutional declarations of invalidity?

After all, constitutional declarations of invalidity bear no relation to the sorts of declarations granted by the Royal Courts of England as part of their inherent jurisdiction, such as declarations of right under statutes or the common law. This is hardly surprising—the United Kingdom does not have a written constitution and so its courts could not have granted declarations of invalidity.

If declarations concerning the invalidity of legislation do not emanate from the Royal Courts of England, where do they come from?

They came in part from a British statute, the Colonial Laws Validity Act, a statute that as far as issues of constitutional validity are concerned in substance had been part of the law of Canada until 1982. That statute applied not only to Canada’s superior courts. It applied to all Canadian courts, including statutory courts.

Around the time of Confederation, we had a system of superior courts and certain statutory courts, such as the local provincial courts and the federal Exchequer Court. All these courts, both superior and statutory, had to act according to law, interpreting and applying the law.

Under section 2 of the Colonial Laws Validity Act, those courts had to rule “void and inoperative” any federal or provincial laws inconsistent with those of the Parliament of the United Kingdom, including the British North America Act, 1867.

The Exchequer Court, a statutory court operating at the federal level and the predecessor to today’s Federal Courts, recognized this power and understood that in appropriate cases it would not apply legislation that conflicted with a law of the Parliament of the United Kingdom and that decision would apply to all subsequent cases in the Court.

- [235] Moreover, in a *Windsor (City) v. Canadian Transit Co.*, [2016] 2 S.C.R. 617, the Supreme Court of Canada, at paras. 32 and 33, confirmed that statutory courts are not superior courts with general, inherent jurisdiction and also reaffirmed that the powers of statutory courts are set out in statutory provisions while the superior courts, which have general jurisdiction then has jurisdiction in all cases except where jurisdiction has been removed by statute. As for the Federal Court, the Supreme Court noted that Federal Court is without any inherent jurisdiction such as that existing in provincial superior courts, and that the language of the *Federal Court Act* is completely determinative of the scope of the Court’s jurisdiction [*emphasis is mine below*]:

The provincial superior courts recognized by s. 96 “have always occupied a position of prime importance in the constitutional pattern of this country” (Attorney General of Canada v. Law Society of British Columbia, [1982] 2 S.C.R. 307, at p. 327, per Estey J.). Provincially administered (s. 92(14)) and federally appointed (ss. 96 and 100), they weave together provincial and federal concerns and act as a strong unifying force within our federation. As courts of general jurisdiction, the superior courts have jurisdiction in all cases except where jurisdiction has been removed by statute (Québec Téléphone v. Bell Telephone Co. of Canada, [1972] S.C.R. 182, at p. 190). The inherent jurisdiction of the superior courts can be constrained by legislation, but s. 96 of the Constitution Act, 1867 protects the essential nature and powers of the provincial superior courts from legislative incursion (Ontario v. Criminal Lawyers’ Association of Ontario, 2013 SCC 43, [2013] 3 S.C.R. 3, at para. 18; MacMillan Bloedel Ltd. v. Simpson, [1995] 4 S.C.R. 725, at para. 15).

The Federal Court, by contrast, has only the jurisdiction it has been conferred by statute. It is a statutory court, created under the constitutional authority of s. 101, without inherent jurisdiction. While the Federal Court plays a critical role in our judicial system, its jurisdiction is not constitutionally protected in the same way as that of a s. 96 court. It can act only within the constitutional boundaries of s. 101 Criminal and the confines of its statutory powers. As this Court noted in Roberts v. Canada, [1989] 1 S.C.R. 322, at p. 331, “[b]ecause the Federal Court is without any inherent jurisdiction such as that existing in provincial superior courts, the language of the [Federal Court Act] is completely determinative of the scope of the Court’s jurisdiction.”

- [236] Furthermore, in Mills v. The Queen, [1986] 1 S.C.R. 863 (S.C.C.), at paras. 25 to 36, 38, 41 to 43, and 52 to 53, Lamer J. held that the courts of criminal jurisdiction, as defined in s. 2 of the *Criminal Code*, and the summary conviction courts will be courts of competent jurisdiction where they have jurisdiction conferred by statute over the offences and persons and have the power to make the order sought. In addition, Lamer J. remarked that the remedies granted by these courts must remain within the ambit of criminal powers. On the other hand, Lamer J. held that there will be no jurisdiction in these courts of criminal jurisdiction, however, where prerogative relief is sought, or where a claim for relief, if granted, would involve interference in proceedings before another court. Furthermore, Lamer J. confirmed that the provincial superior court will always be a court of competent jurisdiction under s. 24(1) of the Charter at first instance, especially in cases where the issue arises in proceedings before it. In addition, Lamer J. indicated that the superior court will also continue to have jurisdiction as a reviewing court where prerogative claims are made or advanced. Also, Lamer J. explained that when a Charter right is violated, s. 24(1) authorizes the court to grant an appropriate remedy and it neither excludes the court from further participation in the matter nor specifies the remedy, as the remedy will vary with the circumstances. But more importantly, Lamer J. emphasized that if an aggrieved person seeks injunctive relief, then they are precluded from going to the lower courts and must go to the superior courts, as Lamer J. reasoned that the remedy sought determines which is the court of competent jurisdiction. Furthermore, Lamer J. noted that when referring to the criminal and penal

processes, "civil" remedies, such as damages, or declaratory relief are not traditionally found in those courts. In summary, Lamer J. concluded that a court of competent jurisdiction in an extant case is a court that has jurisdiction over the person, the subject matter and has, under the criminal or penal law, jurisdiction to grant the remedy [*emphasis is mine below*]:

Since s. 24(1) is silent as to what is a court of competent jurisdiction, it has been left to the judiciary to determine what is the desirable adjudicative forum.

"Court of competent jurisdiction" is not defined in the Charter. Yet its interpretation is central to the scope and effectiveness of s. 24. In determining the meaning of that term, the purpose of the section, which, in my view, is succinctly expressed in the marginal note, must be ever present: the "enforcement of guaranteed rights and freedoms". It is that purpose, the provision of an enforcement mechanism, which above all else ensures that the Charter will be a vibrant and vigorous instrument for the protection of the rights and freedoms of Canadians.

Section 24(1) establishes the right to a remedy as the foundation stone for the effective enforcement of Charter rights. This is consistent with Article 8 of the Universal Declaration of Human Rights (G.A. Res. 217 A (III), U.N. Doc. A/810, at 71 (1948)) and with Article 2(3) of the International Covenant on Civil and Political Rights (G.A. Res. 2200A (XXI), 21 U.N. GAOR, Supp. (No. 16) 52, U.N. Doc. A/6316 (1966)).

Article 8 of the Universal Declaration of Human Rights states:

Everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted him by the constitution or by law.

Article 2(3) of the International Covenant on Civil and Political Rights states:

(3) Each State Party to the present Covenant undertakes:

(a) To ensure that any person whose rights or freedoms as herein recognized are violated shall have an effective remedy, notwithstanding that the violation has been committed by persons acting in an official capacity;

(b) To ensure that any person claiming such a remedy shall have his right thereto determined by competent judicial, administrative or legislative authorities, or by any other competent authority provided for by the legal system of the State, and to develop the possibilities of judicial remedy;

...

I am of the view that a person whose Canadian Charter rights have been infringed or denied has the right to obtain the appropriate and just remedy under the circumstances. A corollary which flows from this is the fundamental principle that there must always be a court available to grant, not only a remedy, but the remedy which is the appropriate and just one under the circumstances.

A remedy must be easily available and constitutional rights should not be "smothered in procedural delays and difficulties", to use the words of J. G. Richards

and G. J. Smith, in "Applying the Charter" (1983), 4 Advocates' Q. 129, at p. 135. On the other hand, there is no virtue in ignoring established institutions, the practice and "work habits" of the courts and trying to reinvent the wheel. Courts throughout the country have recognized that the Charter was not enacted in a vacuum.

In some cases this has been done explicitly: *R. v. Big M Drug Mart Ltd.*, [1985] 1 S.C.R. 295; *Attorney General of Quebec v. Quebec Association of Protestant School Boards*, [1984] 2 S.C.R. 66; ...

In other cases, it is implicit: *Canadian Newspapers Co. v. Attorney General for Canada* (1985), 49 O.R. (2d) 557, leave to appeal to this Court granted, [1985] 1 S.C.R. xii; *Re Kendall and The Queen*; *Re McCaffery and The Queen* (1982), 2 C.C.C. (3d) 224 (Alta. C.A.); ...

The rights guaranteed under the Charter are varied. As a result, their enforcement will, to some extent, be similarly varied. In determining from which court remedies may be sought and the procedure to be followed we should strive to achieve uniformity but must accept that there will, of necessity, be some variation, if not always as a matter of law, at least in practice.

Some violations of Charter rights and their remedies are in no way related to a court process. Following a violation, the person aggrieved goes to court to seek a remedy. That person goes to the court which is able to grant the remedy sought. That court is the court of competent jurisdiction, the court which is competent to grant the remedy. If, to give an example, the remedy is in the nature of damages, then, dependent upon the amount sought, the court of competent jurisdiction could be the Supreme Court of a province, the County Court, the Provincial Court, or even the Small Claims Court. If one also seeks injunctive relief, one is then precluded from going to the lower courts and must go to the superior courts. The remedy sought determines which is the court of competent jurisdiction.

Other rights, many of which are found in s. 11 of the Charter, are those of a person who is being taken to the criminal and penal courts by a prosecution. (We need not decide here whether tribunals are included in the word "court".) There the violation is related to, or even often the result of, the court process. Generally, the range of remedies corrective of those violations will be found within the traditional powers of the court before which the person charged is to be tried, but not necessarily so. As we are here referring to the criminal and penal processes, "civil" remedies, such as damages, or declaratory relief are not traditionally found in those courts.

..

Alternate Approaches

Because a person should not be deprived of a just and appropriate remedy merely because his or her extant cause is before a court of criminal jurisdiction, it has been suggested, as a first proposition, that a court of competent jurisdiction is the court which has jurisdiction over the person and the subject matter; and that as of then, that court enjoys full jurisdiction to grant the remedy, whether or not that remedy has been traditionally part of the court's jurisdiction (see *R. v. Erickson*,

[1984] 5 W.W.R. 577 (B.C.C.A.); *R. v. Red Hot Video Ltd.* (1983), 6 C.C.C. (3d) 331 (B.C. Prov. Ct.); Manning, Morris, Rights, Freedoms and the Courts: A Practical Analysis of the Constitution Act, 1982 (1983), pp. 460 and 473; Hogg, Peter, *Canada Act 1982 Annotated* (1982), p. 65).

...

Others, recognizing serious procedural and evidentiary impediments, distinguish between civil and criminal law remedies. They would, however, as a second proposition, extend to any judge having jurisdiction over the person and the subject matter jurisdiction to grant any criminal law remedy. A preliminary inquiry judge could, to give an example, enter a stay in any type of case, whatever be the charge, and whichever be the eventual trial court (*R. v. Wilson* (1982), 37 A.R. 170 (Prov. Ct.); *R. v. Dezwirek* (1983), 4 C.C.C. (3d) 69 (Ont. Prov. Ct.); *R. v. Baker*, B.C.S.C., May 19, 1983, unreported but summarized at 10 W.C.B. 10; contra: *Re Regina and Thompson* (1983), 8 C.C.C. (3d) 127 (B.C.C.A.))

As regards the first proposition, desirable as might be a system whereby a person could get from the judge he or she is before a plenitude of remedies, this approach has to be defeated by the fundamental differences as between the civil and criminal process. To illustrate the problem briefly, it will be difficult to afford the alleged violators, susceptible to pay damages or to be the object of some injunction, a fair hearing within the criminal justice process, whilst guaranteeing the accused all traditional safeguards. Furthermore, the criminal courts are not staffed and equipped to cope with such types of determinations. Our civil courts are, and I cannot find any compelling reason why they should not determine Charter issues for the purpose of granting remedies of a civil or administrative law nature.

As regards the second proposition, I agree with its proponents so far as trial judges are concerned, but not as regards judges holding preliminary inquiries. I do not see the need, once the distinction between criminal and other remedies is made, for making a further distinction within the criminal law system between trial judges dependent upon the trial court in which they sit. Since they already have the jurisdiction to make a final complete determination of the trial, they already have a plenitude of criminal law remedies available, such as adjournment, bail, ordering disclosure, excluding evidence, entering stays. And I should add that they should not retreat from the development of imaginative and innovative remedies when just and appropriate. As an example, if for some reason the accused's right to a fair trial under s. 11(d) has been violated and the prejudice suffered is that the accused is precluded from adducing certain evidence due to a witness' disappearance, I see no reason why, under certain circumstances, the proper remedy could not be that the judge consider the facts the existence of which would have, to the satisfaction of the judge, been propounded by that witness, as averred.

...

For those reasons, and to summarize, I am of the view that:

- A court of competent jurisdiction in an extant case is a court that has jurisdiction over the person, the subject matter and has, under the criminal or penal law, jurisdiction to grant the remedy;
- As a general rule, the court of competent jurisdiction is the trial court;

-- A judge presiding at a preliminary inquiry is a court of competent jurisdiction to determine whether there has been a violation, but only if the order sought is the exclusion of evidence under s. 24(2).

For some, this would suffice. The trial court would, without exception (for others subject to the exception I am proposing), be the sole court of competent jurisdiction. This view, at first blush, has a certain appeal. It is simple and straightforward, free of a number of cumbersome problems which might otherwise arise. It introduces no additional delays, follows the usual appeal process and avoids any potential jurisdictional conflicts.

- [237] In addition, prerogative writs which include “Certiorari”, “Habeas corpus”, “Mandamus”, “Prerogative power”, “Prohibition”, and “Quo warranto”, were developed by the Court of King's (Queen's) Bench of England in the exercise of the power of the Crown to keep inferior courts, tribunals, and other forms of statutory authority within the warrant given to them by the Crown and Parliament. Equitable remedies include rescission, rectification, specific performance and injunctions, which play an essential role in the common law and allow courts to grant relief where legal remedies are unavailable.
- [238] And, like many of the remedies that the defendants seek in this provincial offences prosecution, the Provincial Offences Court is a statutory court that can only exercise powers that has been given to it under the governing legislation. None of the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, nor the Highway Traffic Act, R.S.O. 1990, provide the Provincial Offences Court with the power to grant prerogative writs or equitable remedies, such as ordering specific performance in respect to a contract obligation or treaty obligation that may or may not exist between the Crown and the Mohawk Nation of the Grand River. On the other hand, s. 140(1) of the Provincial Offences Act designates the Superior Court of Justice in Ontario the court which can grant the prerogative remedies of “mandamus, prohibition or certiorari”.
- [239] As to which courts in Ontario are permitted to grant equitable relief, s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only permits the Court of Appeal for Ontario or the Superior Court of Justice to grant equitable relief, unless otherwise provided by statute while under s. 97, the remedy of “declaratory relief” may only be granted by the Court of Appeal for Ontario or the Superior Court of Justice [emphasis is mine below]:

Rules of law and equity

96(1) *Courts shall administer concurrently all rules of equity and the common law.*

Rules of equity to prevail

- (2) *Where a rule of equity conflicts with a rule of the common law, the rule of equity prevails.*

Jurisdiction for equitable relief

- (3) *Only the Court of Appeal and the Superior Court of Justice, exclusive of the Small Claims Court, may grant equitable relief, unless otherwise provided.*

Declaratory orders

- 97 *The Court of Appeal and the Superior Court of Justice, exclusive of the Small Claims Court, may make binding declarations of right, whether or not any consequential relief is or could be claimed.*

Relief against penalties

- 98 *A court may grant relief against penalties and forfeitures, on such terms as to compensation or otherwise as are considered just.*

Damages in substitution for injunction or specific performance

- 99 *A court that has jurisdiction to grant an injunction or order specific performance may award damages in addition to, or in substitution for, the injunction or specific performance.*

(E) Motion For Investigation Of Unjust Enrichment

[240] For this pre-trial motion, the defendants request that this court investigate a claim of unjust enrichment for both the federal and provincial Crowns and rely on the seminal family law case in which the Supreme Court of Canada in Pettkus v. Becker, [1980] 2 S.C.R. 834, had found that even though common law spouses who were not entitled to division of matrimonial property under the governing statute, that there had been a constructive trust founded on an unjust enrichment for the common law wife, who had toiled and contributed economically to the running of the farms that had been owned by her common law husband.

[241] The unjust enrichment contended by the defendants in the case at bar appears to be in respect to the disputed Haldimand Tract. Although, the claim of unjust enrichment is not related to the prosecution of the Highway Traffic Act offences before this court, and does not require this court to instigate such an investigation, there are more suitable courts that the defendant can bring the unjust enrichment claim. However, to bring an claim for unjust enrichment in the proper venue for bringing such a claim in respect to the Haldimand Tract, the defendants would have to have proper standing and would also be subject to costs being imposed, and would have to comply with evidentiary requirements of proof in respect to the quantum or basis of any claimed unjust enrichment. This would entail having to call witnesses that are accounting experts, actuaries, as well as potentially tens of thousands of pages of records would have to be submitted, which appears to be

what the action in the Superior Court of Justice case in Toronto of Six Nations Of The Grand River Band Of Indians v. The Attorney General Of Canada And His Majesty The King In Right Of Ontario (Toronto Court File No. CV-18-00594281-0000 (Formerly Brantford Court File No. 406/95)) is partly about. That would then be the proper venue to bring such an unjust enrichment claim as the claim of unjust enrichment in respect to the claim of title by the Mohawk Nation over the Haldimand Tract only has a modicum or tangential nexus to the defendants' Highway Traffic Act charges.

[242] Furthermore, in order to make a claim of unjust enrichment against another person, a claimant must show:

- (1) *The other person received a benefit;*
- (2) *The claimant suffered a loss that somehow corresponded to the benefit of the other person; and*
- (3) *There was no justifiable reason in law for the benefit and the loss.*

[243] And, if these three elements can be successfully proven by the claimant, then the unjust enrichment may be remedied by the court in two ways: a constructive trust (i.e., giving the claimant an interest in real property to which the unjust enrichment is connected) or a monetary award. These claims often arise in the estate context where the claimant has provided some kind of benefit, service, or work for the other person in exchange for the promise of an inheritance from the other person's estate after he or she dies, yet after death, it is discovered that the inheritance is not forthcoming.

[244] Moreover, on the issue of unjust enrichment as it relates to Indigenous Peoples, a claim for unjust enrichment has been made by a First Nations' band against the Canadian government, which had been considered in Ermineskin Indian Band and Nation v. Canada, [2009] S.C.J. No. 9 (S.C.C.). The claim against the federal government in that case was that the Crown had been unjustly enriched by making use of the band's royalties and paying the rate of interest that it did. Rothstein J. for the Supreme Court of Canada in Ermineskin Indian Band and Nation v. Canada held at paras. 182 to 184, that this is an inevitable result of the statutory scheme, which requires that the Crown hold the band's royalties in the Consolidated Revenue Fund and pay interest to the bands. In dismissing the appeal, Rothstein J. agreed with the trial judge that had found that the Crown could (and would) have obtained replacement funds at a lower cost, i.e. the short-term treasury bill rate, than the interest it actually provided on the royalties, so that the Crown would not have been enriched [*emphasis is mine below*]:

The bands argued that the Crown was unjustly enriched by making use of the bands' royalties and paying the rate of interest that it did. However, this is an inevitable result of the statutory scheme, which requires that the Crown hold the bands' royalties in the CRF and pay interest to the bands.

The test for unjust enrichment was recently restated by Iacobucci J. in Garland v. Consumers' Gas Co., 2004 SCC 25, [2004] 1 S.C.R. 629, at para. 30:

As a general matter, the test for unjust enrichment is well established in Canada. The cause of action has three elements: (1) an enrichment of the defendant; (2) a corresponding deprivation of the plaintiff; and (3) an absence of juristic reason for the enrichment (Pettkus v. Becker, [1980] 2 S.C.R. 834, at p. 848; Peel (Regional Municipality) v. Canada, [1992] 3 S.C.R. 762, at p. 784).

The basis for determining whether the Crown was enriched is a comparison with what would have been the case had the Crown not had access to the royalties in the CRF. The trial judge found that the Crown could (and would) have obtained replacement funds at a lower cost, i.e. the short-term treasury bill rate, than the interest it actually provided on the royalties. I agree with the trial judge and the Court of Appeal that the Crown was not enriched.

[245] As well, there is presently one First Nation located in Alberta that has also brought a claim of unjust enrichment against the Canadian government before the “Special Claims Tribunal” and that case is styled, “Enoch Cree Nation #440 v. Her Majesty The Queen In Right Of Canada As Represented By The Minister Of Indian Affairs And Northern Development” (see Declaration of Claim at << [001-SCT-6001-19-Doc1\(1\).pdf \(sct-trp.ca\)](#)>>). In their Declaration of Claim dated October 7, 2019, the Enoch Cree Nation aver that Canada had breached its obligations under Treaty 6 as well as its statutory and fiduciary duties when it expended monies from the Enoch Cree Nation’s capital and revenue accounts for medical expenses from 1909 to 1938, when the medical supplies were to be provided for free and the costs totalling \$41,871.11 for these medical supplies were not to be taken from the Enoch Cree Nation’s accounts. By using the Enoch Cree Nation’s trust fund account for paying for the medical expenses from 1909 to 1938, the Enoch Cree Nation contends that it was a breach of the terms of Treaty 6, a breach of the Canadian government’s trust and fiduciary obligations, and an unjust enrichment:

3. The Claimant submitted its Specific Claim for Wrongful Expenditures by the Crown of Band Funds for Medical Purposes (1909-1938) (the “Claim”) on July 15, 2010. The Claim alleges that Canada breached its obligations under Treaty 6 as well as its statutory and fiduciary duties by expending monies from the Claimant’s capital and revenue accounts for medical expenses from 1909 to 1938.

4. On August 28, 2012, Aboriginal Affairs and Northern Development Canada advised the Claimant that the Claim would not be accepted for negotiation under the Specific Claims Policy on the basis that Canada did not breach any obligations it owed to the Claimant.

5. The Claimant does not seek compensation in excess of one hundred and fifty million dollars (\$150,000,000) in relation to this Claim.

...

7. In 1876, Treaty 6 was entered into between the Crown and the Plains and Wood Cree Indians in an area that now constitutes central Alberta and Saskatchewan. The Enoch Cree Nation adhered to Treaty 6 in 1880 under Chief Tommy Lapotac.

8. Under the terms of Treaty 6, the Crown promised to provide the following assistance and benefits to the Indians:

That in the event hereafter of the Indians comprised within this treaty being overtaken by any pestilence, or by a general famine, the Queen, on being satisfied and certified thereof by Her Indian Agent or Agents, will grant to the Indians assistance of such character and to such extent as Her Chief Superintendent of Indian Affairs shall deem necessary and sufficient to relieve the Indians from the calamity that shall have befallen them.

...

A medicine chest shall be kept at the house of each Indian Agent for the use and benefit of the Indians at the discretion of such agent.

9. The health care clauses are unique to Treaty 6 and were an integral part of the negotiations. They were adopted in direct response to clear concerns and requests voiced by the Chiefs during the 1876 treaty negotiations. In 1870, an epidemic raged throughout Cree territories, followed by great starvation and the poverty resulting from the near extinction of the buffalo.

10. Treaty negotiations took place at Fort Carlton between August 15th and 23rd, 1876 and the resulting Treaty placed binding obligations on both the Cree Chiefs and the Crown. The Crown sought access to the vast tract of land in Treaty 6 and peace with the Crees to facilitate the settlement of the West. The Cree Chiefs sought a secure agricultural livelihood in the face of the extinction of the bison.

...

12. Although a draft of Treaty 6 had been prepared and provided to the Commissioners prior to the treaty negotiations, the insistence of the Cree Chiefs on health assistance led to the addition of the health care clauses to the written treaty. The Chiefs expressly requested medicines “free of cost” or a “free supply of medicines.” In addition to medical help, the Chiefs also requested aid in case of “troubles seen and unseen,” or “when we can’t help ourselves in case of trouble,” or “in case of extremity,” or “general famine.

13. Treaty Commissioner Alexander Morris specifically addressed the assembled Chiefs regarding the health care clauses, promising that the Queen would come to their aid in times of “national calamity” or “unforeseen circumstances,” and cited several examples where the Crown had assisted other Indians. Morris told them to trust in the Queen’s generosity: ... if any great sickness or general famine overtook you, that on the Queen being informed of it by her Indian agent, she in her goodness would give such help as she thought the Indians needed. ... A medicine chest will be kept at the house of each Indian agent, in case of sickness amongst you.

14. Peter Erasmus, a translator present at the negotiations, noted that Alexander Morris had agreed that a medicine chest would be placed at the house of each Indian agent for the “free use of the band.”

16. Approximately \$41,871.11 was expended from the trust accounts managed by the Department of Indian Affairs on medical expenses between 1909 and 1938.

17. Neither the documents relating to the transfer of funds from the sale of reserve lands surrendered in 1888, 1902, and 1908, nor any subsequent Band Council Resolutions authorize the expenditure of capital or interest funds managed by the Department of Indian Affairs for medical purposes.

18. Further, expenditures authorized by the Crown were inadequate. As a general rule, Indian Agents were instructed to provide relief and medical expenses only to destitute Indians where absolutely necessary. As a result, expenditures of Enoch trust funds from 1909 to 1938 are a conservative reflection of the medical needs of Enoch at the relevant time, and that to satisfy its obligations the Crown should have expended far more.

VII. The Basis in Law on Which the Crown is Said to Have Failed to Meet or Otherwise Breached a Lawful Obligation

19. The Crown owes statutory and fiduciary duties to the Claimant to properly administer the trust funds held for its benefit by the Crown. At all times during the Crown’s expenditure of the Claimant’s trust funds for medical expenses, the Crown exercised power and discretion over ECN trust monies pursuant to the Indian Act. The First Nation stood in a position of complete vulnerability to the Crown and to the unilateral exercise of its powers.

20. Pursuant to the health care clauses of Treaty 6, the Crown also had a lawful obligation to provide the Band with sufficient medicine for the Band’s needs. This obligation required the Crown to supply medicine for the Band using Crown funds. It also required the Crown to ensure Band trust funds expended at the discretion of an Indian Agent or other Crown officials were not used to buy medicine for Band members.

21. The Crown had a fiduciary obligation to the Band with respect to the administration and management of its trust accounts. By using the Claimant’s trust funds for medical expenses, the Crown breached its fiduciary duty to the Claimant with regards to the management of trust monies. In particular, the Crown had a duty to manage the Claimant’s trust funds in the best interests of the Claimant and to act as a prudent and competent fiduciary. Using trust funds for expenditures that were the responsibility of another party – the Crown itself – constituted an unjust enrichment to the Crown and a breach of its fiduciary duties to the Band.

22. ECN submits that the Crown breached the following duties in withdrawing moneys from the First Nation’s trust funds in order to provide medical assistance to the First Nation during the years 1909 to 1938:

- i. *the duty to fulfill the terms and promises of the Crown under Treaty 6, and in particular the Medicine Chest Clause while administering trust funds held on behalf of the Band;*
- ii. *the duty to manage the Band's trust funds in the best interests of the Band;*
- iii. *the duty to act as a prudent and competent trustee or fiduciary;*
- iv. *the duty to prefer the Band's interests over its own financial interests; and*
- v. *the duty to exercise appropriate diligence to protect and preserve the Band's rights, interests and property giving rise to an unjust enrichment of the Crown.*

23. In sum, using the Band's trust fund account for the \$41,871.11 in medical expenses from 1909 to 1938 was a breach of the terms of Treaty 6, a breach of the Respondent's trust and fiduciary obligations, and an unjust enrichment.

...

[246] The Declaration of Claim by the Enoch Cree Nation against the Canadian Government illustrates that an “unjust enrichment” claim on behalf of a First Nation may be brought at the “Special Claims Tribunal”, that has been purposely set up to hear Indigenous Peoples’ claims that the federal government does not agree to negotiate. As such, the defendants, if they have proper standing, may bring a claim of unjust enrichment in respect to the Haldimand Tract on behalf of the Mohawk Nation of Grand River in the Superior Court of Justice in Ontario or the Federal Court (aboriginal law section) or at the Special Claims Tribunal that would be better suited to hear such claims about potential unjust enrichment in respect to aboriginal land claims or treaty rights.

[247] Furthermore, David N. Fagan posits that there are potential unjust enrichment claims that could be raised in restitution claims against multinational corporations that spoil Indigenous Peoples’ lands. In his thesis entitled, “Achieving Restitution: The Potential Unjust Enrichment Claims Of Indigenous Peoples Against Multinational Corporations”, (2001), vol. 70, May, New York Univ. L.R., 626, online: New York University Law Review website <<[Achieving Restitution: The Potential Unjust Enrichment Claims of Indigenous Peoples against Multinational Corporations \(nyulawreview.org\)](http://nyulawreview.org)>>. Fagan notes at pp. 627 to 630 that “unjust enrichment” originated as a theory of recovery in order to fill gaps left uncovered by traditional legal categories, such as contract, tort, and property law, so that when there was a windfall benefit—such as money paid by mistake—in a noncontractual setting, courts invoked the fiction of a quasi-contract to provide recompense to the plaintiff and to deprive the defendant of an unjust enrichment. Moreover, Fagan remarked that unjust enrichment has developed as a moral check against the retention of a benefit that would violate “good conscience” and that the novel use of unjust enrichment in the indigenous context, while potentially controversial, finds support in the doctrine's heritage [*emphasis is mine below*]:

In response to such exploitation, indigenous peoples have explored two avenues of judicial relief. First, indigenous groups have brought to international tribunals claims based on human rights, minority rights, and self-determination principles? Second, having little or no recourse in their own countries? indigenous plaintiffs have turned to the domestic courts of the countries in which multinational corporations (IvNCs) are based in an attempt to hold these entities accountable for their actions overseas. Specifically, indigenous plaintiffs have brought lawsuits in the state and federal courts of the United States, asserting various state and common law tort claims, claims for violations of customary norms of international law, and claims seeking equitable relief for environmental damage. Thus far, indigenous plaintiffs have had little success, although this failure may be due more to prudential concerns or poor lawyering than to any substantive defect in the claims. Regardless of the outcome in these cases, there is a common current underlying and informing all the claims: the notion that the defendants have been enriched at the plaintiffs' expense. Yet, indigenous plaintiffs have not pursued unjust enrichment as an independent basis of liability.

Such a novel use of unjust enrichment in the indigenous context, while potentially controversial, finds support in the doctrine's heritage. Unjust enrichment originated as a theory of recovery in order to fill gaps left uncovered by traditional legal categories, such as contract, tort, and property law. For example, when there was a windfall benefit—such as money paid by mistake—in a noncontractual setting, courts invoked the fiction of a quasi-contract to provide recompense to the plaintiff and to deprive the defendant of an unjust enrichment. A similar, recent example has been the use of unjust enrichment as a substantive claim in the Holocaust litigation. In this way, unjust enrichment has developed as a moral check against the retention of a benefit that would violate "good conscience," if not another area of the law. Although the broad scope of this principle arguably has given rise to a rather muddled state of the law, it also has permitted the unique application of the doctrine, as in the Holocaust cases. Seen in this light, unjust enrichment would appear to have a role for indigenous plaintiffs: The problem of indigenous exploitation is steeped in history and possibly not covered by other areas of law, thereby necessitating an exceptional solution.

- [248] Ergo, a claim in respect to unjust enrichment as it applies to a specific Indigenous Peoples' land claim should be more rightfully brought in the Aboriginal Law division at the Federal Court, or at the "Special Claims Tribunal", or at the Superior Court of a Province that has the inherent jurisdiction to provide equitable or prerogative remedies.
- [249] And, like many of the remedies that the defendants seek in this provincial offences prosecution, the Provincial Offences Court is a statutory court that can only exercise powers that is has been given to it under the governing legislation. None of the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, nor the Highway Traffic Act, R.S.O. 1990, provide the Provincial Offences Court with the power to order prerogative writs or equitable remedies, such as ordering specific performance in respect to a contract obligation or treaty obligation that may or may not exist between the Crown and the Mohawk Nation of the Grand River.

[250] According to s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only the Court of Appeal for Ontario or the Superior Court of Justice are the courts in Ontario that are permitted to grant equitable relief or grant prerogative writs.

[251] Therefore, the defendants' motion for this court to investigate unjust enrichment pertaining to the Haldimand Tract is dismissed as this prosecution by the City of Brantford is not related to the prosecution of the defendants' Highway Traffic Act offences and the governing legislation under the Provincial Offences Act and the Highway Traffic Act do not provide for such an investigation, as the Provincial Offences Court sits as an impartial trier of fact and law, who attempt to determine the truth of the case and does not have inquisitorial powers like courts in some European countries, who do not follow common law traditions. Canadian courts are part of an adversarial process in the common law tradition in which each side (the prosecution and the defense) presents its most persuasive arguments to the trier of fact and law.

[252] Ergo, the defendants' motion for investigation of unjust enrichment is dismissed.

(F) Motion For Enforcement Of Legal Duties And Mandate That The Enforcement Of The "Haldimand Proclamation" As A Duty Imposed By Law And To Ensure That Officials Adhere To Their Oaths Of Office And Constitutional Obligations

[253] For this particular pre-trial motion, the defendants ask this court to enforce the "Haldimand Proclamation" as a duty imposed by law and to ensure that officials adhere to their oaths of office and constitutional obligations by an order of mandamus and rely on Blencoe v. British Columbia (Human Rights Commission), [2000] 2 S.C.R. 307 (S.C.C.) to support their motion.

[254] It appears that in this pre-trial motion, the defendants are seeking an order for mandamus. Mandamus is a prerogative writ that is issued by a court ordering a lower court (or governmental entity) to properly carry out a nondiscretionary ministerial function. Moreover, mandamus is a drastic remedy and is invoked only in extraordinary cases where there is a clear and indisputable right to the relief sought.

[255] In Blencoe v. British Columbia (Human Rights Commission), the Supreme Court of Canada had to consider the case of 10 women who filed sexual harassment claims at the British Columbia Human Rights Commission against the Blencoe, who was a minister in the British Columbia government. Due to the delay in the tribunal hearings, the claims were not resolved for 11 years after the first filing in 1995. Blencoe challenged the 30 month delay in the British Columbia Human Rights Commission hearing his case to the British Columbia Supreme Court on the basis of a denial of natural justice. The British Columbia Supreme Court dismissed his

challenge. Blencoe then appealed to the British Columbia Court of Appeal on the basis that the delay of the hearing for over 30 months was a violation of his right to "security of person" under section 7 of the Charter. The Court of Appeal found in favour of Blencoe and ordered the charges against him to be stayed because the delay had stigmatized him and caused undue harm to him and his family, which violated his rights under section 7 of the Charter. The Blencoe case eventually reached the Supreme Court of Canada where the issue to be decided had been whether the delay in the tribunal hearing had violated Blencoe's s. 7 Charter rights or the administrative law rule against undue delay. Bastarache J., for the majority of the Supreme Court dismissed the possibility that the trial was not fair as there was no evidence to suggest that Blencoe was not able to provide a full answer and defence. In addition, Bastarache J. held that the harm caused by the delay only amounted to personal hardship and was not serious and on the question of whether the delay had violated natural justice by bringing the Human Rights Commission into disrepute, Bastarache J. concluded that many of the delays were contributed to by Blencoe or consented to by him. Consequently, Bastarache J. held the Human Rights Commission was not brought into disrepute.

- [256] In addition, Bastarache J., at paras. 148, 150 and 151, Blencoe v. British Columbia (Human Rights Commission), explained that in the development of the courts' supervisory role over administrative processes through the prerogative writ of *mandamus*, we see a crystallizing potential to compel government officers to do their duty and that this writ always promised the possibility of ensuring that governmental officers would not shirk their duty to keep processes operating efficiently [*emphasis is mine below*]:

This supervisory power over administrative processes developed from the very beginnings of the prerogative writ most apropos in the case before us. Mandamus is a storied writ. At its origins, it empowered the Court of King's Bench to order a court or an administrative body to do its duty: W. Holdsworth, A History of English Law (7th ed. 1956), vol. I, at p. 229; Sir W. Blackstone, Commentaries on the Laws of England (4th ed. 1768), Book III, at p. 110. In the original cases that recognized it, the writ was used largely to prevent the procedurally illegitimate exclusion of citizens who were members of certain disliked groups from municipal offices: see Bagg's Case (1615), 11 Co. Rep. 93b, 77 E.R. 1271; and Andover Case (1700), Holt. K.B. 441, 90 E.R. 1143, at p. 1143. But there was always the possibility of something much greater in the writ, and Lord Mansfield would go so far as to announce its prospective use "upon all occasions where the law has established no specific remedy, and where in justice and good government there ought to be one" (R. v. Barker (1762), 3 Burr. 1265, 97 E.R. 823, at pp. 824-25 (emphasis added). Cf. Bagg's Case, supra, at pp. 1277-78, referring generally to "misgovernment".) The writ always promised the possibility of ensuring that governmental officers would not shirk their duty to keep processes operating efficiently. Perhaps significantly, the very words of the original form of the writ referred to "debitam et festinam justiciam" – due and speedy justice (Holdsworth, supra, app. XV, at p. 659).

...

The common law system has always abhorred delay. In our system's development of the courts' supervisory role over administrative processes through mandamus, we see a crystallizing potential to compel government officers to do their duty and, in so doing, to avoid delay in administrative processes. The historical context in which our case law is rooted is a soil of well-established principles. This ground's more modern seedlings must now be examined.

... The modern English position, stated by W. Wade and C. Forsyth, Administrative Law (7th ed. 1994), at p. 649, is clear: "A statutory duty must be performed without unreasonable delay, and this may be enforced by mandamus" (emphasis added).

- [257] However, since the Court of Appeal for Ontario in Isaac et al. v. Davey et al., (1975), 5 O.R. (2d) 610, has adjudged that the "Haldimand Proclamation of 1784" is not a treaty and that it did not transfer title in fee simple to the Haldimand Tract to the Six Nations Confederacy and that the Haldimand Proclamation of 1784 had only provided the Six Nations Confederacy with the beneficial use of the Haldimand Tract in perpetuity and is a usufructuary interest, this Provincial Offences Court is bound by the principle of *stare decisis* so this court's legal obligation is to follow that decision.
- [258] Once again, the Provincial Offence Court (of the Ontario Court of Justice) is a court created by statute and can only exercises powers that have been given to it under its governing statute.
- [259] And, like many of the remedies that the defendants seek in this provincial offences prosecution, the Provincial Offences Court is a statutory court that can only exercise powers that has been given to it under the governing legislation. None of the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, nor the Highway Traffic Act, R.S.O. 1990, provide the Provincial Offences Court with the power to grant prerogative writs or equitable remedies, such as granting a mandamus order or ordering specific performance in respect to a treaty obligation that may or may not exist between the Crown and the Mohawk Nation of the Grand River.
- [260] And, according to s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only the Court of Appeal for Ontario or the Superior Court of Justice are the courts in Ontario that are permitted to grant equitable relief or to grant prerogative writs, such as a mandamus order.
- [261] Therefore, since the Provincial Offences Court has not been given the powers to grant equitable relief or grant prerogative writs, the defendants' motion seeking a mandamus order to enforce the "Haldimand Proclamation of 1784" as a duty imposed by law and to ensure that officials adhere to their oaths of office and constitutional obligations is dismissed.

(G) Motion For Verification Of Oaths Of Office Taken By All Judges, Prosecutors, Peace Officers And Other Officials Involved In The Defendants' Case

- [262] For this pre-trial motion, the defendants seek verification of Oaths of Office taken by all judges, prosecutors, peace officers and other officials involved in the defendants' case and rely on McAteer v. Canada (Attorney General), [2014] 121 O.R. (3d) 1, 2014 ONCA 57 (Ont. C.A.).
- [263] In McAteer v. Canada (Attorney General), [2014] 121 O.R. (3d) 1, 2014 ONCA 57, the Ontario Court of Appeal had to decide the issue on whether McAteer and the other permanent residents' assertions that the requirement in the Citizenship Act, R.S.C. 1985, c. C-29, to swear or affirm allegiance to the Queen in order to become a Canadian citizen violates their rights under sections 2(a) (freedom of conscience and religion), 2(b) (freedom of expression), and 15(1) (equality) of the Canadian Charter of Rights and Freedoms. The Court of Appeal for Ontario held, at paras. 6 and 7, that the appellants' interpretation had been incorrect because it is inconsistent with the history, purpose and intention behind the oath. Moreover, the Court of Appeal held that the oath in the Citizenship Act is remarkably similar to the oath required of members of Parliament and the Senate under the Constitution Act, 1867. In addition, the Court of Appeal held that in that oath, the reference to the Queen is symbolic of our form of government and the unwritten constitutional principle of democracy. Furthermore, the Court of Appeal held that the purpose of the oath is not to compel expression, but to obtain a commitment to our form of government from those wishing to become Canadian citizens. Furthermore, the Court of Appeal also held that there is no violation of the appellants' right to freedom of religion and freedom of conscience because the oath is secular and is not an oath to the Queen in her personal capacity, but to our form of government of which the Queen is a symbol. The Court of Appeal also found that the oath would not violate the appellants' equality rights as well [*emphasis is mine below*]:

For the reasons that follow, I would dismiss the appeal and allow the cross-appeal. The appellants' arguments are based on a literal "plain meaning" interpretation of the oath to the Queen in her personal capacity. Adopting the purposive approach to interpretation mandated by the Supreme Court of Canada leads to the conclusion that their interpretation is incorrect because it is inconsistent with the history, purpose and intention behind the oath. The oath in the Act is remarkably similar to the oath required of members of Parliament and the Senate under the Constitution Act, 1867. In that oath, the reference to the Queen is symbolic of our form of government and the unwritten constitutional principle of democracy. The harmonization principle of interpretation leads to the conclusion that the oath in the Act should be given the same meaning.

The appellants' incorrect interpretation of the meaning of the oath cannot be used as the basis for a finding of unconstitutionality. ...

... I hold that the purpose of the oath is not to compel expression but to obtain a commitment to our form of government from those wishing to become Canadian

citizens. Although the oath has an effect on the appellants' freedom of expression, constitutional disapprobation is not warranted. Thus, there is no violation of the appellants' freedom of expression. In the alternative, if there is a violation of the appellants' right to freedom of expression, it is justified under s. 1 of the Charter. There is no violation of the appellants' right to freedom of religion and freedom of conscience because the oath is secular and is not an oath to the Queen in her personal capacity but to our form of government of which the Queen is a symbol. Nor is the oath a violation of the appellants' equality rights when the correct approach to statutory interpretation is applied.

- [264] With regards to officials taking oaths or affirmations, public servants of the Province of Ontario are required to take an oath in respect to aboriginal and treaty rights of Indigenous Peoples. Under s. 3(1) of the *Oaths And Affirmations Regulation* (Public Service of Ontario Act, 2006), O. Reg. 373/07, public servants of the Province of Ontario are required to take the following oath or affirmation of office that they will “respect the laws of Canada and Ontario, including the recognition and affirmation of the aboriginal and treaty rights of Indigenous peoples in the Constitution”, unless the public servant identifies as an indigenous person under s. 2(2) of the *Oaths And Affirmations Regulation* and is exempt from the requirement under subsection 5(1) of the Public Service of Ontario Act, 2006 to swear or affirm his or her allegiance to the Crown if the public servant asserts that making the oath or affirmation would be inconsistent with his or her views regarding the relationship between the Crown and Indigenous Peoples [*emphasis is mine below*]:

Exemptions, oath or affirmation of allegiance

- 2(1) A public servant who is not a citizen of Canada but is a citizen of another country is exempt from the requirement under subsection 5(1) of the Act to swear or affirm his or her allegiance to the Crown if the public servant asserts that making the oath or affirmation could result in the loss of that citizenship.
- (2) A public servant who identifies as an Indigenous person is exempt from the requirement under subsection 5 (1) of the Act to swear or affirm his or her allegiance to the Crown if the public servant asserts that making the oath or affirmation would be inconsistent with his or her views regarding the relationship between the Crown and Indigenous peoples.

Oath or affirmation of office

- 3(1) The following oath or affirmation of office is prescribed for the purposes of section 6 of the Act:

“I swear (or solemnly affirm) that I will faithfully discharge my duties as a public servant; I will respect the laws of Canada and Ontario, including the recognition and affirmation of the aboriginal and treaty rights of Indigenous peoples in the Constitution; and, except as I may be legally authorized or required, I will not disclose or give to any person any information or document that comes to my knowledge or

*possession by reason of my being a public servant. So help me God.
(Omit this phrase in an affirmation.)”*

(2) *The public servant may make the oath or affirmation in either English or French.*

(3) *Subsection (1), as remade by Ontario Regulation 385/17, applies to a public servant who is making the oath or affirmation on or after the day that that Regulation comes into force*

[265] Moreover, all the courts in Ontario (except for certain matters such as bail courts) were closed on September 30, 2024, which is the fourth annual National Day for Truth and Reconciliation. The Chief Justices of the three levels of courts in Ontario put out a public statement that this is a day to recognize the tragic legacy of the residential school system and the ways it continues to affect Indigenous Peoples in Canada; and that it is also a day to mourn the children who did not return from residential schools and to honour the survivors, their families, and the resilience of their communities; and to allow for reflection on this important day, the Courts will be closed except for certain matters that must be heard. Ergo, the courts in Ontario are cognizant of how aboriginal people have been treated during pre-Confederation and post-Confederation eras by colonial governments and by Canadian government policy, and the need for reconciliation between the federal and provincial governments with the Indigenous Peoples’ communities.

[266] In addition, the phrase “we are all treaty people” means that everyone in Canada — settlers and First Nations peoples alike — are in some way affected by treaties. The Trudeau government in 2016 gave this phrase more meaning when it announced its plans to honour treaties in an amended citizenship oath for new Canadians. Listed as one of the 94 calls to action by the Truth and Reconciliation Commission, this proposal includes a promise to faithfully observe the laws of Canada, including treaties with Indigenous peoples. The new citizenship oath would also better reflect Indigenous history and ensure that new citizens or citizens-to-be are well-informed about Indigenous issues. As of June 22, 2021, the Schedule of the Citizenship Act, R.S.C., 1985, c. C-29, that contained the wording for the oath of citizenship for new citizens of Canada was amended by An Act to amend the Citizenship Act (Truth and Reconciliation Commission of Canada’s call to action number 94), S.C. 2021, c. 13, which changed the wording to the following [although the new monarch of Canada is now King Charles the Third, who was proclaimed King of Canada at Rideau Hall on September 10, 2022]:

I swear (or affirm) that I will be faithful and bear true allegiance to Her Majesty Queen Elizabeth the Second, Queen of Canada, Her Heirs and Successors, and that I will faithfully observe the laws of Canada, including the Constitution, which recognizes and affirms the Aboriginal and treaty rights of First Nations, Inuit and Métis peoples, and fulfil my duties as a Canadian citizen.

[267] Ergo, on November 6, 2017 (the date that s. 3(1) of the *Oaths And Affirmations Regulation* came into force), public servants of the province of Ontario were required to make an oath or affirmation of office that they will “respect the laws of Canada and Ontario, including the recognition and affirmation of the aboriginal and treaty rights of Indigenous peoples in the Constitution”. Consequently, it is not necessary to verify the Oath or Affirmation of Office taken by prosecutors, peace officers and other officials, involved in the defendants’ case who are public servants of Ontario. Furthermore, besides the lack of evidence of malfeasance by any prosecutors, peace officers and other officials involved in the defendants’ case, there is also a presumption of regularity, and as such, this pre-trial motion for verification of oaths of office will therefore be dismissed.

(H) Motion For Discovery Of Documents And Evidence Related To The Defendants’ Case

[268] In this pre-trial motion, the defendants seek discovery of documents and evidence related to the defendants’ case. However, in another of their pre-trial motions they asked for the removal of Prosecutor Walsh because she had provided disclosure of the prosecution’s case to the defendants, despite the defendants’ waiver of their right to receive disclosure of the prosecution’s case. This particular pre-trial motion would therefore contradict the defendants’ waiver to receive disclosure (discovery) related to the defendants’ case from the prosecution.

[269] Furthermore, “discovery” in common law jurisdictions, is a phase of pretrial procedure in a lawsuit in which each party, through the law of civil procedure, can obtain evidence from other parties by means of methods of discovery such as interrogatories, requests for production of documents, requests for admissions and depositions. Discovery can also be obtained from non-parties using subpoenas.

[270] Moreover, discovery is the process through which a party learns or discovers the evidence and arguments the adversary intends to rely on in the law suit. The documentary discovery rule directs what must be disclosed and produced, the form and process for that disclosure, and the possible reasons for non-disclosure. Documents are widely defined and include papers, emails, videos, pictures, social and media posts. In general, all documents relevant to a law suit, whether they are helpful or harmful to the case must be disclosed to the other side, subject to specific exceptions such as lawyer-client privilege or proportionality,

[271] In addition, the discovery process in a civil action is the way the plaintiff and the defendant learn more about their mutual case. It includes an opportunity to look at documents the other side has that relate to the case. Discovery lets the parties in an action to learn the other side’s version of when and where things happened and to get a sense of the strength of their respective cases, and where agreement might be reached. Many cases settle during the discovery process in an action. It should be noted that the discovery process is generally not available in claims started by

a petition (where there is no trial with witnesses and the matter is heard by a judge, and the evidence is presented by affidavits only).

- [272] In R. v. Stinchcombe, [1991] 3 S.C.R. 326, Sopinka J. for the Supreme Court of Canada, held that the “fruits of the investigation” which are in the possession of counsel for the Crown are not the property of the Crown for use in securing a conviction, but the property of the public to be used to ensure that justice is done. As such, Sopinka J. held that the Crown is under a general duty to disclose all relevant information in their possession to an accused. However, Sopinka J. noted that this obligation to disclose is not absolute and is subject to the discretion of counsel for the Crown, where this discretion extends to both the withholding of information and to the timing of disclosure. Moreover, Sopinka J. also held that while the Crown must err on the side of inclusion, it need not produce what is clearly irrelevant. Sopinka J. also indicated that in deciding whether information in the possession of the Crown is required to be disclosed to the accused should be guided by the general principle that information ought not to be withheld if there is a reasonable possibility that the withholding of information will impair the right of the accused to make full answer and defence, unless the non-disclosure is justified by the law of privilege [*emphasis is mine below*]:

Production and discovery were foreign to the adversary process of adjudication in its earlier history when the element of surprise was one of the accepted weapons in the arsenal of the adversaries. This applied to both criminal and civil proceedings. Significantly, in civil proceedings this aspect of the adversary process has long since disappeared, and full discovery of documents and oral examination of parties and even witnesses are familiar features of the practice. This change resulted from acceptance of the principle that justice was better served when the element of surprise was eliminated from the trial and the parties were prepared to address issues on the basis of complete information of the case to be met. Surprisingly, in criminal cases in which the liberty of the subject is usually at stake, this aspect of the adversary system has lingered on. While the prosecution bar has generally co-operated in making disclosure on a voluntary basis, there has been considerable resistance to the enactment of comprehensive rules which would make the practice mandatory. This may be attributed to the fact that proposals for reform in this regard do not provide for reciprocal disclosure by the defence ...

...

I would add that the fruits of the investigation which are in the possession of counsel for the Crown are not the property of the Crown for use in securing a conviction but the property of the public to be used to ensure that justice is done. In contrast, the defence has no obligation to assist the prosecution and is entitled to assume a purely adversarial role toward the prosecution. The absence of a duty to disclose can, therefore, be justified as being consistent with this role.

Other grounds advanced by advocates of the absence of a general duty to disclose all relevant information are that it would impose onerous new obligations on the Crown prosecutors resulting in increased delays in bringing accused persons to trial. This ground is not supported by the material in the record. As I have already observed, disclosure is presently being made on a voluntary basis. The extent of

disclosure varies from province to province, from jurisdiction to jurisdiction and from prosecutor to prosecutor. The adoption of uniform, comprehensive rules for disclosure by the Crown would add to the work-load of some Crown counsel but this would be offset by the time saved which is now spent resolving disputes such as this one surrounding the extent of the Crown's obligation and dealing with matters that take the defence by surprise. In the latter case an adjournment is frequently the result of non-disclosure or more time is taken by a defence counsel who is not prepared. There is also compelling evidence that much time would be saved and therefore delays reduced by reason of the increase in guilty pleas, withdrawal of charges and shortening or waiver of preliminary hearings. The 1984 Report (at pp. 6-9) refers to several experimental projects which were established after the publication of the 1974 Working Paper in order to test the viability of pre-trial disclosure. The result of these experiments, and in particular the Montreal experiment, which was the most exhaustively evaluated, was that there was a significant increase in the number of cases settled and pleas of guilty entered or charges withdrawn.

...

As indicated earlier, however, this obligation to disclose is not absolute. It is subject to the discretion of counsel for the Crown. This discretion extends both to the withholding of information and to the timing of disclosure. For example, counsel for the Crown has a duty to respect the rules of privilege. In the case of informers the Crown has a duty to protect their identity. In some cases serious prejudice or even harm may result to a person who has supplied evidence or information to the investigation. While it is a harsh reality of justice that ultimately any person with relevant evidence must appear to testify, the discretion extends to the timing and manner of disclosure in such circumstances. A discretion must also be exercised with respect to the relevance of information. While the Crown must err on the side of inclusion, it need not produce what is clearly irrelevant. The experience to be gained from the civil side of the practice is that counsel, as officers of the court and acting responsibly, can be relied upon not to withhold pertinent information. Transgressions with respect to this duty constitute a very serious breach of legal ethics. The initial obligation to separate "the wheat from the chaff" must therefore rest with Crown counsel. There may also be situations in which early disclosure may impede completion of an investigation. Delayed disclosure on this account is not to be encouraged and should be rare. Completion of the investigation before proceeding with the prosecution of a charge or charges is very much within the control of the Crown. Nevertheless, it is not always possible to predict events which may require an investigation to be re-opened and the Crown must have some discretion to delay disclosure in these circumstances.

The discretion of Crown counsel is, however, reviewable by the trial judge. Counsel for the defence can initiate a review when an issue arises with respect to the exercise of the Crown's discretion. On a review the Crown must justify its refusal to disclose. Inasmuch as disclosure of all relevant information is the general rule, the Crown must bring itself within an exception to that rule.

The trial judge on a review should be guided by the general principle that information ought not to be withheld if there is a reasonable possibility that the withholding of information will impair the right of the accused to make full answer and defence, unless the non-disclosure is justified by the law of privilege. The trial

judge might also, in certain circumstances, conclude that the recognition of an existing privilege does not constitute a reasonable limit on the constitutional right to make full answer and defence and thus require disclosure in spite of the law of privilege. The trial judge may also review the decision of the Crown to withhold or delay production of information by reason of concern for the security or safety of witnesses or persons who have supplied information to the investigation. In such circumstances, while much leeway must be accorded to the exercise of the discretion of the counsel for the Crown with respect to the manner and timing of the disclosure, the absolute withholding of information which is relevant to the defence can only be justified on the basis of the existence of a legal privilege which excludes the information from disclosure.

The trial judge may also review the Crown's exercise of discretion as to relevance and interference with the investigation to ensure that the right to make full answer and defence is not violated. I am confident that disputes over disclosure will arise infrequently when it is made clear that counsel for the Crown is under a general duty to disclose all relevant information. The tradition of Crown counsel in this country in carrying out their role as "ministers of justice" and not as adversaries has generally been very high. Given this fact, and the obligation on defence counsel as officers of the court to act responsibly, these matters will usually be resolved without the intervention of the trial judge. When they do arise, the trial judge must resolve them. This may require not only submissions but the inspection of statements and other documents and indeed, in some cases, viva voce evidence. A voir dire will frequently be the appropriate procedure in which to deal with these matters.

- [273] As to the legal obligation of the prosecution to provide disclosure to an accused for Highway Traffic Act matters in the Provincial Offences Court, Healey J. held in Region of York v. McGuigan, 2017 ONSC 436, at paras. 30 to 33, that there are two principal factors that determine which disclosure/production regime will apply when an accused seeks disclosure of something the Crown has not provided. The first relates to the nature of the information sought, and the second concerns who is in possession or control of that information. Healey J. noted that the records sought in the *Jackson* case were not part of the "fruits of the investigation" to be captured by first party disclosure. In other words, Healey J. held that the information being sought by the accused was not created, produced or even located during the investigation of the accused and his alleged offences, and that the records being sought also played no role in the acquisition of any evidence available for proffer in the prosecution of the accused [*emphasis is mine below*]:

At para. 91 of Jackson, Watt J.A. stated that there are two principal factors that determine which disclosure/production regime will apply when an accused seeks disclosure of something the Crown has not provided. The first relates to the nature of the information sought, and the second concerns who is in possession or control of that information.

For the same reason that Watt J.A. concluded that the records sought in Jackson were not part of the "fruits of the investigation" to be captured by first party disclosure, I find that in this case the testing procedures did not qualify as a

consequence of the investigation of Mr. McGuigan. In the words of Watt J.A., “the information was not created, produced or even located during the investigation of the respondent and his alleged offences. The records played no role in the acquisition of any evidence available for proffer in the prosecution of the respondent”: Jackson, at para. 95.

With respect to who is in possession or control of the records, I reach a different conclusion than that in Jackson. In Jackson, the evidence was unequivocal that the records sought were not in the possession of the prosecuting Crown: at para. 98. Here, the evidence is equally clear that the prosecutor’s office has possession of the very manual containing the testing procedures sought to be disclosed. Nonetheless, as I read Jackson and McNeil, unless the document can properly be characterized as “fruits of the investigation”, there is no obligation on the prosecutor’s office to provide it as part of routine disclosure in speeding offences. This is so even if there is a reasonable possibility that the disclosure sought may assist Mr. McGuigan in the exercise of his right to make full answer and defence.

As a result, I find that the justice of the peace erred in ordering that the testing procedures are required to be disclosed as part of the Stinchcombe first party disclosure obligations of the Crown.

- [274] However, if the defendants’ motion for discovery of documents is related to their contention that the “Haldimand Proclamation of 1784” had granted title in fee simple to the Haldimand Tract to the Six Nations Confederacy and is therefore sovereign land of the Six Nations Confederacy, such discovery of documents could entail over tens of thousands of historical and archival government documents as already indicated in the case of Six Nations Of The Grand River Band Of Indians v. The Attorney General Of Canada And His Majesty The King In Right Of Ontario (Toronto Court File No. CV-18-00594281-0000 (Formerly Brantford Court File No. 406/95)) that is presently being litigated. Since this court is bound by the principle of *stare decisis* and that the Court of Appeal for Ontario has held that the “Haldimand Proclamation of 1784” did not transfer title in fee simple to the Six Nations Confederacy, then such discovery of tens of thousands of documents, including letters of correspondence between colonial officials and the British government would not be relevant to the prosecution of the defendants’ Highway Traffic Act charges.
- [275] Furthermore, third party records fall under the R. v. O’Connor regime for production of documents. The prosecution also has no duty to discover and disclose records on the basis of a “pure fishing expedition”. To obtain these third-party records, the defendants would have to apply for an order requiring a third party, that is, a party other than the Crown or its agents, to produce relevant documents for the purpose of using them in court. The application is often referred to as an “O’Connor Application” and is a two-stage process:

- (1) the applicant must satisfy the judge that the record is likely relevant to the proceedings against the accused. If so, the judge may order the production solely for the court's inspection.
- (2) the judge must then determine, after inspection, what portions of the documents are to be produced for the defence.

[276] In R. v. Jackson, 2015 ONCA 832, Watt J.A. for the Court of Appeal for Ontario, at paras. 32 to 35, 79 to 85, and 90 to 98, held that the records being requested by the accused were in the possession and the exclusive control of the Ottawa Police Service, who had been a third party to the proceedings. Therefore, Watt J.A. reasoned that the records being sought by the accused did not engage the “first party disclosure” scheme of R. v. Stinchcombe, but rather were records in the hands of third parties that had been “likely relevant” and “reasonably available” under the R. v. O'Connor regime:

The principles that control the disposition of this objection are those that govern first instance disputes about disclosure and those that authorize review of decisions made at first instance.

First, disputes about disclosure. The initial application before the trial judge invoked both O'Connor and Stinchcombe as the basis for the order sought.

Where the disclosure dispute relates to information in the possession or control of the prosecuting agency, the Stinchcombe regime applies and requires service of the application and supporting materials on the prosecutor.

Where the disclosure dispute concerns production of materials in the possession or control of a third party, O'Connor requires service of the application and supporting materials on the Crown, (where applicable) the person who is the subject of the records, the third party record-holder and anyone else statutorily entitled to notice. A subpoena duces tecum must be served on the record-holder: O'Connor, at paras. 135-36. The purpose of service on the record-holder is to provide the record-holder with notice and the opportunity to be heard.

...

First Party (Stinchcombe) Disclosure

Under Stinchcombe, the Crown has a broad duty to disclose all relevant, non-privileged information in its possession or control to persons charged with criminal offences. Disclosure of this information allows the person charged to understand the case she or he has to meet and permits him or her to make full answer and defence to the charges: Stinchcombe, at pp. 336-40; R. v. Quesnelle, 2014 SCC 46, [2014] 2 S.C.R. 390, at para. 11. The duty is triggered upon request without recourse to a court: McNeil, at para. 17.

For the purposes of first party or Stinchcombe disclosure, the term "the Crown" refers to the prosecuting Crown only, not to all Crown entities, federal and provincial. All other Crown entities, including the police, are third parties: Quesnelle

, at para. 11; McNeil , at para. 22. Apart from the police duty to supply the prosecuting Crown with the fruits of the investigation, records in the hands of third parties, including the police and other Crown entities, are generally not subject to the Stinchcombe disclosure rules: Quesnelle , at para. 11; McNeil , at para. 25.

The assimilation of the police and Crown as a single entity for disclosure purposes is narrowly confined. Apart from the police duty to disclose to the Crown the fruits of the investigation, the two are unquestionably separate and independent entities, not only in fact but also in law. The police investigate. The Crown decides whether, what, whom and how to prosecute: McNeil , at paras. 23, 25. Production of criminal investigation files involving third parties, at least as a general rule, falls to be determined on an O'Connor application. This is so at least in the absence of a nexus between the third party and subject investigation: McNeil , at para. 25.

The Stinchcombe disclosure regime extends only to material relating to the accused's case in the possession or control of the prosecuting Crown entity. This material is commonly described as the "fruits of the investigation", that is to say, material gathered during the investigation of the offence with which the accused is charged: McNeil , at para. 23. Relevant information includes not only information related to those matters the Crown intends to adduce in evidence against the accused, but also any information in respect of which there is a reasonable possibility that it may assist the accused in the exercise of the right to make full answer and defence: McNeil , at para. 17; Stinchcombe , at pp. 343-44.

Third Party (O'Connor) Production

A separate disclosure/production scheme exists for records and information in the hands of third parties, strangers to the litigation. This scarcely surprises. After all, third parties are under no obligation and have no duty to assist the parties in litigation or to disclose information to them: O'Connor , at para. 102.

The third party scheme involves two steps or stages. It is initiated by service of a subpoena duces tecum on the third party record-holder, as well as a notice of application and supporting material on the record holder and prosecuting authority: O'Connor , at para. 134. The purpose of the subpoena duces tecum is to have the material requested brought to the trial judge who will determine whether and to what extent the material will be produced. The application sets out the grounds upon which production is sought. The supporting material seeks to establish the relevance of the material to an issue at trial including:

- i. the unfolding of the narrative;
- ii. the credibility of a witness;
- iii. the reliability of other evidence; or
- iv. the competence of a witness to testify: O'Connor , at para. 134; McNeil , at paras. 27, 33.

For the purposes of this third party production regime, a record-holder need not be a complete stranger to the litigation. Recall that Crown entities, other than the

prosecuting Crown, are third parties under this regime: McNeil , at para. 13. And this is so even though some records of the same entity may be subject to the first party disclosure scheme of Stinchcombe : McNeil , at para. 15.

...

As I will explain, I would give effect to this ground of appeal. The records sought are third party records. Their production/disclosure is governed by O'Connor . They do not fall within the first party disclosure scheme of Stinchcombe . The reasoning that leads me to this conclusion involves several steps.

Factors Determining the Disclosure/Production Regime

Two principal factors determine the disclosure/production regime that will apply when an accused seeks disclosure of something the Crown has not provided. The first has to do with the nature of the information of which disclosure/production is sought. The second concerns who is in possession or control of that information.

Turning first to the nature of the information. The descriptive "fruits of the investigation" accurately captures the subject-matter of first party/ Stinchcombe disclosure. The term embraces relevant, non-privileged information related to the matters the Crown intends to adduce in evidence against an accused, as well as any information in respect of which there is a reasonable possibility that it may assist an accused in the exercise of the right to make full answer and defence. The information may relate to the unfolding of the narrative of material events, to the credibility of witnesses or the reliability of evidence that may form part of the case to meet.

In its normal, natural everyday sense the phrase "fruits of the investigation" posits a relationship between the subject-matter sought and the investigation that leads to the charges against an accused. It refers to information acquired by means and in consequence of that investigation. The information includes, but is not co-extensive with, evidence, much less admissible evidence.

The disclosure/production sought in this case falls beyond the boundaries of "fruits of the investigation".

In this case, a substantial component of the information sought consists of historical records of the operation of the same approved instrument during the investigation of others for similar offences. These records have no association with the offence with which the respondent was charged and for which he faced trial. The information was not created, produced or even located during the investigation of the respondent and his alleged offences. The records played no role in the acquisition of any evidence available for proffer in the prosecution of the respondent. Indeed, much of it originates in the investigation of others for offences they are alleged to have committed at times and in places unrelated to the investigation of the respondent.

Some support for this view that records created in investigations other than that relating to the offence charged are not "fruits of the investigation" may be found in Quesnelle . There, a police occurrence report not directly related to the charges

against Quesnelle but involving the same complainant was held to be subject to the statutory third party records scheme known as the Mills [see footnote 3] regime.

Next, it is necessary to determine who was in possession or control of the records.

In this case, the records sought were not in the possession of the prosecuting Crown. The evidence is unequivocal. The records were generated by and in the exclusive control of the OPS. The OPS is a third party for these purposes. Their possession and control of the records sought does not engage the first party disclosure scheme of Stinchcombe .

[277] Ergo, if the records that the defendants seek in their discovery motion is in relation to the “Haldimand Proclamation of 1784” and the Haldimand Tract, these records do not form part of the “fruits of the investigation” collected by the Ontario Provincial Police in relation the defendants’ Highway Traffic Act charges that are required to be disclosed by the prosecution to the defendant under the R. v. Stinchcombe first-party regime. On the other hand, the records that the defendants appear to be seeking in their motion for discovery of documents would be in the possession of third parties. As such, the defendants would have to seek production of such records from the third party in possession of such records under the R. v. O’Connor regime, even though the records being sought by the defendants are not relevant to the prosecution of the defendants’ Highway Traffic Act charges, since the Court of Appeal for Ontario in Isaac et al. v. Davey et al., (1975), 5 O.R. (2d) 610, has already decided on the legal interpretation of the “Haldimand Proclamation of 1784”.

[278] Accordingly, the defendants motion for discovery of documents and evidence related to the “Haldimand Proclamation of 1784” is not for first-party disclosure nor for evidence or records that form part of the “fruits of the investigation” collected by the Ontario Provincial Police” in relation to the defendants’ Highway Traffic Act charges and is therefore dismissed.

(I) Motion For Injunctive Relief To Prevent Encroachment Or Actions By Officials On The Grand River Mohawk Lands To Ensure Exclusive Use And Enjoyment Of Rights

[279] In this pre-trial motion, the defendants ask this court for injunctive relief to prevent encroachment or actions by officials on the Grand River Mohawk lands to ensure exclusive use and enjoyment of rights and rely on the RJR – MacDonald Inc. v. Canada (Attorney General), [1994] 1 S.C.R. 311 (S.C.C.) case to support this motion. Injunctions are a way that a court can order a person to do a particular act or refrain or stop from doing a particular act. Moreover, an interlocutory injunction is an injunction granted before the issues in dispute have been decided and it is intended to be an intermediate step in the litigation. Ergo, an interlocutory injunction is intended to place the parties into a holding pattern and to preserve the *status quo* or existing situation between the parties pending a final resolution of their legal action.

- [280] In *RJR – MacDonald Inc. v. Canada (Attorney General)*, [1995] 3 S.C.R. 199, RJR – MacDonald Inc. and Imperial Tobacco challenged the federal *Tobacco Products Control Act* as being *ultra vires* the federal government's criminal law power and peace, order and good government power, and as being in violation of the right to freedom of expression under s. 2(b) of the Canadian Charter of Rights and Freedoms. The majority of the Supreme Court of Canada upheld the federal *Tobacco Products Control Act*, but struck out the provisions that prevented tobacco advertising and unattributed health warnings.
- [281] Furthermore, in *RJR – MacDonald Inc. v. Canada (Attorney General)*, [1994] 1 S.C.R. 311 (S.C.C.), the Supreme Court had to consider an application for an interlocutory injunction brought by RJR – MacDonald Inc. which sought a stay of the implementation of regulations pending the final decision on appeals and to delay implementation if the appeals were dismissed. The Supreme Court in their reasons also confirmed the three-part test in order for a court to grant an injunction: First, a preliminary assessment must be made of the merits of the case to ensure that there is a serious question to be tried. Secondly, it must be determined whether the applicant would suffer irreparable harm if the application were refused. Finally, an assessment must be made as to which of the parties would suffer greater harm from the granting or refusal of the remedy pending a decision on the merits [*emphasis is mine below*]:

Generally, the same principles should be applied by a court whether the remedy sought is an injunction or a stay. In Metropolitan Stores, at p. 127, Beetz J. expressed the position in these words:

A stay of proceedings and an interlocutory injunction are remedies of the same nature. In the absence of a different test prescribed by statute, they have sufficient characteristics in common to be governed by the same rules and the courts have rightly tended to apply to the granting of interlocutory stay the principles which they follow with respect to interlocutory injunctions.

We would add only that here the applicants are requesting both interlocutory (pending disposition of the appeal) and interim (for a period of one year following such disposition) relief. We will use the broader term "interlocutory relief" to describe the hybrid nature of the relief sought. The same principles apply to both forms of relief.

Metropolitan Stores adopted a three-stage test for courts to apply when considering an application for either a stay or an interlocutory injunction. First, a preliminary assessment must be made of the merits of the case to ensure that there is a serious question to be tried. Secondly, it must be determined whether the applicant would suffer irreparable harm if the application were refused. Finally, an assessment must be made as to which of the parties would suffer greater harm from the granting or refusal of the remedy pending a decision on the merits. It may be helpful to consider each aspect of the test and then apply it to the facts presented in these cases.

[282] Moreover, in a First Nations' case, the Supreme Court of Canada in Haida Nation v. British Columbia (Minister of Forests), [2004] 3 S.C.R. 511, also considered an application for an interlocutory injunction brought by the Haida Nation against the provincial government who had issued a licence to a large forestry company, permitting it to harvest trees in the Haida Gwaii archipelago (formerly known as the Queen Charlotte Islands). At para. 14 in Haida Nation, McLachlin C.J. held that interlocutory injunctions as a remedy typically represent an all-or-nothing solution and may offer only partial imperfect relief and may not capture the government's full obligation in respect to their dealings with the Haida people; while on the other hand, the government's duty to consult and accommodate by its very nature entails balancing of Aboriginal and other interests and thus lies closer to the aim of reconciliation at the heart of Crown-Aboriginal relations. Moreover, McLachlin C.J. explained that Aboriginal claims litigation can be very complex and require years and even decades to resolve in the courts, so that interlocutory injunctions which are designed only as a stop-gap remedy pending litigation of the underlying issue may fail to adequately take account of Aboriginal interests prior to their final determination. Furthermore, McLachlin C.J. noted that an interlocutory injunction over such a long period of time might work unnecessary prejudice and may diminish incentives on the part of the successful party to compromise. Therefore, while Aboriginal claims can be and are pursued through litigation, McLachlin C.J. indicated that negotiation is a preferable way of reconciling state and Aboriginal interests [*emphasis is mine below*]:

Interlocutory injunctions may offer only partial imperfect relief. First, as mentioned, they may not capture the full obligation on the government alleged by the Haida. Second, they typically represent an all-or-nothing solution. Either the project goes ahead or it halts. By contrast, the alleged duty to consult and accommodate by its very nature entails balancing of Aboriginal and other interests and thus lies closer to the aim of reconciliation at the heart of Crown-Aboriginal relations, as set out in R. v. Van der Peet, [1996] 2 S.C.R. 507, at para. 31, and Delgamuukw v. British Columbia, [1997] 3 S.C.R. 1010, at para. 186. Third, the balance of convenience test tips the scales in favour of protecting jobs and government revenues, with the result that Aboriginal interests tend to "lose" outright pending a final determination of the issue, instead of being balanced appropriately against conflicting concerns: J. J. L. Hunter, "Advancing Aboriginal Title Claims after Delgamuukw: The Role of the Injunction" (June 2000). Fourth, interlocutory injunctions are designed as a stop-gap remedy pending litigation of the underlying issue. Aboriginal claims litigation can be very complex and require years and even decades to resolve in the courts. An interlocutory injunction over such a long period of time might work unnecessary prejudice and may diminish incentives on the part of the successful party to compromise. While Aboriginal claims can be and are pursued through litigation, negotiation is a preferable way of reconciling state and Aboriginal interests. For all these reasons, interlocutory injunctions may fail to adequately take account of Aboriginal interests prior to their final determination.

...

[283] However, since injunctive relief is an equitable or prerogative remedy, then under s. 108(2) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only the Superior Court of

Justice in Ontario has been given the power to grant injunctive relief, specific performance or other equitable relief [*emphasis is mine below*]:

Superior Court of Justice

11(1) *The Ontario Court (General Division) is continued as a superior court of record under the name Superior Court of Justice in English and Cour supérieure de justice in French.*

Same

(2) *The Superior Court of Justice has all the jurisdiction, power and authority historically exercised by courts of common law and equity in England and Ontario.*

...

Assignment of judges from Court of Appeal

13(1) *The Chief Justice of Ontario, with the concurrence of the Chief Justice of the Superior Court of Justice, may assign a judge of the Court of Appeal to perform the work of a judge of the Superior Court of Justice.*

Court of Appeal judges

(2) *A judge of the Court of Appeal is, by virtue of his or her office, a judge of the Superior Court of Justice and has all the jurisdiction, power and authority of a judge of the Superior Court of Justice.*

...

Procedural Matters

Jury trials

108(1) *In an action in the Superior Court of Justice that is not in the Small Claims Court, a party may require that the issues of fact be tried or the damages assessed, or both, by a jury, unless otherwise provided.*

Trials without jury

(2) *The issues of fact and the assessment of damages in an action shall be tried without a jury in the following circumstances:*

1. *The action involves a claim for any of the following kinds of relief:*
 - i. *Injunction or mandatory order.*
 - ii. *Partition or sale of real property.*
 - iii. *Relief in proceedings referred to in the Schedule to section 21.8.*

- iv. *Dissolution of a partnership or taking of partnership or other accounts.*
- v. *Foreclosure or redemption of a mortgage.*
- vi. *Sale and distribution of the proceeds of property subject to any lien or charge.*
- vii. *Execution of a trust.*
- viii. *Rectification, setting aside or cancellation of a deed or other written instrument.*
- ix. *Specific performance of a contract.*
- x. *Declaratory relief.*
- xi. *Other equitable relief.*
- xii. *Relief against a municipality.*

2. *The action is proceeding under Rule 76 of the Rules of Civil Procedure.*

[284] To reiterate, the Provincial Offence Court is a court created by statute and can only exercises powers that have been given to it under its governing statute.

[285] And, like many of the remedies that the defendants seek in this provincial offences prosecution, the Provincial Offences Court is a statutory court that can only exercise powers that is has been given to it under the governing legislation. None of the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, nor the Highway Traffic Act, R.S.O. 1990, provide the Provincial Offences Court with the power to grant prerogative writs or equitable remedies, such as granting a mandamus order or ordering specific performance or injunctive relief in respect to a treaty obligation that may or may not exist between the Crown and the Mohawk Nation of the Grand River.

[286] And, according to s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only the Court of Appeal for Ontario or the Superior Court of Justice are the courts in Ontario that are permitted to grant equitable relief, such as injunctive relief, or to grant prerogative writs.

[287] Therefore, since the Provincial Offences Court has not been given the powers to grant equitable relief or grant prerogative writs, the defendants' motion seeking injunctive relief to prevent encroachment or actions by officials on the Grand River Mohawk lands in order to ensure exclusive use and enjoyment of rights is dismissed.

(J) Motion To Quash Indictment On The Grounds That It Is Based On A Misapplication Of Law Or Lacks Sufficient Evidence

- [288] In this pre-trial motion, the defendants ask the Provincial Offences Court to quash the three Certificates of Offence issue to the defendants, respectively, on the grounds that it is based on a misapplication of law or lacks sufficient evidence and relies on the R. v. Clark, [2005] 1 S.C.R. 6 (S.C.C.) case to support this motion.
- [289] In R. v. Clark, [2005] 1 S.C.R. 6 (S.C.C.), the accused had been observed masturbating near the uncovered window of his illuminated living room by neighbours from the privacy of their darkened bedroom, across contiguous back yards, from a distance of 90 to 150 feet. The accused was charged under the *Criminal Code* with the offence to willfully do an indecent act “in a public place in the presence of one or more persons”, or “in any place, with intent thereby to insult or offend any person”. The Supreme Court of Canada allowed the appeal and overturned the accused’s conviction and held that the facts as found by the trial judge do not support the accused’s conviction, since the accused’s act was not committed in a “public place”.
- [290] The Motion to Quash a Part I Certificate of Offence is provided for under s. 36 of the Provincial Offences Act, R.S.O. 1990, c. P.33:

Motion to quash information or certificate

- 36(1)** *An objection to an information or certificate for a defect apparent on its face shall be taken by motion to quash the information or certificate before the defendant has pleaded, and thereafter only by leave of the court.*

Grounds for quashing

- (2)** *The court shall not quash an information or certificate unless an amendment or particulars under section 33, 34 or 35 would fail to satisfy the ends of justice.*

- [291] Subsection 36(1) of the Provincial Offences Act only permits the Provincial Offences Court the power to quash the defendants’ three Certificates of Offence for an objection to an information or certificate for a defect apparent on its face before the defendant has pleaded, and thereafter only by leave of the court. There is no apparent defect on the face of the three Certificates of Offence which would warrant the Provincial Offences Court sitting in the City of Brantford having to quash the three Certificates of Offence that have been filed with the court.
- [292] In order for the certificates of offence to be “complete and regular”, it is well established in the jurisprudence that the certificates must set out:
- The Name of the informant;
 - The Name of the defendant;

- The Description of the offence or reference to law contravened;
- The Location (jurisdiction) of the offence;
- The Date of the offence;
- The Consequence of a conviction (set fine amount); and
- The Signature of the Informant

All three Certificates of Offence in the case at bar contain and set out those items of information and requirements.

[293] As there is no evidence yet adduced at trial, it would be premature for a court to conclude there has been a misapplication of law or that there is a lack of evidence to prove the charges against the defendants. If the misapplication of the law contention relates to the defendants' "no jurisdiction" contention, the Provincial Offences Court, as has been determined, does have the necessary jurisdiction and authority over the defendants and the defendants' Highway Traffic Act charges, and the issue of whether the Haldimand Tract is the sovereign territory of the Mohawk Nation has been legally adjudicated by the Court of Appeal for Ontario in Isaac et al. v. Davey et al., (1975), 5 O.R. (2d) 610 and the Provincial Offences Court is bound by law to follow that decision.

[294] Accordingly, the defendants' motion to quash the Certificates of Offence are dismissed.

(K) Motion For An Order Of Specific Performance Of The Treaty Obligations Under The "Haldimand Proclamation"

[295] For this pre-trial motion, the defendants seeks an order for specific performance of the supposed Crown's treaty obligations under the "Haldimand Proclamation of 1784", based on the classic English contract law case of Beswick v. Beswick [1966] 1 Ch. 538, [1966] 3 All E.R. 1 (C.A.), which all first-year law students of contract law have to study.

[296] The legal principle derived from the Beswick v. Beswick case is that where a contract is made for the benefit of a third person who has a legitimate interest to enforce it, it can be enforced by that third person in the name of the contracting party or jointly with them or, if they refuse to join, by adding them as a defendant. Lord Hodson in Beswick v. Beswick had held that even though the widow cannot claim specific performance in her personal capacity, there is no objection to her doing so in her capacity as administratrix and when the moneys are recovered they will be in this instance held for the benefit of herself as the person for whom they are intended [*emphasis is mine below*]:

The peculiar feature of this case is that the plaintiff is not only the personal representative of the deceased but also his widow and the person beneficially entitled to the money claimed. Although the widow cannot claim specific performance in her personal capacity there is no objection to her doing so in her capacity as administratrix and when the moneys are recovered they will

be in this instance held for the benefit of herself as the person for whom they are intended.

... *Keenan v. Handley* 1864 12 W.R. 1021 is a very striking example which appears to be exactly in point. It is to be noticed that the learned counsel engaged in this and other cases never took the point now relied on that the personal representative of the contracting party could not enforce a contract such as this. As I understood the argument for the Appellant it was contended that the personal representative could not obtain specific performance as the estate had nothing to gain, having suffered no loss. There is no authority which supports this proposition think it has any validity. In *Hohler v. Aston* [1920] 2 Ch. 420 a decision of Sargant J. is good authority to the contrary. A Mrs. Aston agreed with her nephew Mr. Hohler to make provision for her niece and her husband, Mr. and Mrs. Rollo. Mrs. Aston died before doing so. Mr. Hohler and Mr. and Mrs. Rollo sued the executors of Mrs. Aston for specific performance and succeeded. Sargant J. said:

" the third parties, of course, cannot themselves enforce a contract
" made for their benefit but the person with whom the contract is made
" is entitled to enforce the contract."

Mr. Hohler, like the Respondent in her capacity as administratrix, took no benefit under the contract but was rightly allowed to recover. It is no part of the law that in order to sue on a contract one must establish that it is in one's interest to do so. Absurd results would follow if a defendant were entitled to lead evidence to show that it would pay the plaintiff better not to sue for specific performance of, say, the sale of a house because the plaintiff could sell it for a higher price to someone else. It is true that specific performance would not be ordered so as to disregard the fiduciary position which the Appellant occupies as administratrix. Situations might arise in the administration of an estate when there might be conflicting claims between creditors and persons entitled beneficially otherwise, but this is not such a case. There was in the agreement reference to creditors but there was no evidence directed to this matter and no reason to assume the existence of conflicting claims at the present day.

In such a case as this, there having been an unconscionable breach of faith, the equitable remedy sought is apt. The Appellant has had the full benefit of the contract and the Court will be ready to see that he performs his part (see the judgment of Kay J. in *Hart v. Han* [18 Ch D 670](#)).

[297] As to the nature of aboriginal treaties, Professor Hogg, Canada's eminent constitutional law scholar, in his textbook, *Constitutional Law of Canada*, 5th Edition. Scarborough, ON: Thomson Carswell, 2007, at p. 28-35, describes them conceptually as something between a contract law concept and international law, as well as describing them as being "unique" or "sui generis". However, Professor Hogg also explained that an Indian treaty is not a treaty in international law nor is it subject to the rules of international law; and an Indian treaty is also not a contract nor subject to the rules of contract law [*emphasis is mine below*]:

An Indian treaty has been described as "unique" or "sui generis". It is not a treaty in international law, and is not subject to the rules of international law. It is not a

contract, and is not subject to the rules of contract law. It is an agreement between the Crown and an aboriginal nation with the following characteristics:

- 1. Parties: The parties to the treaty must be the Crown, on the one side, and an aboriginal nation, on the other side.*
- 2. Agency: The signatories to the treaty must have the authority to bind their principals, namely the Crown and the aboriginal nation.*
- 3. Intention to create legal relations: The parties must intend to create legally binding obligations.*
- 4. Consideration: The obligations must be assumed by both sides, so that the agreement is a bargain.*
- 5. Formality: there must be “a certain measure of solemnity”.*

[298] Furthermore, as stated earlier, Arnup J.A. for the Court of Appeal for Ontario in Isaac et al. v. Davey et al (1975), 5 O.R. (2d) 610, had noted that it has long ago been authoritatively decided by the Courts that “Haldimand Proclamation of 1784”, did not give fee simple ownership or absolute title in fee simple of the Haldimand Tract to the Six Nations Confederacy. Moreover, Arnup J.A. in his judgment had also referred to Logan v. Styres, [1959] O.J. No. 329 (Ont. Supreme Ct. – H.C.J.), in which King J. had found that the “Haldimand Proclamation of 1784” was contextually a deed and had not been in any sense a treaty. As well, Kerr L.J. of the U.K. Court of Appeal held in The Queen and The Secretary of State for Foreign and Commonwealth Affairs, Ex Parte: the Indian Association of Alberta et al, [1982] 2 All E.R. 118 (C.A.), at p. 133, that although the relevant agreements with the Indian peoples are known as ‘treaties’, they are not treaties in the sense of public international law, as they were not treaties between sovereign states, so that no question of state succession arises.

[299] And, because the Provincial Offences Court is bound by the principle of *stare decisis*, it must adopt the finding of these higher courts that the “Haldimand Proclamation of 1784” is not a treaty.

[300] Moreover, the specific performance remedy that the defendants seek is an equitable remedy that is available for breach of contract and is a declaration by the court compelling a party to perform its contractual obligations. The specific performance remedy may be granted in addition to or instead of damages, and unlike damages which are available as of right, specific performance is granted at the court’s discretion where damages are deemed to be an inadequate remedy.

[301] Again, s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only permits the Court of Appeal for Ontario or the Superior Court of Justice to grant equitable remedies such as specific performance, unless otherwise provided by statute, or under s. 99 to award damages in addition to or in substitution to specific performance [emphasis is mine below]:

Jurisdiction for equitable relief

96(3) *Only the Court of Appeal and the Superior Court of Justice, exclusive of the Small Claims Court, may grant equitable relief, unless otherwise provided.*

...

Damages in substitution for injunction or specific performance

99. *A court that has jurisdiction to grant an injunction or order specific performance may award damages in addition to, or in substitution for, the injunction or specific performance.*

[302] To recap, the Provincial Offence Court is a court created by statute and can only exercises powers that have been given to it under its governing statute.

[303] And, like many of the remedies that the defendants seek in this provincial offences prosecution, the Provincial Offences Court is a statutory court that can only exercise powers that is has been given to it under the governing legislation. None of the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, nor the Highway Traffic Act, R.S.O. 1990, provide the Provincial Offences Court with the power to grant prerogative writs or equitable remedies, such as granting a mandamus order or ordering specific performance or injunctive relief in respect to a treaty obligation that may or may not exist between the Crown and the Mohawk Nation of the Grand River.

[304] And, according to s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only the Court of Appeal for Ontario or the Superior Court of Justice are the courts in Ontario that are permitted to grant equitable relief, such as specific performance, or to grant prerogative writs.

[305] Therefore, since the Provincial Offences Court has not been given the powers to grant equitable relief or to grant prerogative writs, the defendants' motion seeking an order for specific performance of the treaty obligations under the "Haldimand Proclamation of 1784" is dismissed.

(L) Motion For Protection Order To Safeguard Defendants And Other Mohawk Residents From Further Legal Or Administrative Actions By Provincial Authorities

[306] In this pre-trial motion, the defendants ask this court for a Protection Order to safeguard the defendants' and other Mohawk residents from further legal or administrative actions by provincial authorities and rely on the R. v. Mentuck, [2001] 3 S.C.R. 442, 2001 SCC 76 (S.C.C.) case to support this motion.

[307] In R. v. Mentuck, [2001] 3 S.C.R. 442, 2001 SCC 76 (S.C.C.), the accused was charged with second degree murder of a 14-year-old girl. At his first trial in 1998,

the charges were stayed after crucial evidence was ruled inadmissible. After the trial, the RCMP engaged in an undercover operation targeting the accused, which led to the Crown reinstating the indictment. During the trial, the Crown sought a publication ban of information regarding the undercover operation. The trial judge granted a partial ban. The accused then appealed to the Supreme Court of Canada, which granted a temporary but full ban. The accused was eventually convicted.

- [308] From their submissions in the case at bar, it does not appear the defendants are seeking some type of publication ban of information as utilized by the court in R. v. Mentuck; rather it appears that what the defendants are seeking is a “writ of prohibition” to safeguard the defendants’ and other Mohawk residents from further legal or administrative actions by provincial authorities
- [309] Prohibition is a prerogative writ that stops a lower court or government official from doing something. Such a writ only prevents future action, it does not cancel decisions that have already been made and it is often combined with a writ of certiorari, which will vacate the earlier decision prior to issuing a writ of prohibition stopping future similar decisions. It is akin to the criminal law equivalent of an injunction.
- [310] In order to obtain a writ of prohibition, one has to apply to a court of original inherent jurisdiction. Only a court of "original inherent jurisdiction" has the authority under the common law to grant the writ of prohibition. In Ontario, the defendants would have to seek such a prerogative writ in the Superior Court of Justice.
- [311] For matters involving the federal government of Canada, the defendants would have to seek the writ of prohibition in the Federal Court, which has exclusive original jurisdiction involving the issuance of an injunction, writ of certiorari, writ of prohibition, writ of mandamus, or granting declaratory relief, against any federal board, commission or other tribunals.
- [312] Furthermore, the Highway Traffic Act applies to all motorists operating motor vehicles on Ontario highways, so a writ of prohibition to stop or prevent municipal or provincial authorities from enforcing the Highway Traffic Act in respect to a certain class of motorists would usurp or subvert the rule of law.
- [313] Once more, the Provincial Offence Court is a court created by statute and can only exercises powers that have been given to it under its governing statute.
- [314] And, like many of the remedies that the defendants seek in this provincial offences prosecution, the Provincial Offences Court is a statutory court that can only exercise powers that is has been given to it under the governing legislation. None of the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, nor the Highway Traffic Act, R.S.O. 1990, provide the Provincial Offences Court with the power to grant prerogative writs or equitable remedies, such as granting a writ of prohibition or a mandamus order or ordering specific

performance or injunctive relief in respect to a treaty obligation that may or may not exist between the Crown and the Mohawk Nation of the Grand River.

- [315] And, by virtue of s. 96(3) of the Courts of Justice Act, R.S.O. 1990, c. C.43, only the Court of Appeal for Ontario or the Superior Court of Justice are the courts in Ontario that are permitted to grant equitable relief or to grant prerogative writs, such as a writ of prohibition.
- [316] Ergo, since the Provincial Offences Court has not been given the powers to grant equitable relief or grant prerogative writs, such as a writ of prohibition to safeguard the defendants and other Mohawk residents from further legal or administrative actions by provincial authorities, the defendants' motion for writ of prohibition is dismissed.

(M) Motion For Exclusion Of Evidence Obtained In Violation Of The Defendants' Rights Or Through The Misapplication Of Law

- [317] In this pre-trial motion, the defendants ask this court for the exclusion of evidence obtained in violation of the defendants' rights or through the misapplication of law and rely on the R. v. Oakes, [1986] 1 S.C.R. 103 (S.C.C.) and R. v. Grant, [2009] 2 S.C.R. 353, 2009 SCC 32 (S.C.C.) cases to support this motion. The defendants submit that the R. v. Grant case establishes a framework for determining when evidence obtained through Charter violations should be excluded. For the present case, the defendants contend that the defendants had improperly received evidence from the prosecution against an express waiver to receive disclosure from the prosecution, then based on that impugned conduct of the prosecution the improperly disclosed evidence in the possession of the prosecution should be excluded from the trial to maintain trial fairness.
- [318] Section 24(2) of the Charter allows for the exclusion of evidence obtained in a manner that infringes a Charter right, if the admission of the evidence could bring the administration of justice into disrepute. So, where there has been a finding of a breach of any right under of the Charter of Rights and Freedoms, the accused person may apply to have the evidence that is connected with the breach excluded from the trial under s. 24(2) of the Charter:

24 ...

Exclusion of evidence bringing administration of justice into disrepute

- (2) *Where, in proceedings under subsection (1), a court concludes that evidence was obtained in a manner that infringed or denied any rights or freedoms guaranteed by this Charter, the evidence shall be excluded if it is established that, having regard to all the circumstances, the admission of it in the proceedings would bring the administration of justice into disrepute.*

- [319] In order to invoke s. 24(2) to exclude evidence, there must be (1) an infringement of Charter rights, (2) a nexus between the infringement and the evidence to be excluded, (3) and the effects of the breach warrant the exclusion of evidence.
- [320] Furthermore, the Supreme Court of Canada in R. v. Oakes, [1986] 1 S.C.R. 103, had established the "Oakes test" as an analysis of the limitations clause contained in s. 1 of the Charter, which allows reasonable limitations on rights and freedoms through legislation, if the limitation is motivated by a "pressing and substantial objective" and can be "demonstrably justified in a free and democratic society."
- [321] In addition, the Supreme Court of Canada created a new test in R. v. Grant, [2009] 2 S.C.R. 353, 2009 SCC 32, for determining whether evidence obtained by a Charter breach should be excluded under s. 24(2) of the Charter, replacing the test from R. v. Collins. In R. v. Grant, the Supreme Court of Canada held at para. 71, that once state conduct is found to have infringed a Charter right, the court is required to apply the following three factors to assess and balance the effect of admitting the evidence on society's confidence in the justice system:
- (1) the seriousness of the Charter-infringing state conduct (admission may send the message the justice system condones serious state misconduct),
 - (2) the impact of the breach on the Charter-protected interests of the accused (admission may send the message that individual rights count for little), and
 - (3) society's interest in the adjudication of the case on its merits.
- [322] Moreover, there are three preconditions for granting the remedy of exclusion under s. 24(2) of the Charter:
- (1) The applicant's rights or freedoms as guaranteed by the Charter must have been unjustifiably limited or denied;
 - (2) The evidence must have been obtained in a manner that unjustifiably limited or denied a guaranteed right or freedom; and
 - (3) Having regard to all the circumstances, the admission of the evidence in the proceedings must be capable of bringing the administration of justice into disrepute.
- [323] In addition, the defendant's motion to exclude evidence appears to be based on the contention that the police had misapplied the law or violated the defendants' rights, since the defendants' contend that the Highway Traffic Act does not apply on the sovereign territory of the Mohawk Nation, where the alleged offence is alleged to have occurred. On the other hand, even if the County of Brant is hypothetically the

sovereign territory of the Mohawk nation, the Canadian Charter of Rights would not apply on this impugned sovereign territory, since it is for the most part only applicable on Canadian territory, then the defendants would logically be unable in law to ask for an exclusion of evidence under s. 24(2) of the Charter based on the R. v. Oakes or R. v. Grant test when the yet unsubstantiated breach had occurred when the defendants were not supposedly on Canadian soil. This defence contention would then contradict the defendants' contention that the County of Brant is sovereign territory of the Mohawk Nation where the Ontario Highway Traffic Act does not apply, but where the Canadian Charter of Rights would apply there.

- [324] In addition, an application to exclude evidence would have to be based on improper state conduct that has been proven with admissible evidence, which is usually considered during the trial.
- [325] Generally, a court's decision on whether to exclude evidence based on violations of the defendants' rights cannot be decided until evidence has been proffered which shows the defendants' rights under the Charter have been unjustifiably limited or denied.
- [326] Furthermore, as there is no admissible evidence yet adduced at trial, it would be premature for a court to conclude that there has been a misapplication of law or that there is a lack of evidence to prove the charges against the defendants. In addition, the defendants have not shown at this time that there are any justifiable grounds for the Provincial Offences Court to exclude any evidence that had been obtained in violation of the defendants' rights.
- [327] Moreover, if the misapplication of the law argument relates to the defendants' "no jurisdiction" contention that the Provincial Offences Court does not have the necessary jurisdiction over the defendants and the defendants' Highway Traffic Act charges, which is based on the contention that the Haldimand Tract is the sovereign territory of the Mohawk Nation of the Grand River, then that issue has already been legally adjudicated by the Court of Appeal for Ontario in Isaac et al. v. Davey et al., (1975), 5 O.R. (2d) 610 (Ont. C.A.) and the Provincial Offences Court is bound by law to follow that decision.
- [328] Ergo, the defendants' motion for exclusion of evidence obtained in violation of the defendants' rights or through the misapplication of law is dismissed.

(N) Motion For Judicial Notice Of Historical And Legal Facts Supporting The Defendants' Claims

- [329] In this pre-trial motion, the defendants asks this court to take "judicial notice" of historical and legal facts supporting the defendants' claims and rely on the R. v. Find, [2001] 1 S.C.R. 863 (S.C.C.) case to support this motion.

- [330] In *R. v. Find*, [2001] 1 S.C.R. 863, McLachlin C.J. for the Supreme Court of Canada, at para. 48, explained that “judicial notice” dispenses with the need for proof of facts that are clearly uncontroversial or beyond reasonable dispute. In addition, McLachlin C.J. also indicated that facts which are judicially noticed are not proved by evidence under oath, nor are they tested by cross-examination. Therefore, McLachlin C.J. held that the threshold for judicial notice is strict and that a court may properly take judicial notice of facts that are either: (1) so notorious or generally accepted as not to be the subject of debate among reasonable persons; or (2) capable of immediate and accurate demonstration by resort to readily accessible sources of indisputable accuracy [*emphasis is mine below*]:

In this case, the appellant relies heavily on proof by judicial notice. Judicial notice dispenses with the need for proof of facts that are clearly uncontroversial or beyond reasonable dispute. Facts judicially noticed are not proved by evidence under oath. Nor are they tested by cross-examination. Therefore, the threshold for judicial notice is strict: a court may properly take judicial notice of facts that are either: (1) so notorious or generally accepted as not to be the subject of debate among reasonable persons; or (2) capable of immediate and accurate demonstration by resort to readily accessible sources of indisputable accuracy: R. v. Potts (1982), 66 C.C.C. (2d) 219 (Ont. C.A.); J. Sopinka, S. N. Lederman and A. W. Bryant, The Law of Evidence in Canada (2nd ed. 1999), at p. 1055.

- [331] The concept of “judicial notice” is an evidentiary legal principle that provides an exception to the rule of formal proof (such as through a witness under oath who testifies to establish a fact) that requires parties in a trial to adduce or present evidence to establish all facts in the trial. This evidentiary principle allows a trier of fact to accept a fact (usually well-known or notorious a fact which is clearly uncontroversial or beyond reasonable dispute) without formal proof and permits the trier of fact to rely upon facts that are not supported or established by evidence on the court record or testimony that has undergone cross-examination. This “judicial notice” doctrine is a “shortcut” to establish a fact by doing away with the formal necessity of evidence.
- [332] Moreover, a trial judge may take judicial notice of 3 types or categories of fact without formal proof of that fact: (1) adjudicative facts, (2) legislative facts, and (3) social framework facts. In respect to adjudicative facts, a trier of fact may take judicial notice or accept something as fact (thereby exempting the requirement to present evidence to establish the fact) where: (1) the fact is so notorious or generally accepted as not to be the subject of debate among reasonable persons (e.g., the Earth orbits around the Sun); or (2) the fact is capable of immediate and accurate demonstration by resort to readily accessible sources of indisputable accuracy (e.g., such as looking in an encyclopedia). However, the trier of fact should be cautious in finding facts based on judicial notice, since they have not been proven by evidence under oath or tested by cross-examination.
- [333] On the other hand, more stringent proof should be required for “facts that are close to the center of the controversy between the parties (whether adjudicative,

legislative or social framework) as distinguished from background facts at or near the periphery": R. v. Spence, 2005 SCC 71, [2005] 3 S.C.R. 458, at para. 60; Cambie Surgeries Corporation v. British Columbia (Attorney General), 2017 BCSC 860 (CanLII) (B.C.S.C.), at para. 52.

(1) Statutory provisions dealing with Judicial Notice

- [334] Sections 17 and 18 of the Canada Evidence Act, R.S.C. 1985, c. C-5, requires judicial notice be taken of the laws of Canada, the provinces, the United Kingdom, as well as federal and provincial orders in council, and Parliament, of all ordinances made by the Governor in Council, or the lieutenant governor in council of any province or colony that, or some portion of which, now forms or hereafter may form part of Canada, and of all the Acts of the legislature of any such province or colony, whether enacted before or after the passing of the Constitution Act, 1867. As for Ontario's Evidence Act, R.S.O. 1990, c. E.23, there is only one statutory provision dealing with judicial notice and it is set out in s. 36(1), and it only refers to taking judicial notice of judicial signatures in respect to a decree, order, certificate, affidavit, or judicial or official document:

Judicial Notice [Canada Evidence Act]

Imperial Acts, etc.

- 17.** *Judicial notice shall be taken of all Acts of the Imperial Parliament, of all ordinances made by the Governor in Council, or the lieutenant governor in council of any province or colony that, or some portion of which, now forms or hereafter may form part of Canada, and of all the Acts of the legislature of any such province or colony, whether enacted before or after the passing of the Constitution Act, 1867.*

Acts of Canada

- 18.** *Judicial notice shall be taken of all Acts of Parliament, public or private, without being specially pleaded*

Judicial notice to be taken of signatures of judges, etc. [Ontario Evidence Act]

- 36(1)** *All courts, judges, justices, associate judges, clerks of courts, commissioners and other officers acting judicially, shall take judicial notice of the signature of any judge of any court in Canada, in Ontario and in every other province and territory in Canada, where the judge's signature is appended or attached to a decree, order, certificate, affidavit, or judicial or official document.*

- [335] Ergo, this court can take judicial notice of all ordinances made by the Governor in Council, or the lieutenant governor in council of any province or colony that, or some portion of which, now forms or hereafter may form part of Canada, and of all the

Acts of the legislature of any such province or colony, whether enacted before or after the passing of the Constitution Act, 1867.

- [336] The facts that the defendants ask this court to take judicial notice of in order to support the defendants' contentions in respect to the "Haldimand Proclamation of 1784" are adjudicative facts and are neither so notorious or generally accepted as not to be the subject of debate among reasonable persons, nor are they facts which are capable of immediate and accurate demonstration by resort to readily accessible sources of indisputable accuracy.
- [337] However, the legal facts that have been adopted by Ontario courts in respect to the meaning of the "Haldimand Proclamation of 1784", on the other hand, do indicate that title in fee simple for the Haldimand Tract had not been transferred to the Six Nations Confederacy: see Isaac et al. v. Davey et al., (1975), 5 O.R. (2d) 610 (Ont. C.A.).
- [338] Accordingly, the historical and legal facts do not in law support the defendants' claims that the County of Brant in the Province of Ontario is the sovereign territory of the Mohawk Nation of the Grand River nor that the Highway Traffic Act does not apply to the defendants as sovereign members of the Mohawk Nation. More importantly, judicial notice cannot be taken of adjudicative facts or facts that are at issue and which need to be resolved or decided at trial. Consequently, as the historical and legal facts do not in law support the defendants' claims in these pre-trial motions, then the defendants' motion for the Provincial Offences Court to take judicial notice of the historical and legal facts that do support the defendants' claims is dismissed.

(O) Motion for Relief from Judgment in regards to prior judgments made without considering the specific legal and treaty rights of the Mohawk Nation

- [339] For this pre-trial motion, the defendants asks this court for "Relief from Judgment" in regards to prior judgments made without considering the specific legal and treaty rights of the Mohawk nation and rely on the R. v. G.D.B., [2000] 1 S.C.R. 520 (S.C.C.) case to support this motion. In general, an order for "relief from judgment", in the civil law context, is a remedy provided by law to any person against whom a decision or order is entered through fraud, accident, mistake, or excusable negligence.
- [340] In R. v. G.D.B., [2000] 1 S.C.R. 520, the Supreme Court of Canada had to consider whether the failure of defence counsel to use fresh evidence at trial had resulted in a miscarriage of justice. On appeal, new counsel had sought reversal of the convictions on the grounds that the accused's trial counsel was incompetent, or that the fresh evidence not used at trial on counsel's advice impacted on the issue of guilt or innocence, and the failure to use this evidence resulted in a miscarriage of justice. The Supreme Court had held that there exists no reasonable possibility that

the use of the “fresh” evidence in this case might have affected the two guilty verdicts rendered by the jury.

- [341] Under the *Rules of Civil Procedure*, R.R.O. 1990, O. Reg. 194, rule 19.08, which refers to a judgment in the civil law context made against a defendant by default or after a trial, states that the judgment made against a defendant in a statement of claim, who has been noted in default that is signed by the registrar or granted by the court on motion under rule 19.04, or has been noted in default that is obtained on a motion for judgment on the statement of claim under rule 19.05, or that is obtained after trial, may be set aside or varied by the court (or judge) on such terms as are just [*emphasis is mine below*]:

SETTING ASIDE DEFAULT JUDGMENT

19.08(1) *A judgment against a defendant who has been noted in default that is signed by the registrar or granted by the court on motion under rule 19.04 may be set aside or varied by the court on such terms as are just.*

(2) *A judgment against a defendant who has been noted in default that is obtained on a motion for judgment on the statement of claim under rule 19.05 or that is obtained after trial may be set aside or varied by a judge on such terms as are just.*

(3) *On setting aside a judgment under subrule (1) or (2) the court or judge may also set aside the noting of default under rule 19.03.*

- [342] In addition, under the *Rules of Civil Procedure*, R.R.O. 1990, O. Reg. 194, rule 59.06 provides that in an order that contains an error arising from an accidental slip or omission or requires amendment in any particular on which the court did not adjudicate, the order may be amended on a motion in the proceeding. The order may be set aside also for ground of fraud or of facts arising or discovered after it was made. However, the relief under rule 59.06(2) is only available to a “party” (opposed to a “person” who may be impacted by the order or judgment). These rules of civil procedure are only applicable to a party to an order or to a judgment rendered against them:

AMENDING, SETTING ASIDE OR VARYING ORDER

Amending

59.06(1) *An order that contains an error arising from an accidental slip or omission or requires amendment in any particular on which the court did not adjudicate may be amended on a motion in the proceeding.*

Setting Aside or Varying

(2) *A party who seeks to,*

- (a) *have an order set aside or varied on the ground of fraud or of facts arising or discovered after it was made;*
- (b) *suspend the operation of an order;*
- (c) *carry an order into operation; or*
- (d) *obtain other relief than that originally awarded, may make a motion in the proceeding for the relief claimed.*

[343] However, the Provincial Offences Court does not have to follow a prior judgment of a higher court if the case can be distinguished. Distinguishing a case, means a court can decide that the holding or legal reasoning of a precedent case will not apply to the case before it, due to materially different facts between the two cases.

[344] As for the defendants motion for relief of judgment in regards to prior judgments made without considering the specific legal and treaty rights of the Mohawk nation, an order for relief of judgment in the civil law context would only apply to a defendant in a statement of claim in which a judgment against the defendant has been made, or an order to amend, vary or set aside a court order would only be available to a party to the order. There is also not available a “relief of judgment” remedy that has been provided to the Provincial Offences Court in regards to not following any Court of Appeal for Ontario judgment or higher court judgment that binds this court by the principle of *stare decisis*, unless those judgments can be legally distinguished on the facts or shown to be not applicable to the defendants. Considering that the highest court in Ontario, the Court of Appeal for Ontario, has ruled on the legal interpretation of the “Haldimand Proclamation of 1784” in Isaac et al. v. Davey et al, (1975), 5 O.R. (2d) 610, then the Provincial Offences Court is bound to follow that the judgment in that case based on the principle of *stare decisis*. Furthermore, the defendants’ cases are not distinguishable on the facts from the Isaac et al. v. Davey et al case, nor has it been shown that the Court of Appeal’s judgment in Isaac et al. v. Davey et al should not be applicable to the defendants or that it should not be followed. In addition, based on the rule of law, the Highway Traffic Act applies to all motorists on Ontario highways, even to self-declared sovereign persons.

[345] Ergo, the defendants’ motion for relief from judgment in regards to prior judgments made without considering the specific legal and treaty rights of the Mohawk nation is dismissed.

(P) Motion For the Court To Provide Any Other Relief Deemed Just And Proper

[346] The defendants also bring a pre-trial motion for any other relief that is deemed just and proper by the court. In this regard, the defendants have invariably asked this court to affirm the legality of the “Haldimand Proclamation of 1784” and a

pronouncement on sovereignty by relying on the equitable remedy of “declaratory judgment” or “declaratory relief”.

- [347] In Morguard Investments Ltd. v. De Savoye, [1990] 3 S.C.R. 1077, the Supreme Court of Canada had to consider whether the recognition given by a British Columbia Court to a judgment of an Alberta Court in a personal action brought in an Alberta Court at a time when the defendant De Savoye did not live in Alberta had been valid. In short, the issue was whether a personal judgment validly given in Alberta against an absent defendant may be enforced in British Columbia where he now resides. De Savoye did not take any steps to appear or to defend the action in Alberta and there was no clause in the mortgages by which De Savoye had agreed to submit to the jurisdiction of the Alberta court, and he also did not attorn to its jurisdiction. The plaintiff then obtained judgment in the foreclosure action from the Alberta court. La Forest J. for the Supreme Court held that the courts made a serious error in transposing the rules developed for the enforcement of foreign judgments to the enforcement of judgments from sister-provinces. However, La Forest noted that our courts have not hesitated to cooperate with courts of other provinces where necessary to meet the ends of justice [*emphasis is mine below*]:

However that may be, there is really no comparison between the interprovincial relationships of today and those obtaining between foreign countries in the 19th century. Indeed, in my view, there never was and the courts made a serious error in transposing the rules developed for the enforcement of foreign judgments to the enforcement of judgments from sister-provinces. The considerations underlying the rules of comity apply with much greater force between the units of a federal state, and I do not think it much matters whether one calls these rules of comity or simply relies directly on the reasons of justice, necessity and convenience to which I have already adverted. Whatever nomenclature is used, our courts have not hesitated to cooperate with courts of other provinces where necessary to meet the ends of justice; ...

- [348] Moreover, in Ewert v. Canada, [2018] 2 S.C.R. 165, 2018 SCC 30, at paras. 81 and 83, the Supreme Court of Canada had explained that a “declaration” is a narrow remedy, but one that is available without a cause of action and whether or not any consequential relief is available. Furthermore, the Supreme Court had indicated that a court may, in its discretion, grant a declaration where it has jurisdiction to hear the issue, where the dispute before the court is real and not theoretical, where the party raising the issue has a genuine interest in its resolution, and where the respondent has an interest in opposing the declaration sought. However, the Supreme Court held that a declaration is a discretionary remedy, and like other discretionary remedies, “declaratory relief” should normally be declined where there exists an adequate alternative statutory mechanism to resolve the dispute or to protect the rights in question [*emphasis is mine below*]:

*A declaration is a narrow remedy but one that is available without a cause of action and whether or not any consequential relief is available; Manitoba Metis Federation Inc. v. Canada (Attorney General), 2013 SCC 14, [2013] 1 S.C.R. 623, at para. 143; P. W. Hogg, P. J. Monahan and W. K. Wright, *Liability of the Crown* (4th ed.*

2011), at p. 37; L. Sarna, *The Law of Declaratory Judgments* (4th ed. 2016), at p. 88; see also *Federal Courts Rules*, SOR/98-106, r. 64. A court may, in its discretion, grant a declaration where it has jurisdiction to hear the issue, where the dispute before the court is real and not theoretical, where the party raising the issue has a genuine interest in its resolution, and where the respondent has an interest in opposing the declaration sought: see *Daniels v. Canada (Indian Affairs and Northern Development)*, 2016 SCC 12, [2016] 1 S.C.R. 99, at para. 11; *Canada (Prime Minister) v. Khadr*, 2010 SCC 3, [2010] 1 S.C.R. 44, at para. 46; *Solosky v. The Queen*, [1980] 1 S.C.R. 821, at pp. 830-33.

...

A declaration is a discretionary remedy. Like other discretionary remedies, declaratory relief should normally be declined where there exists an adequate alternative statutory mechanism to resolve the dispute or to protect the rights in question: see *D. J. M. Brown and J. M. Evans, with the assistance of D. Fairlie, Judicial Review of Administrative Action in Canada* (loose-leaf), at topic 1:7330. Here, the grievance procedure created by s. 90 of the CCRA arguably provides an alternative means by which Mr. Ewert could challenge the CSC's compliance with the obligation in s. 24(1) of the CCRA. It may be that in most cases, the existence of this statutory grievance mechanism would be a reason to decline to grant a declaration. However, in the exceptional circumstances of this case, a declaration is warranted.

- [349] Furthermore, in the legal journal article entitled, "*The Limits of the Declaratory Judgment*", (2022), vol. 67, no. 3, McGill L.J. 295 — (2022) 67:3 RD McGill 295, online: McGill Law Journal website << [The Limits of the Declaratory Judgment - McGill Law Journal](#)>>, the authors, Mr. Justice Malcolm Rowe, K.C. and Diane Shnier, reviewed the equitable remedy of "declaratory judgment" as used in respect to Indigenous Peoples' rights claims and explained that the Supreme Court of Canada has set out the requirements where declaratory relief may be appropriate: "(a) the court has jurisdiction to hear the issue, (b) the dispute is real and not theoretical, (c) the party raising the issue has a genuine interest in its resolution, and (d) the responding party has an interest in opposing the declaration being sought." The authors also noted that the Supreme Court had explained that two factors will govern when the court should exercise its discretion to grant a declaratory judgment that is based on: (1) the reality of the dispute, and (2) whether the declaration is capable of having any practical effect in resolving the issues in the case [emphasis is mine below]:

The Supreme Court has set out the requirements, stating that declaratory relief may be appropriate where: "(a) the court has jurisdiction to hear the issue, (b) the dispute is real and not theoretical, (c) the party raising the issue has a genuine interest in its resolution, and (d) the responding party has an interest in opposing the declaration being sought."

In *Solosky v. The Queen* [[1980] 1 SCR 821 at 832–33, 105 DLR (3d) 745], the Supreme Court explained that two factors will govern when the court should exercise its discretion to grant a declaratory judgment: (1) the reality of the dispute, and (2) whether the declaration is capable of having any practical effect in resolving the issues in the case.

[350] Moreover, in “The Limits of the Declaratory Judgment”, the authors explained that interpreting a treaty with Aboriginal people is not the same as interpreting a contract, it has been still held that treaties are “analogous” to contracts. However, the authors noted there are a number of unique doctrinal and practical considerations that have emerged in the context of declarations of Aboriginal treaty rights. More importantly, the authors have indicated that courts have faced significant difficulties in determining the appropriate scope of declarations concerning treaty rights, given that the nature of a treaty right is often influenced by a complex web of factual and legal considerations, and also because the infringement of a treaty right can arise from cumulative government action rather than from any discrete statutory provision or policy. On the other hand, the authors also remarked that utilizing a declaration may take on a unique tenor in the context of Aboriginal rights, especially where the litigants may also be engaged in ongoing negotiations. Furthermore, the authors emphasized that there is distinction between declarations of fact and declarations of law [*emphasis is mine below*]:

While interpreting a treaty with an Aboriginal people is not the same as interpreting a contract, it has been held that treaties are “analogous” to contracts [R. v. Badger, [1996] 1 S.C.R. 771 at para. 76, 133 D.L.R. (4th) 324; Quebec (Attorney General) v. Moses, 2010 SCC 17 at para. 7]. The legal principles that govern declarations of contractual rights are similar to those that apply to declarations of Aboriginal treaty rights, but a number of unique doctrinal and practical considerations emerge in the context of the latter. In particular, courts have faced significant difficulties in determining the appropriate scope of declarations concerning treaty rights, given that the nature of a treaty right is often influenced by a complex web of factual and legal considerations, and given that the infringement of a treaty right can arise from cumulative government action rather than from any discrete statutory provision or policy. The concept of the utility of a declaration also takes on a unique tenor in the context of Aboriginal rights, in which the litigants can also be engaged in ongoing negotiations.

The distinction between declarations of fact and declarations of law received focused attention in West Moberly First Nations v. British Columbia, [2020 BCCA 138] in which the Court had to decide the meaning of a provision in Treaty 8 that set the boundary of a tract of land as falling along the central range of the Rocky Mountains. In this case, the parties disputed the meaning of a provision in Treaty 8 that described a tract of land with a boundary along the “central range of the Rocky Mountains” [at paras. 2–3; Treaty No. 8 made June 21, 1899, online: Government of Canada <rcaanc-cirnac.gc.ca> [perma.cc/U6HR-A4ZM]]. In dissent, Justice Smith held that granting a declaration to determine the meaning of the land boundary was not appropriate, because it would not determine the legal effect of the boundary, and in this sense, was more akin to a finding of fact than to a declaration of right [para. 84]. According to Justice Smith, it was not clear from the record that the substantive rights under the Treaty were intended to be exercised on all the land encompassed by the boundary clause. As a result, the declaration would not have the effect of determining the rights exercisable throughout the tract, and therefore would not have practical utility. In order to be useful, the declaration would have to be coupled with a subsequent judicial

determination; citing *Rosen*, [paras. 97–100] discussed above, Justice Smith concluded that courts cannot “grant a declaration of fact on the speculation that the fact declared may later prove useful in determining the scope of a right” [para. 96].

The majority of the Court disagreed and held that declaratory relief was appropriate and would have practical utility [paras. 292–93]. According to the majority, a declaration must define some aspect of the parties’ rights, but it need not define every aspect [paras. 313–14, 331]. The majority noted that the rights under the Treaty were also protected by section 35(1) of the Constitution Act, 1982. As such, they reasoned that interpreting the boundary clause was a legal declaration, as opposed to a mere declaration of facts, in part for this reason:

How could it be otherwise when [the application judge] was asked to determine the geographic extent of a treaty entered into between Canada and certain First Nations – to interpret the meaning of a critical phrase in a legal relationship that is constitutionally protected? [paras. 335–37]

The majority concluded that the possibility of an effect on rights stemming from the declaration is enough to give the declaration practical utility, and that an “all-or-nothing” approach to declaratory relief is unnecessarily restrictive and impractical [para. 352]. The majority found the larger public policy context of the case relevant, reasoning that allowing parties to litigate discrete issues and gain clarity as to the meaning of a phrase in the Treaty will facilitate negotiation outside the litigation process, thus serving the interest of judicial economy.

This case raises the question of when there is utility in declaring facts that form the scope of a right. In some cases, this could be seen as determining part of an inter-related set of rights, and thus permissible. In other cases, this could be seen as merely a declaration of a fact, and not a right at all, which is beyond the scope of what declaratory judgment—a determination of a right—is supposed to be. The divergent views in this case illustrate a degree of abstractness in the term “right” in the definition of a declaratory judgment. In the absence of a request for consequential relief, it is not always clear what it means for a right to be determined or for a dispute to be settled. For the majority, there be determined or for a dispute to be settled. For the majority, there was utility in clarifying the boundary of the tract of land, even if other, related rights were left undecided, particularly where the right is constitutionally protected. For the dissenting judge, there was no practical utility in declaring the land boundary in the absence of a declaration regarding whether Treaty rights are exercisable throughout the tract of land.

In *Ahousaht Indian Band and Nation v. Canada (Attorney General)*, [2009 BCSC 1494 at paras. 900–01, 909] the Supreme Court of British Columbia declared that the plaintiffs held Aboriginal rights that were infringed by the cumulative effects of the regulatory scheme put in place under the Fisheries Act [R.S.C. 1985, c. F-14]. The declaration stated that the cumulative effects of the law infringed a number of the plaintiffs’ Aboriginal rights, but did not identify specific rights-infringing provisions [para. 841]. The Court called on the parties to negotiate with one another with a view to reconciling the issue, and provided that either party could return to court after two years to address whether any infringements could be justified [paras. 901–09; Canada appealed the order, but achieved limited

success (see *Ahousaht Indian Band and Nation v Canada (Attorney General)*, 2011 BCCA 237; *Ahousaht Indian Band and Nation v Canada (Attorney General)*, 2013 BCCA 300)]. The parties later did return, and the Supreme Court of British Columbia held that some aspects of the regulatory regime unjustifiably infringed the plaintiff's Aboriginal rights [See *Ahousaht Indian Band and Nation v Canada (Attorney General)*, 2018 BCSC 633]. To determine whether the infringements were justified, the trial judge interpreted or elaborated on the declared rights from the first stage of the trial, and undertook a detailed analysis to translate the broad declarations into specific directions in respect of the fisheries regime [at para. 256].

On appeal, the Court of Appeal made some modifications to the trial judge's order, but ultimately held that the trial judge, in the second justification phase of the trial, was entitled to interpret the declarations rendered in the first stage of the trial in order to undertake the justification analysis [See *Ahousaht Indian Band and Nation v Canada (Attorney General)*, 2021 BCCA 155 at paras. 111–12]. While the trial judge could have simply declared whether the cumulative infringements were justified, such a declaration would have been of limited value because it could not translate into specific substantive changes to the regulatory regime. However, the Court of Appeal referred to the trial judge's attempt to translate the broad declarations made in the first phase of the trial into specific directions in respect of the fisheries regime for each species as “herculean” and “perhaps even impossible” [para. 156]. It further stated that a lesson that could be taken from these proceedings is that “the plaintiffs’ attempts to remedy all deficiencies in the regulatory regime in a single lawsuit has proven unwieldly and ultimately infeasible” [para. 158]. The Court stated that “[a]t best, a court can provide legal guidance that will assist the parties (and particularly the regulators) to craft fisheries regulations that respect the plaintiffs’ rights. Specific areas of disagreement may have to be resolved in judicial review applications or in more narrowly focussed civil claims” [paras. 154–58]. This case demonstrates the utility and limitations of attempting to declare the scope of rights in general terms.

Although *Ahousaht* was not about declaring rights under a treaty, it was recently relied on to do just that in *Yahey v. British Columbia* [2021 BCSC 1287]. In this case, the Supreme Court of British Columbia considered a claim brought by the Blueberry River First Nations [paras. 1–2]. Blueberry River First Nations sought declarations that British Columbia had breached its obligations under Treaty 8 by virtue of the cumulative impacts of industrial development on the right to use Treaty lands. They also sought a declaration that British Columbia may not continue to authorize activities that infringe on Treaty rights [para. 29]. ...

[351] Furthermore, in the very recent case of *Shot Both Sides v. Canada*, 2024 SCC 12, the Supreme Court of Canada had to consider an action in respect to Treaty No. 7 that had been made in 1877 between the Crown and the Blackfoot Confederacy. Treaty No. 7 had established Blood Tribe Reserve No. 148 in Southern Alberta, the largest reserve in Canada and the home of the Blood Tribe, which is a member tribe of the Blackfoot Confederacy. The reserve's size was to be set by the treaty land entitlement provisions, based on a formula promising one square mile for each family of five persons, or in that proportion for larger and smaller families. The Blood Tribe has long claimed that the size of the reserve did not respect the treaty land entitlement formula. In 1971, a Blackfoot researcher gathered information on the

total number of people in the Blood Tribe for the years 1879 to 1884 and, based on this information, confirmed that the existing reserve boundaries did not match the boundaries owed under the treaty land entitlement formula. The Blood Tribe formally sought to negotiate with the Minister of Indian Affairs, who rejected its claims. O'Bonsawin J. on behalf of the Supreme Court of Canada at paras. 5, 31 to 32, 37 to 39, 41 to 48, 52 to 55, and 58 to 83, had explained that s. 35(1) of the Constitution Act, 1982 did not create a cause of action for breach of treaty rights, as treaty rights flow from the treaty and not from the Constitution, and that treaties are enforceable upon execution, and as such, give rise to actionable duties under the common law. In addition, O'Bonsawin J. noted that "declaratory relief" is a determination of a party's rights without other consequences. Consequently, O'Bonsawin J. held that the Blood Tribe's treaty land entitlement claim was enforceable at common law and actionable prior to the coming into force of s. 35(1), but that the treaty land entitlement claim had been statute-barred by operation of the applicable six-year limitation period. In addition, O'Bonsawin J. noted that the law of limitations does not preclude a declaration in the present matter, even though claims for personal relief or damages flowing from treaty breaches may be subject to limitations statutes, as limitations legislation cannot bar courts from issuing declarations on the constitutionality of the Crown's conduct. After considering the Crown's conduct, O'Bonsawin J. held that the "declaratory relief" is warranted given the longevity and magnitude of the Crown's dishonourable conduct towards the Blood Tribe. Furthermore, O'Bonsawin J. noted that the declaratory relief will serve an important role in clarifying the Blood Tribe's treaty land entitlement claim, identifying the Crown's dishonourable conduct, assisting future reconciliation efforts, and helping to restore the honour of the Crown [*emphasis is mine below*]:

For the reasons that follow, I would allow the appeal in part. The Federal Court of Appeal correctly held that the coming into force of s. 35(1) of the Constitution Act, 1982 did not alter the commencement of the limitation period applicable to the Blood Tribe's TLE claim. Treaty rights flow from the treaty, not the Constitution. It is well established in Canadian caselaw that treaties are enforceable upon execution and give rise to actionable duties under the common law. As the Federal Court of Appeal concluded, the Blood Tribe's claim is thus statute-barred. However, I find that declaratory relief is warranted given the longevity and magnitude of the Crown's dishonourable conduct towards the Blood Tribe. Declaratory relief in this context will promote reconciliation and help to restore the nation-to-nation relationship between the Blood Tribe and the Crown.

...

To resolve the parties' dispute, this Court must consider the impact of s. 35(1) of the Constitution Act, 1982 on breach of treaty claims and whether these claims were actionable prior to the section coming into force. If a breach of the TLE was enforceable and actionable prior to the coming into force of s. 35(1), the Blood Tribe concedes that its claim is statute-barred as it does not otherwise contest the discoverability of its claim.

As explained below, s. 35(1) of the Constitution Act, 1982 did not create a cause of action for breach of treaty rights. The Federal Court of Appeal appropriately

recognized that “[t]reaty rights flow from the treaty, not the Constitution” (para. 205). Treaty rights were enforceable prior to 1982 and relief was available to the parties. The coming into force of s. 35(1) did not alter the commencement of the limitation period applicable to the Blood Tribe’s TLE Claim. As concluded by the Federal Court of Appeal, the Blood Tribe’s claim is thus statute-barred pursuant to s. 5(1)(g) of Alberta’s Limitation of Actions Act and s. 39(1) of the Federal Courts Act. However, I find that declaratory relief is warranted given the Crown’s dishonourable conduct towards the Blood Tribe.

...

Treaties are enforceable from the date of execution. While the terminology surrounding the enforceability of treaties may have changed over time, claims seeking to give legal effect to treaty terms were brought before the coming into force of the Constitution Act, 1982. Long before 1982, courts recognized that treaties were not merely political promises and created enforceable obligations, including “contractual rights” (see, e.g., *R. v. White* (1964), 50 D.L.R. (2d) 613 (B.C.C.A.), at p. 618, *aff’d* (1965), 52 D.L.R. (2d) 481 (S.C.C.); J. Promislow, “Treaties in History and Law” (2014), 47 U.B.C. L. Rev. 1085, at pp. 1147-48). The Blood Tribe’s approach to this litigation reflects the enforceability of treaties prior to 1982 since their claim was framed as a breach of contract and was brought in 1980.

The enforceability of treaties from the date of execution is well established in this Court’s caselaw without reference to s. 35(1). For example, this Court in *R. v. Badger*, [1996] 1 S.C.R. 771, stated at para. 76: “Treaties are analogous to contracts, albeit of a very solemn and special, public nature. They create enforceable obligations based on the mutual consent of the parties” (emphasis added). Similarly, this Court identified in *Sioui*, at p. 1044, that “what characterizes a treaty is the intention to create obligations, the presence of mutually binding obligations and a certain measure of solemnity” (emphasis added). *Sioui* built on *Simon*, where this Court emphasized that the agreement at issue was a treaty because it was “an enforceable obligation between the Indians and the white man” (p. 410).

[T]he enforceability of treaties from the date of execution is supported by the fundamental nature of the promises they enshrine. Courts, legislatures, and academic commentators have consistently acknowledged this significance: “treaties represent an Indian Magna Carta” (H. Cardinal, *The Unjust Society: The Tragedy of Canada’s Indians* (1969), at p. 28); “treaties are vital, living instruments of relationship” (Royal Commission on Aboriginal Peoples, *Report of the Royal Commission on Aboriginal Peoples*, vol. 1, *Looking Forward, Looking Back* (1996), at p. 128); and “a treaty represents an exchange of solemn promises between the Crown and the various Indian nations. It is an agreement whose nature is sacred” (*Badger*, at para. 41). In addition, the Crown is assumed to intend to fulfill these integral promises (para. 41; *Manitoba Metis Federation Inc. v. Canada* (Attorney General), 2013 SCC 14, [2013] 1 S.C.R. 623, at para. 79; *Haida Nation v. British Columbia* (Minister of Forests), 2004 SCC 73, [2004] 3 S.C.R. 511, at paras. 19-20).

...

Courts recognized that treaty promises created enforceable and actionable legal duties prior to 1982. Although the characterization of treaties and their obligations may have varied, “it is too much of a leap to suggest that treaties were not justiciable in Canada through the 19th century; that the executive’s personal goodwill and subsequent actions could not give rise to legally or equitably enforceable obligations” (Promislow, at p. 1147). Instead, a long line of authorities upheld the enforceability of treaties at common law and the actionable duties they enshrine. These authorities were comprehensively summarized by the Federal Court of Appeal, but several are particularly notable.

Early decisions of this Court and the Judicial Committee of the Privy Council (“JCPC”) characterized treaties as enforceable contracts. *St. Catherine’s Milling and Lumber Co. v. The Queen* (1888), 14 App. Cas. 46 (P.C.), is helpful as a starting point. The Blood Tribe relies on *St. Catherine’s* for the argument that Indigenous claims were treated as political matters. However, a close analysis of the JCPC’s reasons reveals that this case was not about the enforceability of treaty commitments. Instead, the appeal concerned Ontario’s control of Crown lands. Despite the limits of its analysis, *St. Catherine’s* sets out the JCPC’s understanding and characterization of treaties as “formal contract[s]” (see pp. 51-52 and 54-55).

This Court and the JCPC recognized the enforceability of treaties a decade later in *Province of Ontario v. Dominion of Canada* (1895), 25 S.C.R. 434 (“Annuities Case (SCC)”), *aff’d* [1897] A.C. 199 (“Annuities Case (JCPC)”). The dispute concerned a treaty commitment to increase annuity payments over time to the Ojibway in the Lake Huron district of the Robinson-Huron Treaty. The JCPC recognized that the treaty made the provincial government “liable to fulfil the promises and agreements made on its behalf” and characterized the question as one of “contract liability for a pecuniary obligation” (pp. 205 and 213). This Court in the *Annuities Case (SCC)* also acknowledged the enforceability of the obligations: “. . . the Indians are of right, under the treaties, entitled to the payment of the arrears” (p. 498). Contrary to the Blood Tribe’s reliance on this authority in this matter, the reference to a treaty right being a “personal obligation” at p. 213 of the *Annuities Case (JCPC)* does not diminish the enforceability of the commitment since this characterization was only used to distinguish the obligations from a charge in land.

The *Annuities Case (JCPC)* was built on in *Henry v. The King* (1905), 9 Ex. C.R. 417, where the Exchequer Court considered the enforceability of treaty commitments and recognized their legal effect. The *Mississaugas of the Credit* filed a petition seeking a declaration that they were entitled to certain moneys owed under a treaty. The court required the payment of the annuities demanded in the claim and supported the enforceability of the treaty in several respects. For example, the treaty was characterized as an enforceable agreement with consideration (p. 429). Furthermore, jurisdiction was based on the claim arising from an agreement or treaty. The court reached this conclusion because the *Mississaugas’* right “rests upon the treaty or contract between the Crown and them, and . . . the court has . . . jurisdiction so to declare” (p. 446).

The Exchequer Court in *Dreaver v. The King* (1935), 5 C.N.L.C. 92, continued to enforce specific treaty terms. *Dreaver* concerned a petition of right filed by the *Mistawasis Band* in Saskatchewan seeking amounts to reimburse education and

medicine expenses that were improperly charged to its trust account. The band relied on a treaty promise requiring the Crown to provide free education and medicine. In granting the petition, the court relied on the treaty promises and gave them legal effect. The treaty at issue created an actionable right that the band relied upon to pursue relief.

Caselaw nearing the coming into force of the Constitution Act, 1982 upheld the view that treaty obligations were enforceable and actionable at common law. For example, the Federal Court in *Pawis v. The Queen*, [1980] 2 F.C. 18, considered the relationship between the Ontario Fishery Regulations, SOR/63-157, and the treaty rights of the Ojibway and explicitly recognized that breaches of treaty obligations were actionable. When characterizing the treaty at issue, the court emphasized its enforceability:

... the Treaty has to be taken as an agreement entered into by the Sovereign and a group of her subjects with the intention to create special legal relations between them. The promises made therein ... were undoubtedly designed and intended to have effect in a legal sense and a legal context. The agreement can therefore be said to be tantamount to a contract, and it may be admitted that a breach of the promises contained therein may give rise to an action in the nature of an action for breach of contract. [Emphasis added; pp. 24-25.]

A similar result was reached in *Town of Hay River v. The Queen*, [1980] 1 F.C. 262, and *R. v. Taylor* (1981), 34 O.R. (2d) 360 (C.A.). In *Hay River*, the Federal Court held that the treaty at issue was not “simply a contract between those who actually subscribed to it” and instead “impose[d] and confer[red] continuing obligations and rights” (p. 265). In *Taylor*, the Court of Appeal for Ontario did not characterize the nature of the treaty at issue but held that the treaty had a clear legal effect: it preserved historic rights to hunt and fish. None of these authorities suggest that treaties were not enforceable prior to the coming into force of s. 35(1) of the Constitution Act, 1982.

The Blood Tribe’s categorization of these authorities based on how the treaty was used (i.e. either as a “sword” or a “shield”) does not diminish the conclusions of the courts discussed above. The Federal Court of Appeal correctly dismissed this argument, holding that “[t]here is no logical reason to conclude that the use of a treaty to defend conduct has no bearing on the question [of] whether a treaty is enforceable, whereas an action to assert a treaty term, does” (para. 101). Enforceability at common law speaks to a clear and concise question: does the treaty have legal effect? Regardless of the form of proceeding, the authorities outlined above demonstrate that treaties were given legal effect, and thus were enforceable, prior to 1982. The ability for Indigenous interests, including treaty rights, to arise in an array of forums and proceedings does not diminish their legal effect or viability (*R. v. Desautel*, 2021 SCC 17, [2021] 1 S.C.R. 533, at paras. 89-92).

...

The enforceability of Treaty No. 7 at common law is the heart of this appeal. Having established the Treaty’s enforceability at common law above, it is necessary to consider whether the coming into force of s. 35(1) of the Constitution Act, 1982 impacted this enforceability. The enactment of the Constitution Act, 1982

profoundly shaped and solidified the protection of Aboriginal and treaty rights in Canada. Section 35(1) is instrumental in this respect and provides that “[t]he existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed.” Section 35(1) limits the doctrine of parliamentary sovereignty in its application to Aboriginal and treaty rights in Canada and prevents Parliament from extinguishing these rights (Mitchell v. M.N.R., 2001 SCC 33, [2001] 1 S.C.R. 911, at para. 11; R. v. Sparrow, [1990] 1 S.C.R. 1075, at pp. 1108-10; P. J. Monahan, B. Shaw and P. Ryan, Constitutional Law (5th ed. 2017), at p. 489).

Section 35(1) of the Constitution Act, 1982 accords constitutional status to existing Aboriginal and treaty rights and prevents them from abrogation by federal, provincial, or territorial law (Desautel, at para. 34; J. Woodward, Aboriginal Law in Canada (loose-leaf), at § 5:2). The coming into force of s. 35(1) constitutionally “entrenched” the Crown’s obligation to respect existing treaty rights (Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage), 2005 SCC 69, [2005] 3 S.C.R. 388, at para. 4; R. v. Marshall, [1999] 3 S.C.R. 533 (“Marshall (No. 2)”), at para. 6). As a result, s. 35(1) constitutionalizes existing rights so that they can no longer be abrogated by legislation. This was recognized in Mitchell, at para. 11:

The enactment of s. 35(1) elevated existing common law aboriginal rights to constitutional status (although, it is important to note, the protection offered by s. 35(1) also extends beyond the aboriginal rights recognized at common law: Delgamuukw v. British Columbia, [1997] 3 S.C.R. 1010, at para. 136). Henceforward, aboriginal rights falling within the constitutional protection of s. 35(1) could not be unilaterally abrogated by the government. However, the government retained the jurisdiction to limit aboriginal rights for justifiable reasons, in the pursuit of substantial and compelling public objectives: see R. v. Gladstone, [1996] 2 S.C.R. 723, and Delgamuukw, supra.

Section 35(1) did not create treaty rights. Although treaty rights are protected by the Constitution Act, 1982, their existence and scope are determined by the terms of the treaty interpreted with the principles set out in R. v. Marshall, [1999] 3 S.C.R. 456 (“Marshall (No. 1)”). The terms and limits of treaty rights do not stem from the language or purpose of s. 35(1), which recognizes and affirms existing rights (Badger, at para. 76; P. W. Hogg, “The Constitutional Basis of Aboriginal Rights”, in P. Noreau and L. Rolland, eds., *Mélanges Andrée Lajoie: Le droit, une variable dépendante* (2008), 177, at p. 182; J. T. S. McCabe, *The Honour of the Crown and its Fiduciary Duties to Aboriginal Peoples* (2008), at p. 39).

This Court has recognized that s. 35(1) was intended to “provide constitutional protection” to pre-existing Aboriginal and treaty rights (Badger, at para. 12; Delgamuukw v. British Columbia, [1997] 3 S.C.R. 1010, at para. 84). Furthermore, as stated clearly in Marshall (No. 1), at para. 48, the core impact of s. 35(1) was to prevent abrogation by legislation:

Until enactment of the Constitution Act, 1982, the treaty rights of aboriginal peoples could be overridden by competent legislation as easily as could the rights and liberties of other inhabitants. The hedge offered no special protection, as the aboriginal people learned in earlier hunting cases such as Sikyea v. The Queen, [1964] S.C.R. 642, and R. v. George, [1966] S.C.R. 267. On April 17, 1982, however, this particular type of “hedge” was converted by s. 35(1) into sterner stuff

that could only be broken down when justified according to the test laid down in *R. v. Sparrow*, [1990] 1 S.C.R. 1075, at pp. 1112 et seq., as adapted to apply to treaties in *Badger*, supra, per Cory J., at paras. 75 et seq.

...

For the reasons above, the Blood Tribe's claim was actionable prior to the coming into force of s. 35(1) and thus the limitation period set out in Alberta's Limitation of Actions Act was effective to bar the claim prior to 1982. The only argument the Blood Tribe advances to contest the running of the relevant limitation period is that the claim was not recognized at law. The Blood Tribe does not otherwise contest that its claim is captured by s. 5(1)(g) of Alberta's Limitation of Actions Act.

Section 5(1)(g) of Alberta's Limitation of Actions Act is a residual basket clause. Specifically, it sets out a six-year limitation period for "any other action not in [the] Act or any other Act specifically provided for". The Blood Tribe does not contest the trial judge's finding that the TLE Claim was discoverable as early as 1971 or that the action was not commenced until 1980 (C.A. reasons, at paras. 6 and 210). As the Federal Court of Appeal concluded, "[t]he Federal Court found that . . . had a cause of action for breach of a treaty commitment been available, the six-year limitation period in paragraph 5(g) of The Limitation of Actions Act, 1970 would have barred the action. These findings are not contested and no issue is raised . . . as to whether, as a matter of statutory interpretation or constitutionality, paragraph 5(g) barred the action had a cause of action existed" (para. 210).

The result that can be drawn from the analysis above aligns with authorities from this Court that recognized that the rules on limitation periods apply to Aboriginal right and treaty claims (see, e.g., *Manitoba Metis*, at para. 134; *Canada (Attorney General) v. Lameman*, 2008 SCC 14, [2008] 1 S.C.R. 372, at paras. 12-13; *Wewaykum Indian Band v. Canada*, 2002 SCC 79, [2002] 4 S.C.R. 245, at paras. 121 and 125-33). Although the constitutionality of applying limitations statutes to Aboriginal right and treaty claims was never addressed in these authorities, they recognized that such claims are subject to the general limitation periods of the province in which the action was commenced if captured by the respective limitations statute (Woodward, at § 20:18; J. T. S. McCabe, *The Law of Treaties Between the Crown and Aboriginal Peoples* (2010), at p. 421).

Throughout this appeal, Canada drew attention to other means of advancing reconciliation and restoring the nation-to-nation relationship, including through negotiations and the Specific Claims Tribunal (R.F., at paras. 71-74). This Court has previously acknowledged the importance of reconciliation efforts outside of the courts and these processes may be meaningful to addressing the Crown's breach of its obligations to the Blood Tribe (see, e.g., *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5 ("C-92 Reference"), at paras. 76-78; *Delgamuukw*, at para. 186; *Desautel*, at para. 87, quoting S. Grammond, *Terms of Coexistence, Indigenous Peoples and Canadian Law* (2013), at p. 139). In light of the prospect of future reconciliation efforts, it is necessary for this Court to consider the remaining relief sought by the Blood Tribe in its court action.

D. The Availability and Scope of Declaratory Relief

In its action, the Blood Tribe seeks declaratory relief. At trial, the Blood Tribe sought, among other claims, a declaration that the Crown breached the TLE (C.A. reasons, at paras. 3 and 31). The Crown has subsequently conceded it breached its treaty obligation with respect to the Blood Tribe's land entitlement (R.F., at para. 2). At the hearing of this appeal, the Crown conceded that declaratory relief may be appropriate and could assist with reconciliation efforts with the Blood Tribe (transcript, at pp. 111-16).

The law of limitations set out above does not preclude a declaration in this matter. Although claims for personal relief or damages flowing from treaty breaches may be subject to limitations statutes, limitations legislation cannot bar courts from issuing declarations on the constitutionality of the Crown's conduct. (Manitoba Metis, at paras. 135, 137, 139 and 143). At issue here is a constitutionally protected treaty right and the honour of the Crown, itself a constitutional principle (para. 136). This Court has recognized that declarations can be obtained to assist with extra-judicial negotiations with the Crown even where personal relief may be statute-barred as discussed below (para. 137).

Declaratory relief is warranted in this appeal. This Court has the authority to grant the judgment that the courts below should have ordered (Supreme Court Act, R.S.C. 1985, c. S-26, s. 45). The courts below had the authority to provide the declaratory relief sought by the Blood Tribe (Federal Courts Rules, SOR/98-106, r. 64; Federal Courts Act, at ss. 2(1), 17(1), 52(b)(i)). This section analyzes the nature of declaratory relief, identifies its value in breach of treaty cases, and explains why it is warranted in the circumstances of this appeal.

(1) The Discretionary Nature of Declaratory Relief

Declarations are "authoritative statements of legal states of affairs" (S. A. Smith, Rights, Wrongs, and Injustices: The Structure of Remedial Law (2019), at p. 15; Lord Woolf and J. Woolf, The Declaratory Judgment (4th ed. 2011), at pp. 1-2). A bare declaratory judgment does not grant consequential or coercive relief. Indeed, "[t]he essence of a declaratory judgment is a declaration, confirmation, pronouncement, recognition, witness, and judicial support to the legal relationship between parties without an order of enforcement or execution" (L. Sarna, The Law of Declaratory Judgments (4th ed. 2016), at p. 6).

Declarations set out the parameters of a legal state of affairs or the legal relationship between the parties. They primarily confirm or deny the legal rights of the parties. Importantly, declarations can also confirm or deny the breach of a right or declare the existence of a new legal state of affairs (see, e.g., Manitoba Metis, at paras. 6 and 154; Smith, at p. 15).

Declaratory relief is a discretionary remedy (S.A. v. Metro Vancouver Housing Corp., 2019 SCC 4, [2019] 1 S.C.R. 99, at para. 60; Ewert v. Canada, 2018 SCC 30, [2018] 2 S.C.R. 165, at para. 83). Courts have an "extremely wide jurisdiction" when issuing declaratory relief (Sarna, at p. 37; R. Zakrzewski, Remedies Reclassified (2005), at p. 158). This discretion is not without limits, and this Court has set out criteria that inform the availability of declaratory relief. In Ewert, this Court stated: "A court may, in its discretion, grant a declaration where it has jurisdiction to hear the issue, where the dispute before the court is real and not

theoretical, where the party raising the issue has a genuine interest in its resolution, and where the respondent has an interest in opposing the declaration sought . . .” (para. 81). Courts have long relied on these criteria for assessing the availability of declaratory relief (see, e.g., *S.A.*, at para. 60; *Daniels v. Canada* (Indian Affairs and Northern Development), 2016 SCC 12, [2016] 1 S.C.R. 99, at para. 11; *Canada (Prime Minister) v. Khadr*, 2010 SCC 3, [2010] 1 S.C.R. 44, at para. 46).

Declarations should not be issued where there is no practical effect. As noted by this Court in *Solosky v. The Queen*, [1980] 1 S.C.R. 821, at p. 832, “a declaration will not normally be granted when the dispute is over and has become academic, or where the dispute has yet to arise and may not arise”. The importance of practical utility is well established, including through the following excerpts from academic commentary:

A declaration must serve some utility to the parties; otherwise, the court speaks for no reason befitting its jurisdiction. Therefore a court should avoid issuing a declaration devoid of tangible or concrete use to the litigants. (*Sarna*, at p. 46)

The courts will not generally grant a declaration that is merely advisory, of no practical utility, or deals with a hypothetical dispute. . . . [A declaration] may also serve a corrective function in that it may authoritatively demonstrate to the defendant that he or she is infringing the claimant’s rights.

(*Zakrzewski*, at p. 159)

It is essential that the declaration be directed to the determination of legal controversies and produces some real consequences for the parties.

(*D. Wright, Remedies* (2nd ed. 2014), at p. 284)

As noted by the majority of the British Columbia Court of Appeal in *West Moberly First Nations v. British Columbia*, 2020 BCCA 138, 37 B.C.L.R. (6th) 232, at para. 343, “there is no obligation in the law of declaratory relief to litigate the range of a declaration’s effects. The question is simply whether the declaration will have practical utility” (emphasis added).

(3) The Value of Declaratory Relief in Breach of Treaty Cases

Declaratory relief takes on a “unique tenor” in the context of Aboriginal and treaty rights because it is a means by which a court can promote reconciliation to restore the nation-to-nation relationship (the Hon. M. Rowe and D. Shnier, “The Limits of the Declaratory Judgment” (2022), 67 McGill L.J. 295, at pp. 314 and 318). It relies in part on the government acknowledging the declaration promptly and acting honourably in determining the means for advancing reconciliation (*J. Teillet, “A Tale of Two Agreements: Implementing Section 52(1) Remedies for the Violation of Métis Harvesting Rights”, in M. Morellato, ed., Aboriginal Law Since Delgamuukw* (2009), 333, at pp. 340-41). That this assumption can be difficult in breach of treaty cases, as reconciliation efforts often follow decades of dishonourable Crown conduct and adversarial litigation, does not diminish the possible salutary effect of declarations.

The reconciliation process differs from the conflict driven, adversarial litigation process that is often antithetical to meaningful and lasting reconciliation. As the Court noted in Clyde River (Hamlet) v. Petroleum Geo-Services Inc., 2017 SCC 40, [2017] 1 S.C.R. 1069, at para. 24, “[t]rue reconciliation is rarely, if ever, achieved in courtrooms.” The Court has repeatedly emphasized the importance of reconciliation between Indigenous peoples and the Crown outside of the courts (see, e.g., C-92 Reference, at para. 77; Desautel, at para. 87; Haida Nation, at para. 20; British Columbia (Minister of Forests) v. Okanagan Indian Band, 2003 SCC 71, [2003] 3 S.C.R. 371, at para. 47).

Reconciliation can be fostered by declaratory relief. The non-coercive nature of declaratory relief can help “the parties to the dispute to resolve the issues without an excessively hostile or adversarial approach” and can help to restore the honour of the Crown (Sarna, at p. 178). Academic commentary has recognized that this approach “is especially appropriate given the non-adversarial, trust-like relationship Canadian governments are supposed to have with Aboriginal people” (K. Roach, Constitutional Remedies in Canada (2nd ed. (loose-leaf)), at § 15:31). Avoiding expensive, lengthy, and adversarial litigation is an important step for reaching reconciliation-oriented results where Aboriginal and treaty rights are at issue.

In Aboriginal and treaty rights claims, declaratory relief can assist in providing a clear statement on the legal rights of Indigenous parties, the duties placed on the Crown, and the Crown’s conduct in relation to those sacred promises. Clarity on these rights, duties, and conduct can help to uphold the honour of the Crown, guide the parties in the reconciliation process mandated by s. 35(1) of the Constitution Act, 1982, and assist with efforts to restore the nation-to-nation relationship.

Declarations in the context of breach of treaty claims can serve a corrective function by authoritatively demonstrating that the Crown has infringed the Indigenous party’s rights (Zakrzewski, at p. 159). A clear statement setting out the Crown’s infringement of an Indigenous party’s rights may spur reconciliation efforts between the parties to address the wrongs suffered. Declaratory relief is not meant to represent the end of the reconciliation process for the Crown’s breach of Treaty No. 7: it merely helps set the stage for further efforts at restoring the nation-to-nation relationship and the honour of the Crown.

(3) Declaratory Relief Is Warranted for the Blood Tribe

Canada breached its treaty promises to the Blood Tribe. Canada did not provide the land as promised: 162.5 fewer square miles were set aside than should have been. In 1883, the Lieutenant Governor of the North-West Territories instructed the surveyor to change the boundaries of the Reserve contrary to Canada’s treaty commitments. Crown representatives subsequently made false representations to the Blood Tribe that the TLE was fulfilled including in an 1888 letter stating that the Reserve “contained far more than [the Blood Tribe] were entitled to” (trial reasons, at para. 459). The discrepancy was never remedied or acknowledged and it was only through the efforts of a Blackfoot researcher from 1969 to 1971 that the extent of the Crown’s misconduct in relation to the TLE became known. This conduct is deplorable and does not reflect the fundamental objective of the modern law of

treaty rights, which is the reconciliation of Indigenous and non-Indigenous peoples and their respective claims, interests, and ambitions (Mikisew Cree First Nation, at para. 1). In oral submissions before this Court, the Crown acknowledged that its breach of the Treaty was “very serious”, “dishonourable”, and even “unconscionable” (transcript, at pp. 95-96).

Treaty promises were intended to be honoured so long as the sun rises and river flows. They are “vital, living instruments of relationship” and the Crown is assumed to intend to fulfill these integral promises (Report of the Royal Commission on Aboriginal Peoples, vol. 1, at p. 128; Badger, at para. 41; Manitoba Metis, at para. 79; Haida Nation, at paras. 19-20). By disregarding its commitments in Treaty No. 7, Canada failed to uphold and appreciate the sacred nature of its promises.

Several considerations support the exercise of discretion to grant declaratory relief with that context in mind. Prior authorities of this Court have set out the criteria that establish whether a declaration may be warranted (see, e.g., S.A., at para. 60; Ewert, at para. 81). Those criteria are satisfied here, and the particulars of the appeal before us further support the exercise of discretion by this Court to award declaratory relief. There is no dispute that this Court has jurisdiction to hear the issue or that the Blood Tribe has a genuine interest in resolving the issue. The analysis below is thus limited to whether there is practical utility in granting a declaration and whether the Crown has an interest in opposing the declaration (S.A., at para. 60; Ewert, at para. 81).

A declaration in this context will have a practical effect. The Crown’s dishonourable breach of Treaty No. 7 is ongoing and the fractured relationship between the Crown and the Blood Tribe should be resolved through continued reconciliation efforts. This is not a situation where a declaration would be devoid of tangible or concrete use or could be viewed as “fictitious or academic” (Solosky, at p. 831). The declaration will be relied on to outline the Crown’s past dishonourable conduct in relation to Treaty No. 7. Declaratory relief may also serve a corrective function in these circumstances as it authoritatively demonstrates that Canada breached the Blood Tribe’s treaty rights, which can help to advance reconciliation. Any uncertainty over whether reconciliation efforts will be successful for strengthening the nation-to-nation relationship does not diminish the practical utility of the declaration (West Moberly, at paras. 321-24 and 331).

The declaration sets out the Crown’s conduct and guides the parties towards the reconciliation process. The rights of the Blood Tribe are guaranteed by Treaty No. 7 itself and constitutionally recognized and affirmed by s. 35(1) of the Constitution Act, 1982. Further, declaratory relief of this nature aligns with and advances the constitutional imperative of reconciliation. A declaration in this context is not a statement of “[d]etached facts” or “general pronouncements of law” (West Moberly, at paras. 312 and 336; see, e.g., Yahey v. British Columbia, 2021 BCSC 1287, 43 C.E.L.R. (4th) 1, at paras. 1876-77 and 1884; 1472292 Ontario Inc. (Rosen Express) v. Northbridge General Insurance Company, 2019 ONCA 753, 96 C.C.L.I. (5th) 1, at paras. 30-31).

The dispute between the Crown and the Blood Tribe is real and not academic. The Crown has opposed the declaration being sought by the Blood Tribe at almost every stage of this litigation. The dispute is grounded in an extensive and contested

factual matrix regarding the Crown's commitments under Treaty No. 7 and the size of the TLE. The Crown contested that it breached its obligations under Treaty No. 7 when the action was commenced in 1980. This issue remained in dispute for decades, resulting in a lengthy and complex trial before the Federal Court and a holding that Canada breached its treaty commitments. Declaratory relief was sought by the Blood Tribe in its statement of claim to resolve the live conflict on this issue through legal action (C.A. reasons, at para. 3).

Before this Court, the Crown concedes its breach of the TLE and that a declaration may be an appropriate remedy. Accordingly, it could be said the Crown no longer has an interest in opposing the declaration sought with respect to the final criteria for declaratory relief. However, enabling this belated concession to foreclose the possibility of declaratory relief would privilege form over substance with respect to the nature of the "real" dispute before us, and would overlook the protracted nature of the dispute that led the parties to this point. As such, I am not persuaded that this concession, at the eleventh hour of this litigation and in the context of the Crown's vigorous opposition to any relief in these proceedings, should now prevent this Court from issuing a declaration.

Ultimately, a declaration is a discretionary remedy that must be considered within the unique context of the legal dispute at issue. The considerations analyzed above support the issuance of declaratory relief in these circumstances. These considerations must be assessed through the lens of decades of disagreement between the parties on the scope of the treaty promises owed to the Blood Tribe that culminated in extensive litigation. The Blood Tribe and the Crown have been involved in a contentious and adversarial litigation process culminating in an appeal to this Court, not an "academic", "hypothetical", or "theoretical" dispute (Solosky, at pp. 832-33; S.A., at para. 60). Declaratory relief will serve an important role in clarifying the Blood Tribe's TLE, identifying the Crown's dishonourable conduct, assisting future reconciliation efforts, and helping to restore the honour of the Crown.

The Blood Tribe is entitled to the following declaration in light of these considerations and context:

Under the treaty land entitlement provisions of Treaty No. 7, the Blood Tribe was entitled to a reserve equal to 710 square miles in area;

The Blood Tribe's current reserve is 162.5 square miles smaller in area than what was promised in Treaty No. 7; and

Canada, having provided the Blood Tribe with a reserve of 547.5 square miles in area, dishonourably breached the treaty land entitlement provisions of Treaty No. 7.

[352] Ergo, even though certain courts in Ontario have the discretion to grant the remedy of a declaratory judgment or declaratory relief in respect to Aboriginal Peoples' treaty rights, the Provincial Offences Court is not one of those courts that have been empowered to grant the equitable remedy of a declaratory judgment or declaratory

relief. The power to grant equitable remedies in the Province of Ontario has been provided only to the Superior Court of Justice of Ontario or the Court of Appeal for Ontario under ss. 96(3) and 97 of the Courts of Justice Act, R.S.O. 1990, c. C.43.

- [353] To restate, in respect to the power to grant prerogative writs or equitable remedies, the Provincial Offences Court is a statutory court and not a court of general, inherent jurisdiction, and as such, the Provincial Offences Court only can use powers that have been granted to it by the relevant governing legislation. The power to grant the equitable remedy of declaratory judgments or declaratory relief has not been bestowed on the Provincial Offences Court under the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, or the Highway Traffic Act, R.S.O. 1990, C. H.8. Furthermore, as the Provincial Offences Court is not a court with general, inherent jurisdiction, then even if this court had found it legally appropriate to make a declaration that the Mohawk Nation had received title in fee simple to the Haldimand Tract under the “Haldimand Proclamation of 1784”, along with the corresponding consequence that the Mohawk Nation would have sovereignty over the lands comprising the original Haldimand Tract, this declaration would have no precedential effect or apply to any other person, as this court can only render decisions with respect to the defendants’ *Highway Traffic Act* charges or in respect to any incidental Charter issues that are only pertaining to the defendants’ charges. Ergo, the defendants’ motion for the implicit equitable remedy of “declaratory judgment” or “declaratory relief” would have to be dismissed, since the Provincial Offences Court is not empowered to grant equitable remedies.

4. DISPOSITION ON PRE-TRIAL MOTIONS

- [354] Accordingly, for the reasons mentioned in Part 2 of these written reasons, the Provincial Offences Court in Brantford, Ontario, has the legal and territorial jurisdiction and the authority to try the Highway Traffic Act charges that are set out in the three Part I Certificates of Offences that were issued to both defendants, Benjamin Doolittle and Tammy Duboy, respectively, on December 22, 2022. This jurisdiction is based on the territorial location of where the offences had occurred, which were allegedly in the County of Brant in the Province of Ontario. The territorial jurisdiction of the Provincial Offences Court in the City of Brantford encompasses provincial offences that are committed in the County of Brant. Moreover, the location of where the defendants’ alleged offences had occurred is not on territory which is outside the jurisdiction of the Province of Ontario, nor were the alleged Highway Traffic Act offences committed on private property, but allegedly on an Ontario highway. But more importantly, the Provincial Offences Court is bound by the principle of *stare decisis* and must follow the Court of Appeal for Ontario’s decision in *Isaac et al. v. Davey et al.*, (1975), 5 O.R. (2d) 610, which has determined that only a beneficial interest and exclusive use of the Haldimand Tract had been granted to Six Nations, and not ownership or legal title in fee simple, under the “Haldimand Proclamation of 1784” and that the “Haldimand Proclamation of 1784” had not been a treaty negotiated between the British Crown and the Six Nations Confederacy.

- [355] However, this court also recognizes that the Court of Appeal's decision in Isaac et al. v. Davey et al., had been decided prior to the enactment of the Constitution Act, 1982 and the Supreme Court of Canada's judgments in R. v. Sparrow, in Haida Nation, and recently in Shot Both Sides v. Canada, which recognizes and promotes the principles of "reconciliation" outside the courts; which held that "negotiation" is based on the the "honour of the Crown"; which held that the relationship between the Government and Indigenous Peoples are trust like, rather than adversarial; which held that the Government has the responsibility to act in a fiduciary capacity with respect to Indigenous Peoples; which held that the Crown has *de facto* sovereignty over the traditional lands of Indigenous Peoples; which held that Crown sovereignty would not be legitimate until it is reconciled with pre-existing Indigenous sovereignty through honourable negotiations leading to treaties; which had utilized the courts' ability to promote reconciliation in order to restore the nation-to-nation relationship; which had utilized remedies of declaratory relief in Indigenous Peoples' claims to recognize the dishonourable conduct of the Crown in their dealings with Indigenous Peoples; and by requiring the Crown adhere to the reconciliation process mandated by s. 35(1) of the Constitution Act, 1982. But more importantly, in respect to the case at bar, the Supreme Court did not decide on the issue of sovereignty in respect to the Six Nations and the Haldimand Tract when the Court of Appeal's decision in Isaac et al. v. Davey et al. had been appealed to the Supreme Court of Canada. The Supreme had decided the Isaac et al. v. Davey et al. appeal on different grounds than on the issue of whether the Haldimand Proclamation of 1784 had granted legal title in fee simple to the Six Nations' Confederacy. Ergo, that question may still need to be decided by the Supreme Court of Canada, considering that the British Crown may have acted dishonourably in their dealings with the Six Nations of the Grand River with respect to the Haldimand Tract.
- [356] Furthermore, under Part 1 of these written reasons, the defendants' motion to remove the prosecutor for misconduct is dismissed as the prosecutor's conduct of forwarding disclosure to the defendants as part of her legal duty and obligation to do so, even though the defendants had waived their right to receive disclosure from the prosecution with the original prosecutor, had been an unintended error and is not conduct of the nature that would prejudice the defendants or cause an unfair trial.
- [357] In addition, under Part 3 of these written reasons, the Provincial Offences Court is a statutory court and not a court of general, inherent jurisdiction, so its powers are limited by what has been granted to it under the relevant enabling and governing legislation. The prerogative writs or equitable remedies that the defendants' seek, such as "declaratory relief", an order for "mandamus", an order for "injunctive relief" or a writ of "prohibition", or an accounting of the Crown for "unjust enrichment", are remedies or powers that have not been granted to the Provincial Offences Court under the Courts of Justice Act, R.S.O. 1990, c. C.43, the Provincial Offences Act, R.S.O. 1990, c. P.33, or the Highway Traffic Act, R.S.O. 1990, C. H.8. These motions seeking these prerogative writs or equitable remedies would have to be

brought in a superior court with general, inherent jurisdiction, but the defendants' Highway Traffic Act charges would remain in the Provincial Offences Court in the City of Brantford, the proper court of original jurisdiction. Under s. 140(1) of the Provincial Offences Act, the Superior Court of Justice of Ontario had been provided with the discretionary power to grant the prerogative remedies of mandamus, prohibition, and certiorari. In addition, the power to grant equitable and declarative relief has been given only to the Superior Court of Justice of Ontario and the Court of Appeal for Ontario, by virtue of ss. 96(3) and 97 of the Courts of Justice Act. Therefore, as the Provincial Offences Court has not been granted the power to grant prerogative remedies or equitable or declarative relief, and since the basis of the defendants' motions requesting such relief have only a modicum of a tangential nexus to the prosecution of the defendants' Highway Traffic Act charges, then for the reasons set out in Part 3 of the written reasons, those motions will be dismissed.

[358] Consequently, all 18 of the defendants' pre-trial motions are dismissed and the trial will proceed in the Provincial Offences Court in the City of Brantford at a date to be determined.

Dated at the City of Brantford on September 30, 2024.

QUON J.P.
Ontario Court of Justice